

MEMOIRS
OF THE REIGN OF
KING GEORGE THE SECOND.

BY
HORACE WALPOLE,
YOUNGEST SON OF SIR ROBERT WALPOLE, EARL OF ORFORD.

EDITED, FROM THE ORIGINAL MSS.
WITH A PREFACE AND NOTES,
BY THE LATE
LORD HOLLAND.

Second Edition, Revised.
WITH THE ORIGINAL MOTTOES.

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The List of Illustrations has been copied from Volume I. This list describes six illustrations, two in each volume.

As the Editor notes in his Preface in Volume I, "Some, though very few, coarse expressions, have been suppressed by the Editor, and the vacant spaces filled up by asterisks." There is one such occurrence in this volume (on [page 205](#)). Some omitted text is indicated by * * * (on [page 416](#).)

The Editor has also inserted the occasional [word] in brackets, when that makes the passage more sensible.

Footnote anchors are denoted by [number], and the footnotes have been placed at the end of each chapter.

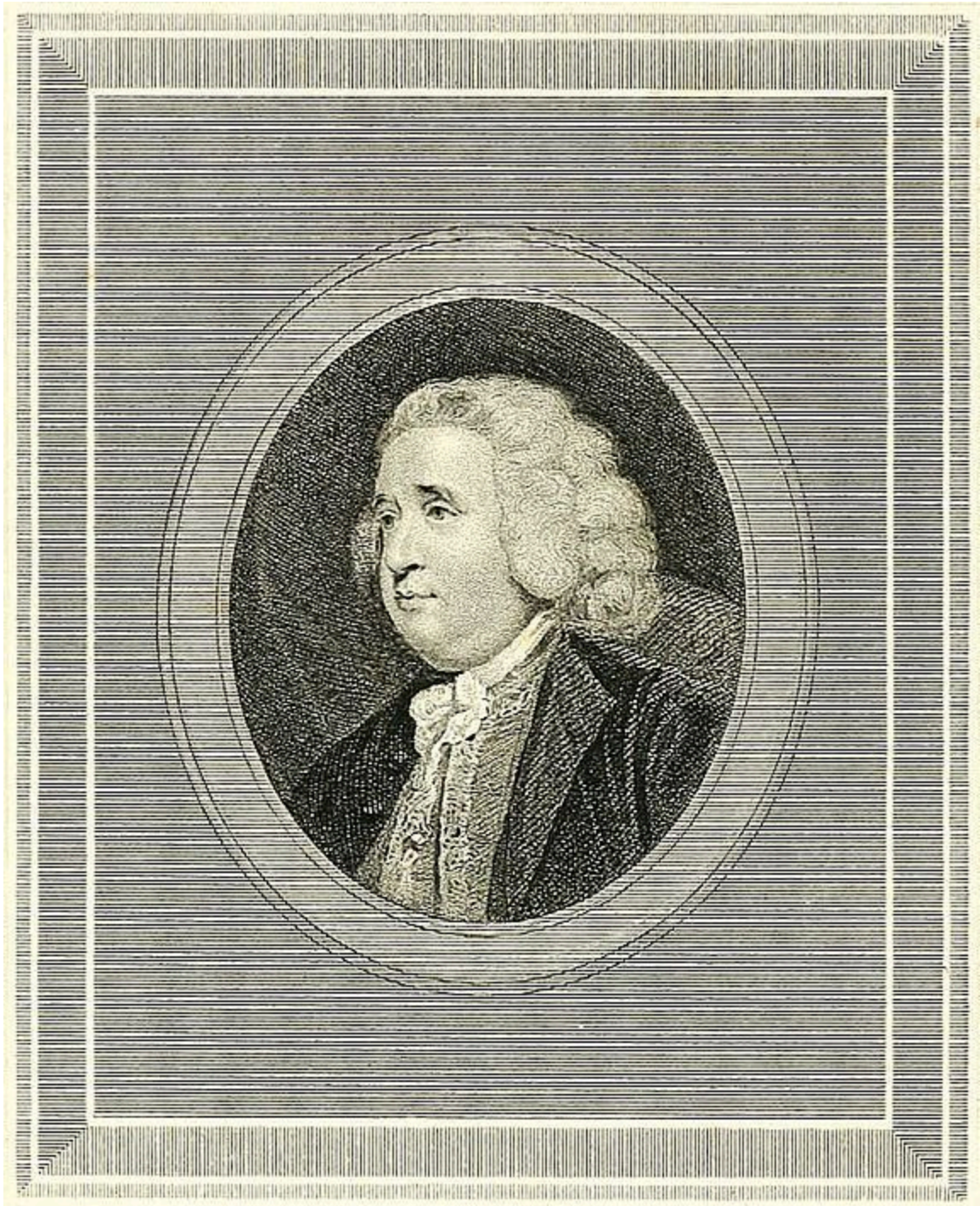
Some minor changes to the text are noted at the [end of the book](#).

M E M O I R S

OF THE REIGN OF

KING GEORGE THE SECOND.

VOL. II.



MR. FOX.
London, Henry Colburn, 1846.

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M E M O I R S
OF THE REIGN OF
KING GEORGE THE SECOND.

1755.

Invenies etiam disjecti membra.—*Hor.*

CHAPTER I.

Fruitlessness of our efforts to maintain Peace with France at the commencement of the year 1755—Lord Hartington, Lord Lieutenant of Ireland—Debate on King Charles's Martyrdom—Scotch Sheriff-Depute Bill—Speeches in the House of Commons—The St. Michael Election—History of Earl Powlett—Preparations for War—The King's Journey to Hanover—Duke of Cumberland at the head of the Regency—Affairs of Ireland.

The tranquillity of the Administration continued to be disturbed by repeated accounts of great armaments preparing in France for the West Indies; of which General Wall was believed to have given us the first intimation. Their marine grew formidable, but their insults unwisely outstripped their increasing power. We took the alarm; two regiments were ordered from Ireland; and by the beginning of February a fleet of thirty ships of the line was fitted out with equal spirit and expedition. Lord Anson had great merit in that province where he presided. The Earl of Hertford, a man of most unblemished morals, but rather too gentle and cautious to combat so presumptuous a Court, was named Ambassador to Paris, whither Monsieur de Mirepoix was desired to write, that if they meant well, we would send a man of the first quality and character.

The Duke of Marlborough succeeded Lord Gower in the Privy Seal, and the Duke of Rutland, a nobleman of great worth and goodness, returned to Court, which he had long quitted, yet without enlisting in any faction, though governed too much by a mercenary brother; and was appointed Lord Steward.

France sent a haughty answer, accompanied with these inadmissible proposals; that each nation should destroy all their forts on the south of the Ohio, which would leave them in possession of all the north side of that river; and whereas the Five Nations were allotted to the division of England by the Treaty of Utrecht, and the French had built forts amongst them contrary to that Treaty, and we agreeably to it, they demanded that we should destroy such forts, while they should be permitted to maintain theirs. Lord Hertford's journey was suspended; at the same time that his brother, Colonel Conway, rose merely on the basis of his merit to a distinguished situation, entirely unsought, uncanvassed. The Ministry had perceived that

it was unsafe to venture Ireland again under the Duke of Dorset's rule; and they had fixed on Lord Hartington to succeed, as the most devoted to their views, and as the least likely, from the wariness of his temper, to throw himself into the scale of either faction. He refused to accept so uncommon an honour, unless Mr. Conway, with whom he was scarce acquainted, would consent to accompany him as Secretary and Minister. Mr. Conway's friends would not let him hesitate.

January 29th.—Mr. Fox having proposed that the House should sit the next day, to read some Bill for which the time pressed, the Speaker urged the Act of Parliament that sets apart that day for the commemoration of what is ridiculously termed *King Charles's Martyrdom*. It occasioned a warm squabble between the Speaker and Fox, and between Sir George Lyttelton^[1] and General Mordaunt; and though Sir Francis Dashwood talked of moving for a repeal of the Act, the Speaker prevailed for observing the solemnity. One can scarce conceive a greater absurdity than retaining the three holidays dedicated to the house of Stuart. Was the preservation of James the First a greater blessing to England than the destruction of the Spanish Armada, for which no festival is established? Are we more or less free for the execution of King Charles? Are we at this day still guilty of his blood? When is the stain to be washed out? What sense is there in thanking Heaven for the restoration of a family, which it so soon became necessary to expel again? What action of Charles the Second proclaimed him the—Sent of God? In fact, does not the superstitious jargon, rehearsed on those days, tend to annex an idea of sainthood to a worthless and exploded race? and how easy to make the populace believe, that there was a divine right inherent in a family, the remarkable events of whose reigns are melted into our religion, and form a part of our established worship!

February 20th.—The new Lord Advocate of Scotland moved that the Bill, passed seven years before, for subjecting their Sheriffs-depute to the King's pleasure during that term, and which was on the point of expiring, after which they were to hold their offices for life, should continue some time longer on the present foot. It was opposed with great eloquence and knowledge by one Elliot, a young Scotch civilian, lately chosen into Parliament. The measure had been one of the steps taken after the late

Rebellion, to create greater dependence on the Crown, and to empower it to commit places of trust to more loyal hands, as it should be found necessary.

26th.—The House went again upon the Scotch Bill. Charles Townshend warmly opposed the Ministerial plan, urged that the independence of the Sheriffs-depute was a case connected with every thing sacred, and hoped that the most habitually-attached to a Ministry, who are generally the most unfeeling, would think on this. What signifies the best constitution, if the Judges [are] not independent, and their judgments [not] impartial? If the people are oppressed, what matters it by whom? That this alteration was a breach of faith to Scotland—that these Sheriffs are formed according to the claim of right, and to the Act of Settlement; would not the King have sufficient power over them if they were to hold their offices only *quam diù se benè gesserint*? that he was sorry to see *that* basis shaken, on which this Administration stands, or it ought to stand on none. That this will be regarded with fear and amaze; with fear, for the people will not know what is to follow, or whether this is not an attempt to try how far they will bear: with amaze, for Murray had pronounced that there was not one Jacobite left in Scotland. That he neither meant ambition nor courted popularity, but looked upon himself as an executor of those who had planned the Revolution.

Lord George Sackville replied well, and ridiculed the importance with which Mr. Townshend had treated so immaterial a business, the utmost extent of the jurisdiction of the Sheriffs not extending to decide finally upon property of above the value of 12*l*. Yet, whoever had come into the House, not knowing the subject, would have concluded that a question was agitating for taking away the Judges from Westminster-hall. The lawyers, he said, were not agreed as to the extent of their criminal jurisdiction: in cases of treason, it is agreed, they have none. That the Sheriffs-depute, if supported by military authority, might have suppressed the last Rebellion. With such resources for good, and so tied up from ill, would you not entrust the disposition of them with the Crown? The more this family encroaches illegally, the more they lessen their tenure in the Crown. But this measure was taken at the request of the people of Scotland; have any there petitioned against it? Nor is it a breach of faith, for one Parliament may correct the acts of a preceding.

The Attorney-General laboured, in a speech extremely artful, to convince the Speaker, whose Whig spirit had groaned over this attempt, that it was no breach of the principles of the Revolution; and he insisted that it was by no means the sense of Scotland, that these little magistrates should be for life. He owned, that Judges, who are to decide on questions of State, should be for life, as in cases of treason, where it is not fit to trust the Crown with its own revenge; in cases of charters, &c.; but it is not necessary to be so strict in mere cases of *meum* and *tuum*. Even Charles, and James the Second, permitted other Judges to be for life, as the Master of the Rolls, the Judge of the Marshalsea, &c., because the Crown could remove trials into the King's Bench.

This, with many more details of law, too long to rehearse, were poorly answered by Lord Egmont; by Pitt, with great fire, in one of his best-worded and most spirited declamations for liberty, but which, like others of his fine orations, cannot be delivered adequately without his own language; nor will they appear so cold to the reader, as they even do to myself, when I attempt to sketch them, and cannot forget with what soul and grace they were uttered. He did not directly oppose, but wished rather to send the Bill to the Committee, to see how it could be amended. Was glad that Murray would defend the King, only with a salvo to the rights of the Revolution; he commended his abilities, but tortured him on his distinctions and refinements. He himself indeed had more scruples; it might be a Whig delicacy—but even that is a solid principle. He had more dread of arbitrary power dressing itself in the long robe, than even of military power. When master principles are concerned, he dreaded accuracy of distinction: he feared that sort of reasoning: if you class everything, you will soon reduce everything into a particular; you will then lose great general maxims. Gentlemen may analyze a question till it is lost. If I can show him, says Murray, that it is not My Lord Judge, but Mr. Judge, I have got him into a class. For his part, could he be drawn to violate liberty, it should be *regnandi causâ*, for this King's reigning. He would not recur for precedents to the diabolic divans of the second Charles and James—he did not date his principles of the liberty of this country from the Revolution: they are eternal rights; and when God said, "*let justice be justice*," he made it independent. The Act of Parliament that you are going to repeal is a proof of the importance of Sheriffs-depute: formerly they were instruments of tyranny. Why is this attempted? is it to make Mr. Pelham more regretted? He would

have been tender of cramming down the throats of people what they are averse to swallow. Whig and Minister were conjuncts he always wished to see. He deprecated those, who had more weight than himself in the Administration, to drop this; or besought that they would take it for any term that may comprehend the King's life; for seven years, for fourteen, though he was not disposed to weigh things in such golden scales.

Fox said, that he was undetermined, and would reserve himself for the Committee; that he only spoke now, to show it was not crammed down his throat; which was in no man's power to do. That in the Committee he would be free, which he feared Pitt had not left it in his own power to be, so well he had spoken on one side. That he revered liberty and Pitt, because nobody could speak so well on its behalf.

Nugent made an impertinent and buffoon speech, though not without argument, the tenour of which was to impeach professors of liberty, who, he said, (and which *he* surely could say on knowledge,) always became bankrupts to the public. He perceived, he said, that the House was impatient to rise—they were not worthy of liberty!—yet, what were they to stay to hear? vague notions of liberty, which my Lord Egmont could even admire in Poland, and in the dungeons of the Barons! The Craftsman^[2] and Common Sense, which had often very little common sense, had wound the notions of liberty too high. That he had read the Craftsman over again two years ago, and had found it poor stuff! that this was no more a breach of public faith, than the innovations which had been made in the Act of Settlement. Though the House sat till ten at night, no division ensued.

27th.—The Chancellor and Newcastle acquainted the Duke of Dorset that he was to return no more to Ireland. He bore the notification ill, and produced a letter from the Primate, which announced a calmer posture of affairs, and mentioned a meeting of the Opposition, at which no offensive healths had been suffered. Lord George Sackville, who was present, had more command of himself, and owned, that one temperate meeting did not afford sufficient grounds to say, that animosities were composed; and he agreed to the prudential measure of their not going over again. His father rejoined, that if the situation of affairs should prove to be mended, he hoped his honour might be saved, and he be permitted to return to his government. The next morning Andrew Stone conceded for his brother the Primate, who, he owned, was sufficiently elevated, and would be better without power. At

last the Duke of Dorset begged a little respite, and that the King might not yet be acquainted with the scheme. He wanted to fill up Malone's place of Prime Serjeant, and to obtain the dismissal of Clements.

The next business in Parliament did not deserve to be noticed for any importance in itself; the scenes, to which it gave rise, made it very memorable. Lord Sandwich, who could never be unemployed, but to whose busy nature any trifle was food, and who was as indefatigable in the election of an Alderman, as in a Revolution of State, had been traversed at Mitchel^[3] in Cornwall, a borough belonging to his nephew, by the families of Edgecombe and Boscawen. His candidates were returned by his intrigues, but a petition was lodged against them. He had scarce effected their return, but he applied to all parties for support, against the cause should be heard in Parliament; and had even worked so artfully as to engage the Chancellor on his side; and having once engaged him, pleaded his countenance, as a proof that it was a private affair, unconnected with party. Mr. Fox eagerly supported him as a creature of the Duke, which soon threw the whole into a cause of faction. The Duke of Newcastle at first did not appear in it; but Lord Lincoln, pretending to espouse the Edgecombes, commanded all their dependents to vote against Lord Sandwich. The second hearing of the petition was on the 28th, when Mr. Fox, attacking and attacked by the law, of which body was Hussey, one of the petitioners, beat four lawyers and Nugent, and carried a division by 26; in which he was aided by Potter, one of the tellers, who counted five votes twice.

The Tories, who had promised their votes indiscriminately as their affections led them, perceiving that this election was to decide whether Fox or Newcastle should carry the House of Commons, and that at least in this affair the members were nearly balanced, came to a sudden resolution of giving their little body importance, and at once, as if to add to their weight, threw all their passions and resentments into the scale. Northey, the representative of their anger, proposed to the Duke of Newcastle, that if he would give up the Oxford election, and dismiss both Fox and Pitt, they would support him without asking a single reward. The proposal was tempting—the Tories did not hate Fox and Pitt, the one for always attacking, the other for having deserted them, more than the Duke of Newcastle hated both for acting with him. The defect of the proposal was, that besides disgusting the whole body of Whigs by sacrificing the Oxford

election, the Jacobites would deprive his Grace of the two ablest speakers in the House, with all their followers, and could replace them with nothing but about a hundred of the silentest and most impotent votes. Though his Grace would have embraced a whole majority of mutes, he took care not to fling himself away on such a forlorn hope. This notable project being evaporated, the Tories were summoned, on the 5th of March, to the Horn Tavern. Fazakerley informed them that they were to take measures for acting in a body on the Mitchel election: he understood that it was not to be decided by the merits, but was a contest for power between Newcastle and Fox: whoever carried it, would be Minister: that he for every reason should be for the former. Beckford told him, he did not understand there was any such contest: that he did not love to nominate Ministers: were he obliged to name, he would prefer Mr. Fox. The meeting, equally unready at speeches and expedients, broke up in confusion. This business, however remarkable, does not deserve to be dwelt upon too long; and therefore I shall finish it at once, though it spun out near a month longer. Mr. Fox, who apprehended these Tory cabals, proposed to Murray a compromise of one and one; but Admiral Boscawen, the most obstinate of an obstinate family, refused it. Murray's friends suspected, that the Chancellor's unnatural support of Lord Sandwich was only calculated to inflame a division between Murray and Fox.

7th.—Sixty-two Tories met again at the Horn, where they agreed to secrecy, though they observed it not; and determined to vote, according to their several engagements, on previous questions, but not on the conclusive question in the Committee.

12th.—The last day in the Committee Lord Sandwich triumphed by 158 to 141. Of the Tories all retired but eight, who were equally divided. Forty of them, having omitted to summon twenty-nine, had met again to consider if they should adhere to their last resolution.

24th.—The morning of the report, the Tories met again at the Horn, and here took the shameless resolution of cancelling all their engagements, in order to defeat Fox. The merits of elections have long been out of the question: promises, private friendships, reasons of party, have almost always influenced in their decision. However, a decency was observed, and conscience always pretexted. It was reserved to the wretched remnant of the Tories, who having suffered most by, had been most clamorous against,

engagements and bias in elections, to throw off the mask entirely, and crown their profligacy by breach of promises. Only twelve of them stood to their engagements; the Duke of Newcastle, assisted by the deserters, ejected Lord Sandwich's members, by 207 to 183; the House, by a most unusual proceeding, and indeed by an absurd power, as the merits are only discussed in the Committee, setting aside what in a Committee they had decided.

I return to the Scotch Bill, which was finished in the foregoing month, after another long Debate, though the Ministry had given up the point of its being *durante benè placito*. Sir Francis Dashwood pronounced that the Revolution had not gone half far enough; and proposed to suspend the Act for seven years more. General Mordaunt, with his usual frankness, attacked the Scotch principles, and would extend the suspension for fifteen. Campbell, of Calder, a worthy man, and formerly of the Treasury, would have moderated for nine, lest it should seem that the suspension was perpetually to be renewed for seven years. His son warmly defended the Highlanders, and said, (what perhaps was no very great hyperbole,) that Middlesex contained more Jacobites than the Highlands. Elliot defended them still better, and called on Mordaunt for a local remedy, as he affirmed that twenty-five counties of thirty-three know nothing of, have nothing in common with, the Highlands: and he asked how it happened, that when the Duke could suppress the Rebellion pending the jurisdictions, the Ministry, with those and other impediments demolished, could not quash Jacobitism, though seven years had rolled away since the Rebellion? The Attorney-General said, he would yield to great authority, (the Speaker's,) would agree, though not convinced, as he saw everybody meant the same end, though by different means.

The Speaker uttered one of his pompous pathetics couched in short sentences; declared he was against the principle, as it was against the Revolution. It was against the principle of the constitution, of society, of liberty. No farther against the Revolution, than as it is against liberty. It always was true, it always will be. What is liberty, but that the people may be sure of justice? Other officers of justice should be for life like this; not this at pleasure, like others. If the Judge of Gibraltar decided on property, he should be for life. Shall the accidental union of the ministerial office and of police reduce this to their standard, and have the preference? We are all united with regard to the principle. If he thought that these last seven years

had united Scotland, he would not give a day more to this suspension. Would not have it thought that this Act is ever to be renewed; but when this additional term shall be expired, that the Sheriffs-depute are to be for life. Would say with that great man, Lord Somers, what I cannot have to-day I will be contented to have to-morrow. The people of Scotland are within our patronage; it is generous to make no distinction between them and our countrymen. Whoever thinks to preserve justice here by denying it there, is unjust. He would be content with suspending the Act for fifteen years for this once.

Fox replied, laughing at the Speaker, that he could not think these Judges of such a magnitude. If they were within the Speaker's description, he would not consent to subject them to the Crown for any term. That the Lord Chancellor is not for life, and yet nobody is discontent with his decisions on that account. That he was content to get to-day what he might have to-morrow too. That this was the truest triumph of Revolution principles, for it was the sound that triumphed, not the sense. That perhaps it was honourable deceit in those who opposed this; they made it serious, as they thought no harm could come from their opposition. That his deference for the Speaker was such, that he should even *malle cum Platone errare, quam cum cæteris rectè sentire*; but that if Plato did not err, if sense and reason were with him and his sect, it would be following sense and reason with so few, that for his part he chose to follow them no farther.

Pitt talked on the harmony of the day, and wished that Fox had omitted anything that looked like levity on this great principle. That the Ministry giving up the *durante benè placito* was an instance of moderation. That two points of the Debate had affected him with sensible pleasure, the admission that judicature ought to be free, and the universal zeal to strengthen the King's hands. That liberty was the best loyalty; that giving extraordinary powers to the Crown, was so many repeals of the Act of Settlement. Fox said shortly, that if he had honoured the fire of liberty, he now honoured the smoke. Dr. Hay, a civilian, lately come into Parliament with great character, began to open about this time: his manner was good; as yet he shone in no other light. Nugent declared that liberty was concerned in this question, just as Christianity had been in the Jew Bill—Oswald replied rudely, "If he will define to what species of Christianity he chooses to belong,"—but Nugent calling him to order, Oswald said, "My very expression admitted that he

was a Christian.” No division following, the Committee resolved that the suspension should be enacted for seven years.

March 6th.—The Marquis of Hartington was declared Lord Lieutenant of Ireland; and the same day, the Earl of Rochford, Minister at Turin, having been appointed to succeed the late Lord Albemarle, as Groom of the Stole; Earl Poulet, First Lord of the Bed-chamber, resenting that a younger Lord had, contrary to custom, been preferred to him, resigned his employment. He had served the King twenty years in that station; and yet his disgrace was not lamentable, but ridiculous. He did not want sense, but that sense wanted every common requisite. He had dabbled in factions, but always when they were least creditable; he had lived in a Court, without learning the very rudiments of mankind; and was formal upon the topics which of all others least admit solemnity. For about two months the town was entertained with the episode of his patriotism: it vented itself in reams of papers without meaning, and of verses without metre, which were chiefly addressed to the Mayor of Bridgewater, where the Earl had been dabbling in an opposition. His fury died in the fright of a measure which I shall mention presently.

25th.—Sir Thomas Robinson, by the King’s command, acquainted the Commons with the preparations of France for war, and demanded assistance. He did *not* inform them that there were actually then but three regiments in England, and that the Duke of Newcastle, from jealousy of the Duke’s nomination, would not suffer any more to be raised. Lord Granby and George Townshend moved the Address and a vote of credit. Doddington spoke with much applause on the insignificance into which Parliaments were dwindled, and of the inattention to public affairs. Every sentence trimmed between satire on, and a disposition towards, the Court: he concluded, “Let us carry the zeal of the people to St. James’s, with such spirit, that it may be heard at Versailles!” The torrent was for revenge; even Sir John Philipps felt against the French. Prowse desired it might be observed that we were advising a war. It was a puerile Debate. In the House of Lords, the Duke of Bedford attacked the inadvertence of the Ministry. The next day the Committee of Supply gave a million.

The Duke of Dorset was made Master of the Horse; but his faction did not fall without a convulsive pang. The primate and Lord Besborough sent a violent letter, to deny the report of their having quarrelled, and to demand

some more sacrifices. As Lord Besborough's son, Lord Duncannon, had married the new Lord Lieutenant's sister, the latter resented this symptom of attachment to the disgraced cabal. The King said, "It was the work of that ambitious priest, the Primate." And the Duke of Newcastle, to mark his own sacrifice of the Stones, solemnized their condemnation with a Latin quotation—*Quos Deus vult perdere, prius dementat*.

On the 10th, came advice that 20,000 French were ready to embark at the Isle of Rhee. Lord Rothes, and the officers on the Irish establishment, were ordered to their posts in that kingdom; whither Lord Hartington and Mr. Conway went, without ceremony, at the end of the month.

23rd.—At midnight was finished the Oxfordshire election, after hearings of near fifty days: the Jacobite members were set aside by 231 to 103.

It was the year in turn for the King to go to Hanover. The French armaments, the defenceless state of the kingdom, the doubtful faith of the King of Prussia, and, above all, the age of the King, and the youth of his heir at so critical a conjuncture, everything pleaded against so rash a journey. But, as his Majesty was never despotic but in the single point of leaving his kingdom, no arguments or representations had any weight with him. When all had failed, so ridiculous a step was taken to dissuade him, that it almost grew a serious measure to advise his going. Earl Poulet notified an intention of moving the House of Lords to Address against the Hanoverian journey. However, as the Motion would not be merely ridiculous, but offensive too, Mr. Fox dissuaded him from it. He was convinced; and though he had been disgraced as much as he could be, he took a panic, and intreated Mr. Fox and Lady Yarmouth to make apologies for him to the King. Before they were well delivered, he relapsed, and assembled the Lords, and then had not resolution enough to utter his Motion. This scene was repeated two or three times: at last, on the 24th, he vented his speech, extremely modified, though he had repeated it so often in private companies, that half the House could have told him how short it fell of what he had intended. Lord Chesterfield, not famous heretofore for tenderness to Hanover, nor called on now by any obligations to undertake the office of the Ministers, represented the impropriety of the Motion, and moved to adjourn. Lord Poulet cried, "My Lords, and what is to become of my Motion?" The House burst into a laughter, and adjourned, after he had divided it singly. The next day the Lord Chamberlain forbade him the

entrées; the Parliament was prorogued; and on the 28th, the King went abroad, leaving the Duke at the head of the Regency. This was thought an artful stroke of the Newcastle faction, as it would tie up Fox, who, by being a Cabinet Councillor, became a Regent too, from censuring, in the ensuing session, the measures of the summer, in which the Duke and he would necessarily be involved: but the truth was, that the Duke of Devonshire, terrified by old Horace Walpole at the thoughts of the King's going abroad, had proposed the Duke for sole Regent. The Duke of Newcastle, in a panic for his power, hurried to the King, and besought him to place the Duke only first in the Regency. In fact, the nomination of him for sole Regent might have been attended with this absurdity; had the King died abroad, the sole Regent must have descended from his dignity, to be at the head of the Council to the parliamentary sole Regent, the Princess.

On the 29th, it was known that the French squadron was sailed, and that our fleet was ordered to follow and attack them, if they went to the Bay of St. Lawrence, even though they designed for Louisbourg. It was a hardy step, and not expected by France: our tameness and connivance at their encroachments had drawn them into a false security; they could not believe us disposed to war, nor had calculated that it would arrive so soon: their debts were not paid, their fleets not re-established, their Ministry was divided, and the spirit of their Parliaments not abashed. These were advantages in our scale; but our incumbrances were not inferior nor dissimilar to theirs. Our debts were weighty, not to be wiped out by a *De-par-le-Roy*; our troops, our sailors were disbanded; our Ministry was weak and factious, if not divided; and, headed by the Duke of Newcastle's jealousy, how long could it preserve any stability?—Our Parliament, indeed, was not mutinous; it was ready to receive any impression.

Our state at home was most naked and defenceless: the Stuart party in Scotland was humbled, not extirpated; Ireland was in a state of confusion, swarming with Papists, and the Whigs ready to burst into a civil war—a single circumstance will show how little attention had been paid to the security of so considerable a dominion: the few muskets in the hands of the King's troops had been purchased, in the Duke of Devonshire's Regency, at Hanover, and were so carelessly or knavishly made, that the men dared not fire them at a common review, lest they should burst in their hands: a supply was forced to be sent at this juncture from the Tower. Lord

Hartington and Mr. Conway set out in haste for that kingdom, without awaiting the preparations for a new Lord Lieutenant's entry. He was received coolly, though visited by each party: the Speaker and Malone made him great promises of not obstructing the King's measures, and of even acquiescing to the litigated clause of the King's consent to the disposal of the surplus money; though they wished the question, if possible, might be avoided. Lord Hartington replied, he could not engage it should. For the Primate, he would impart only a proper share of power to him. The Opposition determined to pursue that Prelate; and the difficulty of appointing him of, or omitting him in, the Regency, prevented Lord Hartington from returning immediately to England, as was intended. Mr. Conway was sent alone, commissioned to obtain concessions to the Irish patriots, and to state the posture of affairs in such a light, as should force the Duke of Newcastle to withdraw his protection from the Primate. This was not to be demanded in form, though, unless conceded, Lord Hartington determined to resign the government: if obtained, the Lord Lieutenant proposed to deal more haughtily and sparingly with the Speaker's party on other points.

During Mr. Conway's absence, Lord Hartington was made to expect a conference with the Speaker, who kept in the country—several delays were invented—at last he came. The Marquis told him he should expect and had understood three things: that the supplies should be raised; the previous question dropped on both sides; that no censures should be passed on the late Administration. On his side, he would obtain the restoration of the Speaker to his employments, and of the rest, as occasion should offer: he engaged that the Primate should have no obnoxious power; and that all proper communication of Government should be made to the discontented. The Speaker professed that these offers would content himself, but feared would have no effect on his friends, unless they were promised that the Primate should not be left in the Regency. "That," replied the Marquis, "is more than I have authority to promise." The Speaker desired till next day to consult his friends. He returned with Malone; but no acquiescence could be drawn from them without such a promise. The Primate made a specious offer of sacrificing himself for the tranquillity, if it would not be prejudicial to the dignity, of the Government. How sincere this interlude of self-denial was on either side, will appear hereafter.

Mr. Conway prevailed on the Chancellor and the Duke of Newcastle to consent to this sacrifice, which Lord Kildare, through Mr. Fox, assured Mr. Conway would content him. Newcastle wrote to the Primate, to desire he would ask his own exclusion. He was thunderstruck: he had offered it, while depending on support from England—it was the last thing he was ready to do, if his resignation was to be accepted. As he neither wanted arts nor engines, and had so fair a field to exercise his abilities on, as the Lord Lieutenant, now destitute of Mr. Conway's advice, and beset by Lord Besborough, Mr. Ponsonby, and Lady Elizabeth, his wife, the Marquis's sister, the junto instilled a thousand fears into the Lord Lieutenant of falling into the power of the Speaker; and drove him to write, not only to his father and Mr. Conway, to object against discarding the Primate, but even to the Duke of Newcastle, and to propose the nomination of a Lord Deputy. This childish and contradictory step confounded Mr. Conway, and transported the Duke of Newcastle. The father-Duke and Mr. Fox wrote earnestly to the Marquis to persuade him to abandon the Primate: he yielded to their advice; yet was again whirled round to the interests of that faction; for, on Lord Kildare's returning to Ireland, and assuring Lord Hartington that his sole object was the disgrace of the Primate; the Marquis replied, that, as the Primate had supported the King's measures, and the Speaker had defeated them, he would not give up the one, and leave the other in the Regency; but offered to omit the Primate, provided Lord Kildare would come to him in form, and offer to relinquish the Speaker too. This was a master-stroke of the Churchman: he knew Lord Kildare did not love the Speaker: yet, being punctilious, the Earl replied, he could not take such a step on his own authority. I have chosen to throw these transactions together, though they took up some months in discussion, lest the reader should be perplexed by the frequent interruption of the narrative.

FOOTNOTES:

[1] He had formerly written a letter against a Bishop's sermon, which had carried very high the respect due to that day.

[2] Two Papers published weekly by the Opposition against Sir R. Walpole.

[\[3\]](#) [St. Michael, Cornwall.] E.

CHAPTER II.

Commencement of the War with France—War in America—Defeat and Death of General Braddock—Events at Sea—Fears for Hanover—Treaties made there—Dissensions in the Royal Family and in the Ministry—Disunion of Fox and Pitt—Ministers endeavour to procure support in Parliament—Fox made Secretary of State—Resignations and Promotions—Accession of the Bedford Party—Meeting of Parliament—New Opposition of Pitt—Debates on the Treaties—Pitt dismissed—Mr. Fox’s Circular to Members of Parliament—Debates on the number of Seamen.

July 15th, came news that three of Admiral Boscawen’s fleet, under the command of Captain Howe, had met, engaged, and taken three French men-of-war. The circumstances of this action were, that the three Frenchmen, on coming up with Howe, had demanded if it was, Peace or war? He replied, he waited for his Admiral’s signal; but advised them to prepare for war. The signal soon appeared for engaging: Howe attacked, and was victorious; but one of the French ships escaped in a fog: nine more were in sight, but, to the great disappointment of England, got safe into the harbour of Louisbourg. The Duke de Mirepoix had still remained in England, writing letters to his Court of our pacific disposition. The Duke of Newcastle, having nobody left at home undeceived, had applied himself to deceive this Minister; and had succeeded. On this hostile action, Monsieur de Mirepoix departed abruptly, without taking leave, and suffered a temporary disgrace at his own Court for his credulity. The Abbé de Bussy, formerly resident here, had been sent after the King to Hanover, with the civilest message that they had hitherto vouchsafed to dictate. Two days after he had delivered it, a courier was dispatched in haste to prevent it, and to recall him, upon the notice of our capture of the two French ships. *They had meditated the war; we began it.* They affected to call us pirates; their King was made to say, “*Je ne pardonnerai pas les pirateries de cette insolente nation.*” The point was tender, as we had at least prepared no alliances to give strength to such alertness. However, the stroke was struck; and it was deemed policy to follow up the blow. The Martinico fleet was returning: it occasioned great Debates in the Council, whether this too was not to be attacked; but the

danger of giving pretence to Spain to declare against us, if we opened the scene of war in Europe, preponderated for the negative. In America we were not so delicate: the next advices brought a conquest from Nova Scotia. About three thousand of our troops, under the command of Colonel Monckton, had laid siege to the important fort of Beau-sejour, and carried it in four days, with scarce any loss: two other small forts surrendered immediately.

These little prosperities were soon balanced by the miscarriage of our principal operation in that part of the world. A resolution had been taken here to possess ourselves of the principal French forts on the Ohio, and in those parts; and the chief execution was to be entrusted to two regiments sent from hence. The Duke, who had no opinion but of regular troops, had prevailed for this measure. Those who were better acquainted with America and the Indian manner of fighting, advised the employment of irregulars raised on the spot. Unhappily, the European discipline preponderated; and to give it all its operation, a commander was selected, who, though remiss himself, was judged proper to exact the utmost rigour of duty. This was General Braddock, of the Guards, a man desperate in his fortune, brutal in his behaviour, obstinate in his sentiments, intrepid, and capable. To him was entrusted the execution of an enterprise on Fort Duquesne. His appointments were ample; the troops allotted to him most ill chosen, being draughts of the most worthless in some Irish regiments, and disgusted anew by this species of banishment.

As I am now opening some scenes of war, I must premise that it is not my intention to enter minutely into descriptions of battles and sieges: my ignorance in the profession would lead *me* certainly, the reader possibly, into great mistakes; nor, had I more experience, would such details fall within my plan, which is rather to develope characters, and the grounds of councils, and to illuminate other histories, than to complete a history myself. Indeed, another reason would weigh with me against circumstantial relations of military affairs: I have seldom understood them in other authors. The confusion of a battle rarely leaves to any one officer a possibility of embracing the whole operation: few are cool enough to be preparing their narrative in the heat of action. Historians collect relations from these disjointed or supplied accounts; and, as different historians glean from different relations, and add partialities of their own or of their country,

it is seldom possible to reconcile their contradictions. The events of battles and sieges are certain; for of the *Te Deums* which are sometimes chanted on both sides, the mock one vanishes long before it can usurp a place in history. The decision of actions and enterprises shall suffice me.

At the beginning of July, Braddock began his march at the head of two thousand men. Having reached the Little Meadows, which are about twenty miles beyond Fort Cumberland, at Will's Creek, he found it necessary to leave the greatest part of his heavy baggage at that place, under Colonel Dunbar, with orders to follow, as he should find it practicable; himself, with about twelve hundred men and ten pieces of artillery, advanced and encamped on the 8th, within ten miles of Fort Duquesne. He was warned against ambuscades and sudden attacks from the Indians: as if it were a point of discipline to be only prepared against surprises by despising them, he treated the notice as American panics, and advanced, with the tranquillity of a march in Flanders, into the heart of a country where every little art of barbarous war was still in practice. Entering on the 9th into a hollow vale, between two thick woods, a sudden and invisible fire put his men into confusion; they fired disorderly and at random against an enemy whom they did not see, and with so little command of themselves, that the greater part of the officers fell by the shot of their own men, who, having given one discharge, retreated precipitately. In vain were they attempted to be rallied by their officers, who behaved like heroes, and by Braddock, who, finding his generalship exerted too late, pushed his valour to desperation; he had five horses killed under him, and fell. Of sixty officers, near thirty perished; as many were wounded. Three hundred men were left on the field. The General was brought off by thirty English, bribed to that service by Captain Orme, his Aide-de-camp, for a guinea and a bottle of rum a-piece. He lived four days, a witness to the effects of his own rashness and to his erroneous opinion of the American troops, who alone had stood their ground. He dictated an encomium on his officers, and expired. In one respect it was a singular battle, even in that country; there was no scalping, no torture of prisoners, no pursuit; our men never descried above fifty enemies. The cannon was fetched off by the garrison of Fort Duquesne; and among the spoil were found the Duke's instructions to Braddock, which the French published as a confirmation of our hostile designs. Colonel Dunbar hurried back in great precipitation with the heavier artillery on the first alarm from the fugitives.

What a picture was this skirmish of the vicissitude of human affairs! What hosts had Cortez and a handful of Spaniards thrown into dismay, and butchered, by the novel explosion of a few guns! Here was a regular European army confounded, dispersed by a slight band of those despised Americans, who had learned to turn those very fire-arms against their conquerors and instructors!

These enterprises on land were accompanied on our part by seizing great numbers of French vessels. Sir Edward Hawke was reprimanded for letting two East Indiamen pass; and repaired his fault by sending in two Martinico and two other ships; and these were followed by three rich captures from St. Domingo. The French with folded arms beheld these hostilities; and though our Admiralty issued Letters of Marque and Reprisal on the 29th of August, they immediately released the Blandford man-of-war, which, conveying Mr. Lyttelton to his new government of South Carolina, had been taken by some of their ships, who had not conceived that war on England and from England was not war with England. As late as the beginning of November, they persisted in their pacific civility, sending home ten of the crew of the Blandford, who had remained sick in France, and promising to dispatch another as soon as he should be recovered. Lord Anson, attentive to, and, in general, expert in maritime details, selected with great care the best officers, and assured the King that in the approaching war he should at least hear of no Courts-Martial. One happy consequence appeared of Sir Benjamin Keene's negotiations: the Spanish court refused positively to embark in the war, having, as they declared, examined the state of the question, and found that the French were the aggressors. Had Ensenada remained in power, it is obvious with what candour the examination would have been made.

But, in the midst of all this ostentation of national resentment, symptoms of great fear appeared in the Cabinet: while Britain dared France, its Monarch was trembling for his Hanover. As we had given so fatal a blow to the navy of France in the last war; as we were undoubtedly so superior to them in America; as we had no Austrian haughtiness to feed and defend; no Dutch to betray and counteract us, we had a reasonable presumption of carrying on a mere naval war with honour—perhaps with success. As all our force was at home; as our fleet was numerous; as Jacobitism had been so unnerved by the late Rebellion, we were much less vulnerable in our island than ever: Ireland was the only exposed part, and timely attention

might secure it. The King apprehended that he should be punished as Elector, for the just vengeance that he was taking as King,—the supposition was probable, and the case hard—but how was England circumstanced? was the necessary defence of her colonies to be pretermitted, lest her Ally, the Elector of Hanover, should be involved in her quarrel? While that is the case, do not the interests of the Electorate annihilate the formidable navies of Great Britain?

As the King's Ministers had resolved on war, his Majesty, now at Hanover, precipitated every measure for the defence of his private dominions. He had no English Minister with him, at least only Lord Holderness, who was not likely to soar at once from the abject condition of a dangling Secretary to the dignity of a remonstrating patriot. One subsidiary treaty was hurried on with Hesse; another with Russia, to keep the King of Prussia in awe: while to sweeten him again, a match was negotiated for his niece, the Princess of Brunswick, with the Prince of Wales; in short, a factory was opened at Herenhausen, where every petty Prince that could muster and clothe a regiment, might traffic with it to advantage: let us turn our eyes and see how these negotiations were received at home. There the Duke of Newcastle was absolute. He had all the advice from wise heads that could make him get the better of rivals, and all the childishness in himself that could make them ashamed of his having got the better. If his fickleness could have been tied down to any stability, his power had been endless. Yet, as it often happens, the puny can shake, where the mighty have been foiled—nor Pitt, nor Fox, were the engines that made the Duke of Newcastle's power totter. I have mentioned how early his petulant humour had humbled Legge—never was revenge more swiftly gratified. The treaties came over: as acquiescence to all Hanoverian measures was the only homage which the Duke of Newcastle paid to his master, he consented to ratify them. Being subsidiary, it was necessary that the Treasury should sign the warrants: he could not believe his eyes, when Legge refused to sign. He said, the contents had not been communicated to him, nay, not to Parliament: he dared not set his name to what the Parliament might disapprove. Nugent beseeched him to sign; he continued firm. The step was most artful; as he saw he must fall, and knew his own character, it was necessary to quit with *éclat*. If popularity could be resuscitated, what so likely to awaken it, as refusing to concur in a measure of profusion for interests absolutely foreign? Some coincident

circumstances tended to confirm his resolution, and perhaps had the greatest share in dictating it.

I have mentioned the projected match with Brunswick: the suddenness of the measure, and the little time left for preventing it, at once unhinged all the circumspection and prudence of the Princess. From the death of the Prince, her object had been the government of her son; and her attention had answered. She had taught him great devotion, and she had taken care that he should be taught nothing else. She saw no reason to apprehend from his own genius that he would escape her; but bigotted, and young, and chaste, what empire might not a youthful bride (and the Princess of Brunswick was reckoned artful) assume over him? The Princess thought that prudence now would be most imprudent. She immediately instilled into her son the greatest aversion to the match: he protested against it: but unsupported as they were, how to balance the authority of a King who was beloved by his people, who had heaped every possible obligation on the Princess, who, in favour of her and her children, had taught himself to act with paternal tenderness, and who, in this instance, would be blindly obeyed by a Ministry that were uncontrolled? Here Legge's art stepped in to her assistance; and weaving Pitt's disgusts into the toils that they were spreading for the Duke of Newcastle, they had the finesse to sink all mention of the Brunswick union, while they hoisted the standard against subsidiary treaties.

Mr. Pitt, who had never contentedly acquiesced in remaining a cipher after the death of Mr. Pelham, and who was additionally inflamed at Mr. Fox's being preferred to the Cabinet, had sent old Horace Walpole to the Duke of Newcastle the day before the King went abroad, with a peremptory demand of an explicit answer, whether his Grace would make him Secretary of State on the first convenient opportunity; not insisting on any person's being directly removed to favour him. The response was not explicit; at least, not flattering. From that moment, it is supposed, Pitt cast his eyes towards the successor. Early in the summer Pitt went in form to Holland-house, and declared to Mr. Fox, that they could have no farther connexions; that times and circumstances forbad. Fox asked, if he had suspected him of having tried to rise above him. Pitt protested he had not. "Yet," said Fox, "are we on incompatible lines?" "Not on incompatible," replied Pitt, "but on *convergent*: that sometime or other they might act together: that for

himself, he would accept power from no hands." To others, Pitt complained of Fox's connexion with Lord Granville; and dropped to himself a clue that led to an explanation of this rupture. "Here," said Pitt, "is the Duke King, and you are his Minister!" "Whatever you may think," replied Fox, "the Duke does not think himself aggrandized by being of the Regency, where he has no more power than I have."

In fact, the Duke of Newcastle, as was mentioned before, had prevailed to have his Royal Highness named a Regent, without acquainting him or asking his consent. When Mr. Fox discovered the intention, and informed the Duke, he would not believe it, and said, "Mr. Fox, I beg your pardon, as you are to be of the number, but I shall not think myself aggrandized." And it was so little considered as flattery to him, that the King did not name it to him, but sent Lord Holderness with the notification. After this interview and separation, Pitt and Fox imputed the rupture to each other. The truth seemed to be this: Pitt had learned, and could not forgive, Fox's having disclaimed him; and being united with the Princess, he sought this breach; which was so little welcome to Fox, that, soon after it, a rumour prevailing that Pitt was to be Chancellor of the Exchequer, Fox desired Legge to advise Pitt to accept it, offering himself to take the Paymastership. Legge was suspected of not having reported this message, to which he affirmed Pitt had not listened. What seemed to confirm the Princess's favour being the price of Pitt's rupture with Fox, and consequently of his disclaiming the Duke, was Pitt's appearing to pin it down to the individual day of his visit at Holland-house, as the date from whence his connexion with Fox was to cease. It was discovered, that the very day before he had had a private audience of the Princess. The only spy in the service of the Ministry was a volunteer; Princess Amelie, who traced and unravelled the mystery of this new faction.

However, the little junto forming at Leicester House would have made small impression, if the Duke of Newcastle, in a fit of folly and fear, had not dashed down his own security. Hearing that the Duke of Devonshire, Sir George Lee, Mr. Legge, and some others, declared their disapprobation of the treaties, his Grace took a panic, which with full as little sense he poured into the King the moment he returned. To soften the Duke of Devonshire, they consented to whatever Lord Hartington should ask as terms for treating with the Irish patriots; which disposition had such immediate effect, that the Address of the House of Commons of Ireland was voted without a negative,

and the body of the Opposition there manifested their readiness to sell themselves, the moment they knew that the Lord Lieutenant had authority to buy them. Some faint efforts towards tumults were made by little people, who had no chance of being included in the purchase; and the face of Lord Kildare, one of the mollifying demagogues, was blackened on sign-posts; but when chiefs capitulate, they seldom recede for such indignities. But more material was, who should defend the treaties in the English Parliament? Murray shrunk from the service—what! support them against Pitt! perhaps against Fox! They looked down to Lord Egmont—he was uncertain, fluctuating between the hopes of serving under the Princess in opposition, and jealous at the prospect of serving under Pitt too. No resource lay, but in prevailing on either Pitt or Fox to be the champion of the new negotiations. When either was to be solicited, it was certain that the Chancellor and the Duke of Newcastle would not give the preference to the latter.

In this dilemma, his Grace sent for Mr. Pitt, offered him civilities from the King, (for to that hour his Majesty had never spoken to him but once,) a Cabinet Counsellor's place, and confidence. He, who had crowded the whole humility of his life into professions of respect to the King, was not wanting now to strain every expression of duty, and of how highly he should think himself honoured by any ray of graciousness beaming upon him from the Throne—for the Cabinet Counsellor's place, he desired to be excused. The Duke of Newcastle then lisped out a hint of the Hessian treaty—"would he be so good as to support it?" "If," said Pitt, "it will be a particular compliment to his Majesty, most undoubtedly."—"The Russian?" "Oh! no," cried Pitt, hastily; "not a system of treaties." When the Duke of Newcastle could not work upon him, he begged another meeting in presence of the Chancellor, who, being prepared with all his pomp, and subtilties, and temptations, was strangely disconcerted by Pitt's bursting into the conversation with great humour by a panegyric on Legge, whom he termed *the child, and deservedly the favourite child, of the Whigs*. A conference so commenced did not seem much calculated for harmony; and accordingly it broke up without effect. Nothing remained but to have recourse to Fox: not expecting the application, he^[4] too had dropped intimations of his dislike to the treaties; and he knew they had tried all men ere they could bend their aversion to have recourse to him: yet he was not

obdurate: he had repented his former refusal; and a new motive, that must be opened, added irresistible weight to the scale of ambition.

In his earlier life Mr. Fox had wasted his fortune in gaming; it had been replaced by some family circumstances, but was small, and he continued profuse. Becoming a most fond father, and his constitution admonishing him, he took up an attention to enrich himself precipitately. His favour with the Duke, and his office of Secretary at War, gave him unbounded influence over recommendations in the Army. This interest he exerted by placing Calcraft in every lucrative light, and constituting him an Agent for regiments. Seniority or services promoted men slowly, unless they were disposed to employ Mr. Calcraft; and very hard conditions were imposed on many, even of obliging them to break through promises and overlook old friendships, in order to nominate the favourite Agent. This traffic, so unlimited and so lucrative,^[5] would have mouldered to nothing, if Mr. Fox had gone into Opposition; his inclination not prompting him to that part, his interest dissuading and the Duke forbidding it; when the new overtures arrived from the Duke of Newcastle, he took care not to consult his former counsellors, who had been attentive only to his honour, but listened to men far less anxious for it. Stone and Lord Granville were the mediators; the latter, at once the victim, the creature, and the scourge of the Duke of Newcastle, undertook the negotiation. The Duke in his fright had offered to resign his power to him; Lord Granville, not weak enough to accept the boon, laughed, and said with a bitter sneer, “he was not fit to be First Minister.” He proposed that Fox should be Chancellor of the Exchequer—to that the Duke, still as jealous as timid, would not listen.

At last Lord Granville settled the terms; that Fox should be Secretary^[6] of State, with a notification to be divulged, that he had power with the King to help or hurt in the House of Commons; and a conference being held to ratify the conditions, Fox said, “My Lord, is it not fit that this should be the last time that we should meet to try to agree?” “Yes,” replied the Duke, “I think it is.” “Then,” said Fox, “if your Grace thinks so, it shall be so.” His other terms were moderate, for not intending to be more scrupulous than he knew the Duke of Newcastle would be, in the observance of the articles of their friendship, he insisted on the preferment or promotion of only five persons, Mr. Ellis, Sir John Wynne, George Selwyn, Mr. Sloper, and a young Hamilton,^[7] who, in the preceding spring, though connected with the

Chancellor's family, had gone with a frank abruptness, and offered his service to Mr. Fox, telling him "that he foresaw he must one day be very considerable; that his own fortune was easy and not pressing; he did not disclaim ambition, but was willing to wait." His father had been the first Scot who ever pleaded at the English bar, and, as it was said of him, should have been the last; the son had much more parts. The only impediment to the new accommodation was no obstruction; Sir Thomas Robinson cheerfully gave up the Seals, with more grace from the sense of his unfitness, than from the exorbitant indemnification he demanded. "He knew," he said, "a year and a half before, why he was selected for that office; for the business of it, he had executed it to the best of his abilities; for the House of Commons he had never pretended capacity." He desired to be restored to his old office, the Great Wardrobe, in which he had been placed to reform it, and had succeeded. He asked it for his own life and his son's. They gave it him during pleasure, with a pension of 2000*l.* a year on Ireland for thirty-one years. When he thanked the Duke of Newcastle, he added, with a touching tenderness, "I have seven children, and I never looked at them with so much pleasure as to-day." As Lord Barrington was to be removed from the Wardrobe to make room for Sir Thomas, he had the good fortune to find the Secretaryship at War vacant, and slipped into it.

Lord Chesterfield hearing of this new arrangement, said, "The Duke of Newcastle had turned out every body else, and now he has turned out himself." The whole was scarce adjusted before Mr. Fox had cause to see what an oversight he had committed in extending a hand to save the Duke of Newcastle, when he should have pushed him down the precipice; asking Stone what they would have done if he had not come into them, Stone owned that they would have gone to the King and told him they could carry on his business no longer, and that he must compose a new Ministry. How sincere the coalition was, even on Mr. Fox's side, appeared by his instantly dispatching an express for Mr. Rigby, the Duke of Bedford's chief counsellor, to concert measures for prevailing on that Duke to return to Court, and contribute to balance, and then to overthrow, the Duke of Newcastle's influence.

While the Ministry was in this ferment, they received accounts of a victory, little owing to their councils, and which at once repaired and contrasted Braddock's defeat. The little Army assembled by some of our

West Indian governments, and composed wholly of *irregulars*, had come up with the French forces to the number of 2000, and defeated them near the Lake St. Sacrament, with slight loss on our part, with considerable on theirs. What enhanced the glory of the Americans was, taking prisoner the Baron de Dieskau, the French General, an able *élève* of Marshal Saxe, lately dispatched from France to command in chief, while the English Commander was a Colonel Johnson, of Irish extraction, settled in the West Indies, and totally a stranger to European discipline. Both Generals were wounded, the French one dangerously. Sir William Johnson was knighted for this service; and received from Parliament a reward of 5000*l*.

Mr. Fox's great point was to signalize his preferment by the accession of the Duke of Bedford and his party; the faction were sufficiently eager for such a junction, the Duke himself most averse to it; especially as the very band of concord was to be an approbation of the treaties; the tenour of his opposition had run against such measures; these were certainly not more of English stamp. When the Duchess and his connexion could not prevail on him to give up his humour and his honour, to gratify their humour and necessities, Mr. Fox and Lord Sandwich employed Lord Fane, whom the Duke of Bedford esteemed as the honestest man in the world, to write him a letter, advising his Grace to vote for the treaties; and they were careful to prevent his conversing with Mr. Pitt, which he wished, or with any other person, who might confirm him in a jealousy of his honour; indeed, he did not want strong sensations of it; they drew tears from him before they could draw compliance. Fox would have engaged him to accept the Privy Seal, which he had prepared the Duke of Marlborough to cede; but the Duke of Bedford had resolution enough to refuse any employment for himself—acquiescing to the acceptance of his friends, they rushed to Court—what terms they obtained will be seen at the conclusion of the year.

November 12th.—The night before the opening of the Parliament, Mr. Fox presided at the meeting at the Cockpit, instead of Mr. Legge, who, with Mr. Pitt, the Grenvilles, and Charles Townshend, did not appear there. They were replaced by the Duke of Bedford's friends. From thence Mr. Rigby was sent to his Grace with a copy of the Address; and to indulge him, an expression was softened that promised too peremptory defence of Hanover.

13th.—The Houses met. The expectation of men was raised; a new scene was ready to disclose. The inactivity of the late sessions was dispelled; a

formidable Opposition, with the successor and his mother at the head, was apprehended: the Ministers themselves had, till the eve of Parliament, trembled for the event of the treaties. Legge, indefatigable in closet applications and assiduity, had staggered many; the promotion of Fox, it was supposed, had revolted many more. A war commenced with France; factions, if not parties, reviving in Parliament, were novel sights to a lethargic age. The immensity of the Debates during this whole session would, if particularized, fatigue the reader, and swell these cursory Memoirs to a tedious compilation: I shall select the heads of the most striking orations, and only mark succinctly the questions and events.

The King's Speech acquainted the Houses with the outlines of the steps he had taken to protect and regain his violated dominions in America; of the expedition used in equipping a great Maritime Force; of some land forces sent to the West Indies; of encouragement given to the Colonies; of his Majesty's disposition to reasonable terms of accommodation; of the silence of France on that head; of the pacific disposition of the King of Spain—it very briefly touched on the tender point of the new treaties. In the House of Lords, the Duke of Marlborough and Lord Marchmont moved the Address. Lord Temple, the incendiary of the new Opposition, and Lord Halifax, who could not endure any measure that diverted attention or treasure from the support of our American Settlements, dissented from the Address on the article of the treaties. The Duke of Bedford decently and handsomely excused his approbation of them: the Chancellor, the Duke of Newcastle, and Lord Bathurst, defended them; and no division ensued; yet Lord Temple protested: he had, unwarranted, expressed the Duke of Devonshire's concern at being prevented by ill health from appearing against the treaties. His Grace was offended at, and disavowed, Lord Temple's use of his name: he was more hurt at the property he had been made by old Horace Walpole, who no sooner snuffed the scent of new troubles on German measures, than he felt the long wished-for moment approach of wrenching a coronet from the unwilling King. He immediately worked up the Duke of Devonshire to thwart the treaties, declared against them himself, talked up the Whigs to dislike them; and then deserted the Duke and his Whigs, by compounding for a Barony, in exchange for a public defence of the negotiations.

But the clouds that only overcast the House of Lords were a tempest in the Commons; they did not rise till near five in the morning; the longest

Debate on record, except on the Westminster election, in 1741. The question was opened disadvantageously for the Court, by the imprudence of Lord Hillsborough, who was to move the Address, and who arrived so late that the speech was read before he came: instead of veiling, he pointed out the tendency of the treaties as an Hanoverian measure; and seemed to describe, while he meant to defend, the weakness of the Government. He said, the Address was so cautiously conceived, that it would not involve any man who agreed to it, in voting afterwards for the treaties. That it was plain no war on the continent was intended, or we should have seen a larger plan laid before Parliament: here we saw no names of the Queen of Hungary, or King of Sardinia: could we meditate a land war without Allies? That the Russians were only calculated to curb the King of Prussia. That such preparations both on land and sea were making in France, as bespoke a decisive stroke; that stroke could only fall here or on Hanover; here, our safety, there, our honour was concerned. That his Majesty had entered into great expense in his own particular, for defence of Hanover, though the quarrel was England's not the Electorate's; and he had taken his measures so successfully, that, with the junction of the Hessians, he could assemble 40,000 men.

Martin, who attended his master, Legge, into Opposition, proposed to omit that part of the Address that engaged assistance to Hanover; but forgetting the paragraph relative to the treaties, and the Court-party taking advantage of that slip, he corrected his Motion, and said, he wished to avoid any subterfuge of the Ministers; no manly Minister would steal approbation, in this surreptitious manner, to a measure that would heap destruction on his head. Young Hamilton^[8] opened for the first time in behalf of the treaties, and succeeded admirably: his voice, manner, and language, were most advantageous; his arguments sound though pointed; and his command of himself easy and undaunted. Doddington, though nibbling at the negotiations, betrayed his willingness to turn defendant. He said, considering how greatly unanimity had prevailed of late, one should have thought that the ingenuity of man—or the want of it, could not have hit on means of disunion: these measures had accomplished it at once!—but the days of wantoning with the public were near at an end! That he could not frame a case where the interests of Hanover were less connected with Great Britain; and that therefore this would be a precedent to all posterity to make Hanover always in question. That all hire of troops, but for furnishing our

quotas to our Allies, was wrong. That, if it was urged that this contract was cheap, as perhaps abstractedly it was, he should answer, no; you never can purchase a consumption cheap. That he sought for arguments to convince, not to inflame: that, to introduce Russians into the Empire, breaks through all the ties of the Germanic body: would the Princes of the empire submit to see Prussia overwhelmed?—but what must the people at home think, if taxed thus for foreign subsidies, when engaged in a war for defending their own property? That, acquiescing to these treaties concluded during the recess, was giving power to the Crown to raise money without Parliament. That the House was fallen into the dilemma of violating the constitution, or of disgracing the King. That he would concur for protecting Hanover, but the Journals would point out better methods of assistance: the effectual one was, to disable the enemy from attacking it. He wished to omit approbation of the treaties, but would let pass the assurances to the Electorate.

George Granville, in a fine, pathetic speech, drew a picture of the future bad peace, and made an encomium on the late cautious Minister^[9]—if this was the caution of his successors, what would their imprudence be? Sir George Lyttelton owned, that, if the Hessians and Russians were retained, (as no doubt they were,) for defence of Hanover, it were a breach of the Act of Settlement; yet he approved the measure, as he urged how unpopular it would be to procrastinate a peace, till indemnification for Hanover could be obtained. Nugent recommended to differ like friends, as England had never been invaded but on supposition of our divisions. Murray, in answer to Beckford, who had wished to have the Duke Elector, argued that it was not in the King's power to transfer his Electoral dominions, unseverable both by his Majesty and by the Empire in the present state of the Royal Family. He then painted with masterly touches the merit of the King, who might have ensured tranquillity to the evening of his life, had he studied only his own repose. The French would have accorded him fair terms—then they would have encroached a little; then referred the contested points to Commissaries—but his Majesty disdained such tranquillity as would entail greater difficulties on his successor and on the nation. How hard would it be, in return, if we declared against protecting Hanover! if we sowed his pillow with thorns! That he should be sorry if, at the peace, we were to restore our acquisitions in America, in exchange for Hanover, which we had abandoned!—He felt these pictures touched, and pursued them, till he over-acted the pathetic, almost to lamentation.

Sir George Lee (as representative of the Princess's sentiments, though, not having declared herself openly, she frustrated her own views) was explicitly warm: he said, it was easy for the Ministers to produce unanimity, by pursuing British measures. It was necessary to take this up in a high style, to teach Ministers their duty to the House, which, under this precedent, they would every day more and more forget. Sir Thomas Robinson, still Ministerial, informed the House that the merchants of France had petitioned their Sovereign for redress—were told, “Be patient; you will have ample satisfaction from the divisions of the British Parliament.” Legge protested that he spoke not from a spirit of opposition or resentment; he disapproved the one, he despised the other. Would give his consent to distribute 500,000*l.*, if it would make a good peace; would not give 300,000*l.* or 400,000*l.* to buy a war of ten millions. France will drive you to call for these troops, because they will undo you; and you will have superadded (having provoked) Prussia. The Crown can make treaties; it cannot issue money. The nation of money-lenders will distress you. He thought the time was come for leaving the empire to act for itself and its own interest. We ought to have done buying up every man's quarrel on the continent.

Then ensued a variety of the different manners of speaking ill. Potter flimsily; old Horace Walpole shamelessly; Dr. Hay tritely; George Townshend poorly. The latter had concurred, he said, last year, in granting a large sum confidentially; and was shocked to see it so grossly misapplied. Lord Egmont assembled in one speech more defects than had been dispersed through all the others: he was capricious, obscure, contradictory, dubious, absurd; declared for the negotiations, but would vote against the Address, as it seemed to appropriate the treaties, which he thought beneficial to England, to the service of the Electorate.

These uninteresting discourses served to heighten what wanted no foil, Pitt's ensuing oration. How his eloquence, like a torrent long obstructed, burst forth with more commanding impetuosity! He and Legge opened their new opposition in the very spirit of their different characters. The one, humble, artful, affecting moderation, gliding to revenge; the other, haughty, defiant, and conscious of injury, and supreme abilities. He began with his solicitude on the use that had been made of the sacred name of the King, so often and so unparliamentarily, and of the cruelty in using it so; formerly, a

man would have been brought to the bar for using it so twice: but he had perceived for some time, that every art was practised to lower the dignity of the House; he had long observed it dwindling, sinking! it was to that abuse he objected. No man could feel more veneration for that name that had been mentioned. He particularly felt grateful returns for *late condescending goodness and gracious openings*. Nor did he as yet feel any other sensations; as yet he had no rancour to any man who had set himself at the head of this measure; as yet that man^[10] had only his pity. He said, he did not propose to follow all the various flashy reasonings of the Debate, the scope of which tended to nothing but this, “Follow your leader.” He was lost amidst the number and contradictions, and should only skim over the most remarkable arguments.

One^[11] had argued so strangely, as if we were to turn our eyes to these mercenaries as a reserve, if our navies should be defeated—what! must we drain our last vital drop, and send it to the North Pole! If you would traffic for succours with the Czarina, why, rather than her troops, did not you hire twenty of her ships?—he would say why? because ships could not be applied to Hanover. In the reign of Charles the Second, what efforts were made to procure fleets from Sweden and Denmark! Now, the natural system of Europe was lost! He did not know what majorities would do, but this would hang like a millstone about his neck, and sink any Minister along with the nation. We had been told, indeed, that Carthage, and that Spain in 88, were undone, notwithstanding their navies—true; but not till they betook themselves to land operations—and *Carthage had, besides, a Hannibal*,^[12] *who would pass the Alps*. The present war was undertaken for the long-injured, long-neglected, long-forgotten people of America. That Hanover had been excepted as an Ally by the Act of Limitation, not so much for fear of prejudices, as for its locality. But we are told we must assist them, out of justice and gratitude—out of justice!—we can produce a charter against it—out of gratitude indeed we ought, if Hanover has done anything in our quarrel to draw upon her the resentments of France. Those expressions were unparliamentary, unconstitutional. With all his duty to his Majesty, he must say, that the King owes a supreme service to his people—would our ancestors have used adulation like this? the very paragraph ought to be taken notice of and punished.

Besides, is there anything in the speech about Hanover, that calls for this resolution? Grotius declares it is not necessary even *socium defendere si nulla spes boni exitus*—then half-turning with an air of the greatest contempt towards Sir George Lyttelton, he said, “A gentleman near me has talked too of writers on the Law of Nations—Nature is the best writer; she will teach us to be men, and not to truckle to power. The noble lord who moved the Address seemed inspired with it! I,” continued he, “who am at a distance from that *sanctum sanctorum*, whither the priest goes for inspiration, I who travel through a desert, and am overwhelmed with mountains of obscurity, cannot so easily catch a gleam to direct me to the beauties of these negotiations—but there are parts of this Address that do not seem to come from the same quarter with the rest—I cannot unravel this mystery—yes,” cried he, clapping his hand suddenly to his forehead, “I too am inspired now! it strikes me! I remember at Lyons to have been carried to see the conflux of the Rhone^[13] and Saone;^[14] this, a gentle, feeble, languid stream, and though languid, of no depth—the other, a boisterous and impetuous torrent—but they meet at last; and long may they continue united, to the comfort of each other, and to the glory, honour, and security of this nation! I wanted indeed to know whence came the feebleness of what goes upon too many legs; whose child it is—I see who breeds it up.

“These incoherent *un-British* measures are what are adopted instead of our proper force—it was our Navy that procured the restoration of the barrier and Flanders in the last war, by making us masters of Cape Breton. After that war, with even that indemnification in our hands, we were forced to rejoice at a bad peace; and bad as it was, have suffered infractions of it every year; till the Ministers would have been stoned as they went along the streets, if they had not at last shown resentment. Yet how soon have they forgotten in what cause they took up arms! Are these treaties English measures? are they preventive measures? are they not measures of aggression? will they not provoke Prussia, and light up a general war? If a war in Europe ensues from these negotiations, I will always follow up the authors of this measure. They must mean a land-war—and how preposterously do they meditate it? Hanover is the only spot you have left to fight upon. Can you now force the Dutch to join you? I remember, everybody remembers, when you did force them: all our misfortunes are owing to those daring wicked councils.^[15] Subsidies annihilated ten

millions in the last war; our Navy brought in twelve millions. This is the day, I hope, shall give the colour to my life; though it is a torrent, I fear, nothing will resist. Out of those rash measures sprung up a Ministry—what if a Ministry should spring out of this subsidy! I saw that Ministry; in the morning it flourished; it was green at noon; by night it was cut down and forgotten! But it is said, it will disgrace the King to reject these treaties—but was not the celebrated treaty of Hanau transmitted hither, and rejected here? If this is a preventive measure, it was only preventive^[16] of somebody's exit. A coalition followed; and long may it last!" He taxed Murray's pathetic commiseration of the evening of the King's life, with being premeditated—"he too," he said, "could draw a pathetic commiseration of his Majesty; he had figured him far from an honest Council, had figured him surrounded all the summer with affrighted Hanoverians, and with no advocate for England near him—but, alas! we cannot suspend the laws of Nature, and make Hanover not an open defenceless country." He then opposed a pathetic picture of the distressed situation of this country; and reverting to Murray's image of the King, said, he believed that within two years his Majesty would not be able to sleep in St. James's for the cries of a bankrupt people. He concluded with saying, that we imitated everything of France but the spirit and patriotism of their Parliament; and that the French thought we had not sense and virtue enough, perhaps he thought so too, to make a stand in the right place.

This speech, accompanied with variety of action, accents, and irony, and set off with such happy images and allusions, particularly in the admired comparison of the Rhone and Saone, (though one or two of the metaphors were a little forced,) lasted above an hour and a half, and was kept up with inimitable spirit, though it did not begin till past one in the morning, after an attention and fatigue of ten hours. The lateness of hours was become a real grievance, few Debates of importance commencing before three in the afternoon. It was a complaint so general, that some of the great money-offices in the city were forced to change their time of payment from the hours of ten to twelve, to those of from twelve to two.

Fox, tired and unanimated, replied in few words, that we were no longer a representative, if a great majority is not declarative of the sentiments of the nation. Are we to feel no justice and gratitude, unless the King asks it of us? that nobody had used the King's name so often as Pitt. That the latter

had showed a strange curiosity to know whose the measure was, while he said he intended to arraign only the measure. Legge having compared the treaty, (in the light of prevention to a man who, having quarrelled with another, tells him, I am going to such a place with sword and pistol, but don't you come thither,) Fox said, that many a duel had been prevented, by knowing that your enemy will fight. The attention of the House was entirely put an end to, as it generally was, by Admiral Vernon; and then Doddington and Sir Francis Dashwood moving to leave in the words relative to Hanover, and to omit those that regarded the treaty; and the former question being first put, Pitt and those who were for leaving them out, but did not intend to divide on that, as the least unpopular question, said, *no*, faintly. The Speaker, who was strongly for leaving out the Hanoverian words, gave it for the *noes*; so they were forced to divide, and were but 105 to 311. The first division is generally understood as the sense of the House, though in this case it evidently was not; for though the majority for the Court was notorious, yet the real number that dissented from the treaties did not appear; for after the first division, many going away through fatigue, and from having seen the superiority of the Court, on the question of the treaties there were but 89 against 290. After the Debate, Fox said to Pitt, "Who is the Rhone?" Pitt replied, "Is that a fair question?" "Why," said Fox, "as you have said so much that I did not desire to hear, you may tell me one thing that I would hear: am I the Rhone or Lord Granville?" Pitt answered, "You are Granville." Lord Temple, no bad commentator of Pitt's meaning, said that the Rhone meant the Duke, Fox, and Lord Granville; the Saone, the Duke of Newcastle, the Chancellor, and Murray. Yet it was generally understood that the former was personal to Fox, the latter to Newcastle; the description, *languid, yet of no depth*, was scarce applicable to the Chancellor, by no means to Murray.

On the 15th, Mr. Fox received the Seals; and on the 20th, Lord Holderness wrote to Mr. Pitt, Mr. Legge, and George Granville, that his Majesty had no further occasion for their service. Pitt answered the letter with great submission. The next day James Granville resigned the Board of Trade. This was all the party that followed voluntarily. Charles Townshend made an offer to Mr. Pitt, (which being offered could not be accepted,) of resigning: Mr. Pitt chose to turn an offer so made into a colour for having so few followers; thanked him, but said, he desired nobody to resign on his account. Lord Temple wrote a supplicatory letter to his sister Lady Hesther,

to use her interest with Mr. Pitt, whose fortune was very narrow, to accept a thousand pounds a year. It was accepted. But while this connexion was revolving to patriotism, a fatal *ignis fatuus* misled poor Sir George Lyttelton to clamber over the ruins of his old friends. Not able to resist his devotion to the Duke of Newcastle, or the impulse of his own ambition, he accepted the office of Chancellor of the Exchequer—had they dragged Dr. Halley from his observatory, to make him Vice-Chamberlain, or Dr. Hales from his ventilators, to act Bayes in the Rehearsal, the choice would have been as judicious: they turned an absent poet to the management of the revenue, and employed a man as visionary as Don Quixote to combat Demosthenes!

These changes had not been made before the opening of the Session, not so much with a view to what temper Mr. Pitt might observe, as to prevent the vacating Mr. Fox's seat, which would have occasioned his absence on the first day. He had written the circular letters to the Court members, desiring their early attendance, as is usually practised by the ruling Minister in the House of Commons, but had marked that direction so much beyond the usual manner, and had so injudiciously betrayed his own aspirings, that the letter gave general offence. George Townshend, his personal enemy, and who was dragging his brother Charles into opposition to their uncle the Duke of Newcastle, merely on the forced connexion of the latter with Fox, determined to complain of the letter in Parliament. He chose the very day after Mr. Pitt's dismissal, when, under pretence of moving for a call of the House, he said, When a system was likely to be grafted on these treaties, unadopted and proscribed by the constitution, he wished the House should be full. Our Ministers, indeed, had taken upon them to add to the usual respectable summons, not only the Ministerial invitation, but invitation of their own. That they endeavoured to gain approbation individually, which formerly was acquired collectively. That he did not suppose such letters would greatly influence: who would engage themselves so precipitately? Whoever should, their country would despise them. That this was an unconstitutional act of a Minister as desirous of power as ever Minister was, and who was willing to avail himself of his colleague's friends, though not fond of owning his colleague's measures. However, that the foundation of his power was laid on a shattered edifice, disfigured by his novelties.

After these and some more such harsh and studied periods, he produced the letter; it did not want its faults, but he knew not how to relieve them; his

awkward acrimony defeated his own purpose, and what had seemed so offensive, now ceased to strike any body. The letter was as follows:—

Sir,

The King has declared his intention to make me Secretary of State, and I (very unworthy as I fear I am of such an undertaking) must take upon me the conduct of the House of Commons: I cannot therefore well accept the office till after the first day's Debate, which may be a warm one. A great attendance that day of my friends will be of the greatest consequence to my future situation, and I should be extremely happy if you would for that reason show yourself among them, to the great honour of,

Dear sir, your, &c. &c.

He did not know, continued Townshend, whose the letter was; he had heard of such a letter—he did not know that the first day of the Session he was electing a Minister; he thought he was called to express his duty to the King on the Address: now he was uncertain whether we were voting measures, or more people into place—but when gentlemen would not obey such letters, was not it necessary to issue other summons? He would advise a Minister to make the constitution the rule of his conduct.

Fox answered, with proper severity, that “it was usual for the *informer* to acquaint the House who signed such a letter, (though, said he, that is pretty well known,) and to whom it was addressed; though he should not insist on this; but,” continued he, “don’t let this additional imprudence be imputed to me, that I should be thought to have addressed one to *that* gentleman. I hope too that it is not a necessary part of prudence, that when one writes to a gentleman, one should consider what figure that letter will make, if shown. However, there was no undue influence in these letters; nor were they sent promiscuously, but to gentlemen of great consideration. But indeed the objectionable part proceeded from a false writing; between the words *conduct* and House of Commons, other^[17] words which I will not name, were accidentally omitted.” He added, “I don’t believe that any gentleman gave a copy of this with a design of having it shown. Mr. Townshend allows me common sense; does he think I would say, *conduct of*

the House of Commons? It is very early to treat me as Minister; but I should be proud of his advice. Was showing this letter behaving with the exactness of a gentleman? I protest I don't know^[18] who it was: whoever it was, I am persuaded he is very sorry for what he has done. I may have writ a silly letter; I am sure one of them was sillily addressed."

Townshend replied, the man who received it was astonished; but hundreds at the distance of a hundred and fifty miles could repeat it by heart. *He was sorry he did not receive one.* He hoped there would be no more such. Beckford said, it was usual for those in great offices to be imprudent; he had a great regard for the gentleman in question; he has abilities; the rest have not: we have a better chance with a man of sense.

The same day, Mr. Ellis having moved for 50,000 seamen, including 9113 marines, and saying, that in peace we have but a fund of 40,000 sailors, it occasioned some talking, and people were going away, when Pitt rose and said, he shuddered at hearing that our resources for the sea service were so narrowed, especially as Murray had pronounced that we ought to be three times as strong as France, to cope with her. He remembered the fatal^[19] measure of the reduction to 8000; he had stated the danger then in the face of power, and against that combined Administration, and that collusion^[20] of power that was playing the land and sea into one another's hands. He would pursue up the authors of such measures as make the King's Crown totter on his head. That never was a noble country so perniciously neglected, so undone by the silly pride of one man,^[21] or the timidity of his colleagues, who would share his power but not his danger. That this must one day be answered for, unless a fatal catastrophe from our hereditary enemy overtakes us. The peril comes from little struggles for a thing called *power*—is it the power of doing good? On an English question he would not hinder, but implore unanimity; would ask favours of any Minister for his country; would have gone that morning^[22] to the honourable gentleman's levée, to desire him to accept 50,000 seamen, not including marines. If he could obtain it, it would be the first thing done for this country since the peace of Aix. There would be proofs that this war had been colluded and abetted, till broad shame had stared them in the face, till shame and danger had come together. That he had been frightened into these sensations from the highest authority; that the House had adopted those terrors, and was willing to grant more assistance. The House indeed is

a fluctuating body, but he hoped would be eternal. It was different from our councils, where everything was thought of but the public. On the contrary, we were a willing, giving House of Commons: the King might call for anything for an *English* object. That he did not dare to move for 10,000 more seamen, because he would not blemish unanimity. He concluded with a prayer for the King, for his posterity, for this poor, forlorn, distressed country.

Fox said, he was surprised that such a trifle as the reduction of 2000 seamen in 1751 should be made of such moment. So, not voting 2000 more, in a year after the war, was betraying this country! If voting one man more would raise one man, he would agree to it: but voting more, if they could not be raised, would only increase expense. That this number was greater than we had ever had on foot, even in declared wars against France and Spain. That he would never hear Mr. Pelham's measures censured without defending them. That the reduction mentioned had been the consequence of Mr. Pelham's economy, and of his provision against a war. He had discharged, too, artificers from the dockyards, and when Lord Anson represented against it, Mr. Pelham answered, you will never pay your debt, if you always go to the extent of what you can do. He had wanted, the same year, to reduce the garrison of Port Mahon, but was told by a great officer that Port Mahon could bear no diminution. With regard to struggles, he said, What the motives of these struggles have been, *let those, who have struggled most and longest for power, tell*. That for himself, he had been called to his present situation, and exerted his strength with cheerfulness upon a melancholy occasion. That we had been told that nobody who approached the King had sense and virtue; that sense and virtue are somewhere else—but how shall the King hear of them? he feared *this* House would not inform him. What conversation will lead him to that superior degree of it? that he would exert his degree as cheerfully as if he had struggled for it. Perhaps he had expressed his wishes for earlier augmentation. Mr. Pitt had asked, why it was not made sooner? he would ask, why not demanded sooner? why did Mr. Pitt not call sooner to arms? It came too late now, for no sense and virtue could be added to the reigning spirit of augmentation.

Mr. Pitt rose again, and said, that neither that day nor ever had he said that there were no sense and virtue near the Throne. If he had been

misunderstood, he might too have been misrepresented. That if ever man had suffered by those stillettos of a Court which assassinate the fair opinion of a man with his master, he had. That the accusation of his having struggled for power had been received with such assent by the House, that he must speak to it. Was he accused of it, because he had not yielded to poor and sordid measures which he saw tended to destroy his country? That if he had, he might have been introduced to that august place. That it was impossible to go into all the private details of a whole summer, though compelled by such an uncandid manner. He should only say, he might have had, what the honourable gentleman at a long distance of time so gladly accepted. He had been unfortunate, but the measures were so ruinous that he could not with conscience and honour concur in them: would have strained the former a little, as far as to make a compliment, in order to be admitted to that august conversation. That having struggled for power was not the cause of his present situation. Was it not, that he could not submit to these treaties? The challenge, said he, is a bold one; let those who know the truth, tell it!—if they did not, he desired not their suffrage.

Fox rejoining, that the mention of *struggles* had called him up again, and that he had chosen to forget the gentleman's former words of *no sense and virtue near the Throne*, Pitt interrupted him, and speaking to order, said, he averred on his honour those words were not his: his words had been, *that France would found her hopes on the want of sense, understanding, and virtue, in those that govern here*. That he had not interrupted Mr. Fox before, because he did not love to stop those whom plain truth would answer. Fox's modesty had taken those words to himself. That nobody feared personal invectives less than himself, nor was he fond of using them. That he would not put the gentleman in mind of struggles to limit the power at which he had hinted. That he had urged these things strongly, in order to ground judicial proceedings. That Sir Thomas Robinson's notable information of the answer of the Court of France to their merchants, had descended to the public papers. He must congratulate the Government on having *some* intelligence. Would France build too on his wishing for 50,000 seamen? He did believe our information would improve now Mr. Fox had got the Seals. Wished the latter would tell him what language to hold, which, instead of encouraging, would terrify France. He could not say he had treated Mr. Fox as *the Minister*—it was not quite that yet. He never went to the^[23] place where so many bets were made, but, if he might talk

familiarly, would bet on Mr. Fox's sense and spirit—though some little things were against him.

“But he asks,” continued Pitt, “why I did not call out sooner? *My* calling out was more likely to defeat than promote. When I remonstrated for more seamen, I was called an enemy to Government: now I am told that I want to strew the King's pillow with thorns: am traduced, aspersed, calumniated, from morning to night. *I* would have warned the King: did *he*? If he with his sense and spirit had represented to the King the necessity of augmentation, it would have been made—but what! if there is any man so wicked—don't let it be reported that I say there is—as to procrastinate the importing troops from Ireland, in order to make subsidiary forces necessary! This whole summer,” continued he, “I have been looking for Government—I saw none—thank God! his Majesty was not here! the trade of France has been spared sillily—there has been a dead stagnation. Orders contradicting one another were the only symptoms of spirit. When his Majesty returned, his kingdom was delivered back to him more like a wreck, than as a vessel able to stem the storm. Perhaps a little sustentation of life to this country will be obtained by a wretched peace. These,” said he, “are my sentiments; and when a man has truth on his side, he is not to be overborne by quick interrogatories.” That he had not said a word of personality to Fox: that want of virtue was not only the characteristic of the Ministry, but of the age. That he was happy to show a zeal not inferior to that of the Ministers. Let them show him how to contribute to the King's service, and then tax him with strewing the royal pillow with thorns! But what were the services of those who were so alert in loading him? Murray, indeed, had vaunted that 140,000 of the best troops in Europe were provided for the defence of Hanover—who boasts of what numbers are prepared for England? for America? Compare the countries, compare the forces that are destined for the defence of each! Two miserable battalions of Irish, who scarce ever saw one another, had been sent to America, had been sent to be sacrificed—if this parallel was exaggerated, he desired to be made happy by being told so.

Fox, with great temper, observed how unparliamentary it was to speak so long to order: said, he was glad to hear that he was not Minister, though he certainly had been treated so. That upon his honour he did not know to the offer of what Mr. Pitt had said *no*. He himself had stayed till everybody had

said *no*. That he had lived near town^[24] all the summer, as happy as any man that then heard him. His opinion had been for subsidies—was asked if it was: on affirming it, was told, “Then support them.” Would quit, when his opinion should be otherwise. Wished every ill might happen to him, if he had done Mr. Pitt any hurt in the closet: thought it the strongest point of honour not to accuse a man where he could not defend himself. If he underwent any loss of power, should be amply recompensed by not being treated as if he had it.

Fox, keeping thus almost wholly on the defensive, was chiefly to be admired for his great command of himself, which the warmth he had used to show now made remarkable. Murray, who had laid in wait to profit of any slips that Pitt might make in this contest, rose with an artful air of affected doubt; hinted at the irregularity of the Debate; observed that Mr. Pitt’s proposal of more seamen was unnecessary; “do not all estimates come from the Crown? The Ministers must know what supplies they shall want, and what to demand; invectives to be slighted—how great the power of eloquence that could dress up the want of 2000 men, in 1751, into the source of the war!—that there never was an honester man than the Minister who determined that reduction; thought he had died in friendship with *that* gentleman.” Pitt could not stand this severe reflection, but interrupted him to say, his friendship for Mr. Pelham had been as *real* as Murray’s. The latter, as if corrected, continued coolly, that Mr. Pelham had wanted to introduce a system of economy: were he alive, perhaps, we should have fewer struggles, if all who supported under him did still. He begged to ask one question; it was to clear up something to himself, and for the information of others: he believed those who sat near him understood that Mr. Pitt said he had refused Secretary of State;—pray had he? This cut still deeper. Pitt had certainly intended to insinuate so, but being pushed, replied, *no*, he had only refused to come into measures.^[25]

I have dwelt the longer on this Debate, (though so little was said to the question, and though indeed there scarce was a question,) as it greatly opened the characters of the speakers, and tended to confirm the accounts I have given above.

FOOTNOTES:

[4] [This is inconsistent with his own account of the matter in his correspondence with Lord Hartington, for which see the Appendix to Lord Waldegrave's Memoirs, where letters from Mr. Fox relating the whole of the transactions between him and Mr. Pitt in 1755 have been lately printed.]—E.

[5] It was strongly denied afterwards that Fox had any advantage from this, and Calcraft's vast riches seemed to acquit Fox of that suspicion. Fox's great fortune was accumulated during the time he was Paymaster, and at the peace in the next reign. (Author.)

[6] [If the motives of Mr. Fox were as sordid as they are described in the text, would they have induced him to quit "so unlimited and so lucrative a traffic," for an office higher in rank, and greater in importance, but infinitely less profitable than the Author pretends the Secretaryship at War to have been?]—E.

[7] William Gerard Hamilton.

[8] William Gerard Hamilton.

[9] Mr. Pelham.

[10] Fox.

[11] Lord Egmont.

[12] Alluding to the Duke.

[13] Mr. Fox

[14] Duke of Newcastle.

[15] Lord Granville's.

[16] Duke of Newcastle.

[17] Conduct of his Majesty's affairs in the House of Commons.

[18] The letter produced by Mr. Townshend was given to him by Sir Edward Turner, who, on receiving it, said, "I am surprised he writes to me; I don't know the gentleman,"—yet Mr. Fox had been the chief manager in the Oxford election, and had had the principal hand in bringing Sir Edward into the House.

[19] In the year 1751.

[20] See the Memoirs for that year.

[21] Duke of Newcastle.

[22] It was the morning of Mr. Fox's first levée.

[23] To the club at Arthur's, formerly White's.

[24] At Holland-house.

[25] [Page 41](#).

CHAPTER III.

Earthquake at Lisbon—Debates on a Bill for distributing Prizes taken at Sea to the Captors—Speeches of Charles Townshend—George Granville, Fox, and Pitt—Debates on the Army Estimates—Speeches of Pitt, Fox, Charles Townshend, Lord George Sackville, and Beckford—Debates on the new Militia Bill, introduced by George Townshend—Speech of Pitt—Homage of Sir George Lyttelton to Pitt.

Towards the end of November came letters from Sir Benjamin Keene, confirming the dreadful accounts of the earthquake at Lisbon, on the first of the month—a catastrophe most terrible, and completed by the flames, that laid waste the remains of that miserable city. The Royal Family had escaped death by being at a villa without the town; but the richest sovereign in Europe beheld himself in a moment reduced to the most deplorable indigence. He wrote to his sister the queen of Spain, “Here I am, a King, without a capital, without subjects, without raiment!” The horror of the survivors was increased by the murders committed by robbers and assassins, to whom even this tragedy was a theatre of gain. The shocks and vibration of the earth continued for many months. It seemed some great and extraordinary convulsion of nature: many towns in Portugal and Spain, were destroyed, at least greatly damaged; but some degree of the concussion was felt even from Dantzic to the shores of Africa. In England it occasioned very novel phenomena: in some counties the waters of ponds and lakes were heaved up perpendicularly.

28th.—Mr. Fox read to the House of Commons Sir Benjamin Keene’s letter, and delivered a Message from his Majesty, desiring to be enabled to assist the distressed Portuguese and the English residing at Lisbon, to which the House immediately assented, and one hundred thousand pounds, part in money, part in provisions and utensils, were destined to that service, and dispatched as soon as possible. ^[26]

December 2nd.—Lord Pulteney moved for leave to bring in a Bill to encourage seamen, and to man the Navy—by distributing all prizes to the

captors, was understood. "The Bill," he said, "was not to take place till the present riddle of politics should be disclosed—till war should be declared in form." The Bill was a copy of one introduced by his father, to cultivate popularity, and distress the Ministry, at the beginning of the late war with Spain, and had then passed. Lord Pulteney had vivacity, and did not want parts. He had been brought into Parliament by the Duke of Newcastle, with whom his father, deserted by all parties, and seeming indifferent to all, lived on amicable terms. Lord Pulteney had attached himself to the new Opposition. Mr. Pitt, too, was not quite excusable in having suffered himself to be elected into Parliament by the Duke of Newcastle, when it was so probable that he would not continue to serve under him.

The Motion was opposed by the ministerial people, on the impropriety of the time. It was well supported by Elliot, another of the new minority, who urged that it would prevent pressing, and quoted the tyranny and violence of that custom as practised in Scotland, though the people there [were] not backward to list. He said, it was with difficulty that he had prevailed on himself to mention this; but seeds of danger are generally sown in dangerous times. Ellis replied, that application ought to be made to the proper officers when there are grievances from soldiers; if redress denied, then to Parliament. That sailors were not backward to list till the number was exhausted. That pressing had been in use ever since the reign of Edward the Third. The Scotch Lord Advocate, Dundas, said, that his place would have let him know, if there had been complaints in Scotland of the nature mentioned: had heard but of three complaints, and on those, two had been released; the other was of a man pressed at the suit of his wife, to prevent his wasting hers and the subsistence of her children. That not a sixth part would have been enlisted without [the] assistance of the military. Elliot replied that he knew none of those three instances; he could quote twenty examples of towns invested by soldiers; had not meant to complain, but to encourage seamen without pressing.

Charles Townshend spoke severely and admirably on the long acquiescence of the Administration under the insults of France, and on the similar acquiescence of Parliament; yet, he said, he could not discover whether the Ministers intended peace or war. If war, was it wrong to defend ourselves? If peace, as he believed,—if they could get it—did they mean to command or to supplicate it?—did they mean to make the Navy as useless

as the Army? What a situation! Administration weakening Government, and Opposition supporting it! and Opposition discountenanced for supporting it! If a gentleman, with virtue unparalleled, offered anything for his country, he was to be removed, as if whoever would strengthen Government was obnoxious to it. What would the people think if our Ministers professed being alarmed, and yet refused to accept support? Could it be supposed that France was still to receive her first impression of our warlike disposition from leave that the House might give for a Bill that was to be brought in, that should say, that if there shall be a war, and we shall make any prizes, we would then divide them amongst the captors? Of no consequence would the Bill be, if the Administration should have power to get a peace, which he did not believe they would, as they refused to accept the power. That the only prematurity was in getting the Bill ready against it was necessary. He desired to leave to others the sort of spirit that did not strengthen, and the sort of moderation that did not prepare for war: the latter was only submission, miscalled moderation, and had brought on a system which our united Ministers could not undo.

Nugent said, when war should be declared, the same thing would be done in part, and, therefore, was no encouragement now. Captures before a declaration are generally given up. Nobody but the Ministers knew how little farther you could go, without engaging Spain against us. What had been done was to prevent invasion, and the manning of the French Navy. This war was unpopular in France: don't make it popular. Stanley declared for the previous question, as a negative would make the present seamen think that they are not to share as well as the future. Sir Richard Lyttelton vaunted much the service he had done in getting the word *lawful* restored in the Mutiny Bill, which had he desired at the office he should have been thought impertinent. Sir Robert Walpole, with a venal Parliament, had not stifled the former Bill thus. Beckford said, nobody would suspect him of being an enemy to the Navy, who had the greatest part of his fortune afloat. That he would not give the whole prize to the captors, but would regulate it. That this Bill had not had a good effect in the last war; it had made our men attack the enemy, but neglect our own trade. That the Jehoiakim and other Spanish prizes had been condemned before the declaration of the last war; and these would be so. He preferred war to uncertain peace.

The chief passages of a fine emphatic speech of George Grenville were, "That we were in a state of war for subsidies, of peace for our Navy. When we should come to debate the treaties, all the talk would be war; to-day, all was peace. France had much to restore before she had any right to restitution; ought to refund all the expense she had driven us into. Sir Robert Walpole was not too precipitate, yet two years before the war he did not call this Bill premature. Why this overstrained civility to France? The Newspapers said 250,000*l.* had been remitted from France to create divisions in Parliament. He did not complain of such scandal as this—nay, was glad that freedom of writing was encouraged by authority. The time was come when our calamities would open the mouths of all that could speak, and would incite the pens of all that could write; yet he did not mean to speak indecently, or write licentiously. He should thank Heaven, with Timoleon, if Syracuse were so free, that the most profligate in it might abuse the best and highest. For the previous question: would seamen, he asked, understand the meaning of it, when it was scarce clear enough for the comprehension of the House?"

Fox censured the irregularity of the Debate, and sneered at pathetic discourses upon such immaterial occasions. He said he should be for giving the whole capture of those who made, or should attempt to make, prizes; that is, he would reserve a portion for those who sought them without success. That the whole dispute turned upon the word *now*. If sailors did not understand the previous question, the more pity that the Bill should be moved, when it was necessary to put that question. He wished that all who remembered Sir Robert Walpole thought of him as he did. Was Sir Robert Walpole *forced* into a war by a *venal* House of Commons? It had hurt his country more than him. "For the Mutiny Bill, you, Sir," said he, addressing himself to the Speaker, "would not have let me leave out the word *lawful* surreptitiously. He who has said what he has of Sir Robert Walpole, may say that of me in the next sentence; I shall like it the better. But the word *lawful* was not necessary; who is to obey *unlawful* commands? It was restored to please Sir Richard; he did not know, he said, if it had pleased anybody else." He did not think it would have been remembered by Lyttelton seven years afterwards, as the great action of his life, for which this country was indebted to him. That this was making war by a Parliamentary side-wind; that if these prizes proved very considerable, he would not restore them without a good peace. Why was the previous

question urged, but from the unwillingness of the Administration to reject the Bill? Would you give the seamen hopes when you are not sure that you can condemn and distribute these prizes? He was sorry they had not been called *brave* that day, without the mention of their views of gain! Don't make yourselves ridiculous to Europe, by giving what you have not to give. He advised them to withdraw their Motion, and Address for declaration of war; he should not concur with them, but it would be more consistent behaviour.

Pitt said it did Granville honour to be told ironically and maliciously of his pathetic speech by Fox, who had spoken logically, not feelingly, and who, he wished, would think farther than that little, narrow *now*. For himself, he had always spoken, all that Minister's family had heard him speak, with respect of Sir Robert Walpole, after the determination of his power—these last words occasioned a laugh:—Pitt angrily and haughtily told them it was a blundering laugh: was it or was it not more honourable to respect a man after his power determined? He defended Sir Richard Lyttelton as having mentioned the Mutiny Bill properly, in consequence of Elliot's account, which he threatened should have its day of consideration. He laughed at the more than Stoic patience of the Administration, talked up the American war, and concluded that the French prizes were reserved as a deposit to recover Hanover; he could account for this unintelligible tenderness no other way. Sir Richard Lyttelton said he honoured Fox in his private character, but believed that if he had the same power as Sir Robert Walpole, he would not use it with the same moderation. Murray insisted that this Bill was taking from the King his prerogative of declaring war. Dr. Hay was warmly for the Bill, especially as it would demand much time to amend it, and as warm against what he called the detestable practice of pressing. Legge asked, what was this so critical *now*, that this Bill would turn the scale? had France forgot all our hostilities, and would she resent this simple Bill? Why should Spain resent it? He never, he said, could hear Sir Robert Walpole mentioned without expressing his veneration; he was an honour to human nature, and the peculiar friend to Great Britain. The previous question was put and carried by 211 to 81. The Bill was afterwards passed with modifications on the declaration of war.

December 5th.—William, Duke of Devonshire, died of a dropsy. I have nothing to add of the account given of him in the first part of these

Memoirs, but what showed a conscientious idea of honesty in him; and, though the circumstance is trifling, a virtue is always worth recording. Sometime before his death he had given up to two of his younger sons 600*l.* a year in land, that they might not perjure themselves, if called upon to swear to their qualifications, as Knights of the Shire.

The same day the new Secretary at War moved for an Army of 34,263 men, which was an augmentation of 15,000 men, the extent of what could be raised at that time in such a country as England; in poor countries levies are made with more facility. When this should be completed, a farther increase was intended. Eight thousand eight hundred men were designed for North America; where two battalions had disgraced their country. Lord Barrington commended the North Americans, extolled Braddock, who, he said, had been basely traduced; praised Nova Scotia, Lord Halifax, and Cornwallis.

Pitt, in one of his finest florid declamations, seconded the Motion, adding, that last year he had pronounced 18,000 men not sufficient; our whole force was necessary at this dangerous and critical conjuncture. Other efforts were requisite than sending two miserable battalions to America as victims. Every step since had tended to provoke a war, not to make it—and at last the Crown itself was to be fought for by so ineffective or so raw an Army! He hoped, by alarming the nation, to make the danger reach the ears of His Majesty, who was likely, after so gracious a reign, to be attacked in his venerable age! to see such a country exposed by the neglect of his Ministers! He could not avoid turning from the venerable age of the King, to his amiable posterity, *born among us*, yet given up by some unskilful Minister or Ministers!—yet he meant no invectives; he made no accusation; he spoke from his feeling.

He then drew a striking and masterly picture of a French invasion reaching London, and of the horrors ensuing, while there was a formidable enemy within the capital itself, as full of weakness as full of multitude; a flagitious rabble, ready for every nefarious action: of the consternation that would spread through the City, when the noble, artificial, yet vulnerable fabric of public credit should crumble in their hands! How would Ministers be able to meet the aspect of so many citizens dismayed? How could men so guilty meet their countrymen? How could a British Parliament assemble without these considerations? The King's Speech of last year had been

calculated to lull us into a fallacious dream of repose—or had his Ministers not had understanding, or foresight, or virtue,—he repeated the words, that he might not be misquoted,—had they had none of these qualifications to prompt them to lay the danger before his Majesty? Was it not a proof of his assertions, that *where* his Majesty himself had a foresight even of fancied, not threatened, danger, we knew what provision, vast provision had been made? did the subjects of the Crown want a feeling which the subjects of the Electorate possessed in so quick a degree? did he live to see the day, when a British Parliament had felt so inadequately? That there were but ten thousand men in this part of the United Kingdom; that not more than half would be left to defend the Royal Family and the metropolis; and half security is full and ample danger.

Accursed be the man, and he would have the malediction of his country, who did not do all he could to strengthen the King's hands! he would have him strengthened by laying open the weakness of his Councils; would substitute reality to incapacity and futility, and the little frivolous love of power. To times of relaxation should be left that fondness for disposal of places: wisdom ought to meet such rough times as these. It was that little spirit of domination that had caused the decay of this country, that ambition of being *the only figure among ciphers*: when that image was first used, perhaps it was prophecy, to-day it was history. Two hundred and eighty thousand pounds, the charge of this augmentation, would last year have given us security: for that sum our Stocks would fall, and hurry along with them the ruin of this City, vulnerable in proportion to its opulence. In other countries, treasures remain where a city is not sacked; paper credit may be invaded even in Kent; it is like the sensitive plant, it need not be cropped; extend but your hand, it withers and dies. The danger had been as present last year to any eye made for public councils; for what is the first attribute of a wise Minister, but to leave as little as possible to contingents? How do thoughtlessness, folly, and ignorance, differ from wisdom and knowledge, but by want of foresight?

He would not recur, like Lord Barrington, to the Romans for comparisons; our own days had produced as great examples. In 1746, thirteen regiments raised by noblemen, who, though they did not leave their ploughs, left their palaces, had saved this country; he believed it. With what scorn, depression, cruelty, as far as contempt is cruelty, were they treated by

the hour! with what calumny! He wished the Government would encourage the Nobility and Gentry to form a militia, as a supplement to the Army. He wanted to call this country out of that enervate state, that twenty thousand men from France could shake it. The maxims of our Government were degenerated, not our natives. He wished to see that breed restored, which under our old principles had carried our glory so high! What would the age think they deserved, who, after Washington was defeated and our forts taken—who, after connivance, if not collusion, had advised his Majesty to trust to so slender a force?—on cool reflection, what would they deserve? He did not call for the sagacity of a Burleigh or a Richelieu to have foreseen all that must happen—that may happen in two months. He had no vindictive purpose, nor wanted to see penal judgments on their heads: our calamities were more owing to the weakness of their heads than of their hearts.

Fox replied, he wished Mr. Pitt had made this awakening speech when we were asleep, and before France had awakened us: but the honourable gentleman had judged by the event; if he had foreseen, he would undoubtedly have made this noble speech sooner: “if he had made it,” said Fox, “I am sure I should have remembered it; I am not apt to forget his speeches. Was it ever in that House reckoned *virtue* to advise the King to ask more money? it was rather a mark of understanding than of virtue. Let Pitt prescribe a method to quicken recruiting; let him set to a Militia Bill. Yet,” said he, “I have been told by a wise man, that it is too nice a line to draw a scheme for a militia in the hands of the Crown; the House alone could do it.” Yet he should think it less to be despaired of, since Mr. Pitt thought it practicable. That the scheme for recruiting must be to enlist for a term of years. That the total silence of Parliament was an excuse for not having made the augmentation sooner. With regard to the thirteen regiments, he would always own if he repented, or persist if he thought his opinion right. He remembered at that time there was a noble Duke^[27] able and willing, (thank God! he was able and willing now,) at the closet-door, who, as soon as it was opened, went in and offered his service, saying, he would go with his Lowlanders and see if he could not oppose those Highlanders:—he remembered another anecdote; he was now forced to tell it; it was a scheme for a cheap regiment of Dragoons, which, by another Duke,^[28] was converted into two dear regiments of Horse—but he would

ask, did all those Noblemen act from public spirit? did they all raise their regiments? there had been a mixture which he wanted to unmix.

Pitt answered; why had he not alarmed last year? he had been deluded by the *speech*. Those then in the confidence of the Minister—Fox then was not of the number—declared they did not believe we should have a war: could he believe it in defiance of that speech, smoothing over all the horrors of our situation? The Ministers could no longer secrete our danger; they had concealed it for fear of awakening speeches. Could he pronounce those speeches, till overpowered by the conjuncture? he did in private: while he was suffered to represent in private, he did—now we must sound the alarm in Parliament, when we have invited into our bowels a war that was the child of ignorance and connivance—if there is justice under Heaven, the Ministers must one day answer it.

Thus far the Debate was serious: will it be credited that the following speech was so? Will not my narrative be sometimes thought a burlesque romance? as Don Quixote had his Sancho, and Hudibras his Ralph, may not some future commentator discover, that the Duke of Newcastle was my trembling hero, and Nugent his abandoned squire? This modest personage replied to Pitt, that he thought the Administration wise and honest; that he did not think there was a more honest set of men. Could Pitt have said more, if all had happened that he thinks will? Everything was exaggerated, yet nothing had been done wrong. That he would defend the Ministry till five in the morning. Though engaged against the greatest power in the universe, in every part of the universe, have we proved weak? That this foolish—Pitt objecting that he had not used that term, Nugent continued,—he thought he had used every epithet in the English language—well then! this weak and ignorant Administration had contrived to oppose a superiority of force, and had miscarried but in one place. That he did not wonder Pitt expected everything from *this* Administration—but he expected more. That though the censure had been so unjust, he could not help knowing at whom it was aimed: but great history-painters are often very bad portrait-painters: he must own he knew who was meant; professed himself a friend to that great man: *vowed* he never heard any doubt of who ought to be First Minister—but, like the dedication of the Tale of the Tub to Lord Somers, all men agreed in the Duke of Newcastle. France never made so pitiful a figure

as against this Administration. Pitt's were but assertions; *his* assertions were as good; he would say, the Duke of Newcastle was honest and wise.

The burlesque increased; Sir Thomas Robinson played a base to Nugent's thunder; his pompous rumbling made proper harmony with the other's vociferation. The latter had exhausted flattery on another man; Sir Thomas contrived to be as bombast in a panegyric on himself. He said, he had been banished^[29] for eighteen years, without a friend to communicate with; with no opportunity of practising eloquence, with no university education—yet he must speak, as complicated in the charge on the Administration of the last twelve months. He cried out, “*Me, me adsum qui feci, in me convertite telum!* If I am proper for anything, continued he, I am for the closet: I am proper for it from my courage, from my virtue, do not say for my understanding. I have enjoyed a happier year and half than ever I knew, for I have spoken my mind. Why should I not have dared to speak my mind in the closet, when I have dared to speak it here? Men took courage from what I said; virtue was out of my mouth. *Et dubitamus adhuc virtutem extendere factis?* Why is forgot what we have done by sea? We have acted *fortiter in re, suaviter in modo.*”

Charles Townshend observed, that every body had defended only their own part, nobody the system. Who would defend the melancholy state of America? There, when the plan of Lord Halifax, so singular in his attention, had been embraced, why was it not supported? because we chose to set up negotiation against force. He then gave a detail of the French encroachments, of our supineness, of the neglect of the Massachusetts, and of our suffering the French to settle the disputed territories. If the course of all these measures was not changed, our situation would be incapable of amendment by honester hearts and wiser heads. At least, if the Administration would not change their measures, let them be defended by Sir Thomas Robinson—nobody had defended them better!

Lord George Sackville, in a manly, sensible speech, said, he should be so unfashionable as to speak to the question—if there were crimes, let them be alleged. The country was exposed; he did not know who was guilty. He knew who made provision against our danger; the King. No dispositions being made but to guard Scotland and this metropolis, evinced our weakness. But look south, look west, what defence was there? where was there any? it was all in your fleet. Where was your local defence? no

country had so little. Where was your militia? only in the Orders of the Council. One recommended it to another, the Lord-Lieutenant to the Deputy-Lieutenant. In *his* profession it was fashionable to laugh at militias; he wished to see one. Let us not lie tempting the enemy to revenge; our most essential part, the docks, were unfortified. He recommended expedition, excused the completing the two Irish battalions, which were small, in Ireland, because if they had been recruited with Americans, it was feared they would disagree. Of Braddock he said, “he died in his country’s cause, and therefore, if I thought ill of him, I would not say it.”

It had been a day of rodomontade; Beckford finished the debate with one, declaring, that the Americans looked upon him as their representative, and transmitted their grievances to him. That a letter had been sent to him which had gone to the Plantations, and had puzzled him; they did not know how to act. Having demanded how they were to behave on the encroachments of the French, they were told, “repel force”—so far was right—what followed was the postscript of a woman’s letter—it said, “take care not to repel force, but on your own limits”—and those limits were then undecided, and were settling by Commissaries! He wished, he said, to give courage; the French were more frightened than you; and you seemed tolerably frightened. Their silence proceeded from imbecility; they had entered upon this war too soon: he hoped “we should be economic, that we should not have more than 34,000 men, and no compulsory laws.” There was no division. A day or two afterwards, the Bill for pressing, as practised in the two last wars, was revived.

The letter which Beckford mentioned had been written by Lord Holderness to the Governors of our Colonies. Charles Townshend had intended to make great use of it in his meditated attack on the Ministry, for their tame and negligent administration of the Plantations. He was hurt at Beckford’s premature disclosure of what he intended as a real charge. How his American campaign was prevented will be seen hereafter.

Another topic of the Debate calls for a few words. In the time of the Rebellion thirteen Lords had offered to raise regiments of their own dependents, and were allowed. Had they paid them too, the service had been noble. Being paid by the Government, obscured a little of the merit—being paid without raising them, would deserve too coarse a term. It is certain that not six of the thirteen regiments ever were raised—not four

were employed. If, then, they saved this country, as Mr. Pitt asserted, it was by preventing risings in the counties where they were stationed. Did those that were not raised, prevent insurrections? or did those that were raised, and were led out of their counties, prevent them? The chief persons at the head of this scheme were the Dukes of Bedford and Montagu. The former raised and served with his regiment. The Duke of Montagu, who thought he could never get too much from the Government, or give away enough to the poor, had the profit of two regiments. Mr. Fox had warmly attacked this plan, especially on the design of giving rank to the officers; and had made a great breach amongst the ministerial people: yet it was carried. Pitt, at that period connected with the Duke of Bedford, had supported the scheme: it was artful in him now to revive the remembrance of it, when Fox was possessed of the Duke of Bedford.

8th.—George Townshend moved for a Committee of the Whole House to consider the Laws relating to the Militia, in order to bring in a new Bill, and establish a real Militia. It is too well known, to recapitulate what disputes this subject had occasioned in the reign of Charles the First. The apprehension of reviving those contests had contributed to let the topic lie almost in oblivion; the footing which a regular Army had gained in this country had concurred to throw disrepute upon it. The foolish exercises of the Trained Bands in the city, gave it a total air of ridicule. Yet the very establishment of an Army inspired many with wishes for a more constitutional defence. Oppositions, from the very spirit of party, had frequently attempted a revival of the Militia. Opposition to the Duke, who had drawn his notions of war from the purest German classics, prompted his enemies to promote whatever he would dislike. Foreign forces introduced to save a country like this, made it shameful not to listen to any expedient that could place defence in the hands of the natives. The difficulties of establishing a Militia in an age of customs and manners so different were almost insuperable. The country gentlemen themselves felt the impracticability, or the inconveniences, if practicable; yet the theme was become too popular to be withstood; and many gave into the scheme, trusting to its defeating itself.

Pitt, who by no means thought it feasible, yet knowing that it would either be rejected by the Ministry, or fall by its own difficulties, resolved to lose no merit with those who thought it could be effected, and accordingly

unfolded a plan for it himself. He opened it with a plain precision, and went through with a masterly clearness. His memory in the details was as great as the capacity he showed for business. He had never shone in this light before.

He said, he would do himself real honour by seconding a gentleman of a family that had preserved so exact a medium between duty to the Crown and to their country. Yet, though Mr. Townshend's friend and servant, he should have no hope, unless Government, the Army, the Law, and what in this case was most material, the Country Gentlemen, would give their assistance. He unfortunately was out of all these descriptions. He knew no secrets of Government, he had too early been driven^[30] from the profession of arms, he had never studied the law; he was no country gentleman. It was perhaps rash in him, for it was dangerous for any man, to touch our constitution, which had not been the result of chance, but of the wisdom of ages: he only spoke to call Government not to sit with their arms across. But indeed here the country gentleman would be more first Minister than any Minister in the land. He would venture, too, to offer some considerations. The heads of his scheme were, that the Militia should be reduced to about 50,000 or 60,000; a kind of half-trained Army. That the Crown, which now was not at liberty to march them out of their several counties, should have that power. That there should be a compulsory call under the civil power. Should be all Foot. That he hoped never to see the standing Army less than 18,000: the Militia, as a supplement, that we may not be looking all round the world for subsidiary troops. That it must be a lasting body, paid and clothed. Should be exercised twice a week. Should be reviewed four times a year by the Lord Lieutenants of counties, and by Generals of the King's Army. Should have the same pay as the Foot soldiers, but with plain clothing, not pretending to all the lustre of an Army. What, if they should be exercised on Sundays after church?—unless the Clergy or Dissenters disapproved it. He would retract this proposal, if it gave offence. The exercise comprehending 110 days, if they were to be exercised on Sundays, and one other day of the week, with sixpence a day, they would receive a shilling for losing one day in a week from their work.

He would have no deduction from their pay, but would have their clothes provided for them, which, with being sure of a shilling a week all the year round, might be a compensation. That they should wear their clothes three

years, and only when exercised. The officers to have no pay, but a qualification in land in their own county, or being sons of a larger estate—for instance, of 1500*l.* a year. Not to be under military law, but subject to civil punishment in time of peace. When marched, to be subject to military discipline; for what is martial law, but growing out of the nature of the service, which is not the laws of peace? That there could not be too many Serjeants to such companies. Would have private soldiers of the Army for Serjeants of Militia. Not fewer than four Serjeants to eighty men. That the Crown should name an Army Adjutant with Serjeant's pay. That the expense would not rise to near what would be imagined; would come under 300,000*l.* What millions had gone out of England for the last thirty years, which this expense would have saved! What an inglorious picture for this country, to figure gentlemen driven by an invasion like a flock of sheep, and forced to send their money abroad to buy courage and defence! If this scheme should prove oppressive, provincially or parochially, he was willing to give it up: but how preferable to waiting to see if the wind would blow you subsidiary troops! You would never want them again—they are an eyesore! He praised the Army and its constitutional inclinations; and observed what stability a Militia would give to our system.

This speech in its material parts was made the groundwork of the subsequent Bill; the discussion of which took up many and very long days. The Speaker gave great assistance; so did Lord George Sackville. The Ministry early, at last the House itself, except about a dozen persons, totally deserted attendance upon the Bill. As it did not pass the Lords, I shall drop any farther account of it, till it came thither, except to mention some pretty homage which Sir George Lyttelton's awe made him pay to the genius of his offended friend Mr. Pitt. After the latter's exposition of his plan, Sir George compared a Militia to the longitude, necessary, but hitherto sought in vain. He had often, he said, heated his imagination with the topic, but his judgment had cooled it again. If soldiers assisted the plan, he should hope better of it; they might avoid the errors of civil men. That hints from Mr. Pitt were important advices; a sketch from him was almost a finished picture: but it ought to be finished, the lines should be very correct. The whole people would not betray the whole people, but sixty thousand might. The most material part of our affairs was our finances; if this institution would hurt them, it was not admissible. The smaller the number, the more practicable; yet there might be danger of another kind. He never wished to

see Foreigners, but when no other force was to be had. With ever so great a Militia, you may want them; you cannot march Militia abroad.

FOOTNOTES:

[26] Vide Hampton's Polybius, p. 537, where the Rhodians, on a like catastrophe, received parallel assistance.

[27] Duke of Bedford.

[28] Duke of Montagu.

[29] Minister at Vienna, &c.

[30] He had been Cornet of Horse, and was broken at the time of the Excise, when his uncle Lord Cobham and Lord Westmorland lost their regiments.

CHAPTER IV.

Debates on the Treaties in the House of Lords, and in the Commons—Affair of Hume Campbell and Pitt—Hanover and our Foreign Relations—Speech of Charles Townshend—Foreign Powers subsidized by England—Changes in the Administration—Lord Ligonier and the Duke of Marlborough—Pensions granted to facilitate Ministerial Changes—Parliamentary Eloquence—Comparison of celebrated Orators—Charles Townshend, Lord George Sackville, Henry Conway, and Mr. Pitt.

December 10th.—The treaties were considered in both Houses. In the Lords, Earl Temple, in a very long and very indifferent speech, in which there was nothing remarkable but his saying, *that we were become an insurance-office to Hanover*, moved for a censure on the treaties. Lord Chesterfield defended them with great applause. The turn of his speech was to ascribe the clamour against Hanover to the Jacobites, and to ridicule them. He talked much on the Rebellion, on the intended insurrection, for which Sir John Cotton's resigning his employment was to have been the signal, and of Marshal Saxe's projected invasion, or *chimère*, in 1744. He was to have brought 12,000 saddles, his Lordship supposed, for disaffected horses. A Jacobite might think he could answer for horses; he does think he can answer for what is as little governable. He went through a deduction of the history of England since the reign of Queen Elizabeth, with regard to the continent—of James the First, he said, he had other things to think of—he was writing against witches and tobacco.

Lord Marchmont was more severe on Lord Temple, and said, he could not pretend to keep steady those cock-boats of eloquence. He believed their intentions right, but they might do much mischief by raising such animosities. If a man kills one, what satisfaction to be told, that he only intended to maim? If that House was burned down, what indemnification would it be, that they meant only to set fire to these treaties with a farthing candle? He concluded with saying, that he had heard this measure compared to the Trojan horse, filled with armed men—but that was not the

cause of complaint—the persons in Opposition were angry that they were not to bridle and saddle it.

The Duke of Bedford spoke *for* the treaties; Lord Ravensworth against them, and against the censure of them too. The Chancellor spoke severely against Lord Temple, and fulsomely and indecently; seeing the Prince of Wales there taking notes, he said, he now began to have hopes of him; hoped he would be the father of all his subjects; flattered the Duke; and said of the Ministers, they were sometimes painted like angels, sometimes like monsters. Lord Temple repaid the invective. He did not know, he said, whom he had painted as angels; he had some time ago heard one man^[31] painted as a monster—he did not know how he would be represented now. Remembered how he had formerly been drawn into a measure^[32] himself, for tearing away a favourite servant from the King, by those who had since adopted that Minister's measures. He wished that Minister had remained; his measure would not be mangled now by blundering cobblers. Lord Halifax spoke warmly against German measures; and called the present the most expensive funeral of our expiring country that ever was furnished by a rash undertaker. Lord Pomfret, as earnest, called on the Bishops to prevent the effusion of Christian blood. The Duke of Newcastle, Lord Holderness, Lord Morton, and Lord Raymond, spoke for the treaties; and Lord Cathcart, in vindication of the behaviour of the Hessians in the last war; and then the censure being rejected by 85 to 12, Lord Egremont and Lord Ilchester moved for approbation of the treaties; and the House broke up at ten at night.

The Commons sat to the same hour. Lord Barrington moving to refer the treaties to the Committee; Potter opposed it, affirming that the treaties were unconstitutional acts, and express violations of the Act of Settlement, for which reason he would not enter into the merits; any treaty for Hanover, whether subsidiary or not, made without consent of Parliament, being such an infringement. He only observed that the stipulations with Hesse were so loose, that for 8000 men, we might be engaged in a war of twenty years for the Landgrave, if attacked by whomsoever. That these questions might involve us in a war for Hanover—ergo, were a violation of the Settlement. The appropriation of the late Vote of Credit to these subsidies was a violation too of that. He was running into strong censure, but checked himself, saying, he could not call it a profligate age, when such men had

fallen victims to their integrity! Potter's manner was at once important and languid, and consequently effaced impressions as fast as he made them. Sir George Lyttelton insisted that the express defence of England and her Allies was provided for by the Hessian treaty. And Lord Duplin excused the application of the Vote of Credit, as intended to enable us to furnish our contingents. Fox told Potter that his accusation was too weighty for his conclusion; was he content, after charging such crimes, with preventing the treaties from being referred to the Committee? Martin replied, that, considering what name was involved in these negotiations, a rejection was thought more decent than a censure.

The Duke of Newcastle, apprehending that Murray might skirmish too cautiously with Pitt, and that Fox, though he might combat him, might not much defend his Grace, had selected another champion, who was equal to any Philippic, and whom he would for that purpose have made Paymaster, if Fox had not withstood it. This was Hume Campbell, who for some time had deserted Opposition, and almost Parliament, and had applied himself entirely to his profession of the Law, which he was at once formed to adorn and to suit, for he was eloquent, acute, abusive, corrupt, and insatiable. He began with professing his reverence for the Act of Settlement, as the act of King William, to whom we owed our existence as a Parliament: yet, said he, "the sense of the House should be taken in form on the legality or illegality of the measure: the charge ought to be well made out: if not illegal, *let the House punish the eternal invectives.*" Pitt called him to order, and told him, he thought he was too good a member of Parliament, to describe Debates in that manner. Old Horace Walpole answered, that Pitt ought to be the last man in the House to complain of irregularity. This occasioned much disorder. Pitt said, he had risen to put Hume Campbell in mind of words that struck directly at the liberty of Debate: that he had him in his power if he insisted on taking down the words, but would decline, till he had explained himself. Hume Campbell then continued, in a masterly speech, to censure the unlimited reflections that were daily thrown on the Ministers; adding, that when people made charges on acts of State, they ought to be obliged to make them out. He mentioned Sir William Thompson's accusation of Lord Lechmere, and other cases, which had been voted scandalous and malicious. Hard would it be, if that House might not resent unjust accusations of our *superiors*. When they happen in crowded houses,^[33] strangers take notes, and the abuse is dispersed to the most

mischievous purposes. In 1745, invectives scattered there, were transplanted into the Pretender's manifestos. He lamented their misleading his unhappy countrymen;^[34] and owned that he was but too apt to be warm himself.

Then passing to the objections raised from the Act of Settlement, he said, he should pay no compliment to it; it had been intended a censure on King William: the clause specified was only declaratory, and did not take away from the Crown the power of making treaties. In 1727, a treaty of mutual guarantee was made with the Court of Wolfenbuttle, and was signed by great men and Whigs, by the Duke of Devonshire, Lord Trevor, Lord Townshend, and by the greatest of all, Sir Robert Walpole: it was debated, written against, yet was never once thought a violation of the Settlement. Afterwards, when a Motion was made for removing Sir Robert Walpole, there wanted no abilities to charge him; there was only wanting fact and evidence; but the House called for facts, not speeches; for evidence, not assertions. No man dreamed of such a breach of the constitution; yet had it been so, the treaty was a fact, and Sir Robert's name to it was evidence. The present treaties were a great system of preventive measures:—what was the most hostile part of them? that levelled against Prussia—yet that Prince could not be sorry that we should have future greatness: his maxim was, that no Ally can be well worth keeping, unless they can do without you. In the present case, that King may be glad to plead his fear of the Russians, against admitting the French into Germany. For his own part, he would rather censure the negotiators than the treaties themselves, which were calculated for the interests, and Navy, and commerce of Britain. But if the Ministers were so guilty as was pretended, the times were too dangerous not to remove them. He concluded with a short defence of himself, denied being in the power of any individual, and said he must plead as an excuse of his egotism that rule of Plutarch, never to say anything in defence of yourself, but when mankind could not possibly know it without; let his warmth be taken as a proof of his honesty.

Vyner remarked, that Lord Chancellor King had long refused to enrol the treaty of Wolfenbuttle. George Granville pointed out the impropriety of referring illegal papers, to see if the Committee would grant money on them; and the impossibility of forming a charge in the Committee, instead of giving money: or the absurdity of giving money, and then considering

whether it was legal or not. He taxed it with being unparliamentary language to say that the Act of Settlement was formed by the enemies of the House of Hanover; were Lord Wharton, Lord Somers, enemies? If that doctrine should prevail, the same might be said of the Bill of Rights: all our Statute Books might be erased, might be called founded on disrespect. This indeed would be a way of restraining Debates, to call them acts of hostility. Why the treaty of Wolfenbutter avoided censure was, the King's having been empowered the year before to contract alliances for defence of Hanover. Would anybody agree to refer the treaty in question to the Committee, because they did not believe it would engage us in a war for Hanover? What had proved to be the intent of the former treaty with Russia? When England was attacked in 1745, and we did not reclaim our money from Russia (about 400,000*l.*), it marked that treaty to have related only to Hanover. But we made treaties when we ought to deliberate, and deliberated when we ought to act. If the Hessians were retained in June for fear of an invasion, were they ready now in December? could they be ready under three months? and wherefore had we taken no other precautions? Were these Hessians all-sufficient? He wished our situation were such, that the authors of this measure were to be envied! If their negotiations were approved by the Committee, could they afterwards be impeached? He did not wonder, therefore, that they pushed on this method.

Murray answered, that the sense of the House on the legality might be taken collaterally in the Committee—but were we engaged, or to be engaged, in a war for Hanover? The first Act of Settlement, which obliged Privy Councillors to sign their opinions, had been repealed by Lord Somers himself. That, allowing the present charge, the Act would not be infringed till the troops were reclaimed. But these arguments would disable the King from leaving a single clause in a treaty for his Electoral defence. If this treaty violated the Act of Settlement, it had been broken by all defensive treaties; had been broken by the Quadruple Alliance. That treaty engaged the contracting Powers mutually to defend *all* the dominions of each other; and if the stipulated succours proved insufficient, they were to engage in a war. It was the same in the treaty of Hanover. But the bare conclusion of the treaty was never charged. In the year 1739 we contracted for Hessians and Danes; it was thought prudent to secure them, though we were then involved only in a war with Spain: no previous application had been made to Parliament. All subsequent subsidiary treaties had been concluded in the

same way. We could not enjoy the blessing of the present Royal Family without the inconveniences. In the year 1740 a Vote of Credit had been applied in the same manner. But granting it perverted, would the misapplication spoil the treaty?

Pitt, after Hume Campbell's attack, had let these discussions intervene, as if taking time to collect his anger. He rose at last, aggravating by the most contemptuous looks, and action, and accents, the bitterest and most insulting of all speeches. Such little matter, he said, had been offered on the defensive side, that he did not know where to go. Had Hume Campbell had anything else to say, he would not have dwelt for half an hour on the treaty of Wolfenbuttle—and what had he produced? a list of Lords who signed it! How were their names to induce the House to refer these treaties to a Committee? such poor little shifts and evasions might do in a pie-poudre-court;^[35] they were unworthy a great House of Parliament. Once Hume Campbell had been his great friend, and they had trod the same paths of invectives^[36] together, which now the other wanted to have punished, so ready was he, by a side-wind, to level the laws, and so fond of *superiors*! Nay, he had urged that the Act of Settlement was not obligatory till the treaties were ratified! he prayed to Heaven, that doctrines, dangerous as *manifestos*, might not prevail there! The gentleman had dared to avow such doctrine—but a Court could never want one servile lawyer for any purpose. In the profligate, prerogative reign of James the First, when a *great Duke*^[37] was at the head of power, even that House of Commons possessed a member who dared to call him *Stellionatus*.^[38] And there did not want a *servile lawyer* to call for punishment on the honest burgess.

“We have a King who disdains to keep pace with such a *servile lawyer*—but,” said he, (turning, and directly nodding at Hume Campbell, who sat three benches above him,) “I will not dress up this image under a third person; I apply it to him; his is the slavish doctrine, he is the slave; and the shame of this doctrine will stick to him as long as his gown sticks to his back—but his trade is words; they were not provoked by me—but they are not objects of terror, but of my contempt and ridicule. Then,” said he, turning to Murray, “I would come to another learned gentleman, but it is difficult to know where to pull the first thread from a piece so finely spun. Constructions ought never to condemn a great Minister, but I think this crime of violating the Act of Settlement is within the letter. If the dangerous

illegality of it is to be inquired into, it should be referred to a Committee of the Whole House, not to a Committee of Supply. Inquired into it must be: will I suffer an audacious Minister to run before Parliament? I do not say *superiors*, I hate that miserable poor word; but if a Cabinet have taken on them to conclude subsidiary treaties without consent of Parliament, shall they not answer it?" He affirmed that there was not the smallest similarity between these and the treaties quoted. In 1717 and 1718 the Ministers stated dangers from Sweden, and then asked for money. The treaty of Hanover was grounded on the Ostend Company, and on the negotiations about Gibraltar, &c. Time, the great discoverer of truth, had not yet discovered whether there was any truth in the assertion of the Emperor and Spain designing to set the Pretender on the Throne. Would any lawyer plead, when his Majesty speaks in a treaty and says *dominions*, that he can mean anything but his British dominions? we were not to be explained out of our liberties, nor by being taught to subtilize, to lose respect for the essential.

In the last war the Hessians did once go into *aliena castra*, and except at that time when they were forced at Munich, never behaved well. He thought there was an equal violation by both treaties, but the Russian most dangerous: yet he would not avow that we were so exhausted as to declare we could not assist Holland. Because this treaty stipulated succours for England and Holland and Hanover, did the legality for the two first prove the third stipulation not illegal? But even the protection of Holland was not mentioned in the Address of last year. "Where," said Murray, "is the harm of holding my troops ready? the Crown reserves it as an operative act." But that was precision at which we could not arrive! was all an unmeaning verbiage! You had not the troops, therefore it was no war! but there was levy money: and raising men, without firing a gun, was constructive treason. He wished he could hear any more of the shining lights of Westminster!—the long robe was made use of in all arbitrary times. How often had they attacked Magna Charta with explanations of *nisi per mandatum Domini Regis*! Where, might it have been said in the late Rebellion, was the harm of a few men *ready* to rebel? Dr. Foigard says, "Where is the harm of being in a closet?" These *vigorous* measures would pull a war out of the closet. He denied that the Crown had a power of making subsidiary treaties that lead to war. That Hanover was concerned in all these treaties quoted, he was sorry to hear—then surely it was time to stop it, since we improve so much in adulation, as to be arrived at the age of

speaking out and avowing Hanover in all. He wished the circumstances of this country could permit us to extend such care to Hanover; but he would not for any consideration have set his hand to these treaties.

Fox with great spirit took up the defence of Hume Campbell, who willingly abandoned it to him. “The honourable gentleman,” said he, “has nothing to answer to two such speeches but to say that he is astonished. What! nothing to so long a series of treaties as had been quoted! was it no argument that those treaties had been so debated, and had been signed by men of the greatest and most unblemished characters? Mr. Pitt’s, indeed, had been guarded, but they had been most personal invectives. Yet he would not, said he, have uttered them, unless personally called on—how was he personally called on? *Eternal invectives* were the words—he is a great master of invective, but is he the sole person who wages it? Hume Campbell had spoken of his *superiors* as an individual. Who has no *superiors*? Though *distinctions* were now so condemned, he could remember endeavours to create *distinctions* between Hanoverians and Englishmen, on our taking those troops into our pay: they were accursed distinctions; and the weakest conceivable, if attempted by persons who wished well to the present establishment. However we were improved, we did not improve in invectives. He hoped Ministers would never say they should be punished: let the gentlemen amuse themselves with them! they had lost their force; the people know to what they tend, by discoveries made and repeated within these fifteen years: they had been tried ineffectually on this occasion. In 1726, if Hanover was not comprehended in the word *States*, it was not included at all: the *distinction* was Pitt’s. Germans and Russians must by *States* understand Hanover. Would not Murray have been to blame, if he had not spoken with precision on treaties? Lord Ducie retained 200 men in arms during the late Rebellion; did he levy war? He hoped the Ministers would be disculpated from the accusation of levying war on Prussia, by hindering him from levying war! How were the Bavarian and Saxon treaties applauded, though concluded during the recess and without consent of Parliament, and the money advanced! He would do nothing to prevent invectives being used; and he hoped the King’s Ministers had *virtue and understanding* enough not to mind them!”

Sir George Lee and Legge spoke against the treaties: the latter said, He hoped the clause in the Act of Settlement would never be declared not

prohibitory; how was that clause to be preserved, unless all steps leading to a war were laid before us? is engaging in war to be confined to mere abstinence of declaring war? If Russia is attacked, and our ships sail to the Baltic, is it not war? and whose war? of the Act of Settlement? or of prerogative and Ministers, against the Act of Settlement? He would not give so much countenance to these treaties, as to refer them to a Committee.—Several others spoke on each side; and Beckford finished the Debate with reflections on the notorious ductility of prerogative lawyers, alluding to Hume Campbell, who did not want another blow to stun him. The Court prevailed by 318 to 126.

Dec. 12th.—Lord Barrington opened the treaties in the Committee, and urged that that with Hesse was cheaper than the one in 1740; and that the chief object of them was to enable us to furnish our quotas to the Low Countries and to the Austrians. That he wished to see Foreign Troops here from our Allies rather than from our enemies. That the Russian General, though his own country should be attacked, was to obey our requisition without waiting for orders from his Court. That it was evident the Russian Empress was our Ally, not our mercenary, or she would have insisted on some such terms as the Germans; but she only wanted to be enabled to assist us. That Sweden had a well-manned fleet, Russia had not. That there were no thoughts of a continent war—and yet he owned he wished the Royal Family had been a younger branch, and that our Foreign Dominions do take off from^[39] our insularity—on the other hand, their connexion with us takes away the insularity of Hanover. He drew no unflattering opposition between the advantages we derive from Hanover in the acquisition of so good a King and so great a General, and the loss to that people of such a Sovereign!

Lord Pulteney said with spirit, that he was shocked on entering life to find everything valuable, as the Act of Settlement, treated with ridicule or indifference; and he lashed the known perfidy of the Landgrave of Hesse, who had so hampered us in this treaty, that he seemed to mean only to get a sinecure or pension. The fluctuating state of Russia, and the dropsical condition of the Empress, rendered their assistance precarious: if we should obtain it, we had marked out the King of Prussia's dominions for their quarters. He touched pretty plainly on the wealth of Hanover; said, there were two millions of *Hanoverian* money in the Saxon Funds—why was

none of it drawn out on this occasion? why would they not exert a little love of their country?

He was answered by Edward Finch, a Groom of the Bedchamber, who gave as satisfactory and circumstantial an account of the Czarina's health and kindred, and of his own hopes and joys on those topics, as if he dreaded the *knout* for want of loyalty or exactness. He had formerly been Ambassador at that Court, and united the unpolished sycophancy of it to the person and formality of a Spaniard. One may judge of his talent for negotiations, when he defended them with genealogies! The absurdity of Finch struck fire from Delaval, who never had another moment of parts. The former had sneered at Lord Pulteney's premeditated speech; Delaval begged that another time Finch would premeditate too. For invectives, he said he would no more believe such political augury, than the Life-Guardsman who foretold the earthquake; and he did not doubt but the King might sleep in St. James's till he should be awakened by the shouts of a grateful people. Were these Foreign Troops such a grievance? Edward III., Queen Elizabeth, had entertained German troops—were they for defence of Hanover? King William had them too, and Queen Anne—were they all influenced by a partial regard to Hanover?

Charles Townshend spoke for three quarters of an hour against the treaties with infinite rapidity, vehemence, and parts. He began with an attack on Hume Campbell, saying that he might offend his *superiors*, and might be misrepresented by some new convert, intemperate in his zeal, and plunging from rank abuse to adulation—yet he would not hesitate; everything dear depended on the event of that day. He touched on the misapplication of the vote of credit, and enlarged on our situation, finding us, notwithstanding our stoic patience, forced into a war, which, though mismanaged, had hitherto been successful: yet we seemed to intend to be no longer superior at sea. What was the situation of Europe? It was necessary for France to make a diversion by the means of Prussia, alienated from the King, and jealous both of Russia and France, and angry with Austria. This made him the arbiter of peace and war: his capacity made him so too; he was the most able crowned head in Europe. Spain was now governed with Spanish councils; to those we owed her neutrality. The Court of Vienna was disinclined to war: the States so sunk, they could not be the better or the worse for us. How politic had been our conduct with all! Vienna and

Holland disliked a war; Spain declined it, and Prussia; France was averse to it only from the backwardness of Prussia—yet him you had provoked! how culpable were the Ministers, who, to flatter the ill disposition that they found in the Cabinet, had kept that Prince at a distance: he had begged you would not hinder him from being your Ally; he formerly offered his friendship in exchange for two Duchies: Austria refused them: that refusal had been admired by my Lord Granville, who grounded on it, and enraged him by, a partition of his dominions. What pains had been taken since to reconcile him: personal favour had been courted by encouraging prejudices against him: yet his wisdom had counteracted our folly. He determined to preserve the peace of Europe, and declined the offers of France.

Why did the Ministry add the threats of England to the disobligations of France and its temptations? why acquiesced not to the wise foot on which that King had put things? instead of that came the little petulant mechanic activity sometimes seen in the persons of some^[40] Ministers. What would have prevented a war? acting with Prussia. What would make it? bullying him. He then objected to the Hessian treaty, as impracticable; for contingents, as useless; to the money having been appropriated, as unparliamentary. When the Opposition, he said, offered to the Ministers to increase the Army, they answered, it was large enough; when to increase the Fleet, it would be too much—and then, neither Army nor Fleet were sufficient, and we must have Hessians. They had evidently contracted both services to make room for Foreign Auxiliaries. He wished the Administration was in such hands as those which signed the treaty of Wolfenbüttele! He thought^[41] somebody besides his ancestor presided in the Councils of those days, and foisted in that spirit which now breathed in all our Councils.

Then, reverting to Russia; Russia, he said, like a quarter-master, would make an assignation with France to come to a place called Hanover; they would say, “Prussia is in our way; we will remove him—but he is in good humour; we will provoke him.” He spoke, he said, with little premeditation; he was encouraged by the success his friend Finch had had in that manner. Our wise, economic Ministry foresaw a war, but brought it on sooner than anybody else could. The Address of last year had mentioned only America and these Kingdoms: what had been stated to the House but the clamour on the encroachments of the French? and if that should bring the war hither, we

had resolved to defend the King. These had been the only motives^[42] of Lord Granby and of his brother, whom he praised: he asked that Lord if he was not right; his Lordship's assent would be a full answer to the boldness or preciseness of any Minister. Vyner had asked last year if that money was really to be applied as voted: the question was received with surprise, because nobody thought it could be misapplied. Then the King went abroad with only an unthinking and unparliamentary Minister^[43] at his ear—they made the treaty. Ministers here did not dare to refuse what they would not have done. Then some servile lawyer was to be found to defend it. The Act of Settlement and everything sacred was to be infringed while the whole Cabinet was struggling for power. Report said everywhere, said abroad, that nothing but corruption prevailed in the House of Commons.^[44] Instances had been brought to our Courts of Judicature how much it prevailed in our elections. But now, added he, show that you are not under any one man; show you are not part of his retinue; that you are without *superiors*. Imitate great examples; see the virtue and integrity of those who have refused all things inconsistent with their honour—though I have heard that their eloquence is amusement, and that it is our fault if we follow it.

Hume Campbell at last broke silence, but, though he pressed some firmness into his words, the manner, and much of the matter, was flat and mean. He complimented Charles Townshend with a mixture of irony, telling him that in some points he had no *superior*; in some, no equal. He should have answered Mr. Pitt in the former Debate, but he had inquired, and found it was contrary to the orders of the House. He denied having spoken on any treaties but on that of Worms; since that he had been following a profession to avoid *servility*. Now he returned to the service of the House, he found that Debates were cramped by expressions unbecoming men; yet no epithets should make him cease to speak his mind with resolution. He was taxed with adulation; he found that the former adulation of others was turned *to run the race of invective*; sudden conversion was more applicable to others than to him. He had not expected such support as Mr. Fox's; he would study to deserve it, *dum spiritus hos regit artus*—but he would not take up the time of the House in fabricating words and coining *verbiage*: this was the last time personality should call him up. He had been told that morning by the Speaker, that everything might be said there with impunity. He had scarce ever felt what ambition was, though he knew he had been

accused of it. No political variation had ever made him break a friendship: the flame of invective he had caught from his *superiors*. *Nemo sine vitiis nascitur; optimus ille qui minimis urgetur*. He had quitted the former Opposition, when he saw they aimed at men, not measures, and when he saw all confidence broken amongst them: that, and the Rebellion, had opened his eyes. He owned he had formerly thought it wrong to take Hanoverians into our pay, as it would increase the disgusts against the Royal Family. Pitt did not deign a reply.^[45]

Sir George Lyttelton said he did not mean to restrain invectives; desired no man's mouth should be free from them but his own; urged that the treaty specified, if we were attacked ourselves, that we should not be obliged to furnish twelve ships to Muscovy. That if either treaty tended to war, or to provoke Prussia, they would deserve censure; but they were merely defensive; the troops even not to move unless we required it. Defence is not injury; provision is not provocation. The King of Prussia would have a higher esteem for our Government; he knows that whoever desires peace, must prepare for war. Despair is the worst and weakest of councils. Fortitude and wisdom will find resources, as the Queen of Hungary did, in 1741: we [were] not in so bad a situation by a thousand degrees. Had we then retained the Russians, that war had been prevented. Here were no plans of partition. Unallied, we could make no diversion to France. France unassisted would not dare to disturb the peace of the Empire. Would you have trusted to France for not violating the Law of Nations? *Cæsar ashamed! has he not seen Pharsalia?* Our trade could not be preserved if the balance of Europe overturned, nor that balance overturned, without some assistance from hence. Subsidiary treaties must be struck at lucky moments, when the occasion offers itself.

Legge, in reply, asked if, because it was possible that France might draw us upon the continent, we ought to mark out the way for her?—but the Ministers, indeed, by way of defence, had endeavoured to reduce the treaties to no meaning. All they pretended was to make magazines of 140,000 men *standing at livery*, to supply our contingents; though all our Allies told us they were at peace. For Hesse-Cassel, one would think we were as ignorant of the topography of it as if it belonged to ourselves. In five weeks the Hessians might be ready to be prevented by the wind from coming to our assistance! That little country, since 1726, had received two

millions of our money! When in danger, we wanted them—but they were in other pay, and did not behave quite so ill as when in ours. At Bergopzoom they behaved shamefully! We lost a good officer there—while he was endeavouring to persuade them but to look over the parapet. There was no end of objections to them! They occasioned the loss of the battle of Laffelt. In Scotland they would not fight because no cartel was settled with Rebels. The present Landgrave was old; the next would be a papist: subjects of a papist, would we wish them here to fight against the French?

Colonel Haldane bore testimony to the Hessians behaving well at Roucoux,—not so well at Laffelt, yet not very infamously: the Prince of Hesse, with tears, tried to rally them. Colonel Griffin deposed that he did see them rally there.

Nugent argued on the necessity of diverting the men and money of France by a grand alliance, in case they should obtain the superiority; and on the difficulty of our collecting any Army but of Russians. This, said he, is my way of thinking, and agreeable to one who is reckoned in the system of that rash and frantic Minister^[46] who saved Europe.

George Grenville observed, how extraordinary it was in this treaty to call the King of Prussia *the common enemy*; but it was evident the whole was intended against him. He did not hear that our civility had engaged that Prince to pay the Silesian Loan. In four years we were to pay 340,000*l.* to Hesse-Cassel; besides which, they were to be indemnified: cheap bargain! If they were employed, the whole expense of Foot and Cavalry would amount to 1,180,000*l.* The Russians were to receive 500,000*l.* a-year, from the time they were required to act. Together, the expense would rise to the sum of 3,180,000*l.*! This was the first treaty that promised indemnification. Was our debt reduced only to furnish new subsidies? Why had a mere naval war never been tried? The moment the former treaties had been obtained, the election of a King of the Romans was laid aside. Edward the Third, who experienced the inutility and inconveniences of German auxiliaries, ordered a record to be entered that *subsidia Germanorum in pace onerosa, in bello inutilia*. The treaty with Russia had been commenced in 1747, but had been kept secret during the life of Mr. Pelham.

Beckford, with his wild sense, ran through some general heads; said, no affront had been intended to the Law, but to its rotten, servile limbs, such as

explained away an Act of Settlement, and assisted state alchemists to render an Act of Parliament a *caput mortuum*. Yet there was this difference between the professors; the metallurgic artist loses gold; the State artist gets it. That it was an indignity for great nations to become tributary to little ones. That we have no barrier, but what by defending we shall enrich ourselves. *That our Kings, though they have less prerogative than their predecessors, are richer, and consequently more powerful.* In the late war, the Queen of Hungary's affairs went well, till we engaged as principals, and then she left the burthen upon us. Before the present war, we had twenty men in America to one Frenchman.

Lord George Sackville, with as much spirit, and with sense as compact as the other's was incoherent, replied, that if the question was agitating whether we should desert the war in America, and stick to the continent, nobody would dare to support such an argument. In the year 1725, the Court of Vienna leagued with Russia; we with Sweden and Denmark, and Wolfenbuttle, and Hesse. The greatest loss we had experienced was of Prussia;—but should we bear it patiently or counteract him by Russia? It might be right to trust to his inactivity, if, in 1744, after you had given him Silesia, he had not marched into Bohemia. If the Russians had then been on his back, would he have dared to go to Prague? When driven from thence by Prince Charles, he lost 30,000 men by desertion. He will always seize opportunities where he can strike with security. If all allow that Hanover is to be protected, and Hanover says, "This is the easiest way," shall we not take it? He would not have our Allies think that we were so taken up with America, as not to be able to attend to them. He concluded handsomely with saying, "They who on this occasion have declined employments, have acted honourably; they who have gone into an unenvied Ministry, to support it, deserve not reproach: they will deserve support, if their conduct continues upright."

George Townshend, with much warmth and threats, expressed his resentment on being drawn to make the Motion last year for a perverted Vote of Credit. Lord Granby, with great decency, said, that if anything had been done contrary to that Address, the House must judge of it: yet he was not such an enemy to Hanover, as to let the French satiate their rage on Hanoverian subjects, because their Elector had acted the part of a British King.

Old Horace Walpole, now near fourscore, had yet busy spirits enough, very late at night, to pay part of the purchase of his future title, by a speech in defence of the treaties; to which Pitt replied in a very long harangue, but was not well, and spoke with little fire. He told Fox, that it should not be his method to vilify the laws, and yet pretend to love the lawyers; that he did not pretend to eloquence, but owed all his credit to the indulgence of the House: looked with respect on the King's prejudices, with contempt on those who encouraged them. Was everything to be styled *invective*, that had not the smoothness of a Court compliment? Must it be called so, unless a charge was brought judicially on paper? He complimented Charles Townshend, who, he said, had displayed such abilities as had not appeared since that House was a House. He talked much on the situation of the King of Prussia, who if well disposed, this measure was not necessary; if ill disposed, it was a war—but he would not enter into all the ambages of the *Corps Diplomatique*, and of the gentleman^[47] wrapped up in a political cloak. He and others had said, “Talk against Hanover! oh! you will raise a Rebellion!”—it was language for a boarding-school girl! Lord Townshend and Sir Robert Walpole had withstood Hanover: the latter, said he, thought well of me, died in peace with me. He was a truly English Minister, and kept a strict hand on the closet—as soon as removed, the door was flung open. His friends and followers transferred themselves to the Minister,^[48] who transplanted that English Minister—and even his reverend brother, who still adorns this House, is gone over to the Hanoverian party!

Fox said little on the treaties; his point was to keep Pitt at bay. He again retorted on the latter, the treasonable pamphlets and songs of the former Opposition—all, to be sure, for the good of this country! But he never would forgive any man who had a heart to conceive, a head to contrive, and a hand to execute, so much mischief. That mischief was only cured by what might^[49] have been worse! In his station he envied Charles Townshend nothing more than his knowledge of the Councils of the King of Prussia. His Majesty, he said, had communicated these treaties to the Prussian Minister here, with assurances of our desire of peace. That gentleman, said he of Pitt, professes being proud of acting with some here; I am proud of acting with so many. But is it the part of a wise man, because he wishes Hanover separated from England, to act as if it was separate already?

The House sat till three in the morning, when the Committee agreed to both treaties, by a majority of 289 to 121.

December 15th.—The agreement of the Committee to the treaties was reported to the House. Some of the Tories, and Elliot and Dr. Hay, with spirit opposed concurring with the Committee. Lord Egmont made a long, injudicious, and weak speech, in behalf of the treaties, all his arguments tending to a grand alliance, and war on the continent, and coupled with pedantic quotations from Greek and Roman story. Murray, though subtilizing too much, spoke with great art. Among other pleas, he asked, if the treaties should be rejected, how we were engaged in a war? Could the King make it alone? How did the House even know that the money had been advanced? It was usual to advance money out of services voted, which was replaced afterwards, when the new occasions were allowed: but this was always done at the risk of the Ministers: in the present case the Lords Justices were responsible. That it was not preventing a war to abandon the continent; it was only giving it up to France. On the growing power of Russia, he quoted an expression of Sir Joseph Jekyll, who said, he thought he saw a northern star arising, which, if properly managed, might preserve the liberties of Europe. If no war ensue, we should have displayed our force to our Allies, to our enemies. The most dangerous kind of invasion was to be apprehended from Sweden—but would she dare to attack the Ally of Russia? In territorial contests, we are not bound to assist Hanover; but in this quarrel Hanover has nothing to do; they could suffer only for us. France will not fight where we please, nor be so complaisant as to distinguish between the King and the Elector. What disgrace had fallen on the nation for abandoning the Catalans! If we should desert our most intimate Allies, what Ally would stand by us? The King of Prussia would hear of our debates; would be told that many opposed the treaties, lest offensive to him; that the rest denied there was any intention of offence; therefore he would hear that all England [was] for him. He applied with great aptness, and told with great address the fable of the shepherd treating with the wolf. The beast objected that the shepherd had damned dogs, whom he mentioned like Cossacs and Calmucs—not that he feared them!—but their barking disturbed him. The shepherd would not give up his dogs—yet the neutrality was well kept.

To Murray and Lord Egmont and other champions of the treaties, Pitt replied in a speech of most admirable and ready wit that flashed from him for the space of an hour and half; and accompanied with action that would have added reputation to Garrick. He said, the Attorney-General had spoken so long, not because he had not thought enough to shorten his discourse, but glad to lose the question in the immensity of matter. However, he hoped that the King of Prussia, who, it seems, was so well informed of our Debates, would not hear the application of this fable, and that Murray had treated him like a *Fera Naturæ*. But, in fact, these treaties from simple questions had become all things to all men. As a man with sleight of hand presents a card to the company, 'tis yours—now yours—and very pleasantly takes the money out of the pockets of all the spectators. But whatever explanations were used to pervert its meaning, the Act of Settlement did intend to divest the Crown of the power of declaring war for Foreign Dominions. He would quote poetry; for truth in verse was as good as if delivered in the dullest prose—

Corruption's gilded hand
May put by Justice.

MEAS. FOR MEAS.

If to make war eventually was a breach of that act, as a juror he would find these treaties such a violation. The very payment of money to Hesse and levying troops was an overt-act—but a daring Ministry had assumed to be the Parliament of Great Britain! He desired to know whether the 12,000 men formerly stipulated for England from Muscovy were to be included in the 55,000 now engaged for Hanover. If included, the bargain was still dearer—and we were to give 500,000*l.* to 30,000 men to invite them to live upon murder and rapine!—but this shifting measure, like a diamond, the more brilliant the more it shone. “But come,” said he, “let us consider this northern star, that will not shine with any light of its own—Great Britain must be the sun of all this solar system:—could Russia, without our assistance, support her own troops? She will not prove the star of the Wise Men—they must go with presents. 'Tis a miserable star, that you must get to shine, that you must rub up; but the real wise man—

“Quæ desperat tractata nitescere posse, relinquit.

“By this measure,” continued he, “is not Prussia thrown into the power of France? What can he answer, if France proposes to march an army into Germany? If he refuses to join them, will they not threaten to leave him at

the mercy of the Russians? This is one of the effects of our sage negotiations—not to mention that we have wasted between ten and eleven millions in subsidies! Were our circumstances equal to the avarice of German Courts, our system might last a little longer; but now we are lost *in limine*, in the first outset of the war. Shall we not set our impossibility of supporting such an extensive war against the argument of his Majesty's honour being engaged? or shall we continue to go begging to every beggarly Court in Europe? The Ministers foresaw our ill success at sea, and *prudently* laid a nest-egg for a war on the continent. Indeed, to induce us, we have been told of ancient and modern story, of Greece and Carthage. I have not," said he, "read those histories these many years; they are very well for declamation; but I think I recollect enough to see how improperly they are quoted in this Debate. Suppose Thebes and Sparta, and the other Grecian Commonwealths fallen from their former power; would Athens have gone alone and paid all the rest? Would Demosthenes have alarmed Greece, when they would no longer hear him?—but Athens put herself on board her fleet, and recovered her land, because she fought where she could be superior. Not giving succour to Hannibal indeed was wrong, because he was already on land and successful, and might have marched, as Prince Eugene proposed, with a torch to Versailles.

"Another poet,—I recollect," continued he, "a good deal of poetry to-day,—says, *Expende Hannibalem*—weigh him, weigh him—I have weighed him—what good did his glory procure to his country? It puts me in mind of what the same poet says:

"—— I, demens, curre per Alpes,
Ut pueris placeas, et *declamatio* fias!"

He dwelt on his duty to the King, and how harsh it must be for Ministers to be honest—but perhaps the resistance given to these treaties might save the Administration from a continent war. Yet himself would nevermore place confidence in the authors, advisers, adopters of this measure. He ended with a prayer, that conviction might change perverted Ministers to save us; or that British spirit might exterminate such measures as shake our Government; and that British spirit might influence in British councils.

The Russian treaty was approved by 263 to 69. The Hessian by 259 to 72.

After these Debates, the Parliament adjourned for the Christmas holidays, during which the changes in the Administration were settled. Charles

Townshend was dismissed: the Duke of Bedford was persuaded by Mr. Fox's arts and friends to ask the exalted post of Lord Privy Seal for the Duchess's brother, Lord Gower—a vast promotion for so young a man! Mr. Fox would have engaged his Grace to promise to drop all asperity to the Duke of Newcastle, but he frankly refused. The ductile Duke of Marlborough had ceded the Privy Seal, to accommodate this measure, and took the Ordnance with little ceremony from General Ligonier: a violence, deservedly esteemed hard—and not judicious, for the representative of the great Marlborough to dispossess almost the only man in England who approached the services of that hero, and who had the additional merit, though a Frenchman, of having saved the country^[50] which had so humbled his own. The old man felt it sensibly—but as the King always consulted him on military affairs preferably to his son the Duke, of whom he could not stifle a little jealousy—the Duke, still less disposed to check a jealousy of preference, eagerly countenanced the removal of Ligonier. The latter had all the gallant gaiety of his nation. Polished from foppery by age, and by living in a more thinking country, he was universally beloved and respected. His successor, the Duke of Marlborough, had virtues and sense enough to deserve esteem, but always lost it by forfeiting respect. He was honest and generous; capable of giving the most judicious advice, and of following the worst. His profusion was never well directed, and a variety of changes in his political conduct having never been weighed previously, or preserved subsequently, joined to the greatest bashfulness and indistinction in his articulation, had confirmed the world in a very mean opinion of his understanding.

Lord Duplin and Lord Darlington were made joint Paymasters: Doddington, again a Courtier, returned to his old office of Treasurer of the Navy: Lord Bateman and Mr. Edgecombe, the one nephew of the Duke of Marlborough, the other equally attached to Mr. Fox, were placed in the Admiralty. The Duke of Newcastle, the Duke of Bedford, the Chancellor, and a little time afterwards Mr. Fox, had each a nomination to the Board of Trade, and placed there their friends, Judge Talbot, Mr. Rigby, Soames, Jenyns the poet-laureate of the Yorkes, and young Hamilton. Lord Hilsborough was made Treasurer of the Chambers; Lord Hobart succeeded him as Comptroller of the Household: Lord Gage was made Paymaster of the Pensions; George Selwyn Paymaster of the Board of Works. That old rag of Lord Bath's foolish quota to an administration, the mute Harry

Furnese, was made a Lord of the Treasury, because he understood the French actions. To him was suddenly joined Mr. O'Brien, on the very morning that Mr. Ellis was to have kissed hands; but the Duke of Newcastle, who had recovered his insolence now the treaties were over, would not suffer a creature of Mr. Fox at the Board of Treasury. Ellis was put off with a portion of the Vice-Treasurer of Ireland: it was usually in two persons: Sir William Yonge was just dead; Lord Cholmondeley, the other, received as associates, Ellis and Lord Sandwich, who was destined for Chief Justice in Eyre by the Duke and Mr. Fox, but the same authority which had set Ellis aside marked Lord Sandwich too; and as if there was a choice between the outcasts of former silly Administrations, gave the preference to Lord Sandys.

It has been mentioned that Lord Barrington was appointed Secretary at War in the new system: he and Ellis may easily be described together; they were shades of the same character; the former a little brighter by better parts, the other a little more amiable by less interestedness. Lord Barrington was always assiduous to make his fortune; Ellis, meaning the same thing, was rather intent on not hurting his. The former did not aim at making friends, but patrons; the latter dreaded making enemies. Lord Barrington had a lisp and a tedious precision that prejudiced one against him; yet he did not want a sort of vivacity that would have shone oftener, if the rind it was to penetrate had been thinner. Ellis had a fluency that was precise too, but it was a stream that flowed so smoothly and so shallow, that it seemed to design to let every pebble it passed over be distinguished. Lord Barrington made civility and attention a duty; Ellis endeavoured to persuade you that that duty was a pleasure. You saw that Lord Barrington would not have been well-bred, if he had not been interested: you saw that if Ellis had been a hermit, he would have bowed to a cock-sparrow.

There remained one purchase to the Government to be completed, which though not terminated till the beginning of the succeeding year, I shall comprehend in the account of this expensive establishment. This was Hume Campbell; annihilated in the eyes of the world and in his own, by Mr. Pitt's philippic; still precious to the Duke of Newcastle, who was now as injudiciously constant to an useless bargain, as he was apt to be fickle to more serviceable converts. Lord Lothian, after many negotiations and reluctances, was dismissed with a pension of 1200*l.* a year from the office

of Lord Registrar of Scotland, which was conferred on Hume Campbell for life. Secure with such a provision, he never once provoked Pitt's wrath; and repaid this munificence with one only scrap of an ignorant speech on the Plate-tax.

It is necessary to recapitulate the extravagant and lasting charge which this new caprice or consequence of the Duke of Newcastle's caprices brought on the Government. Sir Thomas Robinson had a pension of 2000*l.* a year on Ireland for thirty years. Mr. Arundel, to make room for Lord Hilsborough, 2000*l.* a year. Sir Conyers Darcy 1600*l.* a year. Lord Lothian 1200*l.* Lord Cholmondeley, to indemnify him for the division of his office, 600*l.* a year. Here was a load of near 8000*l.* a year incurred for many years to purchase a change in the Administration—for how short a season will soon appear!

But if this traffic for a partial revolution in a system, still upheld, was scandalously inglorious, at least it called forth a display of abilities that revived the lustre of the House of Commons, and in the point of eloquence carried it to a height it perhaps had never known. After so long a dose of genius, there at once appeared near thirty men, of whom one was undoubtedly a real orator, a few were most masterly, many very able, not one was a despicable speaker. Pitt, Fox, Murray, Hume Campbell, Charles Townshend, Lord George Sackville, Henry Conway, Legge, Sir George Lyttelton, Oswald, George Grenville, Lord Egmont, Nugent, Doddington, the Lord Advocate of Scotland, Lord Strange, Beckford, Elliot, Lord Barrington, Sir George Lee, Martin, Dr. Hay, Northey, Potter, Ellis, Lord Hilsborough, Lord Duplin, and Sir Francis Dashwood, these men, perhaps, in their several degrees, comprehended all the various powers of eloquence, art, reasoning, satire, learning, persuasion, wit, business, spirit, and plain common sense. Eloquence as an art was but little studied but by Pitt: the beauties of language were a little, and but a little more cultivated, except by him and his family. Yet the grace and force of words were so natural to him, that when he avoided them, he almost lost all excellence. As set speeches were no longer in vogue, except on introductory or very solemn occasions, the pomp and artful resources of oratory were in a great measure banished; and the inconveniences attending long and unpremeditated discourses, must (as I have delivered them faithfully,) take off from, though they ought to add to, their merit. Let those who hear me extol, and at the same time find

Mr. Pitt's orations not answer to my encomiums, reflect how bright his talents would shine, if we saw none of his, but which, like the productions of ancient great masters, had been prepared for his audience, and had been polished by himself for the admiration of ages! Similes, and quotations, and metaphors were fallen into disrepute, deservedly: even the parallels from old story, which, during the virulence against Sir Robert Walpole, had been so much encouraged, were exhausted and disregarded. It was not the same case with invectives; in that respect, eloquence was little more chastened. Debates, where no personalities broke out, engaged too little attention. Yet, upon the whole, the style that prevailed was plain, manly, argumentative; and the liberty of discussing all topics in a government so free, and the very newspapers and pamphlets that skimmed or expatiated on all those subjects, and which the most idle and most illiterate could not avoid perusing, gave an air of knowledge and information to the most trifling speakers.

I shall not enter into a detail of all the various talents of the men I have mentioned; the genius and characters of many of them have been marked already in different parts of this work. Most of them were more or less imperfect; I pretend to consider the whole number but as different shades of oratory. Northey saw clearly, but it was for a very little way. Lord Strange was the most absurd man that ever existed with a very clear head: his distinctions were seized as rapidly as others advance positions. Nugent's assertions would have made everybody angry, if they had not made everybody laugh; but he had a debonnaire jollity that pleased, and though a bombast speaker, was rather extravagant from his vociferation, than from his arguments, which were often very solid. Dr. Hay's manner and voice resembled Lord Granville's, not his matter; Lord Granville was novelty itself; Dr. Hay seldom said anything new; his speeches were fair editions of the thoughts of other men: he should always have opened a Debate! Oswald overflowed with a torrent of sense and logic: Doddington was always searching for wit; and what was surprising, generally found it. Oswald hurried argument along with him; Doddington teased it to accompany him. Sir George Lyttelton and Legge were as opposite in their manners; the latter concise and pointed; the former, diffuse and majestic. Legge's speeches seemed the heads of chapters to Sir George Lyttelton's dissertations. Lord Duplin aimed at nothing but understanding business and explaining it. Sir Francis Dashwood, who loved to know, and who cultivated a roughness of speech, affected to know no more than what he had learned from an

unadorned understanding. George Grenville and Hume Campbell were tragic speakers of very different kinds; the latter far the superior. Grenville's were tautologous lamentations; Campbell's bold reprehensions. Had they been engaged in a conspiracy, Grenville, like Brutus, would have struck and wept; Campbell would have rated him for weeping. The six other chief speakers may, from their ages and rank in the House, be properly thrown into two classes.

Mr. Conway soothed and persuaded; Lord George Sackville informed and convinced; Charles Townshend^[51] astonished; but was too severe to persuade, and too bold to convince. Conway seemed to speak only because he thought his opinion might be of service; Lord George because he knew that others misled, or were misled; Charles Townshend, neither caring whether himself or others were in the right, only spoke to show how well he could adorn a bad cause, or demolish a good one. It was frequent with him, as soon as he had done speaking, to run to the opposite side of the House, and laugh with those he had attacked, at those who had defended. One loved the first, one feared the second, one admired the last without the least mixture of esteem. Mr. Conway had a cold reserve, which seemed only to veil goodness: Lord George, with a frankness in his speech, had a mystery in his conduct, which was far from inviting. Charles Townshend had such openness in all his behaviour, that he seemed to think duplicity the simplest conduct: he made the innocence of others look like art. But what superiority does integrity contract, when even uniformity of acting could exalt so many men above the most conspicuous talents that appeared in so rhetorical an age! Mr. Townshend was perhaps the only man who had ever genius enough to preserve reason and argument in a torrent of epigrams, satire, and antithesis!

The other parliamentary chiefs were as variously distinguished by their abilities. Pitt, illustrious as he was in the House of Commons, would have shone still more in an assembly of inferior capacity: his talents for dazzling were exposed to whoever did not fear his sword and abuse, or could detect the weakness of his arguments. Fox was ready for both. Murray, who, at the beginning of the session, was awed by Pitt, finding himself supported by Fox, surmounted his fears, and convinced the House, and Pitt too, of his superior abilities: he grew most uneasy to the latter. Pitt could only attack, Murray only defend: Fox, the boldest and ablest champion, was still more

formed to worry: but the keenness of his sabre was blunted by the difficulty with which he drew it from the scabbard; I mean, the hesitation and ungracefulness of his delivery took off from the force of his arguments. Murray, the brightest genius of the three, had too much and too little of the lawyer: he refined too much, and could wrangle too little for a popular assembly. Pitt's figure was commanding; Murray's engaging from a decent openness; Fox's dark and troubled—yet the latter was the only agreeable man: Pitt could not unbend; Murray in private was inelegant; Fox was cheerful, social, communicative. In conversation, none of them had wit; Murray never had: Fox had in his speeches from clearness of head and asperity of argument: Pitt's wit was genuine, not tortured into the service, like the quaintnesses of my Lord Chesterfield.

I have endeavoured in this book (and consequently shall be much more concise in others, on Parliamentary Debates,) to give an idea of the manner and genius of our chief orators, particularly of Mr. Pitt, the most celebrated: his greatest failure was in argument, which made him, contrary to the rule of great speakers, almost always commence the Debate: he spoke too often, and he spoke too long. Of the above-recorded speeches, his first, on the Address, was sublime and various; on the Army, at once florid and alarming; on the Militia, clear, unadorned, and like a man of business: that against Hume Campbell, most bitter; the last, full of wit; but being hurt at the reflections on his pomp and invective, he took up in the rest of that session a style of plain and scarce elevated conversation, that had not one merit of any of his preceding harangues.

FOOTNOTES:

[31] Mr. Fox, by Lord Hardwicke, on the Marriage Bill.

[32] The resignations on Lord Granville's administration of three days.

[33] The House had very lately been much offended at a Marquis St. Simon, a Frenchman, taking notes in the gallery.

[34] The Scotch. The young Pretender, in one of his declarations, mentioned our pamphlets and libels as proofs of the dissatisfaction of the nation.

[35] A court where trifling causes are tried in the country; called so, from country fellows coming thither with dusty shoes, *avec les pies poudres*.

[36] It is worth remembering, that Hume Campbell, who now declaimed against invectives, and so much commended Sir Robert Walpole, had formerly in a speech called that Minister *a tympany of corruption!*

[37] The Duke of Bucks—alluding to the Duke of Newcastle.

[38] Spotted like a weasel.

[39] In 1744, when the great heats were raised against the Hanoverian troops, Lord Barrington, *then* in Opposition, used this phrase, “If an angel should come and tell us, I will separate you from Hanover, I will make you an island again.”

[40] Picture of the Duke of Newcastle, his great uncle.

[41] Baron Bothmar, the Hanoverian Minister.

[42] Lord Granby and George Townshend moved the Vote of Credit in the preceding session.

[43] Lord Holderness.

[44] The Duke of Bedford had received 1500*l.* for electing Jeffery French at one of his boroughs in the west; but he dying immediately, his heir sued the Duke for the money, who paid it, rather than let the cause be heard.

[45] Alexander Hume Campbell died of a fever, July 19, 1760.

[46] Lord Granville.

[47] Horace Walpole.

[48] Lord Granville.

[49] The Rebellion.

[50] At Laffelt.

[51] Vide [Appendix](#).

1756.

Laissant toujours avilir sa dignité, pour en jouir.
Volt. Hist. Univ. vol. i. p. 140.

CHAPTER V.

Meeting of Parliament in the year 1756—Negotiations with France—Accommodation with the King of Prussia—Beckford's accusation against Admiral Knowles—Grants to North America—Employment of Hessian Mercenaries—Mischiefs produced by the Marriage Act—Plan for raising Swiss Regiments debated in the Commons—Horace Walpole's Speech on this subject—Swiss Regiment Bill passes the Commons and Lords—Anecdote of Madame Pompadour—Debates on Budget and Taxes.

The Parliament, which had adjourned during the holidays, met again January 13. The Opposition was enriched with Sir Harry Erskine, who having enlisted under Mr. Pitt, was dismissed from his post in the Army. Mr. Pelham had formerly pressed the King to break him, but in vain. His Majesty now recollected that advice, and took upon himself to order this act of authority: had it been intended to turn the new patriots into ridicule, it could not have answered the purpose better.

France began to unfold the mystery of her moderation; yet with much caution. Monsieur Rouillè sent a Memorial to Bonac, their resident at the Hague, which he delivered to Colonel Yorke, but making him give a receipt for it. It demanded, now the King was returned from Hanover, that he would punish those *brigands*, who had taken so many French ships, whose complaints, though often repeated, had still been disregarded. It demanded restitution. *That* granted, the Court of Versailles would be ready to treat with us. In answer to this Memorial, France was charged as the aggressor, by her encroachments in America. Restitution of territory on their part was demanded, before any reparation would be offered on our side.

We had begun the war with flippancy, the Duke of Newcastle's general exordium, which he was not wont to prosecute with firmness: an unexpected event broke out, which accounted for his continuing to act with resolution. The Russians had been listed in our quarrel to awe the King of Prussia, and then our Ministers dreaded the awe they had given. The Opposition too, it was probable, intended to inflame his resentments on the Russian treaty: to obviate which, Mechell, the Prussian Minister, had been assured that nothing hostile was meant against his master; that if any word of that cast had slipped in, it was hoped he would excuse it: that we had no

thought of giving him the first provocation. This had been taken well. We followed it with proposing to that Prince a treaty of guarantee for the *Empire*. He changed the latter word for *Germany*, because formerly the Low Countries had been reckoned into the Empire, and he would not be involved in a war for them. He desired that the treaty so modified might be returned to him directly, that he might show it to the Duc de Nivernois, whom France was sending to engage him in their quarrel. This guarantee for Germany, this thorn drawn out of the side of Hanover, dispelled at once the King's aversion to his nephew. The terms were joyfully accepted, and the treaty was signed Jan. 17th.

21st.—The Committee of the whole House, preparatory to a new Bill, which George Townshend (to please him) was ordered to bring in, voted all the old Acts of Parliament relating to the Militia, useless.

23rd.—Beckford complained to the House of Admiral Knowles's tyrannic government of Jamaica, whom he abused immeasurably, and of which he quoted many instances, and moved for several papers necessary to a prosecution. Fox said that Knowles was already recalled, and indirectly seemed to defend him. Pitt took it up with great warmth and solemnity, cast reflections on Fox for endeavouring to screen the guilty, and paid great court to Beckford, who, till now, had appeared to prefer Mr. Fox. The papers were granted. Of the affair I shall say no more; it drew out to great length; Fox openly espoused Knowles, who was cleared triumphantly, Beckford having charged him with much more than he had proofs or power to make out.

The same day Sir George Lyttelton, the new Chancellor of the Exchequer, opened the Ways and Means for the supplies of the year. The matter he unfolded well, but was strangely awkward and absent in reading the figures and distinguishing the sums. Pitt ridiculed and hurt him; yet he made a good reply, and told Pitt that truth was a better answer than eloquence; and having called him *his friend*, and correcting himself to say *the Gentleman*, and the House laughing, Sir George said, "If he is not my friend, it is not *my* fault." Pitt was sore in his turn; and the dialogue continued, with great professions of esteem from Lyttelton, of contempt from Pitt; who at last grew into good humour; but with regard to the imputation of eloquence, said, he found there were certain ways of answering certain men.

A day was spent without any issue on the Vice-Treasurership of Ireland, which had been lately split into three, to make a disposition for Ellis: the other two were Lords. George Grenville questioned whether a third sharer could sit in Parliament, consistently with the Act which forbids subdivisions of places. The Debate, after some hours, was put off till inquiry could be made in Ireland, whether this partition was novel or not.

28th.—The Government proposed to Parliament to bestow 120,000*l.* as a reward on such persons and colonies of North America as had distinguished their zeal and activity on the new commotions. Five thousand pounds was particularly destined to Sir William Johnson, the avenger of Braddock. Charles Townshend, with great warmth, opposed the gross sum, unless it was to be accounted for. Pitt pursued the attack, and said, we had a disjointed Ministry, who united only in corrupt and arbitrary measures. Fox replied with great spirit, thanking Pitt for the great service he did him by his attacks, and assuring him that he knew of no disunion; that he believed Pitt himself did not, or he would join with one part of the Administration against the other, as he had done formerly. But his complaints being general, proved a general harmony, except with one family; and their clamours would never pass for the voice of the nation: George Grenville flamed at these words, but the Speaker and Lord Strange interposed, and the Debate was adjourned, to give way to a Bill on Linens. After the Debate, Pitt and Fox talking it over, the latter told the other, that so far from any disagreement between himself and Newcastle, there were men (meaning the two Townshends) who had offered that Duke to abandon Pitt, if his Grace previously would give up Fox—and the latter would have named them; but Pitt could guess too well, not to wave such an explanation. It must not be supposed that Charles Townshend bore any inveteracy to Fox; he left all bitterness to his brother; and was content with promoting confusion. The money was granted in the next Committee without a division, but not without many reflections from the new opponents. Beckford alone would have given a larger sum; and Legge, who aimed at governing and drawing Lord Halifax into their system, approved what, he said, he was sure under that Lord's management would be liable to no abuse.

France beginning to retaliate on our vessels, and threatening some attempt on our coast, the new Hessian mercenaries were sent for, and assistance according to treaty demanded from Holland. Lord Ravensworth,

whether to reconcile himself to the King, or to distress the Administration,—for both his views and manner of disclosing them were very unintelligible,—proposed to send rather for Hanoverians; but without support or success.

A little event happened that demonstrated the mischiefs produced by the Marriage Act: one Grierson, a Minister, was convicted of solemnizing matrimony contrary to that law. No fewer than 1400 marriages were said to be dissolved on his conviction, in which number 900 women were actually pregnant. The Chancellor triumphed in punishing so many who had dared to contravene his statute: a more humane man would have sighed to have made such numbers suffer even by a *necessary* law.

On the next affair, though of very little importance, seven tedious days were wasted in the House of Commons, besides a Debate in the Lords. Like other fuel for Opposition, the subject, when it had once passed into a Bill, was never remembered more. Every topic is treated in Parliament as if the liberty and fate of the country depended upon it: and even this solemnity, often vented on trifles, has its use. The certainty of discussion keeps Administration in awe, and preserves awake the attention of the representatives of the people. Ministers are, and should be, suspected as public enemies: the injustice arising to them, or the prejudice to the country by such jealousy, can hardly ever be adequate to the mischief they may do in a moment, if too much is left to their power, if too much trust is reposed in their integrity. But to the point in question.

One Prevot, a refugee adventurer, recommended by the Princess of Orange, had ingratiated himself with the Duke, and was countenanced by him in a proposal of raising four Swiss battalions to be blended with new levies in our colonies, and employed in North America: the commander to be English; Prevot, second in command. The officers to have co-equal benefits with the natives *there*, but to acquire *here* no rank or advantage. In consequence of this plan, February 9th, an estimate of the charge was presented to the House by the Secretary at War, who introduced it with a description of the advantages which the Americans, sensible of their want of discipline, would derive from being led by experienced officers. Pitt, instead of censuring the scheme, dwelt on the tardiness of it, painted the negligence of the Administration since the peace of Aix, from the very date of which they had had reason to suspect the designs of France; lamented

Lord Loudun, who was placed at the head of a scroll of paper; compared two miserable battalions of 1000 men sent from hence, with 3000 dispatched thither by the French; and asked, if it was but at that day that the Administration began to defend America? Did they not know that this could not be a force before August?—yet he would take this because no better [was] to be had. The foreign officers would undergo another consideration: he should not be for them. Lord Barrington replied, that 8900 men were already voted for the service of America. Charles Townshend, a perfect master of our West Indian affairs and history, gave a detail of many enterprises that had failed by a mixture of Europeans and Americans; wherever the latter only [were] employed, the swiftness of recruiting had been incredible; when blended, in three years 2000 men had not been levied. As he knew our neglects in that quarter of the world better than Pitt, he was not less gentle in lashing them.

Pitt, as if left behind in the race, again resumed it; asked Lord Barrington if he would presume to say that there were actually 3000 men in arms in America? would he add paper to paper? He himself should pity Lord Loudun, if stated as a commander of sufficient force! He professed being hostile to no man, was friendly to his King and country; but the inadvertence of his Majesty's Ministers had brought his age to the brink of destruction—yet it was no comfort to look back and blame; it was a pleasure to try to be of service. There had been a long series of ignorance, and incapacity, and collusion, since the treaty of Aix; our Ministers had gone on, hardly complaining, quite acquiescing! Lord George Sackville spoke very sensibly on the situation of affairs, with some reproof on Ministers, but charging more on the defects of the constitution of our colonies, which ought to have one power established there, as the French government in their settlements is one. On the Pennsylvanian Quakers he was more sharp, and with great reason; they had defeated every plan of defence, were careless against the French, acrimonious out of season against their Governor, and had passed a Militia law, which they meant should be ineffectual. The estimate, amounting to 81,000*l.*, was voted without a division.

The next day, Lord Barrington moved for leave to bring in the Bill, and explained the restrictions it was to contain. Pitt thanked the Ministry for having departed from their first plan, which had been calculated to consist

entirely of foreigners: yet he ascribed the honour of this mitigation to the opposition made, and said, that ever since they had heard the first objections, the Ministers had been trying to play with poison and dilute it, yet still it was poison. If others would take it for a remedy, let the Bill be brought in; though he had thought it wrong from the first concoction. He charged the plan as a violation of the Act of Settlement, on which supposition this and all the following Debates rolled. He said, he heard that we wanted Dutch engineers for sieges—what sieges had the Dutch made? English officers had behaved everywhere with lustre—the Dutch nowhere. Were Dutch engineers of such value, that we should *pro tanto* repeal the Act of Settlement?—but wanted! were officers wanted? was it a symptom of scarcity of officers, when you have just broken a brave^[52] officer, distinguished with marks of two wounds, and by the applause of the Duke; and who was cashiered for nothing but his vote in Parliament!

Fox called to order, and asked the Speaker, if that assertion was not a violation of it—“I ask the House their opinion,” cried Pitt; “and though the House should forbid me at the bar, as long as my mind reproaches the author of it, I will say it is my opinion that he was broken for his vote.” “He has changed his phrase,” replied Fox; “he asserted—he now believes. He cannot prove it, and it was kind to stop him.” “If the House commands me,” said the Speaker, “I will speak: who asserts, I suppose, is ready to prove. He may say he believes. They who advise a measure are responsible.” Pitt, fortified with this declaration (and without it he would not have retracted), persisted; bidding Fox, armed with arbitrary power, and with that majority of which he had heard so much, bring him to the bar: and he told him, it was the characteristic of the present Administration to break the Act of Settlement for pretended utility; and in this case the utility was so small, that it was stabbing that Act with a bodkin. Fox answered, that he should be ashamed to think this scheme had been altered for Pitt’s objections; and asked, how it was possible to Debate, without urging the expedience of what was contended for? that Pitt had asked, what pledge of fidelity these foreigners were to give: in three centuries what Swiss had ever betrayed any country? With regard to the dismissal of Sir Harry Erskine, no apology was necessary. Twenty years ago, when Lord Westmoreland, Lord Cobham, and Mr. Pitt himself had been dismissed, the Opposition would have brought in a Bill to prevent such removals; but it would have been making officers independent both of the Crown and of Parliament, and was rejected.

Pitt allowed, that he thought officers might be broken, even without recourse to a Court-Martial: and Sir Harry Erskine himself affected to say that he did not complain of his dismissal: a civil or a military life was indifferent to him: yet he could wish, if there were any other cause than his vote, that Mr. Fox would declare it.

James Grenville, in a formal obscure speech, produced a clause of the Act of Settlement, by which he would have proved that this Bill could not be received, unless another were first passed, by which any foreigners to be naturalized must renounce employments; and he instanced in Bills of that purport passed for the marriages of King William and the Prince of Orange. The Debate took entirely this turn, the Opposition asserting that this would be a Bill of Naturalization; and if so, not receivable: the Administration, that it gave them something more than naturalization. Pitt declared himself struck with Grenville's remark, which had not been communicated to him; and urged the Ministry with giving to these foreigners *per saltum* the very excepted parts, and with bestowing on officers in the dregs of the Republic of Holland what had been withheld from the Prince of Orange. Murray would have evaded this, by asking if anything in the Bill tended to naturalization? The Speaker declared there was such an appearance. George Grenville said, by this evasion the Ministry will have only to omit the word *naturalization*, and it may grant what advantages it pleases to foreigners. "But," said Lord Strange, "in Arabia none but a native can purchase a mare: suppose the Prince of the country gave me permission to buy a mare, would he naturalize me?" It passed by 165 to 57 that the Bill should be brought in.

The Bill was read for the first time on the 12th. Pitt and Charles Townshend ridiculed the various forms into which the scheme had shifted. The former asked how the blanks were to be filled up, and if it was for ever to be a floating mark never to be hit! From Lord Barrington he did not expect much information, to whom, with Hotspur, he would say, "that which thou dost not know, that thou canst not tell:" and he said, the Ministers had got something in their hands which they neither knew how to hold or drop. The other went further, and insinuated expectations of seeing more foreigners brought over by side-winds. Lord Barrington replied, that no Government presumed to fill up blanks in an Act of Parliament. Proposals were made for taking the opinion of the Colonies on this plan.

The Bill was ordered to be printed, and the Debate adjourned by agreement to the second reading.

The 18th, Charles Townshend presented a petition from the agent for the settlement at Massachusetts Bay against the proposed Swiss battalions. Pitt moved to have laid before the House two petitions from Pennsylvania, representing the distressed situation of their province. Fox, for seven more, in which they implore assistance. Sir Richard Lyttelton, for the list of officers on half-pay, insinuating how little occasion there was to employ foreigners. Lord Barrington then moved to have the Bill committed, which Sir H. Erskine opposed.

Horace Walpole the younger discussed the question, whether this regulation would be an infringement of the Act of Settlement, of which, he said, nobody could be more tender, as he had lately shown, by opposing the treaties which he had thought clashed with that Act. A literal infringement he allowed it would be, but merely literal, and the benefits to be reaped by departing from the letter, he was of opinion would come within the very spirit of the Act, were undoubtedly consonant to the intention of the Legislators who framed it, and tended to secure the blessings of that very establishment to a considerable number of our fellow-subjects. That the Legislators may be, and generally are, the greatest men of their age, yet their notions and ideas must flow, and are taken up from the views of their own age; and though they build for posterity, yet they build with materials of their own time: that they attempt to prevent as far as they foresee: that any constitution, however wisely framed, if once declared unalterable, must become a grievance: wise and happy as our own is, did it not grow so by degrees? should we presume to pronounce that it received the last perfecting hand in the reign of King William? subsequent alterations showed it had not. That the great purpose of the patriots of that reign, when by the misrule of their native Kings they were reduced to place a Foreign Family on the Throne, had been to guard against the predilection of their new sovereigns in favour of ancient subjects, and to secure their posterity from being enslaved by those who were introduced to protect liberty. This country had experienced how little even English Kings could resist practising against English liberty; a race of German Princes, accustomed to arbitrary government, was still more likely to grasp at arbitrary power. That these apprehensions had dictated that clause in the Act of Settlement which

prohibits any foreigner born from being so far naturalized as to be capable of any employment, civil or military; and there the words did clash with the scheme in question.

The Swiss and Germans settled in Pennsylvania were excluded by the Act of Settlement from the glorious privilege of defending the country they had preferred to their own; were debarred from fighting in an English quarrel, which at the same time was become their own. He was aware, he said, that the Act only specified that they should be incapable of commissions; but a raw, undisciplined multitude, not only not commanded by officers of their own, but not understanding the commands of those under whom they were to serve, would introduce confusion instead of utility; and unless they might have proper officers, it would be rashness to employ the men. The framers of the Act of Settlement did not foresee that a time would come, when, from the too Christian spirit of the Quakers, and the too unchristian ambition of France, our most valuable colonies would be in immediate danger. They did not foresee that this danger would meet with a providential resource on the very spot: that an hundred thousand Germans and Swiss, animated by the most amiable principles, zeal for religion, passion for liberty, and a spirit of industry, would be actually settled in the heart of the province most exposed—if they had, would they have been patriots, if they had still narrowed the Act of Settlement to the rigour it now wore?

“No, Sir,” said he; “nor when they formed a great act on the plan of their fears, did they apprehend that England would ever be enslaved by an Army of Germans that should take America in their way. But putting the most extravagant of all suppositions, that there could hereafter be an intention of employing these almost constitutional troops against the constitution, whether would it be most likely, that Swiss Republicans, and Germans fled from Monarchy, would fight for a King attempting to make himself arbitrary, or in defence of liberty which they had travelled even to America to seek? What should induce a Saltzburgher, for instance, who had abjured his own ecclesiastic tyrant, to serve an English King in a still more unconsecrated cause? Nobody, he believed, was so visionary as to impute any such scheme to the royal person on the Throne; nor would he dwell on the experience which the nation had had for near thirty years of how capable his Majesty was of attempting to violate the most minute part of the constitution. In his long and happy reign he could recollect but one

instance, which, in the most strained construction, could make the most jealous suspect that his Majesty meditated even to surprise us into subjection; and that was, by governing Hanover with so parental a hand, as if he meant to insinuate to Englishmen that they might be the happiest subjects in the world, though under an arbitrary Prince.”

He was persuaded, he said, that no gentleman could disapprove the deviation in question from the Act of Settlement, but from apprehensions of its being drawn into a precedent—he would state the case. Could the most designing Minister come to Parliament (for before they get rid of Parliament, they must make use of it against itself), and say, in the year 1756 you consented to allow commissions to about forty foreign officers to regiment and discipline a proportion of Swiss and Germans, none of them Hanoverians, in Pennsylvania, to defend that province against the encroachments of the French, when the Quaker natives would not, and you could not, raise troops to defend them; and therefore we hope you will have no scruple to violate it again now, perhaps in the year 1800, but will let us import into England some regiments of Hanoverians already raised and disciplined?—no; they could not say this; and when a precedent does not tally, it is in no danger of becoming a precedent. King William’s patriots could not mean that any part of the West Indies should be sacrificed to France, rather than suffer it to be defended by a providential supply of foreigners whom tyranny had driven, not invited, thither. Who was there, at this day, who did not commiserate the blind bigotry of the Jews,^[53] who thought God capable of giving them so absurd a precept, as a prohibition of defending their country on a Sunday?

“This is the light, Sir,” said he, “in which I protest I see it. I think I execute the will of those great men better by departing from, than by adhering to the letter of that valuable testament they left us. Could it be possible for them to have been narrow-minded enough to have intended such rigid minuteness, common sense would teach me to reject so prejudicial a bequest; and yet, Sir, though I have declared my opinion so strongly, if even this clause in the Act of Settlement should still occasion difficulty, as I hope it will not be efficient to obstruct the scheme, I should not be sorry to see it. Even a literal violation of such an Act is too material to be passed over lightly. We ought to show that we do not supersede a single sentence of it without weighty consideration. I never wish to see

unanimity on such a measure. Unanimity is a symptom of monarchy; jealousy is constitutional; and not only constitutional, but the principle of our existence. If our ancestors had intended only an assembly of deliberation, the Privy Council, or that more compact body of wisdom, the Cabinet-Council, might have sufficed to deliberate. We were calculated to suspect, to doubt, to check. I think, Sir," added he, "we have already shown that we do not proceed wantonly or inconsiderately. One honourable gentleman (Pitt), with whom I must ever lament to differ, by standing up for the very letter of the Act, has given all the weight that can be given to it—his dissent is sufficient deliberation—and I flatter myself that my agreeing with *those* who think that in the point before us the letter and the spirit jar, and who, I know, feel as warmly for the constitution, and who have taken all imaginable precaution to preserve the integrity of the Act without losing so necessary a service, will not be interpreted as any want of attachment to so essential a bulwark of our liberties."

I am sensible how much too large a space this speech occupies in these Memoirs, and how indecently such weak arguments are displayed at length, while the opinions of many great men are sedulously contracted. Yet the author had some reasons which he hopes will excuse this seeming arrogance. He wished to give an instance that he acted freely, spoke freely; and as he seldom has had, or sought, occasion to mention himself, he trusts that this one excess will be overlooked, especially as it produced a memorable saying of the King, to whom the author is willing to do honour where he can, as he always has done justice on him when he deserved the contrary. Horace Walpole lived in friendship with Fox, in harmony with Pitt, and rather thought better of the conduct of the latter. Having declared openly against the treaties, he would not turn with Fox to a defence of them, and had surprised, by deserting him. He had now been desirous of showing that that separation had been only temporary, and yet he could not resist paying greater compliments to Pitt in the very speech intended for support of Fox; but Walpole always leaned most to a man in Opposition. Why he flattered the King in this speech is not so comprehensible; nor could he give any reason for it himself. It was unnecessary, it was out of character and without any view, for he never even went to Court. Fox repeated the compliment to the King. He was pleased; but said, he did not expect

Walpole would have spoken on that side; adding, “You may blame me here, Fox, but I will tell you the truth; I try to make my people at Hanover as happy as I can, and they deserve it of me.”

Young Hamilton pursued the argument on the Act of Settlement with great ability, and urged, that not to deviate from it would be to defeat it; the chief end of it had been to prevent men unacquainted with our country and laws from having the administration of them; but now it was alleged to hinder the service of another country, America. Foreigners there had only become soldiers, because they no longer could be planters; yet gentlemen seemed to turn their eyes from existing dangers to imaginary. The Debate lasted till ten at night, but neither with remarkable events nor speeches, and it passed by 215 to 63 to commit the Bill. Charles Townshend again pressed to hear Bolla and the agents and General Waldo on Monday.

On the 20th the Committee sat. Pitt ridiculed with much humour this scheme which the Ministry so greatly applauded, and yet with which the nation would not have been blessed, if by a fortuitous concurrence of circumstances Prevot had not been taken prisoner in August, and carried into Brest, if he had not been going an adventurer to America, and had not found his way from Brest hither;^[54] and if, after all, he had not taken it into his head to have a regiment. He wished this Ulysses-like wanderer might be as wise! wished the Ministers would wait but till Monday, to hear the colonies! He had been told, indeed, that the immutable laws of the Medes were absurd—were the resolutions of Ministers to be more unchangeable than those of the King of Persia—of Xerxes with his multitude at his heels? He did not comprehend this modelling, rejecting, resuming, shaping, altering; he believed all this beautiful mechanism had been employed about it, but you that are to buy it, will they not let you examine and weigh it, and know the intrinsic value? Fox said, Lord Baltimore and Penn were not limited by any Act of Settlement, but could commission foreigners. The Massachusetts can naturalize and then commission them. He had never wished any Ministers should be immutable; God forbid they should be so in any sense! if common sense on their side, they would be in the wrong to be immutable. But would you hear Mr. Bolla on the Act of Settlement? his whole petition was against the regiment; tended to reject the Bill, not to alter it. “Penn,” continued he, “authorizes me, Lord Baltimore authorizes me, to approve this Bill, though they did not think it decent to petition for it.

I have been told that from Bollan we should hear of injustice, oppression, ingratitude—I cannot believe it, for I remember what passed in a certain assembly some time ago between two persons, one^[55] not present now, the other, I believe, is—(looking about indirectly towards Charles Townshend). The person now here had the other *take the poor American by the hand and point out his grievances. He defied him; if that would not do, he beseeched him to point out a single grievance: for his part, he did not know of one.* When that day shall come,” added Fox, “I hope that gentleman, who speaks as well as the honourable person himself over against me, will attend and confute both Mr. Bollan and his introducer.”

Charles Townshend at the first shock was thunderstruck;^[56] they had been his own words to Lord Egmont, had been faithfully treasured in Fox’s accurate memory, and were brought out with all the art and severity imaginable; but in a moment Townshend recovered himself, struck his hand on his forehead as feeling the impulse of conception, and starting up, replied with inimitable spirit and quickness, “That every one saw whither those prepared observations pointed; he took them to himself—and what had been the case? Lord Egmont had complained of the civil government of the colonies, and of the instructions to Sir Danvers Osborn, which I, I advised, and which, cried he, I am ready to fight over. I never complained of *civil* oppression—I *am* ready to meet Fox and his *aide-de-camp* Lord Egmont—the oppression I mean is in the *military*. The soldiers have been promised rewards—they have been kept in garrison contrary to promise—have I made out the distinction? If I have, then I say this is an unmanly attack on a young man.” Fox’s friends called out, “Order! order!” Townshend rejoined, “Order! order! unmanly! is that disorderly? Upon my word, these are the nicest feelings in Xerxes’s troops that ever I knew.” This flash of wit put a whole majority out of countenance. A grain less of parts, or a scruple more of modesty, had silenced Townshend for ever. “Fox,” continued he, “cries, ‘What! hear Bollan on the Act of Settlement!’ he chose to enter on no other part of my argument—and then he talked of mutability—there was forage and joking for the troops!”

Fox with great art observed what satisfaction it gave him to hear that there was no oppression in the civil government; and thus pinned down Charles Townshend from producing a detail of grievances that he had prepared on American affairs. The rest of the Debate was most indifferent,

or could not avoid appearing so: 213 against 82 voted against hearing Bollan. The Opposition then tried by four divisions to prevent the prosecution of the Bill in the Committee; but the Ministry persisting in making no further answers, at past eleven at night Pitt and his followers walked out, and the only blank in the Bill was filled up, as Lord George Sackville proposed, with the words *fifty officers and twenty engineers*.

Two days afterwards the Bill was reported and again opposed, as it was on the last reading, when the Ministry, tired with debating, and making no reply, Charles Townshend, in a fine, animated, and provoking speech, tried to make them break silence, taunting the majority with following leaders who would not vouchsafe to give them reasons, reproaching the Ministers with the insult of their silence, and calling on the new placemen to give some proofs of being fit for their posts, the arrangement of which, and the various reasons of fear or convenience which had contributed to the late settlement, he described with much humour and wit. Fox, smiling, told him, he called so agreeably, that he should never call in vain; and yet, plainly as Mr. Townshend had spoken, he did not know under what part of the description to suppose himself included. He could not be the insolent Minister; "it requires more parts than I have," said Fox, "to support insolence. But why am I silent? have I been so on this Bill? Have I not been reproached with talking too often on it? I ask pardon, and have nothing new to say on it, but this, that I objected to hearing Bollan, because Mr. Townshend can speak as readily and knows as much. I rest my credit on what I have said before; only observing, that the majority which Mr. Townshend calls mean, I believe he does not think a mean one." Pitt spoke again for an hour and half, but without fire or force; and old Horace Walpole terminated this tedious affair with the lowest buffoonry, telling a long story of an old man and his wife; that the husband said to her, "Goody Barrington, for that was her name—I must not falsify my story; if it had been Onslow, I must have said it," continued he, addressing himself to the Speaker; who replied, very properly, "Sir, one old woman may make as free as she pleases with another." The Bill passed by 198 to 69.

In the House of Lords it was attacked by Lord Temple, and defended by Lord Halifax. Lord Dacre, a worthy, conscientious man, unpractised in speaking, asked with great modesty and diffidence, if it was true that there were orders given for listing in Germany. If it was, he should alter his vote

and oppose the Bill. It occasioned confusion. At last, Lord Halifax owned he believed it was true. The Duke had given such orders without participation of the Duke of Newcastle. The Bill passed without a division; yet Lord Temple and Lord Talbot protested in words drawn by Charles Townshend.

In France, the prosecution of the war was by no means an unanimous measure. D'Argenson, the promoter of it, was on ill terms with Madame Pompadour, whose interest was to lull the King and nation in pleasures and inactivity, not to foment events that might shake her power. It received a blow from another quarter. The Cardinal de la Rochefoucault, and Sassy, the King's confessor, played off the earthquake on his superstition. He promised to receive the sacrament at Easter, and relinquish his mistress. She, who held more by habit than passion, saw no reason why a woman might not work the machine of religion as well as a priest, and instantly gave into all his Majesty's scruples; offered up her *rouge* to the demon of earthquakes, and to sanctify her conversion and reconcile it to a Court-life, procured herself to be declared *Dame du palais* to the Queen.

February 25th.—Sir George Lyttelton, as Chancellor of the Exchequer, opened the plan of supplies and taxes for the current year. The first, a duty on wrought plate, was calculated to bring in 30,000*l.* a year. Another, on bricks and tiles, and a double duty on cards and dice; the actual duty produced 10,000*l.* a year; but as doubling the tax would not double the produce, the addition was estimated at only 7000*l.* a year. This, said Sir George, some will think a tax on *necessaries*. The Legislature calls gaming a vice; but the legislators, who can best expound their own laws, seem, by their practice, to think otherwise. Legge objected to either tax on plate or bricks; and showed with singular art how much greater a master he was of the nature of the revenue and commerce than his successor. Sir George seemed to repeat an oration on trade that he had learned by rote; Legge talked on it like a merchant. He urged that plate was not a prejudicial commodity, but a dead treasure, to be resorted to on an emergency: if sold, it would go abroad; if coined here, did not increase the national stock. He showed that bricks would be a partial tax, as many parts of the kingdom employ only stone. But within the volume of our duties there was actually a fund of taxes that might be drawn out without any new impositions, the old were so fraudulently levied, or so injudiciously distributed. He instanced in

the duty on tea, which being regulated by Sir John Barnard, produced near double, and demolished smuggling. By reduction of the duty on raw silk, it rose from 800*l.* per annum to 15,000*l.* That on hemp, if reduced, would produce much more. George Townshend proposed taxes on the number of servants, and on exportation of horses, because no French officer had fewer than two English horses. Murray asked if many of our taxes were not partial—on cyder, on malt, on coals? Lord Strange objected strongly to the brick-tax, because the houses that ought to pay most, those of the rich, are built of stone. Vyner observed, that a tax on plate was teaching servants to turn informers. The plate-tax passed. That on bricks was postponed, and at last dropped, on finding how prejudicial it would be and unpopular. It was changed for one on ale-houses.

FOOTNOTES:

[52] Sir H. Erskine.

[53] Yet the Jews were but a seventh part so great fools as the Quakers.

[54] He had been met by Governor Lyttelton, who was taken in the Blandford by the French.

[55] Lord Egmont.

[56] See [vol. i. p. 422.](#)

CHAPTER VI.

Tax on Plate debated in the Commons—Tranquillity restored in Ireland—Hessian and Hanoverian Troops taken into our pay—Private Bill for a new Road from the Metropolis—The French attack Minorca—Vote of Credit—Debates on the Prussian Treaty—Speeches of Pitt and Murray—Militia Bill in the Lords—Troops raised by Individuals—Violation of Public Faith—The Prince of Wales attains his Majority—History of Lord Bute—Scheme of taking the Prince from his Mother.

March 3rd.—On the report from the Committee for the tax on plate, it was a day of total ignorance: Fox, Hume Campbell, and Pitt all showed how little they understood the subject. The shrewdness of the first, the assertions of the second, the diction of the latter, were ridiculously employed on a topic that required only common sense, and a little knowledge of business. Legge alone shone: he entered, beyond his usual brevity, into a detail of the nature of coin, exchange, gold, silver, premiums, and the mistaken or real advantages of those manufactures. He observed, that plate was not luxury, but a national way of hoarding; that this tax was to cease where luxury began; for the greatest Lords were not to pay beyond 2000 ounces. That it would all go abroad, unless the proportions of gold and silver were regulated. That Mr. Locke's first treatise on that subject had been written to serve a purpose: he had afterwards understood the matter better. That while we overvalued gold in proportion to silver, the French were taking the contrary extreme, in order to draw silver into their country, and to encourage the manufacture of plate, which proved a beneficial article of their trade, and of which we were discharging ourselves. Of all dead stock, plate was the most valuable. Louis the Fourteenth and Charles the First had made great use of the resource of plate. When employed, it comes out with its whole value about it. The reputation of a stock of it has its weight. Would you in the outset of a war produce your last stake? Would you, while increasing your paper substance by borrowing on the Sinking Fund, diminish your real treasure? Many other taxes would produce above 30,000*l*.

On the second reading of the Bill, Legge argued against it with more warmth: if gathered loosely, it would produce a trifle; if strictly, three times as much as granted for. France would think us bankrupt; no nation had done this but in sieges and civil wars. He condemned it as a register of so much personal estate; and as this knowledge would assist the housebreaker in his campaign; and as it would go to the destruction of one of the most flourishing manufactures in Europe, producing clear for the labour alone 32,000*l.* a year. Our silversmiths would now go to France, and the plate would meet them there to be worked. Sir George Lyttelton remarked that Legge's arguments went against all inland duties in general; and that as little wealth ought to lie dead as possible. That on laying the coach-tax, the coach-makers came to the Treasury and complained they should be ruined; yet their trade had increased since. If we took a galleon, would it be advisable to lay up the treasure against a day of calamity? He defended the method of collecting this duty by Excisemen; did not find that Excise was now so terrible: Sir Francis Dashwood had proposed an Excise on meat, and he had not perceived that it had much shocked the House—in fact, no powers, he said, were more gently exercised than those of Excise. No complaint had been made on the coach-tax: this was to be under the same regulation. Our trade would not bear more customs; nor could we support the war, but by a despotic mortgage of the whole Sinking Fund. His chief partiality to the plate-tax arose from the poor being exempt from it.

George Grenville spoke well, chiefly censuring this as a tax to be paid on honour—had the coach-tax been honourably paid? The land-tax at the Revolution was laid on honour—did honour tax itself fairly? Here only middling persons were to be rated; the poor and the rich were equally exempted. This would be a sort of *don gratuit*, or benevolence; the worst sort of tax. The Parliament of Paris was copying our best times—from what were we copying? Murray pleaded that by leaving the most magnificent sort of plate, which is only where there is above 2000 ounces, untaxed, no discouragement would be given to the manufacture. Dr. Hay saying that this tax was unlike that on coaches, for they, if not used, did not pay; Doddington replied, that he hoped Dr. Hay would not wish the taxes postponed, till such could be found as all men would approve. He did profess himself unequal to speak to what many did know they were unequal to hear; but could not comprehend how men, who had so long gone on losing so much interest by a stock of plate, should now declare they would

eat on trenchers, because it was to be taxed at a halfpenny an ounce. He observed how contradictory the objections were: in the same breath complaints were made that this tax subjected us to excise, and was a tax upon honour. The only unanswerable objection he had heard was, that we were over-taxed already. He wished we had been as scrupulous in former wars, yet this was the only war he remembered, purely English.

The new duty was carried by 245 to 142. Yet if Fox would have yielded to it, the Duke of Newcastle would have given up the tax. It produced at last but 18,000*l*.

Let us turn our eyes for a moment to Ireland, where tranquillity was at last restored by the prudence of Mr. Conway, and by the venality of the patriots. Mr. Conway was armed with all the powers and all the qualities that could compose the animosities of a factious people, inflamed by mercenary chiefs; for he had authority to satisfy their demands, his virtue gave no hold to abuse, his temper kept *him* impartial, and his good sense kept the Duke of Devonshire so. The patriots dismissed the woes of their country, for which they had no longer occasion; Mr. Boyle was first restored to the Chancellorship of the Exchequer; Carter was made Secretary of State; and Malone, King's Counsel: pensions, with arrears, were restored to the sufferers, and sprinkled on others; and, at the conclusion of the Session, Mr. Boyle, for an Earldom and a pension, resigned the Chair to Mr. Ponsonby, brother-in-law of the Lord Lieutenant; Malone consented to accept a lucrative employment; and Sir Arthur Gore a Peerage; but the late Speaker being burnt in effigy by the mob, and Malone being insulted at his own door, the latter was terrified, and declined from fear what he could not resist from virtue: Sir Arthur Gore, too, waved his Peerage for the present. On the departure of the Duke of Devonshire, the Chancellor, Lord Kildare, and Lord Besborough, were appointed Lords Justices. The Primate, enraged at this arrangement, quarrelled with his friend the new Speaker, who was so far qualified to succeed Mr. Boyle, that he made as little scruple to sacrifice his connexions, to promote himself. The Primate had tried to make him Speaker; Lord Kildare had opposed it: the Primate was now dropped; and Lord Kildare and Mr. Ponsonby's father divided the Government between them; for the Chancellor was in a languishing state, came over to England, and died soon after. ^[57]

England began to be alarmed with an invasion from France; the Ministry had already made a requisition of the troops which Holland ought by treaty to furnish us. Fox, Lord Granville, and Lord Anson, had foretold that they would be refused; Newcastle and the Chancellor insisted they would be sent; demanded them, and were refused. On this a message was delivered to both Houses to notify his Majesty's having sent for the Hessians in his pay: it was received with some murmurs, but not opposed. Lord George Sackville, either to throw difficulties on the Duke of Newcastle, with whom he was angry on Irish accounts, or to pay court to the Throne, hinted a preference to Hanoverians, whose behaviour as soldiers he much commended. This thought was embraced—if it had not been concerted; and on the 29th of April, he proposed, in form, to address the King to send for his Electoral troops, after stating the weakness of the country, the vast extent of unguarded coast, and the opinion of officers in favour of the utility and good service of those foreigners.

The Tories owned they preferred Hanoverians to Hessians; but Pitt, who came down ill, and affirming that nothing but the importance of the question should have drawn him out of his bed, spoke long against the measure; pleaded his respect for the King as the cause of his opposition, as he feared we should advise his Majesty's involving another country of his in equal or worse peril than our own. That this would be offering him our advice in his Electoral capacity: that in no period of his life he had spoken against the Hanoverians as bad troops: that against what force the French could land we had certainly sufficient defence: that in 1690, when France had beaten our fleet at Beachy-head, and had an Army in Ireland, yet we had surmounted all that danger. That, in the Dutch war, even with a suspected King, we had coped with Holland and France. De Witte, the greatest man since Plutarch, had proposed an invasion to D'Estrades, but he treated it as a chimeric attempt. Burnet says, the Wirtemberghers were cruel friends: he should be for sending these Hanoverians to Ireland: he would vote for raising any number of new troops: the last unfortunate war had formed many great officers; he would not interpose these foreigners to the promotion of those gallant men; nor would force a vote upon the King, when he might send for his troops without. Lord George replied with great spirit and sense; and the Motion was agreed to by 259 to 92. The next day this resolution was communicated at a conference to the Lords, who agreed

to it, after a severe speech from Lord Winchelsea against the new patriots.
[58]

The consideration of this danger, and of the measure of bringing over foreigners, always obnoxious, at least as a precedent, was often interrupted by one of those trifling affairs with which the wisdom of this grave nation is so apt to be occupied. A new road towards the eastern counties, by which the disagreeable passage through the city would be avoided, had been proposed to be made on the back of London. The Duke of Grafton had estates there, which, by future buildings likely to accompany such an improvement, would be greatly increased. Part of this road was to pass over grounds of the Duke of Bedford, but in so small proportion as he thought would not indemnify him for the desertion of other buildings, which he had to a great amount in worse parts of the town. He consequently took this up with great heat. The Duke of Grafton, old and indolent, was indifferent about it. The Duke of Argyle, who did not love^[59] the Duke of Bedford, and others who *now* wished to thwart him and his faction, privately spurred up the Duke of Grafton to make a point of this. Fox embraced the occasion as a trial for power with Newcastle. Rigby, who had endeavoured to soften the Duke of Bedford, now to humour Fox, adopted his master's warmth, and added all his own violence, treating the name of the Duke of Grafton (who was much respected) with the greatest licentiousness in the House of Commons. The Duke of Newcastle was frightened, and wished to avoid the decision; but the Duke of Bedford, who had received all manner of encouragement from the Chancellor and his friends, pushed on the determination, was betrayed, was beaten, was enraged,—in less than a year he proposed to the Duke of Grafton's friends to extend the plan of the road.

April 30th.—The estimate of the charge of the Hessian troops being laid before the House, Pitt made a bitter speech on the Ministers, as bubbling the nation, or being bubbled in this extravagant bargain, which would cost 400,000*l.* more than a like number of British troops. But we were going to be undone: he should be undone with a clear conscience and untainted honour. Those who supported such measures would bear the marks on their foreheads. We could not carry on the American war, from our extravagance. God could not bless a country with resources enough to resist such profusion. He admired the *finesse* of the Hessians, who from the hungry allowance of Germany had raised their pay to British.

A few days afterwards, the Hanoverian estimate being brought, and Lord Barrington commending it preferably to the Hessian (which had been voted, and was past danger), Pitt, with great dexterity of irony, commended it too, and lashed Lord Barrington for the extravagance of the former, asking whether he or that Secretary at War had been more severe on the Hessian account; on that subsidiary juggle,—for the Hanoverian, no man could find fault with it—one was the bargain of the Ministers, the other the simple measure of his Majesty: there one saw the distinction! nothing but good flowed from the King; nothing but ruin from his servants. “I choose,” said he, “that they should fall by a friendly hand, and that the condemnation of his patrons and friends should come from the noble Lord. But must we engage mercenaries because France does? She has not blood enough in her own veins for the purposes of universal Monarchy. This waste on Hessians would have conquered America, or saved Minorca, which he despaired of. Why did not the House inquire why we had been so neglected? if so weak, why stayed till now? whence else Minorca likely to be lost? what poor conduct! They waited till some private man (Lord G. S.) dared to ask for foreign troops. Had we been secured here, the fleet might have gone safely to Minorca. The neglect looked wilful, and as if they hoped that trade would call out for peace, and that Minorca to be regained would be a screen for compounding for America,—but,” continued he, “I don’t call this an Administration, it is so unsteady. One is at the head of the Treasury; one, Chancellor; one, head of the Navy; one great person, of the Army—yet, is that an Administration? They shift and shuffle the charge from one to another: says one, I am not General; the Treasury says, I am not Admiral; the Admiralty says, I am not Minister. From such an unaccording assemblage of separate and distinct powers with no system, a nullity results. One, two, three, four, five Lords meet;—if they cannot agree,—oh! we will meet again on Saturday;—oh! but says one of them, I am to go out of town,—alas! said he, when no parties remain, what aggravation of the crimes of the Ministry that no good comes from such unanimity.”

Fox answered seriously, that nobody could be glad of or receive advantage from the loss of Minorca; and he asked if Mr. Pitt wished to see a sole Minister.

Pitt replied, that he did not wish to see a single Minister, but a system and decision; that the loss of Minorca must be caused by infatuation or design,

for that miners for the defence of Fort St. Philip were only raising *then*. Indeed, were Mr. Fox sole Minister, there would be decision enough.

Lord George Sackville said, he had moved for Hanoverians from the consideration of our unprovided state, and as a temporary Militia; and *because the fleet sent into the Mediterranean was not superior to the French*, and might be beaten; the French might follow their blow and come hither. He was glad it had been mentioned, because everybody was struck at Minorca being left as in time of profound peace; it would become Ministers to prove that neglect, necessity.

It was known now, that after great preparations at Toulon, [\[60\]](#) of which we had long been advertised, Marshal Richelieu was sailed with considerable force to attack Minorca, where we had but four regiments, in Fort St. Philip, under General Blakeney, the Deputy-Governor, a stout soldier, but too old. Lord Tyrawley, the Governor, was in England, so were his chief officers, members of Parliament. Admiral Byng was sent, but too late, and with only ten ships, and those in ill condition, and worse manned. The only hope was in Fort St. Philip, for in an island of that importance all was left to a hope. The late Duke of Argyle had begun a fort on the other side of the harbour, which would have been impregnable; but Lord Cadogan, out of hatred to him, destroyed it, and built this, less secure, at an enormous expense. On the 5th, came notice of the French being landed on the island.

In the meantime passed through the Commons that distant and forlorn *succedaneum*, the Militia Bill. A few persons had sat till near six in the morning fabricating and fashioning it. Mr. Pitt recommended it in another fine dissertation, and it was voted without a division.

May 11th.—Mr. Fox delivered a message from the Crown, desiring to be enabled against any emergency, and to make good the new treaty with Prussia. The next day Sir George Lyttelton moved a vote of credit for a million. It was much censured. Northey said he did not oppose it, nor meant to disturb an unanimity which had been constant for two years in granting supplies. Now was not the time, but a day would come for inquiring how they had been misapplied. This vote of credit, he supposed, like that of last year, would be perverted to German treaties. We were told last year that the King had entered into engagements, and that we must not make him break his word. Beckford said, six millions three hundred

thousand pounds were already given—what had been done for such a sum? who could trust Ministers any further? We were all united; we wanted nothing but an able head. The person at the head of the Treasury is always so of the Administration; if he is not an able man, how can we go on? The city said, Minorca was betrayed—I tell them, said he, they don't know the disability of the Administration. When we seized the ships of France, did we imagine they would not revenge themselves? Are we more secure in America for this neglect of the Mediterranean? No. In the month of May you have prepared but two regiments, and they are not gone. The French have sent two thousand five hundred men to the West Indies;—twelve sail would have saved Minorca.

To all these objections Sir George Lyttelton replied, that this money would be restricted and subjected to account. Was Government not to be supported on the first misfortune that happened? When one happens would you not prevent another? if while we guarded Minorca, our own coasts had been neglected, the Ministry would indeed be blameable. Nothing had raised the supplies but the security of our coasts. When the foreign troops should arrive, our fleets would be more at liberty. Our spirit and activity had been admired by all Europe; and it was more difficult to defend our spirit than our neglect. This answer was not particular enough to satisfy Nugent; he added his usual panegyric on the honesty of the Duke of Newcastle.

Pitt made a fine lamentation on the calamitous situation of affairs, and on the incapacity of the Ministers; begging them, if they knew, to disclose the purposes for which this vote of credit was intended. Was it to raise more men? we had 40,000 national, and 14,000 foreign troops. Was it to make marine treaties? he would joyfully assent. If Sir George could not say for what it was designed, would he at least peremptorily say for what it was *not* designed? Still he was of so compounding a temper, he would assent, though votes of credit had been so much abused. The Ministers bragged of unanimity, of activity, of spirit—what had all this harmony of councils and talents operated? safety? are we safe? damage to the enemy? let them show when and where. With this universal ay, all our outlying parts are exposed. But he, alas! had no particular joy on being so strong on this question: he did not want to load unhappy men who had undone their country; men most unhappy, if they did not feel it. We were told that there was no option but between this country and America and the Mediterranean—so this great

country could neither provide for defence nor offence! *yet our activity was admired?* Philosophers, indeed, had a term, *vis inertiae*, the inactivity of action—was it by that we were to be saved? His charge, he said, was, *that we had provoked before we could defend, and neglected after provocation; that we were left inferior to France in every quarter; that the vote of credit had been misapplied to secure the Electorate; and that we had bought a treaty with Prussia by sacrificing our rights.* He would not have signed it for the five great places of those who had signed it. They had left us unprovided, as a gap for German troops; and so German troops at last became an English measure! The deceased gentleman (Mr. Pelham) had meant economy, and was dragged into foreign measures by one who had now got the Treasury. Could he every day arraign, and yet continue to trust? and while new foreign measures were in embryo?—yet if this treaty was restrained to the defence of the King's dominions, he should not know how to oppose it. He had no resentment; nobody had injured him: of their measures and incapacity indeed he thought ill. If he saw a child (Duke of Newcastle) driving a go-cart on a precipice, with that precious freight of an Old King and his family, sure he was bound to take the reins out of such hands. He prayed to God that his Majesty might not have Minorca, like Calais, written on his heart! He concluded with proposing to take the very words of the last vote of credit.

Sir George Lyttelton answered with great modesty, that the Administration had not suffered by Mr. Pelham's death, except by *his* advancement. Let it be considered who was at the head of the Treasury, of the Admiralty, of the Chancery, &c. Could it be said that we had done nothing, when we had taken 8000 French seamen? Here he would rest the whole; no one calamity had happened yet.

George Grenville observed, that in December last the Fleet consisted of 150 sail, of which 78 were of the line; of 42,700 seamen, of which 36,000 had been mustered: the marines had been voted since—was this inability to send fourteen ships to the Mediterranean? In January, there were sixty-two ships at home capable of being employed. Fourteen ships had sufficed to keep the Brest and Rochfort squadrons in their harbours. He commended Lord Anson, and said, he had heard of representations being made from the Admiralty for sending force to the Mediterranean. In the last war, he remembered that the Admiralty was restrained from meddling with the

Mediterranean service, which was reserved to the Secretary of State (Duke of Newcastle); if that restriction continued, the Admiralty was not to blame. In America, Braddock had been defeated in July; not a man was sent thither till within the last fortnight. Fox replied, that he knew of no representation from the Admiralty. The Fleet could not have been prepared so soon as Mr. Grenville alleged: it is no neglect if things are preparing. Dates, he knew, might save from punishment, but events only would save from blame. Some merit he thought there was in the Prussian treaty, of which the contrary, a breach, had been so much foretold. The question before the House was not so diffuse as that of last year, because the augmentation was made, and consequently not necessary now. He wished the incapacity was in the Administration, not in the country itself.

Pitt took little notice of Fox, only rising again to lash Sir George Lyttelton, who had called it an opposal of epithets; very little proper to come from him, said he, whose character is a composition of epithets. But what! did we meet as an academy of compliments? but Lyttelton had mistaken the day; for himself, he said, had used no epithets that day. If Lyttelton would say, we had no more resources, he would tell him he was incapable; and when he disclaimed having had any hand in drawing the words of the question, he saw Sir George was not at liberty to change them.

Lyttelton, much hurt, but firm, cried, he says I am a thing made up of epithets—was not this the language of Billingsgate? The world complained that the House was converted into a bear-garden—he should not envy Mr. Pitt the glory of being the Figg or Broughton of it—yet if he assumed fewer airs of superiority, it would do him more honour.

Pitt, redoubling contempt, said with a sneer, we once lived in a road of epithets together—hard! that my friend, with whom I have taken sweet council of epithets, should now reproach me with using them! Lyttelton, he said, was a pretty poetical genius: with his pen in his hand, nobody respected him more: but what! were not Billingsgate and Broughton epithets? He at once described Lyttelton as an *innocent*, and would have fixed the use of invectives on him. Sir George terminated the altercation and debate, by protesting it was not his fault if he did not still live in friendship with Mr. Pitt.

May 14th.—The Prussian treaty was opened to the House by Sir George Lyttelton. It stipulated that the King of Prussia should pay 61,000*l.* due on the Silesian loan; but admitted that 20,000*l.* was due to him, which the Parliament was desired to grant. Pitt took the convention to pieces, interpreting it as a design in the King of Prussia of returning indignity for indignity; and as derogatory to the sovereignty of England, which was now giving 20,000*l.* to a Monarch, represented as intimidated, for unjust claims, examined and pronounced so, and now allowed by a commission of review, as unheard of as that exercised at Berlin; and founded on admission of damages, by what kind of liquidation could not be guessed. Had that King made a demand, or had this compensation been offered to him? But he said, that all the Powers of Europe were setting up a new jurisprudence, and that we were no longer to enjoy the empire of the ocean. For himself, he should affect no superiority but what was common to him with twelve millions, innocence of his country's ruin, the superiority of the undone over the undoers. If he could but be told that even by a protest we had secured the rights of our Courts of Admiralty, he would acquiesce; and should be glad, as it would bring the long sufferers on the Silesian loan into their money. Yet he had rather vote them the 60,000*l.*: we did not want such a sum; the necessary thing to us was the acknowledgment of the right. So thought the King of Prussia, and said, I will take nothing, to show I set my foot on your neck, and *how* I am intimidated.—He hoped the Committee would at least couple with the vote the assertion of our rights.

Murray answered in a long discussion, pleading like a lawyer *for* the King of Prussia, though formerly, when consulted as a lawyer, he had nobly confuted him like a statesman. He said, free ships make free goods, and that a Prince whose property is taken must judge by his own courts. That we did not allow that decision—if his friendship were bought by allowing it, the purchase would be too dear. That the single question was, whether the convention did or did not give up our rights. That the King of Prussia had not been alienated by our fault, but by his own interest, and that breach had been kept up by his fear. That, under the name of reprisals, he had paid himself, having the Silesian loan in his power. That he had tried to list the powers of the Baltic, by the captivating maxim of *free ships make free goods*. That he did not demand one sixpence for goods of strangers taken on board Prussian ships, and therefore could not demand satisfaction, as no injury was done to him. He had made no reply to our memorial, nor ever

negotiated with us in defence of his principles; but retained the Silesian loan. There had been thoughts of making war on him—but how? if by the Queen of Hungary, then France would have taken part, and a general war had ensued. As we detained his ships, he might demand to appeal—very difficult to grant that, or to refuse it.

He then enlarged on the King of Prussia's right and power of appeal—urged the long time elapsed, the money dispersed, the danger of a single-handed war with France; the advantage of reconciliation with Prussia, who, by giving up the whole Silesian debt, gave up at once his whole commission of revision. He had only said, "Save my credit, give me something." Who would have held off for 20,000*l*.? We did make that sort of *amende* to him; we did save his credit. Just so, the French seized the smuggler Mandrin in the territory of Savoy, and hanged him—but when we sent a fleet to America, and France wanted allies, she asked pardon of the King of Sardinia. The same was our case with Spain on the convention of 1739: they agreed to pay us for captures they had made, and to liquidate with the South Sea Company. Nobody thought that by that accommodation they gave up their principles of searching. In the whole treaty we had not allowed the King of Prussia's principles; nor did it appear whether his goods had been condemned as an enemy's, or as contraband. Very uncertain what is contraband when not expressed in any treaty. Spain calls tobacco so, because they think it makes the English fight better. If we did not allow the Northern Powers to carry some contraband goods, they could have no trade. We had desired from the Prussian Minister a plan of a treaty: he took a Swedish treaty for his model, in which it was expressly stipulated that "free ships do *not* make free goods." To have had it expressed now would have weakened it—a subtilty which justifies my saying that he argued as Counsel for Prussia. Pitt taxing him with it, he pretended not to have said, that it was stipulated so in the Swedish treaty, but understood so in it.

The Committee, by a majority of 210 to 55, voted the money; and four days afterwards war was proclaimed with France.

The same day (18th) the Militia Bill was read in the House of Lords for the second time. The Duke of Bedford, thinking the Duke of Newcastle would oppose or let it be dropped for want of time, supported it strongly. Newcastle did oppose it, but faintly, with Lord Granville and Lord Sandys, and suffered it to be committed.

Lord Halifax supported it well in the Committee; Lord Temple dared the Ministers to throw it out. Lord Granville immediately attacked it warmly, but it went through without a division.

On the 24th, Lord Stanhope spoke well on its behalf. Lord Granville again opposed it as absurd, unjust, and oppressive. He would not amend it, he said, for he disliked it; he would not be for it, because it was unamended. He would not be influenced by its having passed the Commons, or by its being popular—yet it was not popular, for often it had not been attended in the Commons by above fifteen persons; consequently had been voted in not a legal House. Lord Granville always strongly asserted the dignity of his own House of Parliament against the other.

The Duke of Bedford argued for the Bill, and affirmed that the people had only submitted to foreign forces on the promise of a Militia Bill. The Chancellor declared against it on the impracticability,—and (those who love liberty will love him for it) on its omitting the declaration of the power of the Militia being in the Crown, which had been asserted by Lord Clarendon and Lord Southampton on the Restoration. Himself, he said, had never been reckoned a prerogative lawyer, yet he would never *let* the prerogative be lessened with his consent.

If I have here marked out Lord Hardwicke's memory to the indignation of free men, he might pardon me:—there are always numbers ready to admire the advocates of prerogative—Laud had his adorers; Jefferies hardly escaped them.

Lord Bath spoke for the Bill; the Duke of Newcastle against it; and it was rejected by 59 to 23.

On the 27th, the Parliament was prorogued. Old Horace Walpole was at last declared a Peer, with Mr. Villiers and Sir Dudley Rider; but the latter being taken ill on the very day he was to have kissed hands, and dying the next, the Peerage was, with much hardship, withheld from his son.

I did not mention in its place, because it falls in more properly here, that on an apprehension of an invasion in the winter, the Marquis of Rockingham, Lord Northumberland, Lord Downe and others, had offered to raise troops of Light Horse, which had been accepted; but Lord Gower proposing to the King, that instead of this scheme, the great Lords should

go into their counties, and raise recruits for the Army, this plan was better liked, if not suggested, by the Duke, and carried into execution with good success. Lord Gower raised 400 men by his personal interest in Staffordshire: Lord Ilchester and his nephew, Lord Digby, were as successful in Somersetshire, enlisting the sons of many wealthy farmers, upon promise that they should not serve out of England. However, on a resolution of sending the force at Gibraltar to Mahon, it was determined to replace them with this Somersetshire regiment. Such a violation of public faith (for the recruits at least could not conceive that the brother and nephew of a Secretary of State had not authority for their assurances), created the greatest clamour; and the men were driven by force on board the transports. The consequence was very pernicious, as might have been foreseen, and will be showed. I will mention another instance of the injustice and cruelty of such breach of covenant. In the late Rebellion, some recruits had been raised under a positive engagement of dismissal at the end of three years. When the term was expired, they thought themselves at liberty, and some of them quitted the corps in which they had been regimented. The Duke ordered them to be tried as deserters; and not having received a legal discharge, they were condemned. Nothing could mollify him; two were executed.

June 4th.—The Prince of Wales attained the age prescribed for his majority; by which the Regency Bill remains only a dangerous precedent of power to posterity—no longer so to us, for whose subjection it was artfully, though, by the grace of God, vainly calculated! This epoch, however, brought to light the secrets of a Court, where hitherto everything had been transacted with mysterious decency. The Princess had conducted herself with great respect to the King, with appearance of impartiality to Ministers and factions. If she was not cordial to the Duke, or was averse to his friends, it had been imputed less to any hatred adopted from her husband's prejudices, than to jealousy of the government of her son: if the world should choose to ascribe her attention for him to maternal affection, they were at liberty; she courted and watched him neither more nor less for their conjectures. It now at last appeared that paternal tenderness or ambition were not the sole passions that engrossed their thoughts. It had already been whispered that the assiduity of Lord Bute at Leicester House, and his still more frequent attendance in the gardens at Kew and Carlton House, were less addressed to the Prince of Wales than to his mother. The eagerness of

the Pages of the Back-stairs to let her know whenever Lord Bute arrived [and some other symptoms] contributed to dispel the ideas that had been conceived of the rigour of her widowhood. On the other hand, the favoured personage, naturally ostentatious of his person, and of haughty carriage, seemed by no means desirous of concealing his conquest. His bows grew more theatric, his graces contracted some meaning, and the beauty of his leg was constantly displayed in the eyes of the poor captivated Princess. Indeed, the nice observers of the Court-thermometer, who often foresee a change of weather before it actually happens, had long thought that her Royal Highness was likely to choose younger Ministers than that formal piece of empty mystery, Cresset; or the matron-like decorum of Sir George Lee. * * * * * Her simple husband, when he took up the character of the Regent's gallantry, had forced an air of intrigue even upon his wife. When he affected to retire into gloomy *allées* with Lady Middlesex, he used to bid the Princess walk with Lord Bute. As soon as the Prince was dead, they walked more and more, in honour of his memory.

The favour of Lord Bute was scarce sooner known, than the connexions of Pitt and Legge with him. The mystery of Pitt's breach with Fox was at once unravelled; and a Court secret of that nature was not likely long to escape the penetration of Legge, who wormed himself into every intrigue where his industry and subservience could recommend him—yet Legge had not more application to power, than Newcastle's jealousy of it. Such an entrenchment round the successor alarmed him. It was determined in his little council that the moment the Prince of Wales should be of age, he should be taken from his mother; but the secret evaporating, intimations by various channels were conveyed to the Duke of Newcastle and to the Chancellor, how much the Prince would resent any such advice being given to the King, and that it would not be easy to carry it into execution. The Prince lived shut up with his mother and Lord Bute; and must have thrown them under some difficulties: their connexion was not easily reconcileable to the devotion which they had infused into the Prince; the Princess could not wish him always present, and yet dreaded his being out of her sight. His brother Edward, who received a thousand mortifications, was seldom suffered to be with him; and Lady Augusta, now a woman, was, to facilitate some privacy for the Princess, dismissed from supping with her mother, and sent back to cheese-cakes, with her little sister Elizabeth, on pretence that meat at night would fatten her too much.

The Ministers, too apt to yield when in the right, were now obstinate in the wrong place; and without knowing how to draw the King out of the difficulty into which they were pushing him, advised this extraordinary step. On May 31st, Lord Waldegrave, as the last act of his office of Governor, was sent with letters of the same tenour to the Prince and to his mother, to acquaint them that the Prince, being now of age, the King, who had ever shown the greatest kindness and affection for him, had determined to give him 40,000*l.* a-year, would settle an establishment for him, of the particulars of which he should be informed, and that his Majesty had ordered the apartments of the late Prince at Kensington and of the Queen at St. James's to be fitted up for him: that the King would take Prince Edward too, and give him an allowance of 5000*l.* a-year.

After a little consult in their small Cabinet, both Prince and Princess sent answers in writing, drawn up, as was believed, by Legge, and so artfully worded, that the supposition was probable. The Prince described himself as penetrated by the goodness of his Majesty, and receiving with the greatest gratitude what his Majesty in his parental affection was pleased to settle on him; but he entreated his Majesty not to divide him from his mother, which would be a most sensible affliction to both. The answer of the Princess marked, that she had observed with the greatest satisfaction the impression which his Majesty's *consideration* of the Prince had made on him; and she expressed much sensibility of all the King's kindness to her. On the article of the separation she said not a word.

What now was the King to do? The Prince had accepted the allowance as *given*; and had refused to leave his mother, which had not been made a *condition* of the gift. Was the gift to be revoked, because the Prince had natural affection? Was the whole message to be carried into execution, and a young man, of age by Act of Parliament, to be taken by force, and detained a prisoner in the palace? What law would justify such violence? Who would be the agents of such violence? His Majesty himself, and the late Prince of Wales, had furnished the Prince with precedents of mutinying against the Crown with impunity. How little the Ministers, who had planned the first step, knew what to advise for the second, was plain, from their giving no further advice for above a month; and from the advice which they did give then, and from the perplexity in which they remained for two months more, and from the ignominious result of the whole transaction,

both to the King and to themselves at last. But we must first proceed to other occurrences.

FOOTNOTES:

[57] The new Speaker soon came over too, and went to Newmarket: George Selwyn seeing him very busy at the hazard-table, said, “With what expedition the Speaker passes the Money-bills!”

[58] A *bon mot*, much repeated at this time, was not more favourable to the King, who, making the nation pay him for this defence of himself, Doddington said, “His Majesty would not for the world lend himself a farthing.”

[59] Vide the [Debates on the Sheriffs-depute.](#)

[60] The threatened invasion had been a blind to disguise the design on Minorca.

CHAPTER VII.

French Invasion of Minorca—Character of the Duc de Richelieu, and Blakeney—Incapacity of the Duke of Newcastle—French Reports from Minorca—Public Indignation against Admiral Byng—His Despatch—Remarks on the Character of Government—The Empress-Queen joins with France—Law-suit respecting the public right of way through Richmond New Park—The Prince of Wales—The Princess Dowager and Lord Bute—Death of Chief Justice Rider—Loss of Minorca—Byng arrested—Political Squibs—Popular Movements on the loss of Minorca—Revolution in Sweden—Causes of the War in Germany—German Ministers—The Courts of Dresden and Vienna—Character of the Czarina—League of Russia, Austria, and Saxony against the King of Prussia—He is apprized of it—Endeavours to secure Peace—He invades Saxony, and captures Dresden.

During these agitations of the Court, which were little known, and less talked of, the attention of the public was directed to Minorca. Sixteen thousand French had landed there without opposition: no part of the island, indeed, was capable of defence, but Fort St. Philip. The inhabitants received the invaders even with alacrity, though their privileges had been preserved under the English Government, and though they enjoyed all the folly of their religion without the tyranny of it. The Jews and Greeks established there behaved with more gratitude: of the natives, sixteen only adhered to the English. The magistrates hurried to take new oaths, and to welcome the singular personage sent to be a conqueror. This was the Duc de Richelieu; a man, who had early surprised the fashionable world by his adventures, had imposed on it by his affectations, had dictated to it by his wit and insolent agreeableness, had often tried to govern it by his intrigues, and who would be the hero of the age, if histories were novels, or women wrote history. His first campaign was hiding himself at fourteen under the Duchess of Burgundy's bed, from whence he was led to the Bastille, and whither he had returned four several times. A genius so enterprising could not fail to captivate the ladies: the Duchess of Modena, the Regent's daughter, would fain have preferred him to the *triste* glory of reigning over an acre of territory with a dismal Italian husband. Richelieu was soon after sent to, and as soon recalled from, Vienna, for carrying a black lamb in his state-coach

at midnight to sacrifice to the moon, in order to obtain a recruit of vigour. The very exploit gained him as many hearts as if the boon had been granted. Yet with an advantageous person and adventurous disposition, he was supposed to want the two heroic attributes that generally compose a woman's Alexander. So much was his courage questioned, that he was driven to fight and kill the Prince of Lixin in the trenches at Philipsburg.

Ruling the female world, and growing exhausted with the fatigues of his government, he at last thought of reposing himself on the lesser care of the French Monarchy: and making himself necessary to the pleasures of the mistresses, the Duchesse de Chateauroux and Madame Pompadour, he attained considerable weight in a Government where trifling qualities are no disrecommendation. Embarking with all the luxurious pomp of an Asiatic grandee, this genteel but wrinkled Adonis sailed to besiege a rock, and to attack a rough veteran, who was supposed to think that he had little business left but to do his duty and die. His name was Blakeney: he had passed through all the steps of his profession, and had only attained the sweets of it by living to be past the enjoyment of them. He was remarkably generous and disinterested, and of great bravery, which had been but little remarked. Having the government of the Castle of Stirling in the last Rebellion, he was summoned to give it up as soon as the King's troops were defeated at Falkirk: but he replied, the loss of that battle made no alteration in his orders—yet he had then provision but for three weeks. This gallantry, which had been overlooked for his sake, was now recollected and extolled for our own: the most sanguine hopes were conceived—Minorca was regarded as the nation's possession, Scotland as the King's: if the former was lost, it passed to an enemy—Stirling would only have gone to another *friend*. As every day brought out the weakness of the garrison of Mahon, all hope was contracted to the person of Blakeney: yet in no neglect were the Ministry more culpable, for he proved to be superannuated.

The French covered the siege with a fleet of twelve men-of-war. Accounts were impatiently expected here of the arrival of Admiral Byng in those seas with his squadron, and with succours which he was ordered to take in at Gibraltar, and which it was hoped he would be able to fling into St. Philip's. If he could effect that service, and disperse or demolish the French fleet, there was no doubt but the troops on the island must remain prisoners of war, or be the victims of their attempt; for as yet they had made

little progress. Having landed on the opposite side of the island, they found the roads almost impracticably rocky; and if cut off from supplies from the continent, they must have perished by hunger, Minorca by no means supplying the natives with superabundance. The heats, too, were now coming on, which would be insupportable to new constitutions, to the natural impatience of the French, and still more to an effeminate General. Hitherto their transports had passed and repassed in full security. The Mediterranean, where we so long had reigned, seemed abandoned by the English.

The truth was, the clamours of the merchants, sometimes reasonable, always self-interested, terrified the Duke of Newcastle; and while, to prevent their outcries in the City of London, he minced the Navy of England into cruizers and convoys, every other service was neglected. I say it with truth (I say it with concern, considering who was his associate), this was the year of the worst Administration that I have seen in England; for now Newcastle's incapacity was left to its full play. While conjoined with Sir Robert Walpole, the attention of the latter to the security of the House of Brunswick, and to the preservation of public tranquillity, prevented the mischiefs that the Duke's insufficiency might have occasioned. If Lord Granville, his next coadjutor, was rash and dangerous, yet he ventured with spirit, and had great ideas and purposes in view. He provided not the means of execution, but an heroic plan was not wanting; and if he improperly provoked some allies, he stuck at nothing to engross the whole co-operation of others. Mr. Pelham was too timorous not to provide against complaint: his life was employed in gathering up the slips of his brother. But now Fox was called in to support a Government, from a share in which it was determined he should be excluded, and every part of which, where he had influence, it was a measure with Newcastle to weaken, the consequences could not but be fatal—and fatal they were! Indeed, Fox himself was not totally excusable. He came in, despairing of the prosperity of his country; and neither conversant in, nor attentive to the province allotted to him; he thought too much of wresting the remains of power from his competitors. He had neither the patriotism which forms a virtuous character, nor the love of fame which composes a shining one, and often supplies the place of the other. His natural bent was the love of power, with a soul generous and profuse; but growing a fond father, he became a provident father—and from a provident father to a rapacious man, the transition was but too easy!

In the midst of the anxious suspense I have mentioned, on June 3rd, came news that Admiral Byng, after a very tedious passage, arriving at Gibraltar on the 2nd of May, had, according to his orders, demanded of General Fowke, the Governor, a battalion to be transported to Minorca; but that the Governor, instead of obeying these directions, had called a Council of War, where, in pursuance of the opinion of engineers whom they consulted, it was determined to be impracticable to fling succours into St. Philip's, and that it would be weakening the garrison of Gibraltar to part with so much force, which accordingly was refused.

But the same post brought an account that occasioned still more astonishment and dismay. Mazzoni, the Spanish Minister at Paris, transmitted to D'Abreu, the Spanish Resident in England, the copy of a letter which Monsieur Machault had received from Galissonière, the French Admiral, and which had been assiduously communicated to foreign Ministers, relating "That on May 18th, the French Admiral, as he lay off Mahon, had perceived the English squadron, who had approached nearer on the 19th, but seemed unwilling to engage. That on the 20th, the English had the advantage of the wind, but still seemed unwilling to fight: that the engagement, however, had been *entamé*, but could not be universal, for the English kept *trop serrés*: that two or three English ships had sheered off; that night separated the fleets; that he (Galissonière) had lost thirty-eight men, and had nine officers wounded; that he had taken no English ship, but had prevented their flinging succours into Mahon. That he had expected to be attacked again the next day, but, to his great surprise, found the English had disappeared."

It is necessary to be well acquainted with the disposition of a free, proud, fickle, and violent people, before one can conceive the indignation occasioned by this intelligence. Nothing can paint it so strongly as what was its instant consequences. Sir Edward Hawke and Admiral Saunders were immediately dispatched in the Antelope to supersede Byng and West, to arrest and bring them prisoners to England. This was the first movement; the second should have been to reflect, that there was not the least ground for this information but what was communicated through the channel of Spanish agents (not very friendly to Britain,) from the vapouring letter of the enemy's own Admiral, interested to heighten or palliate his own conduct:—this should have been the second thought, but it was long ere it

was suffered to place itself. In the Antelope, a little cargo of courage, as it was called, were sent at the same time Lord Tyrawley and Lord Panmure, to supersede General Fowke, and take the government of Gibraltar. Is it credible, that Lord Tyrawley, dispatched with such vaunted expedition, was the actual Governor of Minorca, where he ought to have been from the beginning of the war?

The impression against Mr. Byng was no sooner taken, than every art and incident that could inflame it were industriously used and adopted. Though he had demanded the Mediterranean service as his right, and had pressed for it as the scene of his father's^[61] glory, his courage was now called in question, and omens were recollected to have foretold this miscarriage. A letter from him before the engagement had mentioned nothing of Minorca; it only said, that if he found the French too strong, he would retire under the cannon of Gibraltar. The King was now reported to have dashed this letter on the ground in a passion, saying, "This man will not fight!"—his Majesty, it seems, had great skill in the symptoms of cowardice! He was represented, too, as neither eating nor sleeping, and as lamenting himself that this account would be his death. As Minorca was but too likely to follow the fate of Calais, his Ministers prepared to write Mahon on that heart, which had never yet felt for any English possession. The Duke, whose sensibility on this occasion can less be doubted, took care to be quoted too: he said, "We are undone! Sea and land are cowards! I am ashamed of my profession!"

But on the arrival of the Admiral's own dispatch, *an abstract* of which was immediately published, the rage of the people rose to the height. The letter spoke the satisfaction of an officer, who thought he had done his duty, and done it well—an air of triumph, that seemed little to become a man who had left the French masters of the sea, and the garrison of St. Philip's without hope of relief. Their despair on the disappearance of the British fleet must have been extreme, and could not fail to excite the warmest compassion here. The Admiral was burned in effigy in all the great towns; his seat and park in Hertfordshire were assaulted by the mob, and with difficulty saved. The streets and shops swarmed with injurious ballads, libels, and prints, in some of which was mingled a little justice on the Ministers. Charles Townshend undertook a weekly paper, called the *Test*, of which only one number was published: he had too much mercury and too

little ill-nature to continue a periodical war. We shall see in the following winter that some of the persons attacked were rather more settled in their passions, when they revived the title of this paper, and turned it on its patrons.

As I shall soon be obliged to open a blacker scene than what has hitherto employed my pen, I will take leave of the preceding period with these few remarks. Considering how seldom the world is blessed with a government really good, and that the best are generally but negatively good, I am inclined to pronounce the times of which I have been writing, happy. Every art and system that brings advantage to the country was *permitted*: commerce was in no shape checked: liberty, not being wanton, nay, being complaisant, was not restrained. The Church was moderate, and, when the Ministry required it, yielding. If the Chancellor was ravenous, and arbitrary, and ambitious, he moved too deliberately and too gravely, to bring on any eminent mischief. If the Duke of Newcastle was fond of power, and capricious, and fickle, and false, they were the whims of a child: he circumscribed the exertion of his pomp to laying perhaps the first stone of a building at Cambridge, for a benefaction to which he was forced to borrow a hundred pounds. His jealousy was not of the privileges of Parliament, but lest some second among his favourites should pay more court to his first favourite than to him; and if he shifted his confidence, and raised but to depress, and was communicative but to betray, he moved in a narrow circle, and the only victims of his whims were men who had shifted and betrayed as often, and who deserved no better fortune. If the Duke was haughty and rigorous, he was satisfied with acting within the sphere of the Army, and was content to govern it, not to govern by it. If the King was too partial to Hanover, and was unnecessarily profuse of subsidies to Germany, perhaps it was the only onerous grievance; and the King, who did no more harm, and the Ministers, who by vailing to this passion, purchased the power of doing no more harm, certainly constituted no very bad Government. The occasions of war called forth another complexion—but we must proceed with a little regularity.

The reconciliation of the King and his nephew of Prussia had given great umbrage to the Empress-Queen. England had heaped as great obligations on the House of Austria as can be conferred by one nation on another; great enough almost to touch the obdurate heart of policy, and infuse real amity

and gratitude. But the Princess in question had imbibed passions still more human. Offended pride and plundered dignity had left no soft sensation in her heart. She was a woman, a queen, a bigot, an Austrian. A heretic her friend, embracing a heretic her enemy, left no shades in the colour of their heresy. France bid high for her friendship, and purchased it, by bidding up to her revenge. They made a treaty of neutrality, called only defensive during this war; as if Princes could not leap from peace to war but through a necessary medium. This news was received with indignation: England considered this desertion as almost Rebellion in a people whom she had long kept in her pay with regret. Memorable were the wise and moderate words of Lord Granville to Colorado, the Austrian Minister, who, in a visit, endeavoured to palliate this league. The Earl said, “We understand it as only a treaty of neutrality, and can but be glad of it; the people in general look on it otherwise; and I fear a time will come when it may be right for us, and may be our inclination, to assist your mistress again; but the prepossession against her will be too strong—nobody then will dare to be a Lord Granville.”

The lawsuit with Princess Emily for free passage into Richmond Park, which I have formerly mentioned, continued. By advice of the Attorney-General, she now allowed ladders over the wall, without standing a trial.^[62] I will here finish all I have to say on this head. This concession did not satisfy; the people sued for gates for foot passengers, and in the year 1758 obtained them; on which the Princess in a passion entirely abandoned the park. Her mother, Queen Caroline, had formerly wished to shut up St. James’s Park, and asked Sir Robert Walpole what it would cost her to do it. He replied, “Only a *crown*, madam.”

July 7th.—The attack on Leicester House was renewed. A Cabinet Council was held to consider a message which Newcastle and the Chancellor proposed should be sent in his Majesty’s name to the Prince, to know if he adhered to living with his mother, and to the demand of having Lord Bute for his Groom of the Stole. Mr. Fox asked if the Prince had ever made such a demand? “Oh! yes,” said Newcastle. “By whom?” asked Fox. Newcastle—“Oh! by Munchausen and others.” The fact was, the Prince had most privately, by Munchausen, requested it as a particular favour; and it was extraordinary that Newcastle had not seized with alacrity an opportunity of ingratiating himself with the successor, without the

knowledge of his master. The truth was, he was overruled by the Chancellor, who having been slighted and frowned on by the Princess in the winter, was determined to be revenged; and the gentle method he took was to embroil the Royal Family, and blast the reputation of the mother of the Heir-apparent. Accordingly, this second message was sent by Lord Waldegrave.

The Prince answered in writing, "That since the King did him the honour to ask him the question, he did hope to have leave to continue with his mother, as her happiness so much depended on it—for the other point, he had *never directly* asked it—yet, since encouraged, he would explain himself; and from the long knowledge and good opinion he had of Lord Bute, he did desire to have him about his person."

As if this letter confirmed, instead of contradicting their assertions, the two Ministers produced it at the same Council. Lord Granville opened the deliberation, and began to favour Lord Bute; but finding how unwelcome such advice was, he turned short and said, it was best to proceed no further; as there must be a quarrel in the Royal family, it was best the King should do nothing. The Duke of Devonshire said, with great decency, he hoped that was not the case; he hoped they were met to prevent such a rupture. "Oh! yes," replied Lord Granville, "it must happen; the Prince has declared he will use ill all that shall be placed about him; and though young Lords will ambition the situation, they will not endure to be treated like footmen: the King will treat Lord Bute like a footman; and then he will make the Prince use the others in the same manner. This family always has and will quarrel from generation to generation."

Mr. Fox then observed, that as it would fall to his province in the House of Commons to defend the King's refusal, if his Royal Highness should petition there for a larger allowance, he must know on what ground to defend it, for the Opposition would produce his Majesty's former message, as evidence that the King had thought it right the Prince of Wales should have 40,000*l.* a year. "You must *explain*," said the Chancellor, "that in the first message something was meant which was known to both parties"—and then went into a formal pleading against the Prince, at the conclusion of which Newcastle prevailed to have the determination put off for the present; though, on being pressed by Fox, he agreed that it should be considered

again. After sacrificing the Princess in this cruel manner, they persuaded the King that Fox was making his court to her.

At this conjuncture, the great office of Chief Justice being vacant by the death of Sir Dudley Rider, Murray demanded it without a competitor, because above competition; and agreeably to his constant asseverations, that he meant to rise by his profession, not by the House of Commons; though the jealousy of his aspiring in the latter had signally contributed to throw Pitt into his then opposition. As Murray was equally the buckler of Newcastle against his ally, Fox, and his antagonist, Pitt, one may conceive how a nature so apt to despond from conscious insufficiency was alarmed at this event. No words can paint the distress it occasioned more strongly than what Charles Townshend said to Murray himself on the report of his intended promotion. "I wish you joy," said he, "or rather myself, for you will ruin the Duke of Newcastle by quitting the House of Commons, and the Chancellor by going into the House of Lords." The apostrophe was frank, considering Newcastle was his uncle;^[63] but tenderness for his family seldom checked the burst of Townshend's vivacity. It was at the same period he said, when the struggle about Lord Bute was depending, "Silly fellow for silly fellow; I think it is as well to be governed by my uncle with a blue riband, as by my cousin^[64] with a green one."

What contributed to make the want of Murray more embarrassing was the confusion that followed the loss of Minorca, of which the account came on July 14th. The French, who had kept us alarmed with the fears of an invasion, while they made immense preparations at Toulon, had sailed on the 7th of April, and landed with 16,000 men at Ciudadella on the 18th. Byng had sailed but on the same day. The garrison of Mahon, which had retired into St. Philip's, consisted of 2800 men. Galissonière had blocked up the port from whence Captain Edgecombe, with his little squadron of three men of war and five frigates, had escaped, and were gone to meet Mr. Byng. As the roads had been broken up, and the works of the assailants were to be practised on firm rock, the trenches were not opened till the 8th of May; and from that time to the 20th they had made no impression. The engagement in sight of the fort, and the disappearance and despair of all succour which followed, had as little effect on the resolution of the garrison. They continued to fire obstinately on the besiegers till June 6th; and Marshal Richelieu gained so little immediate advantage from the retreat of

the English squadron, that he was obliged to demand additional force from France. Having received it, on the 6th he opened a grand scene of batteries, which by the 14th had effectuated several breaches. Yet those brave men still held out, and in proportion as no account came of their surrender, the fame of Blakeney rose.

At last, it was determined in the French Council of War to storm the place on the 27th at night, which was performed accordingly, and three forts were taken. At the Queen's Fort (the last of the three), the fate of Minorca, and the truth of its defence were decided. Lieutenant-Colonel Jefferies, the soul of the garrison, unwilling to trust so important a commission to another, too rashly flew with one hundred men to defend the last redoubt—he found it taken—attempted to retire, and was made prisoner. This happened about midnight: by five next morning a suspension of arms was agreed on to bury the dead, and at two in the afternoon the garrison capitulated. They obtained honourable conditions. If it is asked what part the hero Blakeney took in the event, it must be answered, that, during the whole siege, he had been in bed with the gout, and executed all his glory by deputy. But not only a Commander was wanting: when the general assault was made, many of the British soldiers had done unremitted duty for three days; and they had so few officers, that scarce a mine was fired, and some were attempted so late, that the French carried off the matches before they could take effect. ^[65]

If the clamours of the people rose on the confirmation of this misfortune, so did the terrors of the Administration. The very first effects of their fear showed that, if they had neglected Minorca, they were at least prepared to transfer the guilt to others. They descended even to advertise in the Gazette, that orders were sent to every port to arrest Admiral Byng, in case he should not have been met by Sir Edward Hawke. All the little attorneys on the Circuit contributed to blow up the flame against the Admiral, at the same time directing its light from the original criminals. New offers were made to Murray, if he would decline for eight months the post of Chief Justice and the Peerage that was to accompany it. ^[66] The very distress that made Newcastle catch so eagerly at his assistance, was sufficient warning to make him refuse. He knew it was safer to expound laws than to be exposed to them: and he said peremptorily at last, that if he was not to be Chief Justice, neither would he any longer be Attorney-General.

July 26th.—The prisoners arrived at Portsmouth; Mr. Byng was immediately committed to close confinement. His younger brother who went to meet him, was so struck with the abuse he found wherever he passed, that he fell ill on the first sight of the Admiral, and died next day in convulsions. Byng himself expressed no emotions but of surprise at the rigour of his treatment, persisting in declarations of having beaten the French. West, whose behaviour had been most gallant, was soon distinguished from his chief, and was carried to Court by Lord Anson. The King said to West, "I am glad to hear you have done your duty so well; I wish every body else had!" Anson himself did not escape so honourably: his incapacity grew the general topic of ridicule; and he was joined in all the satiric prints with his father-in-law, Newcastle, and Fox. A new species of this manufacture now first appeared, invented by George Townshend: they were caricatures on cards. The original one, which had amazing vent, was of Newcastle and Fox, looking at each other, and crying, with Peachum, in the Beggar's Opera, "*Brother, brother, we are both in the wrong.*" On the Royal Exchange a paper was affixed, advertising, "*Three kingdoms to be let; inquire of Andrew Stone, broker, in Lincoln's-Inn-fields.*"

From Portsmouth, Byng, strictly guarded, at once to secure him from the mob and inflame their resentment, was transferred to Greenwich. His behaviour continued so cheerfully firm and unconcerned, that those who thought most moderately of his conduct, thought full as moderately of his understanding. Yet, if *he* could be allowed a judge, Lord Anson had, in the year 1755, given the strongest testimonial in Byng's favour, recommending him particularly for an essential service, as one whose head and heart would always answer. As a forerunner to the doom of the Admiral, so much demanded from, and so much intended by the Ministry, General Fowke was brought to his trial for disobedience of orders in refusing the regiment for Minorca. He pleaded the latitude and discretion allowed to him by his orders, and the imminent danger of his important government. Though the danger of that was increased by the probability that France would either offer Minorca to purchase the alliance of Spain, or assistance to recover Gibraltar, yet Fowke found neither efficient to save him; no, nor the diversity of opinions in his Judges; yet it was plain from their sentence, that they by no means thought he came under the rigour of the law, condemning him only to be suspended for a year, for having mistaken his orders. When a

man is tried for an absolute breach of orders, and appears only to have mistaken them, in equity one should think that punishment ought to fall on those who gave the orders. However, as the mob was to be satiated with victims, that the real guilty might escape, Fowke was broken by the King, and his regiment given to Jefferies.

The next symptom of discontent was an address to the King from Dorsetshire, demanding an inquiry into the loss of Minorca, and justice on the culpable. This flame spread: the counties of Huntingdon, Buckingham, Bedford, Suffolk, Shropshire, Surrey, Somerset, and Lancashire, with the great towns, as Bristol, Chester, Leominster, and others, followed the example, and directed their members to promote the inquiry. But the strongest and most dictatorial was that presented from the city of London; to which the trembling Ministers persuaded the King to pledge his royal word that he would save no delinquent from justice. A promise that, being dictated by men secure of the Parliament, plainly indicated on what class of criminals punishment was not designed to be inflicted. The Duke of Newcastle, indeed, could with more propriety than the rest engage the King in a promise, seemingly indefinite, he, who with a volubility of timorous folly, when a deputation of the city had made representations to him against the Admiral, blurted out, "Oh! indeed he shall be tried immediately—he shall be hanged directly."

While England was thus taken up with the contemplation of her own losses and misconduct, a vaster war, more ample revolutions, and a novel hero, were on the point of occupying the theatre of Europe: before I lay open this scene, a word must be said on the situation of Sweden. France had long dictated in that indigent senate. That influence, however, was too precarious and liable to too many changes, to satisfy the view of commanding a steady ally. Though senators are far from being incorruptible, the liberty of their country and its glory, will often operate, and make them feel the weight of the richest chains. A Court, at once arbitrary and necessitous, France thought could never be tempted to slip out of their hands. Accordingly, they laid a plan for making the King absolute; and the conjuncture seemed well chosen. He was much devoted to his Queen, sister of Prussia, a woman artful and ambitious—yet the King had too much gratitude and virtue to yield to the temptation—he neither desired to be arbitrary nor French.—It remained for the members of a free senate to

act the ignominious part, which had been more excusable, as more natural in a King. France then threw all her weight into the faction opposite to the Court. A conspiracy was pretended to be discovered, of a design in the King to make himself arbitrary. Every affront that he would have deserved, had the aspersion been true, was offered to him and the Queen: their power was annihilated; their friends proscribed. The King added to the merit of refusing despotism the virtue of not endeavouring to recover his legal authority; nor let the weakness of his means be urged: no King is so important as not to be able to sacrifice some of his subjects to the most chimeric pretensions.

The greater scene we must trace farther back. The King of Prussia was the point of hatred in which the passions of several Courts met. The Empress-queen could never digest the loss of Silesia; the Czarina had long suspected him of tampering to set the young Czar, John, on the throne, the nephew of the Queen of Prussia. The Court of Saxony dreaded so powerful a neighbour; and, while it trembled for its manufacture of porcelain, could scarce forgive the contempt with which the King of Prussia had left it untouched, when he formerly made himself master of Dresden. Yet perhaps the two latter Princes, the one in the arms of her grenadiers, the other in his china palace, or among his bears, had suffered their apprehensions and indignation to cool, if their Ministers had had as little activity. For the Empress-queen, her Ministers might serve her passions, they could not outrun them. The war that approached must be traced to its source, ere we can fix on the original aggressor. The House of Austria had long meditated the recovery of that predominant power, which so many circumstances and intrigues had concurred to unite in the person of Charles the Fifth. Ferdinand the Second had acted with most open violence; but almost all the race had usurped whenever they saw a proper moment. Silesia had been wrested from the House of Brandenburg. At the very period that the Empire vanished from the House of Austria, the Crown of Prussia fell on the head of a man, who thought much of aggrandizing himself, more of distinguishing himself, not at all of the justice or injustice of the means of attaining either. On the contrary, he seemed to admire the subtlety of policy as much for its beauty as for its use. He at once imposed on the Queen of Hungary and invaded her. The provocation was vehement; the usurpations and arts of her House were taken from her, and turned against her; and, after a bloody war, she had no resource but in swearing to new treaties, with

intention of violating them on the first opportunity:—that opportunity was so eagerly sought, that she could not wait till it arrived; and many busy emissaries conspired to hasten the crisis.

Of these, the chief was Count Bruhl, the favourite of the King of Poland. This man, whom no merit, or no merit that is known, had recommended to Augustus the Third, governed absolutely, I may say, reigned in Saxony, for the Prince, who hated pomp, and divided his time between his priests and his forests, chose that Bruhl should be his proxy to display that grandeur, which Germans take for empire—and he could not have made a properer choice. As Elector, Bruhl^[67] was magnificent, expensive, tawdry, vain;—as Minister, weak and false. He had two or three suits of clothes for every day in the year:—strangers were even carried to see his magazine of shoes! This man, who had mortgaged the revenues of Saxony to support his profusion, and who had prepared nothing but baubles against a Prince that lived in a camp, with the frugality of a common soldier,—this daring trifler aspired to form a league with two mighty Empires, to overturn the throne of Prussia, and pretended to a share in the spoils.

At the same time the Councils of Vienna were directed by Count Kaunitz, a man lately returned from an Embassy to Paris, where he had pushed all the luxurious effeminacy of dress and affectation to an excess common to imitators, and of all imitators most common to Germans. I will mention but one instance: it was fashionable to wear little powder: every morning when he dressed, he had the whole air of a room put in agitation with powder, and when announced to be properly impregnated, he just presented himself in it, and received the atoms in equal dispersion over his hair. These were the politicians that took upon them to annihilate the House of Brandenburg at the very period that it was headed by Frederic the Third. I mention them only to show what pismires roused that lion. Yet Kaunitz had parts—Bruhl had no more than just served to govern his master's none. The tools associated to their plot were such as recommended themselves by activity, cunning, or inveteracy: yet one they had, sensible enough to negotiate a conspiracy, and cool enough to conduct it: his name Count Fleming, a haughty and sullen Saxon, who had been employed in England, and was now at Vienna.

In the year 1745, Bruhl had made a partition-treaty with the Empress-queen, by which part of the King of Prussia's dominions were to be allotted

to Saxony. That treaty had produced nothing but the seizure of Dresden by Frederic. He palliated the violent possession he had taken of Silesia, to which he thought he had a right, by the moderation with which he restored Saxony, to which he had no title but provocation. Yet Augustus had scarce sworn to the articles of a peace by which he recovered his dominions, before he was tempted to a violation of them by the Court of Vienna. As eager as Bruhl was to close with perfidy, yet he could not forget the invasion of Dresden: he suggested that a previous treaty between the Courts of Vienna and Petersburg would expedite and secure their common wishes. To facilitate this union, the Saxon Ministers in every Northern Court received secret instructions to spread suggestions and alarms of great machinations at Berlin against the Czarina. As Bruhl was not penurious of lies, he took the pains to dictate these slanders himself in the blackest terms. In his intercepted despatches one sees how successfully he administered his calumnies, till the Czarina believed herself aimed at even by assassination—and this project of terrifying her into an attack upon the King of Prussia, Bruhl had the modesty to call *a somewhat artful, though good intention*.

The Czarina was an amiable woman, of no great capacity. She had been deprived of a throne to which she had pretensions, and had passed her youth in the terror which must accompany such a claim in a despotic empire, where, if civilized manners were stealing in, humanity to a competitor was one of the last arts of which they were likely to find or adopt a pattern. Yet she had been treated with great lenity, and, which perhaps was still more extraordinary, as the addition of gratitude, another virtue, made the imitation still more difficult, returned it. Her first transport on her rapid elevation was devout mercy; she made a vow never to put any person to death, and adhered to it; Siberia and the prisons, during her reign, were crowded with criminals, tortured, but never executed. She not only spared the little dethroned Czar, John, and had him educated with great care, but was as indulgent as she could be with safety to her rival the Princess Anne, his mother. With so much tenderness of heart, it was not wonderful that her heart was entirely tender—and how slight was that unbounded abuse of power, which only tended to gratify an unbounded inclination! Let us compare the daughters of two ferocious men, and see which was sovereign of a civilized nation, which of a barbarous one. Both were Elizabeths. The daughter of Peter was absolute, yet spared a competitor and a rival; and thought the person of an Empress had sufficient allurements for as many of

her subjects as she chose to honour with the communication. Elizabeth, of England, could neither forgive the claim of Mary Stuart nor her charms, but ungenerously imprisoned her when imploring protection, and without the sanction of either despotism or law, sacrificed Mary to her great and little jealousy. Yet this Elizabeth piqued herself on chastity; and while she practised every ridiculous art of coquetry to be admired at an unseemly age, kept off lovers whom she encouraged, and neither gratified her own desires nor their ambition:—who can help preferring the honest, open-hearted, barbarian Empress?

Besides an attempt on her person, the Czarina was made to believe that Frederic had designs on Courland, on Polish Prussia, and Dantzick; and that France, Prussia, and Sweden had fixed a successor if a vacancy should happen in Poland. She signed the league with the Empress-queen, and resolved to attack the King of Prussia. Saxony was summoned to accede, on its own terms of having two Duchies and three Circles dismembered, on the conquest of Prussia. Bruhl engaged his master to sign, but obtained so much favour as to have the secret articles concealed: and having obtained that indulgence, spared no falsehoods to deny the existence of any secret articles at all: then endeavoured to draw the King of England to accede to the same secret articles; and persisted all the time in the strongest professions of friendship to the King of Prussia. But Bruhl, as the King of Prussia said, had more art in forming plots than in concealing them; and having to do with a vigilant Prince, whose own practice had taught him not to trust to professions, every lie that was despatched from the Secretary's office at Dresden was accompanied with a duplicate to Berlin. Bruhl, so indefatigable and so cautious, little thought that Frederic knew all his secrets before they reached the places of their destination.

Had the King of Prussia wanted intelligence, the preparations of his great enemies, and the folly of his little ones, would have alarmed him. The troops of the two Empresses were in motion, yet neither so much as professed an intention of succouring the King of England their ally. The Empress-queen excused herself in form, when her assistance, so dearly purchased, was demanded. The Muscovite Empress was raising forces against the new ally of Britain with the very money she had received to hold her troops in readiness for England: and the Court of Saxony, to facilitate their junction with the Austrian forces cut a new road to Bohemia,

which Bruhl had the ostentatious imprudence to christen in an inscription, *the military road*. The King of Prussia was the only object against whom all these armaments could be levelled; and they were intended to crush him as early as the year 1755: yet the contracting powers had acted with so little providence, that not one of them had magazines, arms, provisions, or money sufficient to set their great machine in motion. The Czarina, though mistress of such a continent, had neither sailors, nor soldiers, nor treasure; and having begun to march her troops, was reduced to recall them, and to accept a million of florins from Vienna. The Empress-queen had affected great economy and regulation of her finances; but the sums that were squeezed from the subject, as a foundation of frugality, were wasted on buildings, and ceremonies, and pageants. The Emperor indeed was rich, and banker to his wife: she indulged him in this only pleasure: surrounded by the frightfullest Maids of Honour that she could select, she permitted him to hoard what she never let him have temptation or opportunity to squander.

However, towards the middle of the summer of 1756, the bomb was ready to burst; and Frederic (as he wrote to his uncle of England,) saw it was more prudent "*prævenire quam præveniri*." Yet, by no means ambitious of a defensive war, and fully apprised that the first stroke he should strike would set his Crown, his reputation, his life at stake, he attempted to avert the storm; at least, resolved to convince Europe that he was not the aggressor. He asked of the Empress-queen the meaning of those mighty armaments. She gave him an evasive answer. He demanded a categorical one; concluding his letter with these words,—"*Point de reponse en style d'oracle*." Yet the Pythian, though she grew more haughty, was not less enigmatic. He had told her that he would take an ambiguous answer as a hostile declaration: accordingly, towards the end of August, at a great supper, the King of Prussia whispered Mitchell, the British resident, to come to him at three in the morning, when he carried him to his camp, and told him, there were a hundred thousand men setting out that instant, they knew not whither; and bade him write to his master, that he was going to defend his Majesty's dominions and his own. He ordered two Armies into Upper and Lower Silesia, assembled another body at Glatz, and left another in Prussia to oppose the Russians. Yet, though Frederic knew that his most numerous and most determined enemies were in Bohemia, he would not venture to leave Saxony behind him. He marched with another Army to Leipsic, and dispatched a sixth to Dresden—yet again endeavoured peace.

A third time he sent to the Empress-Queen, that if she would give a positive assurance of not attacking him that year or the next, he would directly withdraw his troops: she refused that satisfaction—and Saxony fell an instantaneous sacrifice. The King of Poland, however, was so far prepared as to have encamped his little Army in the only strong situation he had; to which, on the approach of the Prussian army, he withdrew. Frederic, with insulting politeness, sent word to Augustus, that he had ordered relays of post-horses to be prepared for him, if he chose, as it was the season of holding the Diet, to go to Poland. He promised his protection to the Royal Family and Civil Officers, “*Jusqu’à votre ministre,*” said he, “*qui est trop au dessous de moi pour le nommer.*” He lamented Augustus being in the hands of a man, whom he offered to prove guilty of the grossest conspiracies.

Dresden was not an easier conquest than a contented one. They were rigid Protestants, offended by a bigoted Catholic Court, and ruined by an oppressive Court. They were charmed to see a King at Church, and with pleasure remembered Frederic at their devotions when he conquered them before. Augustus, and Bruhl, and 12,000 men were in the strong camp at Pirna; the Queen and Saxon Royal Family remained at Dresden. Keith was ordered to search the archives there for the original pieces, of which Frederic had the copies in his hands. The Queen made all the resistance in her power, and told the Marshal that, as his master had promised to use no violence, all Europe would exclaim against this outrage—“And then,” said she, with spirit, “*you will be the victim. Depend upon it, your King is a man to sacrifice you to his own honour.*” Keith was startled, and sent for further orders; and on receiving reiteration of them, possessed himself of the papers, though the Queen herself sat on the most material trunk, and would not rise, till he convinced her that he could not avoid proceeding to force.

Frederic, in the meantime, was employed in straitening the camp at Pirna, and unavoidably wasted the season for pushing into Bohemia before the Austrians were well prepared to receive him. General Brown advanced to disengage the Saxons, and Keith, who was ready to check his progress, wrote to the King that he was on the point of giving battle. Frederic, leaving Augustus blocked up, posted away to his little Army, and arrived just in time to command the charge. The battle was fought at Lowoschutz on September 29th. The Prussians were not above 25,000 men; Brown had

double their number; yet Frederic thought himself, or endeavoured to be thought, victorious. The inveteracy between the contending nations was remarkable, but the bravery of the Prussians most signalized, eight squadrons sustaining the efforts of thirty-two of Austrians. Brown retired a little; but with so much order, and he and Piccolomini remained so firmly entrenched, that the King would not venture to renew the attack. With the same vivacity of expedition with which he had left it, he returned to his Army besieging that of Augustus. October 11th, Brown, with 15,000 select men, made forced marches to arrive on the back of the camp of Pirna. This was in private concert with the Saxons, who, flinging a bridge over the Elbe at Konigstein, passed the river on the 12th under favour of a foggy night. Darkness and the mist dispersing ere they had made four leagues, to their amazement they found the King of Prussia between them and the Austrians, and master of all the defiles. He advised them to return to their camp. They prepared to follow an advice which it was to no purpose to reject, but, to the increase of their astonishment, found that this universal man had battered down their bridge. They laid down their arms. Augustus shut himself up in the castle of Konigstein, where Frederic sent word to the Queen that she would be indulged in visiting him; and that care was taken to furnish her Lord with provisions and diversions.

I have abridged this narrative as much as possible. From this time, the King of Prussia was too much connected with our affairs to be passed over in silence; but his actions have been too singular and too splendid to want illustration from a private annalist. Europe was the tablet on which he has written his own memoirs with his sword, as he will probably with his pen. Besides, I live too near the times, and too far from the scene of action, to be able to penetrate into the exact detail of his campaigns and measures, and to winnow the truth from such a variety of interested, exaggerated, contested relations, as are at once produced by eminent glory, and strive to obscure it. I shall observe the same circumspection whenever I have further occasion to mention this extraordinary man.

FOOTNOTES:

[\[61\]](#) Lord Torrington.

[62] In one of the hearings on this cause, Lord Mansfield, the Chief Justice, produced in court a libel published against Princess Emily, and insisted that the jury should take an oath that they had no hand in it—and yet, when they had taken the oath, he put off the cause!

[63] Elizabeth, half-sister of the Duke of Newcastle, was first wife of Charles Lord Viscount Townshend, Knight of the Garter, grandfather of Mr. Charles Townshend.

[64] Mr. Charles Townshend had married the Countess Dowager of Dalkeith, first cousin of the Earl of Bute.

[65] A Captain Cunningham, who had been ill-used in our service, and was retired to Leghorn, said, “They will want engineers,”—and immediately sold all he had, bought provisions and ammunition, and flung himself into St. Philip’s. This gallant man died in the island of Guadaloupe, at the taking of which he served, in 1759.

[66] They offered him the Duchy of Lancaster for life, with a pension of 2000*l.* a year; permission to remain Attorney-General (which produced 7000*l.* a year), and the reversion of the first Teller of the Exchequer for his nephew, Lord Stormont. At the beginning of October they bid up to 6000*l.* a year in pension. They pressed him to stay but a month, nay, only to defend them on the first day. Was innocence ever so extravagant, or so alarmed?—“Good God!” said Murray himself, “what merit have I, that you should load this country, for which so little is done with spirit, with the additional burthen of 6000*l.* a year?”

[67] Vide [Appendix](#).

CHAPTER VIII.

George Townshend's Circular Letter—Admiral Byng publishes a Defence—The public mind prejudiced against him—Loss of Oswego—Affair of the Hanoverian Soldier at Maidstone—The King admits Lord Bute into the Prince's Establishment—Fox discontented with Newcastle—Offers to resign—Applies to the Author—His audience with the King—Pitt's demands—Prince of Wales's new Household—Pitt visits Lady Yarmouth—State of Parties—Duke of Newcastle determines to resign—Pitt declines acting with Fox—Negotiations for the formation of a new Ministry—The designs of Fox to obstruct the formation of a new Ministry defeated—Changes—Pitt becomes Prime Minister—Meeting of Parliament.

Affairs at home wore the same troubled aspect. As addresses and petitions were in vogue, and the approaching session likely to be warm, George Townshend took the opportunity of writing a circular letter to great boroughs and corporations, instructing them to instruct their representatives to stickle for another Militia Bill. Besides its being drawn in a wretched style, the impropriety of a private man assuming to himself such dictatorial authority, and the indecency of a man who had the last year so severely censured Mr. Fox's circular letter, were notorious. Townshend's epistle met the contempt it deserved.

Mr. Byng having notice to prepare for his trial, had demanded his witnesses; and now added a list of thirty more, but they were refused. Among those he summoned was Captain Young, who had been one of his loudest censurers. If the step was injudicious, at least it did not indicate any consciousness of guilt. Yet the people and the Ministry continued to treat him as a criminal; and the former reporting that he had endeavoured to escape, the latter increased the strictness of his confinement. He complained to the Secretary of the Admiralty of the rigorous treatment he received from Admiral Townshend, the Governor of Greenwich. A creature of office was not likely to feel more tenderness than his superiors; Cleland returned the most insulting answers. Mr. Byng at last thought it time to make representations as well as to adhere to his innocence. He published his case. Of the engagement I shall not say a word, till I come to give an account of

his trial. Of the arts used to blacken him, the pamphlet gave the strongest evidence, and had very great effect in opening the eyes of mankind.

It appeared, that the Admiral's own letter, which had served as the great engine of his condemnation, had been mangled and altered in a manner most unworthy of honest men, of gentlemen. Some parts were omitted, by which others were rendered nonsense; other periods, which gave the reasons of his behaviour, as obedient to his orders, were perverted to speak the very language of cowardice,—for instance, *making the best of my way to Gibraltar* was substituted to the genuine passage, *making my way to cover Gibraltar*. And thus the Ministry sunk their own positive (and, by their neglect of Minorca, grown necessary) orders, that he might appear to have retired to save himself, not Gibraltar. Other preceding dispatches the Admiral published in the same pamphlet, in which he had represented the bad condition of the Fleet committed to him; and with much reason concluded, those expostulations had been the first causes of his ruin; they who had been guilty of the neglect determining that the first discoverer should bear the punishment. Pity and indignation took place. Mr. Byng was everywhere mentioned with moderation, the Ministers with abhorrence. But three months were to come before his trial. He was a prisoner, his adversaries powerful. His pamphlet was forgotten; new slanders replaced the old. I shall defer the prosecution of Mr. Byng's story till the following year, for though his trial began the end of December, no material progress could be made in it.

But though the fate of Mr. Byng remained in suspense, the crisis for the Ministers drew to a quicker termination, being hurried on by several circumstances that heightened public discontent, and which could not be imputed to the unhappy Admiral. Among these incidents was the loss of the important fort of Oswego, which the French seized and demolished before a design upon it was suspected. Another was of Hanoverian growth, and happening under the eye of the people, threatened very alarming consequences. There were at this time five camps in England: one at Chatham, under Lord George Sackville; another in Dorsetshire; the artillery at Byfleet in Surrey, commanded by the Duke of Marlborough, Master of the Ordnance; the Hessians at Winchester; the Hanoverians at Coxheath, near Maidstone. The sobriety and devotion of the foreigners had been remarkable, and amid such a scene of uneasiness and faction, they had even

reconciled the public voice to German mercenaries. The imprudence of their superiors, up to their very chief, had like to have widened the breach for ever. A Hanoverian soldier buying four handkerchiefs at Maidstone, took by mistake the whole piece, which contained six. All parties have allowed that the fellow did it in ignorance; yet a robbery was sworn against him, and he was committed to jail. Count Kilmansegge, the commanding officer, demanded him, with threats of violence; but the Mayor, no whit intimidated out of his duty, refused to deliver him. Kilmansegge dispatched an express to Kensington. The Chancellor, Newcastle, and Fox were all out of the way; Murray, the Attorney-General, was so rashly complaisant as to draw a warrant, which Lord Holderness was ordered to copy, for the release of the man. This in a few days occasioned such a flame, being mixed, as might have been expected, even in the tumultuous addresses of the time, that it was thought proper to transfer the crime, according to the politics of the year, to the subordinate agents. Kilmansegge was ordered to retire without taking leave; and the poor soldier (as a warning to Mr. Byng) received three hundred lashes. The ignorant Secretary of State was menaced by the Opposition; the real criminal, Murray, with no ignorance to plead, found such an outrageous violation of law no impediment to his succeeding as Chief Justice.

The disturbances flowing from these blunders, neglects, and illegalities, alarmed Newcastle. He found it was no longer a season for wantoning with the resentment of the successor and his mother: he determined to gratify them. The Chancellor, who was with great difficulty drawn to make a sacrifice of his revenge, was sent to the King, to prevail on him to yield that Lord Bute might be at the head of the Prince's family. The old man could not but observe to the Chancellor how contradictory this advice was to the refusal himself had suggested, pressed. "Sir," replied the Judge, with sanctimonious chicane, "your Majesty has said, that you would not make the Earl of Bute Groom of the Stole, and undoubtedly your Majesty cannot make the Earl of Bute Groom of the Stole; but your Majesty has never said that you would not make the Earl of Bute Treasurer, or place him in some other great post." However, this sophistry was too gross; and the King thought it less dishonourable flatly to break his declared resolution, than palliate it to himself by so mean an evasion.

Newcastle, not to lag behind in the race of untruths, told Fox that nothing more would be said in Council of the Prince's family; he believed nothing more would be done in it. In the meantime, he regulated the whole establishment, though it hung awhile in suspense, as they wished to extract from the Princess a promise of giving no further trouble.

Fox now found it was time to consult his own security. He saw Newcastle flinging up works all round himself; and suspected that Pitt would be invited to defend them. He saw how little power he had obtained by his last treaty with the Duke. He saw himself involved in the bad success of measures on which he had not been consulted, scarce suffered to give an opinion; and he knew that if Newcastle and Pitt united, he must be sacrificed as the cement of their union. Indeed, his Grace, so far from keeping terms, had not observed common decency with him: a few instances, which Fox selected to justify to the King the step he was reduced to take, shall suffice. Early in the summer, Newcastle complaining of want of support, Fox told him, that if it would facilitate his Grace's measures, he would resign Secretary of State to Mr. Pitt, and take an inferior place. This, at the beginning of October, the Duke recollected, and told Lord Barrington, that if Fox would not take it ill, he would offer his place to Pitt the next day. So far from *not* taking it ill, Fox made it matter of complaint that his Grace had dared to think he was sincere in the offer.

In the list for the Prince's family, Fox saw the names of eight or ten members of Parliament, of whom he had not heard a word, till the Duke of Newcastle told him all was settled with the King; and, which though meant to soften, was an aggravation by the manner, at the same time acquainted him that the King would let Lord Digby (Fox's nephew) be a Lord of the Bedchamber to the Prince, preferably to the other competitors: "But it was at my desire," said the Duke; "for his Majesty was very averse to do anything for you."—Fox replied, coldly, "Lord Digby is not likely to live."—"Oh!" said Newcastle, with a brutality which the hurry of folly could not excuse, "then *that* will settle it." Fox made no reply; but the next day wrote him a letter to notify that he would go on no longer. Newcastle, thunderstruck with having accomplished what he had projected, reached the letter (he received it at the Board of Treasury,) to Nugent, and cried, "What shall I do?"—and then hurried to Lord Granville, and told him he would resign his place to him. "I thought," said Granville, "I had cured you of

such offers last year: I will be hanged a little before I take your place, rather than a little after.” Fox, too, went to vent his woes on Lord Granville, and prefacing them with a declaration of his unambitious temper, that shrewd jolly man interrupted him, and said, “Fox, I don’t love to have you say things that will not be believed—if you was of my age, very well; I have put on my night-cap; there is no more daylight for me—but you *should* be ambitious: I want to instil a nobler ambition into you; to make you knock the heads of the Kings of Europe together, and jumble something out of it that may be of service to this country.”

However, he had too much experience of Newcastle to think it possible for Fox to go on with him, or to expect that Newcastle would let him. In my own opinion, Fox hoped to terrify, and to obtain an increase of sway. He went to Lady Yarmouth, and uttered his grievances, and appealed to her whether he had not formerly told her, that, if on the death of Mr. Pelham the Duke of Newcastle had taken him sincerely, he would have acted as faithfully under him as he had under Sir Robert Walpole:—“*Ah! Monsieur Fox,*” cried Lady Yarmouth, “*il y avoit bien de la difference entre ces deux hommes là!*” She entreated him, for the sake of the King, for the sake of the country, not to quit. Not prevailing, she begged that Lord Granville might carry the message instead of her. After recapitulating his subjects of complaint, the substance of the message was, that concluding Mr. Pitt was to come into the King’s service, and finding his own credit decrease daily, and how impossible it was for him to act any longer with the Duke of Newcastle, he was willing to serve his Majesty to the best of his abilities in any post, not of the Cabinet.

When Granville arrived with this letter at Kensington, he said, “I suppose your Majesty knows what I am bringing?” “Yes,” replied the King; “and I dare say you disapproved and dissuaded it.” “Yes, indeed, Sir,” said he, (as he repeated the dialogue himself to Fox: “And why did you say so?” asked Fox. “Oh!” said he, shuffling it off with a laugh, “you know one must—one must.”) The King, whom Newcastle had just left, seemed much irritated against Fox, talked of his ingratitude and ambition, quoted the friends of Fox that he had preferred, and particularly of his having raised so young a Peer as Lord Ilchester above so many ancient Barons; and when he had vented his anger against Fox, he abruptly asked Lord Granville, “Would you advise me to take Pitt?” “Sir,” said he, “you must take somebody.”

“What!” cried the King, “would you bear Pitt over you?” “While I am your Majesty’s President,” replied the Earl, “nobody will be over me.” The King then abused Lord Temple much; and at last broke forth the secret of his heart—“I am sure,” said he, “*Pitt will not do my business.*” “You know,” said Lord Granville to Fox, “what *my business* meant;—Hanover.” The supposition did honour to Pitt; but, it seems, the King did not know him. The conversation ended with the King’s saying, he would leave it to Fox’s honour whether he would desert him now.

Fox was by no means hard-hearted on this occasion. He began to say, that he would serve for the next session, but would positively resign in the spring. In the meantime, he was casting about for means of union with Pitt. His resentment to Newcastle prescribed this; and his friend, the Duke of Bedford, who, from the moment he had lost his Turnpike Bill, saw that this country would be ruined by the Duke of Newcastle and the Chancellor, loudly dictated it. Fox applied to Horace Walpole, and told him, that as soon as he should be *ready* to break with Newcastle, he would desire him to acquaint Mr. Pitt that he should be willing to unite with him. Walpole, who by no means approved the adoption of such Pelham politics, as acting with a man only till an opportunity offered of undermining him; and who had for some time withdrawn himself from all participation of measures which he thought neither fair nor wise, replied, “That it was true, he admired Mr. Pitt, though he had not the honour of his friendship; that he earnestly wished to see them united; but before he carried any such message, he must be convinced it was for Mr. Fox’s honour and service.”

Walpole had uniformly persisted in detaching himself from Fox, from the moment the latter had entered into engagements with Newcastle, with whom the other had determined never to have the most minute connexion. Yet, I fear, passions of more mortal complexion had co-operated a little to his disunion (I cannot call it breach, as he never had the least quarrel) with Fox. Rigby, who had vast obligations to him, was, however, grown weary of Walpole’s ardour for factious intrigues, and wished a little to realize his politics. He had not only abandoned his friend for the Duke of Bedford, but thought it time to turn his new friendship to account; and had drawn the Duke out of that opposition to the Court, in which, by Walpole’s arts, as has been shown, he had involved him. In short, Rigby, by no means in affluence, and with too much common sense to amuse himself any longer

with politics that had no solid views, sacrificed the Duke of Bedford to Fox and fortune, when Walpole wished to have him sacrificed to his humour. This had made a breach between them; and Walpole, whose resentments were impetuous, and by no means of an accommodating mould, was little desirous of serving that league, and of breaking Fox's fall, especially by dishonourable means. It was enough to do wrong to gratify his own passions—he was not at all disposed to err, only in contradiction to them. This detail would be impertinent, if a crisis, which Fox reckoned decisive, had not turned (as will be seen) on these secret springs; and if the author did not think it his duty to avow his own failings and blemishes with the same frankness which he has used on other characters. The only difference is, that in others he would probably have treated the same faults with greater asperity, which the justice of the reader will supply.

Lady Yarmouth entreated Fox to see the King as soon as possible: she wished to prevent the rupture; for all the Hanoverians had contracted strange notions of the truculence of Pitt's virtue. October 18th, Fox had an audience. The Monarch was sour; but endeavoured to keep his temper: yet made no concessions, no request to the *retiring* Minister to stay. At last he let slip the true cause of his indignation: “*You*” said he, “have made me make that puppy Bute Groom of the Stole;” for so the junto had persuaded him, when they were reduced to bend to Bute themselves. Fox protested that he had never named it in Council; he had only suggested it as a prudent measure to Newcastle. Still the King dropped suspicions of his having connexions with the Princess. “Sir,” replied Fox, “what I am so happy in, my attachment to your son,^[68] might have assured you against that.” On his side, the Monarch disavowed having made any offers to Pitt. Yet so little condescension appeared, that Fox determined to quit directly; and took his leave with saying, that his intention was so much known, that now he could not avoid resigning. The King, during the whole conversation, seemed to leave open his dominion of saying, or unsaying, hereafter, as the negotiations on the anvil should have a prosperous or unfortunate issue. The Chancellor was treating with Pitt; that is, had sent to desire to see him, and plied him on the 19th and 20th with large offers. Pitt refused all in direct terms, alleging, that the Duke of Newcastle had engrossed the King's whole confidence—and it was understood, that he meant to put an exclusive negative on that Duke. Yet he deigned to name the price at which that diamond, his virtue, might be purchased for the Crown. Ireland he

demanded for Lord Temple; for Legge, the Chancellorship of the Exchequer; for George Grenville, Paymaster; for James Grenville, Secretary to the Lord Lieutenant; for Charles Townshend, Treasurer of the Chambers, or some such thing; for himself, Secretary of State;—for his country, the Militia, and some other rattles. He named the Duke of Devonshire to the Treasury, and without consulting, answered for him.

In the meantime the Prince's new family kissed hands. Lord Bute, as Groom of the Stole; Lord Huntingdon, Master of the Horse; Lord Euston, Lord Pembroke, Lord Digby, Lords of the Bedchamber; Mr. Monson and Mr. Ingram, Grooms; Mr. Stone, Secretary; Lord Bathurst, Treasurer; Mr. Masham, Auditor; Mr. Brudenel, Master of the Robes; besides Equerries and Clerks of the Green-cloth. Mr. Cadogan was appointed Privy-Purse to Prince Edward, who had also Grooms and Equerries. The late Governor, Lord Waldegrave, was offered a pension on Ireland, and refused it: they then gave him the reversion of a Teller's place; and one cannot tell which was most rejoiced at the separation, he or the Princess, who had been suspicious enough to take for a spy, a man, who would even have scorned to employ one. The fate of one man was singular: the Prince of Wales himself condescended to desire Mr. Stone to prevent Scott, his Sub-Preceptor, from being continued in any employment about him—and it was granted. Scott has been mentioned in the civil wars of the tutorhood as attached to Stone: the reason given for his exclusion was, his having talked with contempt of the Prince's understanding, ^[69] and with freedom of the Princess's conduct. The truth was, Scott was a frank man, of no courtly depth, and had indiscreetly disputed with Lord Bute, who affected a character of learning. The King, who loved to mark his empire in the loss of it, refused to give the Golden Key himself to Lord Bute, as was usual, but sent it by the Duke of Grafton, who slipped it into his pocket, and advised him to take no notice of the manner. The Earl, on being wished joy, was said to reply, he felt none, while the Duke of Newcastle was Minister.

On the 21st, in the morning, the palace—not at all the scene of action, had its solitude alarmed. The Pages of the Back-stairs were seen hurrying about, and crying, “Mr. Pitt wants my Lady Yarmouth.” That great stranger made her an abrupt visit—said he was come to explain himself, lest it should be thought he had not been sufficiently explicit. He repeated his exclusion of Newcastle—and gave some civil, though obscure hints, as if,

in losing his grace, Hanover might not lose *all* its friends. The visit itself seemed to indicate that. The mistress of the King and the friend of the Minister was not the first person to whom one should have expected a patriot would have addressed himself, who proscribed the Minister, as he had long attacked the Electorate. And, indeed, it looked as if Mr. Pitt was afraid of having been too explicit, not too little so.

However, the difficulty was increased. The question seemed at first to be, whether Cæsar or Pompey should have the honour of supporting Crassus—when neither would, Crassus made a show of venturing to stand alone: and it seemed almost as easy for him, as for either of the others. For Fox could neither trust to a Parliament devoted to Newcastle; nor dared, in his own unpopular situation, to call a new one. Pitt had no party at all: a new Parliament would have suited him best, for he could not have fewer adherents than in the old one; and, considering the temper of the nation on the late miscarriages, in which he had no hand, might acquire some clamorous voices; but that very dissatisfaction made the expedient too dangerous. How each was counselled by his friends may be seen in a moment. Stone, cold and never sanguine, advised Newcastle to give up a desperate game: Murray threw in censures on his conduct to Fox: the Duke of Grafton, though hating Fox, wisely suggested a reconciliation with him: the Chancellor, sullen and mortified, protested he would follow his Grace, but endeavoured to encourage him to stand alone, affirming they could carry everything by their numbers; and having ever been ready to torture the law to annoy his enemies, he could not help expecting to find the same support from it for himself and his friends. Sir George Lyttelton concurred with him—and if that was encouragement, offered to accept any employment. Nugent and Lord Duplin, on the contrary, dissuaded such rash measures; the latter said, sensibly, “Fox and Pitt shall not need but sit still and laugh, and we must walk out of the House.” Fox’s court (except Doddington, who was too shrewd not to think ill of their cause, and who accordingly acted disgust on not having been more consulted) talked as if triumphant, the moment they heard the reconciliation of Newcastle and Pitt was desperate. The Duke of Marlborough said, Newcastle must be sent to Sussex; Claremont was too near. The Duke of Bedford would have permitted him to retire thither with a pension, and eagerly drove Fox to unite with Pitt. The party of the latter, that is, Lord Temple, was indecently forward to come into place, and having always hated by the scale of his

ambition, he had only passions to sacrifice, not principles, when the terms of his advancement were to be adjusted.

Newcastle sinking, caught at feathers: his Grace proposed to Lord Egmont to be Secretary of State; but he demanded an English Peerage for his son, as the price of his own acceptance of one of the first posts in England. Ministers were become such precarious tenures, that scarce any man would list in them under places for life. The foreign Ministers, a nation not apt to joke, complained bitterly of our frequent revolutions; and D'Abreu, the Spanish Resident, said, before they ventured to negotiate, they were obliged to ask who would be Minister next Session?

At last the important point was decided, and Perfidy, after thirty years, *had* an intermission. The Duke of Newcastle (with all the satisfaction which must have attended the discovery that not one man of sense would trust him any longer) declared his resolution of resigning.

Oct. 27th.—The King sent for Fox, acquainted him that Newcastle would retire, and asked him if Pitt would join with him; bad him try. Fox the next day went to the Prince's Levée, and taking Pitt apart at the head of the stairs, said to him, "Are you going to Stowe? I ask, because I believe you will have a message of consequence by persons of consequence." "You surprise me," said Pitt; "are you to be of the number?" Fox: "I don't know." Pitt: "One likes to say things to men of sense, and of your great sense, rather than to others; and yet it is difficult even to you." Fox: "What! you mean you will not act with me as a Minister?" Pitt: "I do." And then, to soften the abruptness of the declaration, left Fox with saying, he hoped Fox would take an active part, which his health would not permit him to do.

The next day the Duke of Devonshire was ordered by the King to try to compose some Ministry; and by the same authority sent for Mr. Pitt; at the same time endeavouring to make him accommodate with Fox. But they had given too much weight to Pitt by these submissions, for such a negotiator to be able to recover the balance. Pitt, knowing both his own strength and the weakness of the mediator, behaved with haughty warmth; complained of the indignity offered to him by sending Fox, whom he proscribed from the Cabinet; softened a little in general, yet said, he must promote the inquiries; excused himself for having named his Grace to the Treasury, but as it was necessary to place some great Lord there to whom the Whigs would look

up, his partiality had made him presume to propose his Grace: professed not only duty to the King, but obligation for the person now commissioned to treat with him. The Duke took up spirit, and told him, if he refused, the King would be supported without him—Pitt did not mean to drive them to that extremity. The negotiations took up many days, all parties raising difficulties, none bringing facilities. Pitt, who wanted friends for places, more than places for his friends, seemed to think that he must figure by the greatness, since he could not by the number of his demands. Yet of his small squadron, he seemed solicitous to provide only for his allies the Granvilles, as if what filled his own little administration would suffice for the nation's. He even affected to have forgot Charles Townshend, and, as if recollecting himself, cried, "Oh! there is one that will not like to be at the bottom of the list." The mediator-Duke took care this neglect should not be a secret. On one point Pitt affected decency: being asked whom he wished to have Secretary at War, he replied, he did not pretend to meddle there. He relaxed on the article of sending away the Hanoverians; softened towards a war on the continent; owned the King of Prussia was a great object, but would not determine on foreign affairs till he had received more lights from the King's servants. With regard to the inquiries, he said at last, he would neither hinder nor move them; he was not vindictive. Addresses all the while were repeated with violence. The city of London, always governed by the absurdest heads in it, demanded to have the supplies stopped, till grievances should be redressed. Indeed it was much easier to delay than to raise them: and yet nothing but the wickedness of the intention could justify the folly of the injunction.

If Mr. Pitt had no occasion to dismiss many, Newcastle and Fox were not careless of saving all they could; in which they found great facility, as Mr. Pitt had not cousins enough to fill the whole Administration. Neither of the former gave up their views on the power they quitted. Fox particularly laboured to throw every difficulty in Pitt's way; and with some cause: at once excluded from Government, and menaced with a censure, it behoved him not to make over too much strength to his antagonist: and if he did not succeed in recovering his own fall, at least he left so narrow a seat to Mr. Pitt, that it required another convulsion, before the latter could fix himself with any firmness. Fox hoped first to divide Pitt and Legge: the Duke of Devonshire, who thought he had influence on the latter, tried it, but in vain. Fox too had fruitlessly endeavoured to gain Legge; and on his first thought

of breaking with Newcastle, had writ a confidential letter to Legge, begging him to come to town, and concert measures with him on the deplorable situation of affairs. Legge made no answer. Fox in wrath sent for his letter back: Legge returned it at once without a word; and depending on his favour with Lord Bute, now thought himself so considerable a part of the new accession, that he hoped to engross the Treasury himself; and actually proposed Lord Hertford for First Lord. Fox laboured to engage the Duke of Devonshire to accept the Treasury, and the Duke of Bedford to go to Ireland, at once to fix another ally in the Cabinet, and to disappoint both Legge and Temple. Bedford was refractory; but luckily the Throne of Ireland was heaven itself in the eyes of the Duchess: and the vast emoluments of Secretary were full as vehement temptations to their secretary Mr. Rigby.

Fox in the mean time endeavoured to buoy up the spirits of the King, telling him he neither wanted expedients nor courage; intreated him to have patience; that Pitt would rise in his demands; that at last and at worst he would take the Treasury himself and go to the Tower, rather than they should shave his Majesty's head—"Ah!" cried the King, sensibly, "if you go to the Tower I shall not be long behind you!" The Duke of Bedford was as courageous as Fox, and proposed warm opposition, or to support Fox in the Administration. And thus far Fox had judged right; Pitt's demands no longer abated. He required the dismissal of Lord Holderness on the affair of the Hanoverian soldier; and proposed to take Sir Thomas Robinson for coadjutor, only exchanging provinces; himself would take the northern; that was, the Hanoverian; and it is worthy remark, that formerly in a dialogue with Fox, when the Duke of Newcastle had pretended to govern the House of Commons by Sir Thomas Robinson, Pitt, with utter contempt, had said, "He may as well send his jack-boot to govern us."

Lord Holderness wrote to Mr. Pitt, that he was willing to resign as the other great persons were to do; but if it was to be inflicted as a punishment, he would insist on having his crime proved, nor till then *would* resign. This comforted the King; he abhorred the thought of seeing Pitt, and complained of the hardship of being forced to tell the only secrets he had to a man whom he never would let into his closet. His expostulations on these occasions were always pathetic and sensible: "What a strange country," said he to Fox, "is this! I have never known but two or three men in it who

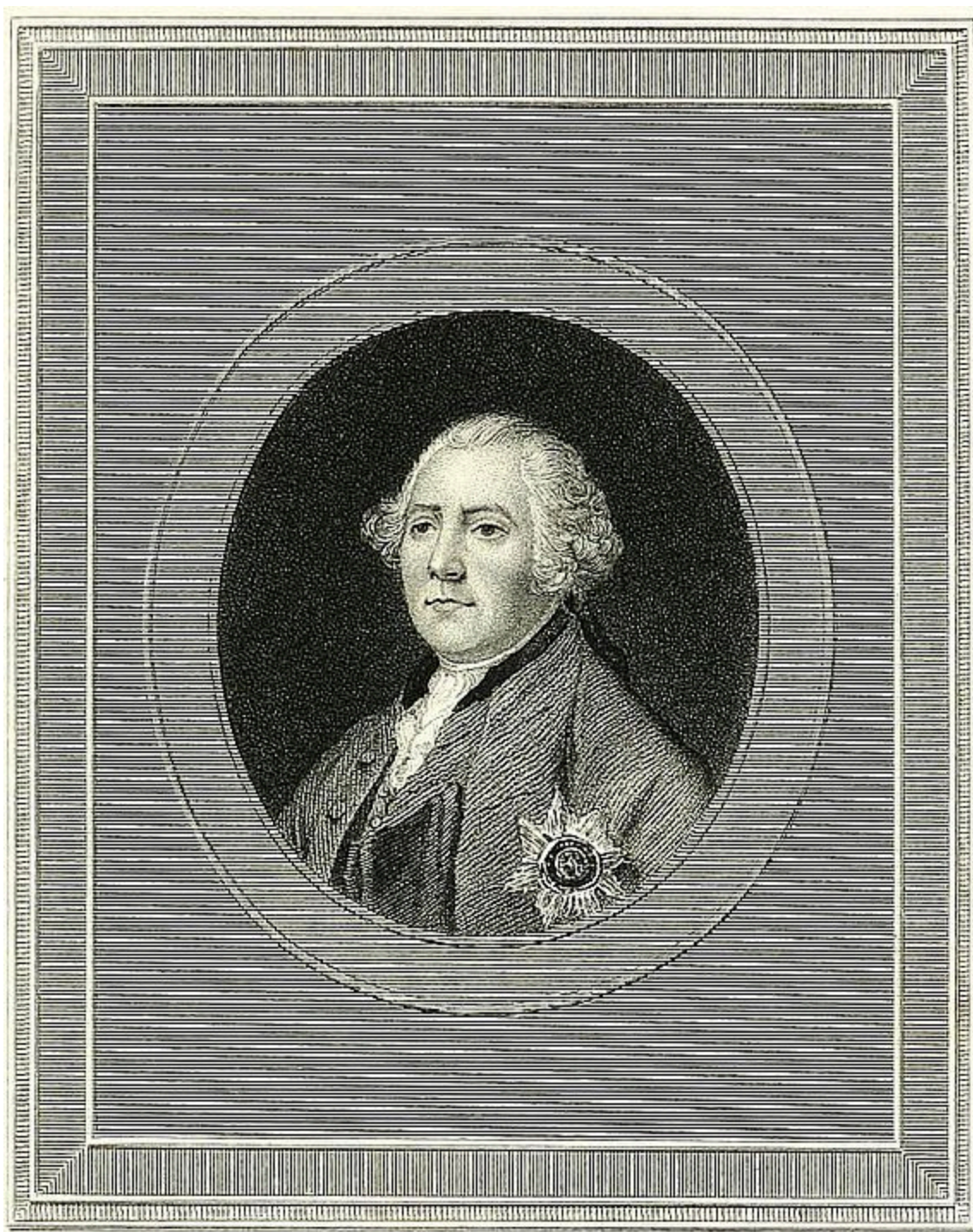
understood foreign affairs: you do not study them—and yet here comes one man (Pitt), and says he has not so much as read Wicquefort, has all to learn, and demands to be Secretary of State! Indeed, he has proposed Sir Thomas Robinson too, who does understand foreign affairs, but then Mr. Pitt insists on taking the province which Sir Thomas understands.” In the same conversation the King said, “The Duke of Newcastle is an honest man and loves the Duke of Devonshire, but he will be jealous of him to-morrow, if the latter takes the Treasury.”

In this situation, with no Ministry, no plan for supplies, no communication for the foreign Ministers, all Government at a stand, it was necessary to defer the meeting of the Parliament. Pitt at last condescended to acquaint the Duke of Devonshire that Lord Temple would be content to take the business of the Navy on him. Yet the more they acquiesced the more Fox laboured to defeat all accommodation by which he was to be excluded. His last effort, and a rash one it was, concluded to have the great Lords and Commoners summoned to a meeting at Lord Granville’s, where the indignities offered to the King, and the exorbitances of Mr. Pitt’s demands, were to be laid before them. They were to be entreated to stand by the King in lopping Mr. Pitt’s list; and, with their approbation, a message was to be sent to him in the name of the Council, that his Majesty would not endure the readmission of Mr. Legge; that Mr. Pitt should in other things be contented, except that Mr. Fox must be Chancellor of the Exchequer. On this foot, and on no other, the Duke of Devonshire consented to take the Treasury. Fox wished him to retain Ireland, that so, if they could weather the approaching session, the Duke might be ready to resign the Treasury into his hands, which seemed to be the drift of his intrigues:—if Devonshire could not keep Ireland, then Bedford was designed to it. The secret was kept till the very day it was to be disclosed; when the Duke of Grafton, having learnt it either from the King or Devonshire, was amazed at the wildness of mischief with which it was big, and went to lament with his son-in-law, Lord Hertford.

It happened that Mr. Conway and Horace Walpole were at dinner with the Earl, and to them, as soon as the Duke was gone, he communicated what he had heard. They were no less astonished than the others had been, and saw plainly that Fox was precipitating the King and the chief persons in England upon a measure, from which it would be impossible for them to recede, to

which it was impossible Pitt should submit, and that in consequence of such a rupture at such a crisis, heated as the passions of men were, even a Civil War might ensue. To crush such a plan in its embryo was, in reality, serving Fox, and certainly the nation:—these were sufficient inducements; and yet, as I have said, Walpole had the additional satisfaction of disappointing the views of that cabal, when he persuaded Mr. Conway to go directly to the Duke of Devonshire, and alarm him with the true picture of the measure in which he had been drawn to concur. His timid nature easily caught the panic: he made the intended meeting be laid aside, the message put off; and the next day, without acquainting Fox with his determination of accepting without conditions, went to Kensington, and consented to take the Treasury. Fox and the Duke of Bedford, who were waiting in the outward room, were thunder-struck—the latter expostulated warmly with Devonshire—the other, who had found Mr. Conway at Devonshire-house the night before, did not want to be told who shot the arrow; still less, when Devonshire officiously assured him it was not Mr. Conway. Fox has said to the real author of his miscarriage, that from that hour he dated all the events in the subsequent revolutions. This happened on the 2nd and 3rd of November.

The Duke of Devonshire having yielded, the new system began to range itself. Legge professed acquiescence—artfully; if Pitt acceded, he must of course: if Pitt did not, Legge would have all the merit of his own moderation. But that conqueror grew still more tractable: he first yielded to take the southern province; next, even to bear with Lord Holderness, if his Majesty insisted on it; yet hoped it would be waved, as he [otherwise] might set out with doing something disagreeable to his Majesty, [he] having engaged his honour, if a question should be moved on that Lord, not to oppose it. Some parting rays of popular virtue were still made to glimmer: the party even ordered one Evans, a lawyer, to draw up articles of impeachment against Lord Anson; and transports were ordered for the Hanoverians, as the country magistrates urged that they were not obliged by law to billet them. The nation all the while expected great services from Pitt—but even the Duke of Newcastle had talked reformation, and once had gone so far as to cashier the pensions of three old widows. Pitt's was a nobler style; and, as Addison said of Virgil, if he did contaminate himself, *he at least tossed about his dirt with an air of majesty.*



DUKE OF BEDFORD.
London, Henry Colburn, 1846.

With more sincerity the little band of patriots disposed themselves to fill the conquered provinces: yet so few of them were in Parliament, and so many had difficulties of being re-chosen, that it almost promised to be an Administration out of Parliament. Fox even skirmished his borough from Dr. Hay, one of the new Admiralty; and had others been as desperate, would have opposed most of them on their re-elections. Pitt himself was distressed; and he, who had lately so warmly attacked the Duke of Newcastle from the seat which he held by one of that Duke's boroughs, could not propose to his Grace to re-elect him, when rising on his ruins. But a little parliamentary craft of shifting boroughs, adjusted this: though Newcastle vaunted that he would show both Pitt and Fox that the Parliament was his.

The Duke of Bedford for some time impeded the entire arrangement, by warmly refusing to take Ireland. Yet he too at last was mollified, after having, as was his way, declared himself with violence enough to show, that if he changed afterwards, it was by the influence of others. Fox had gone to Woburn to persuade him;—in vain: yet, returning, and indeed, knowing what advocates he left behind, ventured (lest that kingdom should be given up before Bedford was brought to a proper temper) to assure the Duke of Devonshire that Bedford would accept the Lord-Lieutenancy.

When all was adjusted, the Duke of Newcastle resigned, Nov. 11th. As he retired *without terrors* and *with parade*, it was easy to penetrate his hopes of returning to Court. It was assiduously propagated in all the public papers, that he departed without place or pension; and his enormous estate, which he had sunk from thirty to thirteen thousand pounds a year, by every ostentatious vanity, and on every womanish panic, between cooks, mobs, and apothecaries, was now represented by his tools as wasted in the cause of the Government. To show how *unrewarded* he chose to relinquish the Administration, this was the catalogue of his disinterestedness. His Dukedom was entailed on his nephew, Lord Lincoln; the only one^[70] conferred by George the Second. Another nephew, Mr. Shelley, had the reversion of the Pipe Office. His cousin, young T. Pelham, already of the Board of Trade, got another reversion in the Custom House. His creature, Sir George Lyttelton, was indemnified with a Peerage. His secretary, Mr. West, was rewarded with a reversion for himself and son. Jones, a favourite

clerk, and nephew of the Chancellor, had another reversion. An Irish Earldom was given to Mr. O'Brien.

All this being granted, his Grace retired to Claremont, where, for about a fortnight, he played at being a country gentleman. Guns and green frocks were bought, and at past sixty, he affected to turn sportsman; but getting wet in his feet, he hurried back to London in a fright, and his country was once more blessed with his assistance.

Newcastle's resignation was on the 19th followed by that of the Chancellor. Great endeavours had been used to retain him, or to engage Murray to succeed him; but what terrified or disgusted the former could have no temptation to the latter, who was equally a friend to Newcastle, was by no means equally ambitious, was more timorous, and still less disposed to serve with Pitt alone. Fatigue determined the scale with Lord Hardwicke, which power and profit would have kept suspended. The Great Seal was given in Commission to Lord Chief Justice Willes, Judge Wilmot, and Baron Smyth. Wilmot was much attached to Legge, and a man of great vivacity of parts. He loved hunting and wine, and not his profession. He had been an admired Pleader, before the House of Commons, but being reprimanded on the contested election for Wareham with great haughtiness by Pitt, who told him he had brought thither the pertness of his profession, and being prohibited by the Speaker from making a reply, he flung down his brief in a passion, and never would return to plead there any more. Fox procured the place of Attorney-General for Henley; the Comptroller's staff for Mr. Edgecombe; the band of Pensioners and Treasurership of the Household for Lord Berkeley of Stratton, and Lord Bateman; an English Barony for Lord Hilsborough; and asked another for his own wife and son—too ambitious a declaration of the figure he still intended to make in the House of Commons. But this was with great indignation refused; and the King, who knew how little he should displease by it, abused him in very undignified terms to the Duke of Grafton, saying, "He now wants to set his dirty shoe on my neck."

Lord Sandys was again shuffled to the top of the wheel, as Doddington was again to the bottom; the former being raised to Speaker of the House of Lords, the latter dismissed, with Lord Darlington, and a few others. Pitt's list was confined to this small number: himself, Legge, and Lord Temple have been mentioned. George Grenville succeeded Doddington as Treasurer

of the Navy; James Grenville, a Lord of the Treasury; Potter, a joint Paymaster of Ireland; Sir Richard Lyttelton had the Jewel-office; Martin, Secretary of the Treasury; the Admirals West and Forbes, with Dr. Hay, Elliot, and Hunter, were put into the Admiralty; John Pitt was made Surveyor of the Roads, and Charles Townshend, Treasurer of the Chambers. At the same time, Garters were given to the Duke of Devonshire, Lord Carlisle, Lord Northumberland, and Lord Hertford. A Red-Riband and an Irish Peerage to old Blakeney, who went to Kensington in a hackney-coach, with a foot soldier behind it. As Blakeney had not only lost his government, but was bed-ridden while it was losing, these honours were a little ridiculed; but the new Ministers and Admiralty inclining to treat Mr. Byng with less rigour, this step was taken by the old Court to refresh the resentment of the populace. Excepting Lord Temple and Pitt himself, the Cabinet was still engrossed by the adherents of Newcastle and Fox; and little harmony was to be expected, or was designed, from a jumble of three such discordant interests. The invention was Fox's, who, first of all men, projected to leave his friends in place, to distress his hostile successors. Formerly the dependents of a Minister resigned with affected dignity, or were abruptly dismissed,—pensions and reversions now broke the fall of the few who were disgraced.

Pitt now appeared as First Minister; yet between his haughtiness on the one hand, and the little share he assumed, except in foreign affairs, on the other; with the affected court paid by Fox's party to the Duke of Devonshire, and with the King's disposition to communicate himself only to his old servants, all application was made to that Duke, whom the roses of power soon charmed to a forgetfulness of the thorns. Yet the irresolution of his temper, and desire of preventing farther dissensions, made him yield so much to Pitt, that Fox, finding himself no more Minister by his proxy than he was in person, left the town in discontent; but was soon recalled by his friends, who assured him that Pitt could not long maintain his post, both from his ill health and the weakness of his party. From the first hour of his power he was confined with the gout, and remained so during greatest part of the winter; and for accession of strength he had nothing but the partiality^[71] of the Tories, who, taking all opportunities of declaring for him, gave great offence; and both his gout and his new friends were topics of unlimited abuse, which was poured on him by Fox's direction and dependents. A paper war of the most inveterate kind was opened. Two

weekly papers, called *The Test* and *Contest*, besides occasional pamphlets, were the vehicles of satire. Murphy, a player, wrote the former on behalf of Fox; and Francis, a poetic clergyman, signalized himself on the same side.

The Parliament met Dec. 2nd. Pitt had prepared a long speech, which the King would not read, but sent to him to shorten it. The House of Commons soon adjourned for the re-elections; and during the few days it sat, harmony so far took place, that there was no division, scarce a debate,^[72] but the seed sown in the preceding occurrences soon developed themselves in the ensuing year.

FOOTNOTES:

[68] Duke of Cumberland.

[69] He once, before Lord Waldegrave, said to the Prince, who excused his own inapplication on the foot of idleness, "Sir, *yours* is not idleness; your brother Edward is idle, but you must not call being asleep all day being idle."

[70] On the removal of Sir Robert Walpole, the King had consented to make the Earls of Northampton and Ailesbury Dukes, but neither having a son, they declined that honour.

[71] That partiality was not cordial, but founded on their hatred to Fox, and probably from secret intimations that the Princess, who meant to adopt them, was inclined to Pitt, and abhorred Fox for his connexion with the Duke of Cumberland.

[72] A spurious speech having been vended for the King's, it was complained of, I think by Lord Sandwich, in the House of Lords, and the authors punished; Lord Hardwicke still taking the lead very dictatorially, but occasionally flattering Pitt on the composition of the true one.

1757.

Sine cæde et sanguine Pauci.—*Juv.*

CHAPTER IX.

Character of the times in the year 1757—Contest in France between the Parliament and the Clergy—King of France stabbed—Damiens the criminal—His torture and execution—Trial of Admiral Byng—His sentence, and behaviour of the Court-Martial—Remarks on his case—Two Highland Regiments raised—Ordnance estimates—Guinea Lottery—Militia Bill.

A century had now passed since reason had begun to attain that ascendant in the affairs of the world, to conduct which it had been granted to man six thousand years ago. If religions and governments were still domineered by prejudices, if creeds that contradict logic, or tyrannies that enslave multitudes to the caprice of one, were not yet exploded, novel absurdities at least were not broached; or if propagated, produced neither persecutors nor martyrs. Methodism made fools, but they did not arrive to be saints; and the histories of past ages describing massacres and murders, public executions of violence, and the more private though not less horrid arts of poison and daggers, began to be regarded almost as romances. Cæsar Borgia seemed little less fabulous than Orlando; and whimsical tenures of manors were not more in disuse, than sanguinary methods of preserving or acquiring empires. No Prime Ministers perished on a scaffold, no heretics in the flames; a Russian^[73] Princess spared her competitor; even in Turkey the bow-string had been relaxed—alas! frenzy revived in France the credibility of assassination; guilt renewed in England machinations of scarce a whiter dye.

The contests between the Parliament and the clergy about the Bull *unigenitus* were still carried on in France. The conduct of the former was such a happy composition of good sense and temper, that they neither deserted their duty under oppression, nor sought to inflame the populace to support them against their oppressors. Even the Clergy were blessed with more moderation than is usual in such contentions; and, what was as lucky, had no able heads to direct them. The Court of Rome, instead of profiting of these divisions, had used its influence to compose them. Benedict the Fourteenth then sat in the Apostolic Chair; a man in whom were united all the amiable qualities of a Prince and a Pastor: he had too much sense to govern the Church by words, too much goodness to rule his dominions by

force. Amid the pomp of Popery he laughed at form, and by the mildness of his virtue made fanaticism, of whatever sect, odious. Yet this venerable Pontiff, now sinking under the weight of fourscore years, was at last surprised into, or perhaps never knew that his name was used in, issuing a Bull to enforce, under pain of damnation, the acceptance of the Bull *unigenitus*. Louis the Fifteenth was persuaded to use that most solemn act of their government, a Bed of Justice, to compel the Parliament to register the Papal Ordinance. The greater part of the members preferred resigning their employments. The King had taken this step in one of those relapses into weakness which his constitution furnished, rather than a want of understanding. The Dauphin was a far more uniform bigot. It is related of him, that about a year before this period, reading the life of Nero, he said, “*Ma foi, c’étoit le plus grand scélérat du monde! il ne lui manquoit que d’être Janseniste.*” And he had even gone so far as to tell his father, “that were he King, and the Pope should bid him lay down his Crown, he would obey.” The King, with a tender shrewdness, said, “and if he should bid you take mine from me, would you?”

The King not being constant in such steady obedience to the Clergy, they had much aspersed him, and traduced his life and Government. The partizans of the Parliament loved him as little; and when he passed through Paris to hold his Bed of Justice, he was received with sullen coldness. One woman alone crying, *Vive le Roi!* was thrown down and trampled to death by the mob. In such a disposition, it was almost extraordinary that no fanatic was found to lift the arm of violence; a madman supplied the part, without inviting Heaven to an association of murder.

January 5th.—Between five and six in the evening the King was getting into his coach to go to Trianon. A man, who had lurked about the colonnades for two days, pushed up to the coach, jostled the Dauphin, and stabbed the King under the right arm with a long knife; but the King having two thick coats, the blade did not penetrate deep. The King was surprised, but thinking the man had only pushed against him, said, “*Le coquin m’a donné un furieux coup de poing*”—but putting his hand to his side and feeling blood, he said, “*Il m’a blessé; qu’on le saisisse, et qu’on ne lui fasse point de mal.*” The King was carried to bed; the wound proved neither mortal nor dangerous; but strong impressions, and not easily to be eradicated, must have been made on a mind gloomy and superstitious. The

title of *Well-beloved* could but faintly balance the ideas of Henry the Third stabbed, of Henry the Fourth stabbed, of enraged Jesuits, and an actual wound. Yet all the satisfaction that the most minute investigation of circumstances could give, and that tortures could wrest from the assassin, was obtained.

Damiens, the criminal, appeared clearly to be mad. He had been footman to several persons, had fled for a robbery, had returned to Paris from a dark and restless habit of mind; and from some preposterous avidity of horrid fame, and from one of those wonderful contradictions of the human mind, a man aspired to renown that had descended to theft. Yet in this dreadful complication of guilt and frenzy, there was room for compassion. The unfortunate wretch was sensible of the predominance of his black temperament; and the very morning of the assassination, asked for a surgeon to let him blood; and to the last gasp of being, persisted that he should not have committed his crime, if he had been blooded. What the miserable man suffered is not to be described. When first seized, and carried into the Guard-chamber, the Garde-des-sceaux and the Duc d'Ayen ordered the tongs to be heated, and pieces of flesh torn from his legs, to make him declare his accomplices. The industrious art used to preserve his life was not less than the refinement of torture by which they meant to take it away. The inventions to form the bed on which he lay, (as the wounds on his leg prevented his standing,) that his health might in no shape be affected, equalled what a refining tyrant would have sought to indulge his own luxury.

When carried to his dungeon, Damiens was wrapped up in mattresses, lest despair might tempt him to dash his brains out—but his madness was no longer precipitate. He even sported, horridly sported, with indicating variety of innocent persons as his accomplices; and sometimes, more harmlessly, with playing the fool with his Judges. In no instance he sunk either under terror or anguish. The very morning on which he was to endure “the question,” when told of it, he said with the coolest intrepidity, “*La journée sera rude*”—after it, insisted on wine with his water, saying, “*Il faut ici de la force.*” And at the accomplishment of his tragedy, studied and prolonged on the precedent of Ravaillac’s, he supported all with unrelaxed firmness; and even unremitted torture of four hours, which succeeded to his being two hours and a half under the question, forced from him but some

momentary yells—a lamentable spectacle; and perhaps a blameable one. Too severe pains cannot be used to eradicate the infernal crime of holy assassination; but what punishments can prevent madness? Would not one rather stifle under a feather bed, than draw out on the rack a being infected with a frenzy of guilt and heroism?

King George ordered Mr. Pitt to send a compliment on the French King's escape, which was conveyed by the Spanish Minister, and was handsomely received and answered.

The year opened in England in the same temper with which the last had closed. Pitt was much confined; when he appeared at Council, was haughty and visionary; so much, that after one of their meetings, Lord Granville said, "Pitt used to call me madman, but I never was half so mad as he is." Legge had little power, and was unsatisfied. The Duke of Devonshire preserved what he called candour; that is, he listened with complaisance to Pitt's secrets, and to be impartial, repeated them to Fox. The Duke of Bedford accepted Ireland; the Primate was come over to feel what would be the future temper of that Government; and threw himself into great court to the new Lord Lieutenant and his friends. Lord George Sackville, to promote those views, seemed to incline to Fox, and took every opportunity of showing how useful or troublesome he could be.

In the mean time the trial of Admiral Byng proceeded, having begun at the conclusion of the preceding year. At the same time had been held a novel sort of Court of Justice. The Generals Legonier, Huske, and Cholmondeley, had been appointed by the King to examine the conduct of Lord Effingham, and the Colonels Stewart and Cornwallis, who having been sent to join their regiments at Minorca, gave their opinions with General Fowke at Gibraltar against granting to Admiral Byng the force which he had been ordered to take from thence. This inquiry was private, and a kind of trial whether there ought to be a trial. The inquisitors made a favourable report, and the officers in question were admitted to Court as usual.

Before the conclusion of the more solemn trial at Portsmouth, an incident happened of an indecent kind, and served, as perhaps was intended, to renew unfavourable sentiments of the Admiral. Among numbers whose curiosity led them to attend the trial, were the Scotch Earl of Morton and

Lord Willoughby of Parham, both men of very fair characters; the latter attached to Lord Hardwicke. Both assiduously attended the examination of the witnesses against the Admiral; both returned to London without hearing one word of his defence; and as they forbore to speak their opinions, the mystery of their silence, which could not be interpreted propitiously, and the seeming candour, in men of reputation, of not being willing to condemn, carried double condemnation. Yet as Mr. Byng proceeded on his defence, these omens dispersed; and before the examination of his witnesses was finished, the tide of report promised him an honourable acquittal. On the 20th of January the trial was closed; and nine days intervening between that and the sentence, and many whispers getting wind of great altercations in the Court-Martial, no doubt was entertained but that the contest lay between an entire absolution, and the struggles of some, who wished to censure, when it was impossible to condemn.

Before sentence was pronounced, an express was dispatched to the Admiralty at London, to demand, whether the Court Martial were at liberty to mitigate an Article of War on which they had doubts. They were answered in the negative. It was the twelfth of the Articles of War on which they had scruples. It was formerly left to the discretion of the Court to inflict death or whatever punishment they thought proper, on neglect of duty; but about three years before this period the Articles had been new modelled; and to strike the greater terror into the officers of the Fleet, who had been thought too remiss, the softer alternative had been omitted. From the most favourable construction (for the members of the Court) of the present case, it was plain that the Court Martial, who had demanded whether the law would not authorize them to mitigate the rigour of the article, thought the Admiral by no means deserved to be included in its utmost severity. This they must have thought—they could not mean to inquire whether they might mitigate what they did not desire to mitigate.

How the more moderate members of the Court obtained the acquiescence of their brethren to this demand is surprising, for Admiral Boscawen, who had the guard of the prisoner at Portsmouth, and who was *not* one of the Judges, but a Lord of the Admiralty, seems by the event to have understood to a prophetic certainty the constitution of the Court. Dining at Sir Edward Montagu's before the trial, and it being disputed what the issue of it would be, Boscawen said bluntly, "Well, say what you will, we shall have a

majority, and he will be condemned.” This the Duchess of Manchester^[74] repeated to Mrs. Osborn,^[75] and offered to depose in the most solemn manner.

Accordingly, January 29th, Mr. Byng was summoned to hear his sentence. He went with that increase of animated tranquillity which a man must feel who sees a period to his sufferings, and the rays of truth and justice bursting in at last upon his innocence. His Judges were so aware of the grounds he had for this presumption, that they did permit a momentary notice to be given him, that the sentence was unfavourable. A friend was ordered to prepare him—and felt too much of the friend to give the hint sufficient edge; but by too tenderly blunting the stroke, contributed to illustrate the honour and firmness of the Admiral’s mind. He started, and cried, “Why, they have not put a slur on me, have they?” fearing they had censured him for cowardice. The bitterness of the sentence being explained, and being satisfied that his courage was not stigmatized, his countenance resumed its serenity, and he directly went with the utmost composure to hear the law pronounced. For a moment he had been alarmed with shame; death, exchanged for that, was the next good to an acquittal.

I have spoken of Admiral Byng, not only as of a man who thought himself innocent, but as of one marked for sacrifice by a set of Ministers, who meant to divert on him the vengeance of a betrayed and enraged nation. I have spoken, and shall speak of him as of a man most unjustly and wickedly put to death; and as this was the moment from which my opinion sprung, however lamentably confirmed by the event, it is necessary in my own vindication to say a few words, lest prejudice against the persecutors, or for the persecuted, should be suspected of having influenced my narrative. I can appeal to God that I never spoke to Mr. Byng in my life, nor had the most distant acquaintance with any one of his family. The man I never saw but in the street, or in the House of Commons, and there I thought his carriage haughty and disgusting. From report, I had formed a mean opinion of his understanding; and from the clamours of the world, I was carried away with the multitude in believing he had not done his duty; and in thinking his behaviour under *his* circumstances weak and arrogant. I never interested myself enough about him to inquire whether this opinion was well or ill founded. When his pamphlet appeared, I read it, and found he had been cruelly and scandalously treated. I knew enough not to wonder

at this conduct in *some* of his persecutors—yet it concerned not me; and I thought no more about it till the sentence, and the behaviour of his Judges which accompanied it, struck me with astonishment! I could not conceive, how men could acquit honourably and condemn to death with the same breath! How men could feel so much, and be so insensible at the same instant; and from the prejudice of education which had told me that the law of England understood that its ministers of Justice should always be Counsel *for* the prisoner, I could not comprehend how the members of the Court-Martial came to think that a small corner of a law ought to preponderate for rigour, against a whole body of the same law which they understood directed them to mercy; and I was still more startled to hear men urge that their consciences were bound by an oath, which their consciences told them would lead them to murder. Lest this should be thought a declamatory paraphrase, I will insert both the sentence and the letter of the Court-Martial; and will appeal to impartial posterity, whether I have exaggerated, whether it was necessary for me, or whether it was possible for me to exaggerate, the horrid absurdity of this proceeding. Supplements indeed there were made to it!

“At a Court-Martial, assembled on board his Majesty’s ship St. George, in Portsmouth harbour, upon the 28th of December, 1756, and held everyday afterwards (Sundays excepted), till the 27th of January inclusive—

Present,

Thomas Smith, Esq., Vice-Admiral of the Red, President;

Francis Holburne, Esq., Rear-Admiral of the Red;

Harry Norris, Esq., Rear-Admiral of the White;

Thomas Brodrick, Esq., Rear-Admiral of the Blue;

Captains, Charles Holmes, Francis Geary,

William Boys, John Moore,

John Simcoe, James Douglas,

John Bentley, Hon. Augustus Keppel.

Peter Denis,

The Court, pursuant to an order from the Lords Commissioners of the Admiralty to Vice-Admiral Smith, dated December 14, 1756, proceeded to inquire into the conduct of the Hon. John Byng, Admiral of the Blue squadron of his Majesty's Fleet, and to try him upon a charge, that during the engagement between his Majesty's Fleet, under his command, and the Fleet of the French King, on the 20th of May last, he did withdraw or keep back, and did not do his utmost to take, seize, and destroy, the ships of the French King, which it was his duty to have engaged, and to assist such of his Majesty's ships as were engaged in fight with the French ships, which it was his duty to have assisted; and for that he did not do his utmost to relieve St. Philip's Castle, in his Majesty's island of Minorca, then besieged by the forces of the French King, but acted contrary to, and in breach of, his Majesty's command; and having heard the evidence and the prisoner's defence, and very maturely and thoroughly considered the same, they are unanimously of opinion, that he did not do his utmost to relieve St. Philip's Castle, and also that during the engagement between his Majesty's Fleet under his command and the Fleet of the French King on the 20th of May last, he did not do his utmost to take, seize, and destroy, the ships of the French King, which it was his duty to have engaged, and to assist such of his Majesty's ships as were engaged, in fight with the French ships, which it was his duty to have assisted; and do therefore unanimously agree that he falls under part of the twelfth article of an Act of Parliament of the twenty-second year of his present Majesty, for amending, explaining, and reducing into one Act of Parliament the laws relating to the government of his Majesty's ships, vessels, and forces by sea; and as that article positively prescribes death, without any alternative left to the discretion of the Court, under any variation of circumstances, the Court do therefore hereby unanimously adjudge the said Admiral John Byng to be shot to death, at such time, and on board such ship, as the Lords Commissioners of the Admiralty shall direct.

“But as it appears by the evidence of Lord Robert Bertie, Lieutenant-Colonel Smith, Captain Gardiner, and other officers of the ship, who were near the person of the Admiral, that they did not perceive any backwardness in him during the action, or any marks

of fear or confusion, either from his countenance or behaviour, but that he seemed to give his orders coolly and distinctly, and did not seem wanting in personal courage, and from other circumstances, the Court do not believe that his misconduct arose either from cowardice or disaffection, and do therefore unanimously think it their duty, most earnestly to recommend him as a proper object of mercy.”

The sentence was accompanied by the following earnest representation:

“To the right honourable the Lords Commissioners for executing the office of Lord High Admiral of Great Britain, &c.

“We, the underwritten, the President and Members of the Court-Martial assembled for the trial of Admiral Byng, believe it unnecessary to inform your Lordships, that in the whole course of this long trial, we have done our utmost endeavour to come at truth, and to do the strictest justice to our country, and the prisoner; but we cannot help laying the distresses of our minds before your Lordships on this occasion, in finding ourselves under a necessity of condemning a man to death, from the great severity of the twelfth Article of War, part of which he falls under, and which admits of no mitigation, even if the crime should be committed by an error in judgment only; and therefore, for our own consciences sakes, as well as in justice to the prisoner, we pray your Lordships, in the most earnest manner, to recommend him to his Majesty’s clemency.

“We are, my Lords, &c. &c.”

Signed by the whole Court.

From this sentence and this letter, it appears that Mr. Byng was acquitted, in the fullest manner, of cowardice, by men who (to say the best of them) were too scrupulous to acquit of a crime of which they thought him guilty, when they imagined it was their duty to condemn him for another crime, of which, it seems, they did not think him guilty. For thus unbiassed posterity will undoubtedly judge of those men. If there was any meaning in their

strange procedure, it must have been this:—They thought the Admiral guilty of an error in judgment; and as from an error in judgment he had not performed all they supposed he might have done, they held him to blame—and then, believing that the Article of War intended to inflict death on all kinds of blame, they considered under what chapter of blame to rank Mr. Byng's error. *Disaffection* it was not, *cowardice* it was not; the Article named but a third species, and that being *neglect*, these honest men agreed that a want of judgment was nearest related to *neglect*, and for that condemned him.

This reasoning, I presume, is the best defence that could be made for these expounders of naval law. An anecdote, much asserted at the time, belongs to this part of the proceeding. When the severer part of the Court (the steady part of Admiral Boscawen's foretold majority) found great difficulty to wring from their associates acquiescence in condemnation, they are said to have seduced the latter by promising on their part, if Mr. Byng was condemned, to sign so favourable a representation of his case, that it should be impossible but he must be pardoned. If anything could excuse men for condemning a person whom they thought innocent, it would be this, because there is nothing more uncommon, I might almost say, more unheard of, than the execution of a criminal, when his Judge strongly recommends him to mercy. If this bargain for blood was suggested by the return of the Courier who was dispatched by the Court-Martial for illumination—but I will not make surmises—the late Ministers had sufficiently barricaded the gates of mercy when they engaged the King in that promise to the city of London; and whoever will read the inhuman letters of their tool, Cleland, the Secretary of the Admiralty, will be a competent judge of what mercy Mr. Byng had to expect after condemnation.

The first flame lighted by this extraordinary sentence was the dissatisfaction it occasioned in the Navy, when they found such a construction of the twelfth Article, as made it capital for an officer to want, what he could not command, judgment. Admiral West threatened to resign if it was not altered. But they who had power to enforce execution on such an interpretation, took care not to consent to any correction. With what face could they put the Admiral to death, if they owned that the Article on which he was condemned wanted amendment?

Before I proceed to the consequences of this affair, I will say a few words, as I promised, on the engagement itself; though with regard to the fate of Mr. Byng, I think it ceased from this moment to be any part of the question. If he was guilty of any fault, his most conscientious Judges thought it so small an one, that they did not hesitate to censure the law itself for blending it with capital crimes: and it will appear as fully that the duration of it was as short, as the nature of it was light; not extending beyond very few minutes. Had he been guilty of all that cowardice which had first been charged on him, and of which he was so honourably acquitted, it would still have been a notorious violation of the custom of England, (and the common law itself is scarce more than custom,) to put him to death after such earnest recommendation of his Judges—Judges under no influence of the favourable sort!

The quintessence of the engagement, as shortly as I can state it, I take to have been this:—After the signal for charging was made, the Captain of the *Intrepid* bore down in a wrong direction, by which she was exposed to be raked by the enemy. Admiral West, who commanded that division, followed the same direction, rather than decline the engagement. This was brave: he was not the Commander-in-Chief. Mr. Byng, who was, perceived the disadvantage of this manœuvre; yet he, too, bore down, but more slowly. In his course, the *Princess Louisa* and the *Trident* lay in his way, and he was obliged to disengage himself from them first, and then crowded all the sail he could. As the French had engaged in earnest, and had not suffered, he could not have the least suspicion that they would give over so abruptly; but while he was involved with his own ships, they had prepared to retreat, and had already left him at such a distance, that he thought it in vain to follow them that night. Afterwards, on a review of his fleet, he found so much damage done to what was before deplorable, expected so little to be able to raise the siege, and what in my opinion he dreaded with most reason, and which was equally the object of his orders, feared so much for Gibraltar, that he determined to retire thither, and had the concurrence of Admiral West.

I have said that one part of the Admiral's defence does not appear to be well reasoned; I mean, his belief that though he had beaten the French, he should not have saved the island. General Blakeney, too, deposed at the trial, that if the whole detachment ordered from Gibraltar had been landed

at the time the Fleet appeared off Mahon, it would have been insignificant: an opinion, in my judgment, as wrong as the Admiral's. At last the fortress fell from want of hands—what had they suffered? a reinforcement would have prolonged the siege, as the defeat of the French Fleet might have starved the besiegers, if in either case a new squadron had been sent from England. To conclude all their efforts insufficient, both the Admiral and General must have believed that the English Ministry would have continued as remiss and culpable as they *had* been.

With regard to the sentence, the essence of it turns on the very few minutes in which the Admiral neglected to make all possible sail—and for *that* he died! I, however, shocked at the severity of his fate, am still impartial; and with the truth that becomes an historian, from the most respectable down to so trifling a writer as myself, shall fairly declare all I know and observed: and difficult it would be for any man to have watched with more industry of attention even the most minute circumstance of this dark affair from the instant the sentence was made public. From that unremitted observation I formed this opinion:—Mr. Byng, by nature a vain man, by birth the son of a hero, was full of his own glory, and apprehensive of forfeiting any portion of what had descended on him. He went, conscious of the bad condition of his ships and men, to dispute that theatre with the French, on which his father had shone over the Spaniards; and he went persuaded that he should find a superior enemy. He dreaded forfeiting the reputation of forty years of brave service; he looked on Minorca as lost, and thought it could not be imputed to him. He had sagacity enough (without his strict orders) to comprehend, that if Gibraltar followed St. Philip's, which he knew would be the case if he was defeated, that loss would be charged on him: and after all, to mislead him, he had the addition of believing that he had satisfied his duty by obliging the French to retire. This seems to have been the man:—He was, if I may be allowed the expression, a coward of his glory, not of his life; with regard to that, poor man! he had an opportunity of showing he was a hero.

It is not to boast any sagacity, and yet perhaps it required some extent of it to exceed Mr. Byng's enemies in discovering a fault which escaped their acuteness—but I did remark an instance that was never observed nor charged on him, in which he was undoubtedly guilty. In the course of the inquiry into the loss of Minorca, (to be mentioned hereafter,) a letter from

the Admiral was read carelessly in a very thin Committee, which confirmed what the Ministry did charge him with—delay; and fully explanatory of that vain-glory which I have described as characteristic of the man. In that letter he told the Admiralty, that though their orders were so pressing, and the wind was fair, he did presume to stay for final orders—slightly he hinted, and seemingly without connecting it with his delay, that he thought he should have the rank of Commander-in-Chief.

When this letter was produced, the Admiral was dead; new objects had engaged the minds of men; and this is not a nation where any impressions engrave themselves deeply. If I have mentioned it now, it was to demonstrate my own impartial veracity: and yet, though the delay was blameable, no consequences flowed from it. If he had lingered, it had been but for a day or two: he had arrived in time to fight the French, and could but have fought them, arriving a day or two sooner. Dispatched so late as he was, he never could have reached Minorca early enough to disturb their landing. This reasoning, therefore, is mere speculation, and not intended to absolve or condemn the Admiral, the justice of whose fate, I again declare, in my opinion by no means depended on the innocence or criminality of his behaviour: the iniquity of his suffering on such a sentence, and after such a recommendation of his Judges, gave the tone to his catastrophe.

I must interrupt the sequel of his story to relate a few preceding and intervening passages.

Two battalions, each composed of a thousand Highlanders, were raised for the service of America; the command given to the brother of Lord Eglinton, and to the Master of Lovat, the son of the famous old chieftain, who had suffered on Tower-hill after the late Rebellion. The young man had been forced into the same cause by his father, had been attainted and pardoned, but was never permitted to go into the Highlands; and though he received a pension from the Crown, he was allowed nothing from his paternal estate. His jurisdiction too had been abolished with the rest. This man was now selected by the Duke of Argyle, who told the Government, that under no other person the clan of Frazers would enlist. Stanley, formerly connected with Pitt, now attached to the Duke of Newcastle, under whose Ministry he was a candidate for the Admiralty, took severe notice of this measure in a very good speech, and roundly charged it on Pitt's flattery to the Duke of Argyle. He expressed great dissatisfaction on the admission

of disaffected Highlanders into the Army, said if Frazer had any experience, he had learned it in Rebellion; spared not the Scotch, and yet said, his was not prejudice, nor did he contract notions of any country by walking through the streets of it. This glanced at Pitt's former declamation against Oxford. Stanley was ungracious in his manner, but had sense and knowledge, heightened with much oddness, and supported by great personal courage. Lord George Sackville defended the measure, and asked why rank should not be allowed to these extemporaneous officers, as it had been to the Colonels of the new regiments in the late Rebellion? This slip was taken up by Lord Granby, who said he was sorry to hear Rebels compared to Lords who had taken up arms to crush the Rebellion. Fox, not to be outstripped in homage to Argyle, justified the measure on the necessity of it.

January 19th.—The estimate of the Ordnance was read. The extravagant expense of the late camp at Byfleet, where the Duke of Marlborough had played with the image of war, was disguised and lumped under various services. Charles Townshend moved to have the articles separated, that the truth might be known.

21st.—Mr. Legge opened part of the supplies, of which one ingredient was a Guinea Lottery, the scheme of a visionary Jew, who long pestered the public with his reveries. The plan failed. Legge ostentatiously subscribed for a thousand tickets, and engaged his chief, the Duke of Devonshire, to do the same: but Legge took care privately to vend his own number, and was no loser. Beckford proposed new kinds of taxes on tea and salt, which were not accepted. Mr. Pitt, in the meantime, was confined. The patience and complaisance of the Tories were remarkable, who, notwithstanding the instructions which they had instructed their constituents to send them for speedy inquiries into the late mismanagement, revered the sick bed of the gouty Minister, and presumed to tap no inquiry in his absence. What accession of dignity to him? what reflection on the capacity or integrity of his associates, who were not deemed qualified to scrutinize without him the conduct of their predecessors!

26th.—The Militia Bill was again offered to the House. Mr. Conway opened in a very able manner another plan of his own for raising a Militia from the capital towns. Mr. Fox supported it. Charles Townshend broke out into a vehemence of passion, on Fox's saying that the former Bill ought to be altered to make it palatable to the Lords, whom Townshend handled very

roughly. Lord George Sackville opposed him, but took care not to show more partiality to Mr. Conway, whose plan he disapproved. The consideration of the two schemes was deferred till the Committee.

Charles, at the instigation of George Townshend, continued to sift the estimate of the Ordnance. They found that the Duke of Marlborough had charged his own pay at ten shillings a day. No master of the Ordnance had received so much, except Duc Schomberg, who had no regiment. The great Duke of Marlborough, the late Duke of Argyle, the Duke of Montagu, three men sufficiently attentive to their interest, had touched but four shillings. The Townshends clamoured on this, and the Duke of Marlborough refunded all that he had received above four shillings a day.

FOOTNOTES:

[73] The Czarina Elizabeth, who only confined the Princess Anne of Mecklenberg.

[74] Wife of Sir Edward Montagu.

[75] Sister of Admiral Byng.

CHAPTER X.

Contract of Alderman Baker for Victualling the Troops—Parliamentary Inquiries limited to Minorca—Byng's Sentence produces various impressions—It is referred to the Judges—Conduct of the Judges on the Case referred to them—Conduct of Fox—The Admiralty signs the Sentence—The Sentence notified to the House of Commons—Mr. Pitt demands Money for Hanover—Lord George Sackville declares for Pitt—His Motives for so doing—Approaching Execution of Byng—Debate in the House of Commons on his Sentence—Members of the Court-Martial desirous to be absolved from their Oaths—The Author urges Keppel to apply to the House of Commons—Sir Francis Dashwood applies for Keppel—The King's Message—Court-Martial Bill passes the House.

Feb. 7th.—The younger of the brothers carried the war into another quarter, attacking Alderman Baker on a contract he had obtained from the Government for victualling the troops in North America; and falling severely on his uncle Newcastle, whom he abused, with more outrage than wit, in a very florid strain of satiric irony. Fox defended Baker; Nugent, his patron: Baker on a subsequent day vindicated himself, and cleared the fairness of his contract.

George Townshend and the Tories were displeased with these hostilities to Newcastle, who they feared would be driven to unite with Fox, with whom the Duke consulted for the defence of Baker. His Grace and Fox being already complicated in the late measures, a new accession of common interest might renew their league. These apprehensions operated so strongly on Fox's enemies, that great coldness was shown on the matter of inquiries; and when George Townshend could no longer in decency defer to call for papers previous to the examination, as he did at last, February 8th, the inquisition seemed affectedly limited to the loss of Minorca, on which subject, Newcastle and Fox had had leisure for months to remove from all offices whatever papers could be supposed to affect them. All discussion of the neglects in America, so extensive, so numerous, and so easily to be proved, were cautiously avoided. Indication sufficient, that the late Ministers had left no evidence against themselves, was, that in a Parliament constituted almost entirely of their friends, not a single objection was made

by any of their dependents against the scrutiny into their conduct. The most upright Ministers had never met popular attacks with indifference—were Newcastle, Anson, Fox, more bold, or more innocent, than any of their predecessors? The farce of national justice had never appeared in more glaring colours: Mr. Byng had been kept a close prisoner from the instant of his arrest; thirty witnesses that he had demanded had been denied to him; every evidence that could possibly affect him had been produced—when the more powerful criminals were to be charged, a single part of their administration was selected, papers were demanded by guess, and it was left to the discretion of offices full of clerks, all creatures of the late Ministers, to send, omit, secrete, mangle, what part of those papers they pleased. No Committee was appointed to conduct the inquiry, nobody empowered to procure or manage evidence, or even to examine whether what was so partially demanded, was not still more partially granted. Mr. Pitt protracted a commodious gout—George Townshend, the other mock-champion of the people, was negotiating with Lord Granby, to unite the patriot Minister with the late chief of the criminal Administration.

During these clandestine treaties and juggles, the sentence pronounced on the Admiral grew a serious affair. The first impression taken was, that he must be pardoned. Many lawyers declared the sentence was illegal: at St. James's it was received as definitive: the Sovereign, the Duke, Princess Emily, and their train, treated the notion of mercy as ridiculous; and no whispers from any of their late partizans breathed a more gentle spirit on the Court. At the Admiralty, on the contrary, a very different temper discovered itself. Admiral West, the friend of Pitt, and relation of Lord Temple, loudly demanded a revision of the 12th Article; and though, he said, he would not decline immediate service to which he was appointed, he declared his resolution of resigning, unless the Article was abrogated. Admiral Smith, natural brother of Lord Lyttelton and Sir Richard, who had been President of the Court-Martial, and was really a humane though weak man, wrote the most earnest letters to his brothers, to interest themselves in the safety of Mr. Byng, as the only method of quieting his (Smith's) conscience. The Peer, blindly devoted to Newcastle and Hardwicke, returned an answer, that, to say no worse of it, did not breathe more humanity into a conscience already wounded.

Sir Richard, on the contrary, interested himself warmly for the condemned; and Lord Temple took part enough to make it a measure in the Admiralty to refuse to sign the warrant for execution, unless they were better satisfied on the legality of the sentence—if their consciences could be tranquillized by such opiates as the casuists of Westminster Hall could administer, Lord Hardwicke had no apprehension but the warrant might still be signed. Accordingly, the King referred the sentence to the Judges; and as there was no difficulty but what they could solve by pronouncing an absurdity legal, they soon declared, that a sentence, which acquitted of two crimes, and yet condemned, without specifying a third, was very good law. And thus, without an instance of interpreting a *new*, *obscure*, and *doubtful* statute in the most unfavourable sense, and contrary to the stream of precedents by which criminals recommended to mercy were constantly pardoned, the people of England (that some revengeful men might be gratified, and some guilty men might have their crimes atoned by the sacrifice of another man) obtained the alarming precedent of a sentence pronounced by implication! And this was the more alarming, as it was known that the word *negligence*^[76] had been proposed in the Court-Martial, and had been rejected by them. Consequently, they had thought it their duty to condemn for *no* crime; and the Judges discovered the virtue of a crime in words, which the persons who framed the sentence had intended should *not* express it.

What added to the criminality of the Judges was, that the young Lord Torrington, the Admiral's nephew, having petitioned the Admiralty for leave for his uncle to appeal against so unprecedented a sentence, they desired to see his reasons, and having received them, laid them before the King and Council, by whom they were referred to the Judges. The Judges, who had desired to see all the sentences in capital cases that had been given by Courts-Martial since the Revolution, excused themselves from examining Lord Torrington's arguments, equally referred to them by the Council. One can hardly avoid saying on such inconsistent behaviour, that the Judges knew what was the inclination of the Council on the different papers referred to their consideration; and that they accordingly rejected an appeal from a novel sentence, which they pronounced law from precedents which had all taken their rise under the abrogated law.

There had been periods when Fox would not have suffered such casuistry in the profession to pass uncensured:—what was the part he now took?—It was not, in truth, an age to expect that a Regulus should exhort his country to pursue measures which would advance his own destruction. Few men would devote themselves, when other victims were marked for sacrifice. We will suppose, that Mr. Fox, implicated in the miscarriages of the last year, might not be sorry to see the busy timidity of Newcastle, or the dark councils of Hardwicke, transferring his, their own, and Anson's neglects and mismanagements to Mr. Byng, and sweeping Court, Navy, Parliament, and Law, into a combination to cut off a man whom they had made obnoxious to the nation, because he was so to themselves—but what more crooked policy was that, which, not content with sheltering itself behind Mr. Byng, sought to ruin Mr. Pitt too, by painting him to the multitude as the champion of the condemned Admiral? It is irksome to me to tell what whispers, what open speeches, what libels, Mr. Fox and his emissaries vented to blacken Mr. Pitt and Lord Temple, for feeling symptoms of humanity towards a traduced, a condemned, a friendless man! Hardwicke moved steadily towards his point, the death of the criminal:—Fox sported with the life of that criminal, and turned mercy itself into an engine of faction to annoy his antagonist. Had Mr. Pitt effectually interposed, had the seal been set by his influence to Mr. Byng's pardon, (however generous morality would scorn the office,) policy might have excused Mr. Fox for traducing such humanity:—but previously to make mercy impossible, by making it dangerous, by making it odious!—I know not where ambition would stop, if it could leap over such sacred sensations!

February 16th.—The day after the Judges had given their opinion on the sentence, the King in Council referred that opinion to the Admiralty. The King signs no sentence himself: where he does not interpose his prerogative of pardon, execution follows of course. In naval affairs, the Lords of the Admiralty sign the warrant. Lord Temple had dropped hints to the King in favour of Byng, but with more reserve with regard to the prisoner, than towards the majesty of the sovereign, to whom at one time he said in his closet, with a contemptuous sneer, “And if he dies well, what will *you* say then?” It was applied so *ad hominem*, that the King interpreted it as a reflection on his own courage. The Admiralty thus pushed, and weighing on one hand the unpopularity of a direct refusal to sign, and on the other the authority of the Judges, which had been given at their request, determined

to comply. That very night Lord Temple, Dr. Hay, and Elliot, signed the sentence, and sent it to Portsmouth, ordering execution on the 28th. Admiral Forbes, in every part of his conduct uniformly amiable and upright, refused peremptorily to sign it.

While Mr. Byng was thus pursued or given up by his countrymen, our enemies acted a very different part. Voltaire, hearing of the Admiral's trial, sent from Switzerland to the Court-Martial, a letter which he had casually received some time before from Marshal Richelieu, in which the latter spoke with encomiums on the behaviour of the English Commander:—but they, who had been so ready to censure Mr. Byng on the dispatch of his antagonist La Galissonière, were far from being equally forward to give any weight to Richelieu's testimonial in his favour.

Feb. 17th.—Mr. Hunter, of the Admiralty, notified to the House of Commons the sentence pronounced against one of their members. The Speaker produced a long roll of precedents for expelling him before execution, lest his disgrace should reflect on the House. Lord Strange objected, good-naturedly, that this would be heaping cruelty, and seemed to exclude mercy, while yet there was an opening to it. Sir Francis Dashwood, a man distinguished by no milkiness of temper, connected with no friends of the prisoner, took this up strongly, and moved to call for the letter of the Court-Martial. Fox objected, that this would look like a censure on that Court. Sir Francis denied that he meant it in that light. His view, he said, was, by considering the warmth of their recommendation, to lead to some application for mercy. Mr. Pitt seemed to favour that purpose, and lashed *novel* proceedings in Courts-Martial; and said he hoped that the letter, when produced, might lead the House to do something on that mortal twelfth Article: and he mentioned with disdain anonymous letters that he had received, threatening him as a favourer of Mr. Byng. Fox, to waive all humane impressions, called for the Order of the Day. Sir Francis would have renewed his Motion, but the House did not seem inclined to receive it; and it was lost.

Mr. Pitt had come that very day to the House of Commons for the first time since his illness, and as it was the first time since he was Minister of his acting there in office, it could not fail of being remarked, that he dated his Administration with a demand of money for Hanover. He delivered a message from the King, desiring support for his Electoral Dominions and

for the King of Prussia. One cannot say which was most ridiculous, the richest Prince in Europe begging alms for his own country, or the great foe of that country becoming its mendicant almoner. The next day he opened the message, the purport of which was to ask 200,000*l.*; and he endeavoured to torture some consistence out of his conduct, sometimes refining, and when that would not do, glossing it over with what he would have put off for confident honesty. He succeeded better in attempting to divert reflections from himself to the Empress-queen, who, he said, if it had not been for the blood and treasure of Britain, would not have had it in her power to be ungrateful now.

He was seconded by Lord George Sackville, who affected to say he spoke only for form; yet talked forcibly on his *now* seeing a prospect of carrying on the war with success, as great part of the money was to be given to the King of Prussia—a better method than subsidiary treaties. Fox acted moderation; said, he should never provoke altercations, nor yet would ever decline them: it was sufficient to him that his part had been a *consistent* one. He had been told, indeed, that the German measures of last year would be a mill-stone about the neck of the Minister—he hoped *this German* measure would be an ornament about the Minister's neck! It was in truth the greatest instance of courage and capacity, and promised stability to Mr. Pitt's Administration. Pitt replied, that he only rose again to show he would keep his temper and his word; though Mr. Fox's reflections were but an ugly presage of his kind wishes to the new Administration. For Minister—the word never belonged so little to anybody as to himself: he had neither ministerial power nor influence. All he had done was, having had an opportunity of saying, “This I will do—that I will never do.” The money was granted *nemine contradicente*—even the Tories agreeing to it—I suppose, to prove their consistence too.

One event in this Debate requires a comment: Lord George Sackville declared himself for Mr. Pitt: he had seemed before to attach himself to Fox. This was the history of his variation:—the Primate had come over to offer his service to the new Lord Lieutenant; and both he and Lord George had paid court to Mr. Fox, and still more to Mr. Rigby, the Duke of Bedford's Minister. The two former had received their assiduities cordially; Bedford himself, of a shy, uncommunicative nature, had treated the Primate with obstinate coldness, and absolutely declined on every occasion to talk

to him on Irish business. The Duke's own plan was to steer impartially between the two factions; at least for his first session.

Fox, early in the winter, had made great application to Lord George Sackville to move for retaining the Hessians, which being agreeable to the wishes of the Whigs, the new Ministers would have been beaten before they could bring on any of their popular questions. Lord George demanded previously, that the Duke of Bedford should engage to leave the Primate one of the Lords Justices; which would have been granted, but the Duke of Bedford himself hung off; for though he was willing to leave him so, he would not date his government with a promise that he thought would be so unpopular. From that time, Fox had either not fixed what should be the Duke of Bedford's plan, or had been so occupied with his own situation and animosities, as not sufficiently to attend to Ireland. Rigby, devoted to Fox, and thinking himself sure of the Primate whenever he should please to want him, or concluding him totally fallen, and that his own best art of pleasing Fox would be to fling himself into the opposite faction, headed by Lord Kildare, who had married the sister of Lady Caroline Fox; for these, or some of these reasons, he had not had the precaution to model his master to the Primate's views; who, finding himself rejected, or entertained so as to be rejected afterwards, instantly negotiated with Pitt, and worked his friend Lord George to list under the same colours: and other reasons concurred to facilitate that connexion.

Pitt, on the commencement of his Ministry, had professed to adhere to all his old declarations; and keeping himself retired and secluded from all access, affected to attract no dependents, to form no party. The Tories, who heard his professions, and saw him condescend to no Court-arts, were charmed with a Minister who seemed as visionary as themselves, and who threw as many difficulties on Government as when he was in Opposition;—but the Tories alone, as Lord George knew, could no more support a Minister than they could demolish one; and deeming Mr. Pitt's system too romantic for duration, Lord George had leaned towards Fox, as made up of more practicable elements. Indeed, when Bedford proved as untamed as Pitt had been; and when Pitt condescended to make room in his virtue for Hanover, Lord George, (as the Primate with wonderful frankness avowed to Fox,) finding that Mr. Pitt “would now pursue human measures by human means,” made no difficulty of uniting with him. Lord George gave the same

account to Fox too. Another reason of mortal complexion had probably some sway with Lord George—of nothing he was so jealous as of Conway. Fox had supported the latter's plan of Militia; and the Duke of Richmond, brother of Lady Caroline Fox, was on the point of marrying Lady Mary Bruce, daughter-in-law of Mr. Conway. If Lord George then looked on the connexion of Fox and Conway as imminent and certain, no wonder he devoted himself to the contrary faction.

As the day approached for the execution of the Admiral, symptoms of an extraordinary nature discovered themselves. Lord Hardwicke had forgot to make the Clergy declare murder innocent, as the Lawyers had been induced to find law in what no man else could find sense. Lord Anson himself, in midnight fits of weakness and wine, held forth at Arthur's on his anxiety to have Mr. Byng spared; and even went so far as to break forth abruptly to Lord Halifax, the Admiral's relation by marriage, "Good God! my Lord, what shall we do to save poor Mr. Byng?" The Earl replied, "My Lord, if you really mean it, no man can do so much towards it as yourself." Keppel, a friend of Anson, and one of the Judges, grew restless with remorse. Lest these aches of conscience should be contagious, the King was plied with antidotes. Papers were posted up with paltry rhymes, saying,

"Hang Byng,
Or take care of your King."

Anonymous letters were sent to terrify him if he pardoned; and, what could not be charged, too, on mob-libellists, he was threatened, that unless Mr. Byng was shot, the city would refuse to raise the money for Hanover.

22nd.—The Militia Bill was considered in the Committee. Mr. Conway spoke for an hour very ably, to show how impracticable the plan of Townshend's Bill was, how easy of execution his own, and then with modesty withdrew it. The Dissenters in some places petitioned against the exercise on Sundays, but their objections were not supported nor regarded.

On the 23rd, Keppel, More, and Dennis, three of the Court-Martial, waited on Lord Temple, and besought him to renew their application to the Throne for mercy; and the same day Sir Francis Dashwood acquainted the House that he intended to move a consideration of the twelfth Article. He said he had felt great animosity against the unhappy sufferer from the first representations; but his opinion was totally changed by the trial. That at most he could only impute misjudgment to Mr. Byng. To the Court-Martial

he must impute it more strongly, who, he thought, had condemned the Admiral unjustly. No wilful error appeared against him. His manœuvre had been applauded: was nothing left to his judgment? Does the twenty-fifth resolution of the Court prove that he was negligent? The French had not waited for him: when they did not, he crowded more sail. The Council of War they never mentioned! Did not Mr. West approve the return to Gibraltar? Then, with increase of seriousness, he said, the Admiral's blood will lie at the door of those who do not explain what they meant by their sentence, of which no man else could give an interpretation. And it was the more necessary they should, as they had brought on officers an impossibility of serving under the twelfth Article. He reverted to the conduct of the Admiral, recapitulated some of the chief passages of the trial, urged that there had been an appearance of judgment in his conduct, which had only been defeated by the ships of the French being cleaner and in better order.

One witness had deposed, that there appeared no backwardness in the Admiral in coming to action; then, for God's sake, of what was he condemned? Not a murmur was heard on his return to Gibraltar. It seems he did not hoist his top-gallant sail—*that* was, not doing his utmost! What a gross, shocking mistake of the Court-Martial, to think that the twelfth Article reached to this want of a top-gallant sail! The letter to the Admiralty he concluded had been laid before his Majesty, where he hoped the great severity of a blundering sentence would be properly considered—for, when it came to be considered and construed, could any man living suppose that the Court-Martial intended to express any blame but of error of judgment? Sure they were at liberty to explain this! It stood in the law that they might, but they must first be empowered by Act of Parliament to disclose what had passed amongst them. He spoke to their feeling, and hoped to hear the opinions of others on this cruel sentence.

Lord Barrington rose, as he said, to speak only to the Motion on the twelfth Article, and should lay Mr. Byng entirely out of the question, on whose conduct he, being a landsman, could not form an opinion: whatever favourable circumstances there were in his case, he hoped had been, and would be represented. The Article he justified on the necessity that had called for it. The last war had set out with conduct at sea not very honourable, yet no Court-Martial would condemn the offenders. This grew

to be the universal complaint. It was said nobody would be hanged but for high treason. In a former war Kirby and Wade had been brought in guilty of disaffection to their Admiral, and had suffered. If the present Court-Martial misunderstood the Article in question, neither could one be framed which they would not misunderstand. He asked if this was a time to relax or enforce discipline? and moved for the Order of the Day.

Doddington replied, that he had no interest in this question, but as it touched Mr. Byng; in whose cause national justice, public and private compassion, were concerned too. That it was impossible to argue that ambiguities ought not to be cleared up. That for fear of bringing on a question, he would not call for the sentence; but he should be glad to know of what the Admiral stood condemned. He *did* know of what he was *not* condemned; and that supported him, as it was what stained neither the soldier nor the subject. *Without doors the sentence was thought extremely cruel; and well might people think so, when the Judges who pronounced it declared they thought so themselves.* Perhaps it might be deemed advisable not to carry it into execution: it certainly would be mercy to the Judges, and to the distress of their consciences; nor would clash with the King's promise, who certainly never engaged his royal word to adopt the worst construction of a doubtful law. He wished to hear something thrown out for compassion.

This humane and pathetic speech—to the shame of our country I may call it this *bold* speech, considering in how unpopular circumstances it was made—was received with an attention and sensibility, which showed that truth and justice had been strangers, [who] to be approved, wanted only to be known.

Lord Strange said, he was at a loss to account for the Court-Martial being so affected. He thought the article plain enough, and to revise it would be *more absurd than anything but the sentence.* If the Court-Martial had done justice, how would it be just to them to alter the Article? They had puzzled themselves, and now the House was going to puzzle the service. We had no pretence to retry the cause. (An odd argument, if the Court had been puzzled, and had given an absurd sentence.) If the members of the Court would apply separately for revision, they might. For himself, he could not agree to weaken that Article; nor would it, he believed, be to any purpose.

He had never seen a sea-sentence that a landsman could submit to. He wished the officers of the Navy were to be tried by a jury.

Campbell, a most humane and honest man, but who had never forgiven Mr. Pitt and the Grenvilles the share they had in overturning Sir Robert Walpole, and who had steadily adhered to Mr. Pelham and Fox, as successors of that Minister, could not help saying, that the law declared no execution could follow a marine trial, till the whole proceedings had been laid before the Admiralty. If *they* thought injustice had been done to Mr. Byng, would not *they* make earnest application for mercy?—if they made none, what must be the conclusion?

Beckford scrupled not to say, that the sentence was thought *cruel*; and Pitt, though owning how sensibly he felt the difficulty of speaking on that melancholy occasion, with true spirit avowed himself on the favourable side. The sentence, he said, had undergone discussion; for himself, he could never have agreed to it; but he thought the Legislature had nothing to do to advise the King on that his peculiar prerogative, mercy. He did wish it might be extended to the prisoner; and owned he thought *more good would come from mercy than rigour*. That it was more likely to flow from his Majesty, if he was left entirely free. For the Article, he did not wish, he said, to see discipline relaxed; but no Article could be enforced but when it was intelligible. And this being proved so obscure, it was not for the honour of national justice, that a sentence, issuing from its obscurity, should be carried into execution. Were Mr. Byng condemned of cowardice or disaffection, he himself, though single, would petition for execution. Of all men, the Commissioners of the Admiralty ought the least to interpose. But what indeed could add weight in the prisoner's favour to the recommendation of his Judges?

Campbell, pursuing his blow, said, surely they who have all the proofs before them are the properest to enforce the recommendation of the Judges.

Sir Francis Dashwood, perceiving an impression of tenderness made, and unwilling to drive a majority to rigour, by furnishing them with the triumph of carrying a question, desired leave to withdraw his Motion on the Article; when Fox, who chose to wear, like the day, an aspect of compassion, and at the same time to fasten difficulty and unpopularity on the new Minister and his friends, rose to say, that he could not comprehend the delicacy of the

Admiralty in not laying their scruples before the King. That during the nine years that himself had been Secretary at War, it had been his constant practice on all Courts-Martial to acquaint the King with any favourable circumstances that had appeared. That he had always found his Majesty disposed to lenity, and when he said nothing, the King would ask, "Have you nothing favourable to tell me?" Silence always implied that there was nothing. If the Lords of the Admiralty thought the Court-Martial meant *error of judgment*, they ought to tell the King so. Any one Lord of the Admiralty might; Admiral Forbes might. That in signing the warrant, never till now had been used the words, "It is his Majesty's pleasure." He recommended it to them to consider the circumstances, and inform the King of them.

Pitt, in reply, bad him consider all that had passed for the last six months, and then judge if the Lords of the Admiralty were the proper persons to make representations on this case. He had no reason to expect any tenderness to himself or his friends; and, indeed, he supposed this speech of Fox was calculated to throw them under difficulties *in another place*. For himself, he had too much awe on his mind, to make so free with descriptions, as Fox had of personal colloquies.

Fox repeated, that this had been a very undue time to change the words, "the King's consent," to "the King's pleasure." In all late instances *pleasure* had never been used. That in what he had said, he had intended to agree with Mr. Pitt. On the present occasion he thought it particularly the duty of the Admiralty to speak out. And as to throwing them under difficulties, the more danger there would be in their speaking out, the more it was their duty. And to Mr. Pitt's complaint of want of credit in the closet, he said, there never wanted a grain of ministerial influence to incline his Majesty to pardon.

Pitt asked, how Mr. Fox knew what might have passed on this occasion, when not an iota had transpired? His insinuations had been uncandid, nor had he egged Fox on to say what had fallen from him. The Speaker interposed; said, he disapproved these altercations, and begged they would only speak on what concerned the public. Hunter and Elliot produced precedents to show they had taken the word *pleasure* from the minutes in the books of the Admiralty. Prince George had particularly notified Queen Anne's *pleasure* on Kirby and Wade: and the latter dropped, that it was

decided by political writers, that in general Commanders-in-Chief should not be tried but for treachery. Lord Strange spoke to order, and to have the question read, that these discussions might be finished. The day concluded with Fox's saying with great solemnity, that he had not said, and he thanked God had not heard, a word to exclude mercy—an asseveration he had better not have made. He had fastened the duty of representation on the Admiralty; if they applied for mercy, the odium would be theirs.—If they did not, the King remained in possession of pleading; that as the Admiralty had made no application for mercy, after being publicly exhorted to it, it was evident that they had no favourable circumstances to represent.

The next day Pitt did move the King for mercy, but was cut very short; nor did his Majesty remember to ask his *usual* question, *whether there were any favourable circumstances?* The Duke of Bedford, whose good heart broke from his connexions, applied too, was better heard, but with no better success. Mrs. Osborn, the Admiral's sister, being advised to solicit the same Duke to present a petition from her, he excused himself, nor in all the openings to compassion that followed did his Grace take the least part; though he had been one of the most vehement to condemn the Court-Martial. He was always allowed by his governors to speak as he thought—seldom to act as he spoke. The same day seven of the Court-Martial applied to Lord Temple to intercede for mercy; he reported their solicitation to the King, but to no purpose.

25th.—Admiral Norris went to George Grenville, and told him he had something on his conscience which he wanted to utter, and desired Mr. Grenville to apply to the House of Commons to absolve them from their oath of secrecy. Grenville did not care to meddle in it. Norris, Keppel, and Moore, mentioned it again to him at the Admiralty that morning; and he declining it, Moore said to him with wrath, “Then, Sir, the Admiral's blood will not lie on us.” It happened that Horace Walpole, who had taken this affair much to heart, was not then in Parliament, having vacated his seat for Castlerising, that he might be chosen at Lynn, by desire of the corporation, in the room of his cousin, become a peer by the death of his father, Lord Walpole. Coming late that day to the House, though not a member, Horace Walpole was told of the application that had been made to Mr. Grenville, and looking for him to try to engage him to undertake the cause, Walpole was told that Mr. Keppel desired to be absolved from his oath as well as

Norris. Walpole ran up into the gallery, and asked Keppel if it was true? and being true, why he did not move the House himself? Keppel replied, that he was unused to speak in public, but would willingly authorize anybody to make application for him. “Oh! sir,” said Walpole, “I will soon find you somebody;” and hurried him to Fox, who, Walpole fondly imagined, could not in decency refuse such a request, and who was the more proper, from his authority in the House, and as a relation of Mr. Keppel. Fox was much surprised, knew not what to determine, said he was uncertain—and left the House.

The time pressed, the Speaker was going to put the question for the Orders of the Day, after which no new Motion can be made; it was Friday too; the House would sit neither on Saturday nor Sunday, and but a possibility of two days remained to intercept the execution, which was to be on Monday; and the whole operation of what Keppel should have to say, its effects, the pardon if procured, the dispatch to Portsmouth, and the reprieve, all to be crowded into so few hours! Walpole was in agony what step to take—at that instant he saw Sir Francis Dashwood going up the House; he flew down from the gallery, called Sir Francis, hurried the notification to him, and Sir Francis, with the greatest quickness of tender apprehension, (the Speaker had actually read the question and put it while all this was passing,) called out from the floor before he had time to take his place, “Mr. Speaker”—and then informed the House of Mr. Keppel’s desire that some method might be found of empowering him and the other members of the Court-Martial to declare what had been their intention in pronouncing Mr. Byng guilty.

Sir John Philipps opposed the Motion, saying, the cause was not before the House. George Townshend approved the question, saying he seconded it, not pleading so much for mercy to the prisoner, as to his Judges. Pitt rose and begged the House would consider seriously before they proceeded on so nice a matter: he wished first to see a direct application to the House. For himself, he should probably smart for it; he had received a menacing letter that very morning. He addressed himself to Keppel, wished he would break through his bashfulness and rise: it would be a foundation to him to vote for the Bill demanded; and then he should despise threats. Keppel rose. Dennis, a member of the Court-Martial, and of Parliament, was present, but had refused to join with Keppel in the application. The latter spoke with great

sense and seriousness; declared, he did desire to be absolved from his oath; he had something on his mind that he wished to say. Many others of the Court-Martial, he said, had been with him that morning, and exhorted him to make the demand. Sir Richard Lyttelton said, another had been with him to the same end; and read a letter from the President, Admiral Smith, entreating him to move in the same cause. He then injudiciously went into the case of Mr. Byng, which, he said, he should think murder, if this method was not followed. Ellis had difficulties, he said; it ought to be known if the whole body desired this. It ought to be considered, that their opinions had been given in confidence of secrecy. Sir R. Lyttelton replied, Admiral Smith says they are all willing to be dispensed from their oath.

Lord Strange said, he had always been averse to meddling with Mr. Byng's cause in Parliament, yet it was very difficult to avoid it, now the Judges themselves desired it. To refuse this dispensation to them would be a cruelty his blood ran cold at. Then the oath of secrecy being read, Thornbagh, a foolish man, who knew to do nothing but what he had sometimes seen done, moved for the Orders of the Day. Sir Francis Dashwood reprimanded him severely; and the House behaved with great decency: the Duke of Newcastle's faction with total silence. Campbell, whose natural goodness could not on a surprise prefer the wrong side to the tender one, said, he rose for fear of being included in his opinion of the other day. He thought the Bill so necessary now, that he wished to have it read three times directly. George Grenville thought the members of the Court-Martial might speak without the Bill, as their oath only forbade them to divulge the opinion of any single man. Lord George Sackville was of the same opinion, and wished what had passed might be communicated to his Majesty without any address in form.

Keppel professed he had still doubts whether he could speak without a dispensing Act. Mr. Conway agreed with Lord George, and thought that such members of the Court-Martial as were in town ought to have a day to consider on it. Pitt said, he honoured Mr. Keppel for his doubt; wished him to consult with his friends that night; and told him, that in regard to them the House would sit the next day. For himself, he should in their case have no hesitation to speak without the Act, as they only desired to tell where it was most proper for them to tell: he hoped they would lay their sentiments at his Majesty's feet the next morning. Some other opinions of no

consequence following, Lord George Sackville begged the Debate might end, that Mr. Keppel might go immediately and consult his friends. Sir Francis Dashwood said they were not all in town; Mr. Keppel hoped if the major part were, it would be sufficient. The Speaker proposed that nothing of what had passed should be inserted in the votes.

26th.—A Cabinet Council was held to consider what was proper to be done on Mr. Keppel's demand. Pitt told the King, that the House of Commons wished to have the Admiral pardoned. He replied shrewdly and severely, "Sir, *you* have taught me to look for the sense of my subjects in another place than in the House of Commons."—However, it was determined that sentence should be respited for a fortnight, till the Bill could be passed, and his Majesty acquainted with what the members of the Court-Martial had to say. A temporary reprieve was accordingly dispatched to Portsmouth; and Mr. Pitt the same day delivered a message to the House of Commons, that his Majesty having been informed that a Member of that House had in his place declared that he had something of weight to say, which it was proper his Majesty should know, his Majesty had accordingly postponed execution till the matter could be cleared up. It had been objected in Council, that the words *Member in his place* would give offence, as unusual and inconsistent with the liberty of speech in Parliament, the Crown being supposed to have no knowledge or cognizance of what is said there. Pitt treated the objection with scorn; and, unluckily, commenced his Administration with a German subsidy and a breach of privilege.

Fox had immediate notice by Rigby from the Duke of Bedford of what had passed in Council, and came armed to attack Pitt on this indiscretion. Pitt had no sooner delivered the Royal Message, than Fox rose cavilling. He desired to have the Message read again:—there were words in it that struck his ear in a very extraordinary manner! *The King having been informed that a Member in his place!* Who informed him? Who betrayed to the Crown what was said in Parliament? What Minister was so ignorant as to advise the Crown to take notice of having had such intelligence? Did Ministers dare to avow that they made representations of the speeches of particular men? Indeed, it had now been done for a laudable purpose; but by the same rule might be practised for a bad one; and on no account must be suffered to strengthen into a precedent. He desired to be showed one instance since the

reign of James the First, where the privileges of Parliament had been so sported with.

Pitt replied with great indignation, that the time had been too pressing to consult precedents. He had not thought the life of a man was to be trifled with while clerks were searching records. He had founded himself on a peculiarity of case, that was its own precedent, and could be so to no other: a precedent that could never be extended but by a wicked Parliament. He had been doing his duty in Parliament the day before, had heard the momentous doubts of Mr. Keppel, and had represented them:—*he should have been ashamed to run away basely and timidly, and hide his head, as if he had murdered somebody under a hedge.* It had been the sense of the House, that what had passed should be laid before his Majesty; and he had accordingly thought it *his* duty to represent it. What would Mr. Fox have done? *not* have represented it? “You, sir,” said he, to the Chair, “may enter it with proper caution.” He appealed to the House, if what he had done had not been directly implied; and concluded, that he was ready to undergo the correction of the House.

Fox replied with as much temper as the occasion seemed to call for resentment, (but it is not always true that one is most angry when one is most in the wrong,) that he did not think his observation had been indecent. That he would now say nothing to Mr. Pitt’s charge, but would prove his own conduct good-natured. Had he said some things that Mr. Pitt had said, he should have thought his nature base. It had not been necessary to express *a member of the House in his place.* Yet if the Speaker could think of any palliative way of entering it in the journals, he should never think of it more.

Pitt said, the manner had been chosen to show the public that every method had been taken to ease the mind of his Majesty: and Lord Strange bore him testimony, that the communication had been intended by the House: and however Parliament would take it, he knew it was manly and right.

Mr. Keppel then said, that the definitions given the day before of the oath had engaged his utmost attention: and he had represented as well as he could to some of his brethren what latitude it had been thought they might

take in dispensing with it: but they were not altered in the least, and till an absolving Act should pass, could say nothing.

“Do they still desire the Act?” said Lord Strange. “Could anybody,” replied Keppel, “mention what weight they had on their minds, and not desire it still?”

The Speaker then, trimming between Pitt and Fox, declared himself extremely hurt with the words, pronounced them wrong, and of most dangerous consequence, and what had always been reckoned breaches of privilege;—he was satisfied there had been no bad intention in it. He knew Mr. Pitt would as soon lose his hand, as violate the rights of Parliament—indeed, there had been no necessity for the words in question; the message might have been worded differently; but he would pawn his soul there had been no wrong design in it. It might be entered, observing that objections had been made to the offensive phrase; the necessity of which might be stated too. For Mr. Fox, he had done his duty, and himself would do public right to him. “I did the same justice to Mr. Pitt,” said Fox. General Conway agreed that there had been little occasion to describe so particularly what had passed; and he asked whether it was necessary to enter the whole of the Message.

“The House,” said the Speaker, “may enter what it pleases; but it is a Message sent solemnly by the King, and I never knew an instance of overlooking it.” George Grenville went farther, and said, he would never consent to have it entered defectively. Beckford called the Bill so unpopular a measure, that he wished to have it imputed to the House of Commons, not to the King, who, he desired it might be reported, had yielded to it unwillingly, and only for the sake of justice: Pitt he commended. Sir Francis Dashwood, with much more sincerity, said he was glad of the Bill, come how it would. It was gracious of the King to give room for it, and wise of his Ministers. Fox asked, now the respite was granted, whether it were not better to wait for a petition from the Court-Martial before the Bill was passed? better to wait at least till Monday for some material information, which might be hinted in the petition. Sir Francis replied, that the very words of the Message from the Crown were, that a respite was granted *till* the Bill should pass. Would it be decent, after such a message, to say we will postpone the Bill, however, till the Court-Martial petitions? If six only of the thirteen should desire the Bill, would you not grant it? The House

cried, “No, no!”—as if it was justice due to the consciences of an indefinite, and not of a determined number!

Nugent said, his constant opinion had been, that the Admiral was sentenced for error of judgment only; and the oath he thought only a conditional one.

Fox, after refining much on the oath, said it was impossible but at the desire of the *whole* number, to permit some to disclose the opinions of others. Each man might tell his own motives. At least, let the desires of the majority be taken. He then asked if it was proper that a set of Judges should go about for three weeks, *hearing solicitations from the friends of the prisoner*, and then come and complain of their own sentence? For his part, his feeling sometimes operated upon his reason, and, he supposed, did on that of others. See, then, whither solicitation and bribery might go. The King desires to have his doubts cleared up—but *don't let this Bill go immediately to pardon*. Give way to the Bill—what was to follow would be a subsequent consideration. The Court had gone no farther than to acquit the Admiral of cowardice. He hoped the Parliament would ask the King for the examination, either, to rescind the sentence or *to order a new trial*. He had not, he said, run away basely the day before, but from his judgment: Mr. Keppel had told him what he meant to do. He did not think himself necessary to every council, and had foreseen what confusion would follow. He had not voted against the Bill, and said, “Let Mr. Byng die on Monday.” He *had* gone away, his compassion struggling with his reason. On consideration, he had returned like a man to the hard part. If the King had felt, was it not proper he should feel too? He begged care might be taken not to establish this measure for a precedent; nor could it be reasonable to frame a new Article of War, because the Court-Martial had not understood the present. He should be for the Bill, though he would not (like Mr. Pitt) declare that most good would follow from pardon. Hearing a great Minister say so, he thought pardon was determined. Yet, for himself, he should have left the merit of it to the King's mercy—but *now it was the act of the Minister*. He still wished to see more grounds for the Bill. He would not require any of the members of the Court, he would only enable such as thought fit, to discover what had passed. Something extraordinary he would have to conclude this extraordinary act.

The art and abilities of this speech are evident: it will be much more difficult to discover in it *the good-nature* he had promised to display.

Nugent expressed his disapprobation of *two* trials. Pitt declared he would speak very shortly and clearly; sometimes, he owned, he did speak too warmly. He gave much commendation to Mr. Fox's speech, though he did not foresee the same consequences; nor would he decide, whether in the present instance Fox's reason or good-nature had got the better. He defended Mr. Keppel's behaviour, which had sprung from former proceedings, not from solicitation. [For] himself, [he] did not wish the Admiral saved out of compassion, but out of justice: "for how," said he, "can it be for my interest to take the part I now do?—I look only at the sentence. Is it so necessary that he should be executed just now?" On the other hand he would not give time for the Court-Martial to be tampered with. Like Fox, he had wished for better grounds; but when Mr. Keppel rose and pronounced what he did, it was irresistible. It became the unanimous opinion of the House to yield to his emotions. Some even would have passed the Bill that very day. Nor had anything ever come before Parliament that almost commanded such rapidity. "Ought not," said he, "Mr. Byng, ought not his family, to be put out of that cruel situation? ought not the King? ought not the Court-Martial, some of whom were on the point of sailing to America? Why hang this matter up for some days, in which the fate of the nation might be decided?" There was nothing of party in this—any number that were willing to tell, ought to be heard: might not they want to say that they had thought themselves bound to find error of judgment capital? To them he would have the Article explained. He feared, if this was pending too long it might produce riots.

Henley, the Attorney-General, endeavoured still to show that the Bill was unnecessary, and that the members might dispense with their oath. He suggested that the Bill might be rejected in the other House; and asked, who was to examine the members of the Court-Martial?

Doddington said, he had sought compassion and relief—had found compassion even when *he* called; but relief could only come constitutionally through justice. The Court-Martial indeed did at last perceive that they might have been mistaken. Were he in their place, he should not have waited for a Bill—he should have thought a life was to be saved at any rate.

Legge declared himself free from any bias one way or other. Had Mr. Byng been found guilty, nobody would be more ready to condemn him: but it appeared that *he was only a sacrifice to discipline*; and we must not imagine that we should draw down blessings on our Fleets by human sacrifices. He begged that, by adhering to the letter of this Article, demonstrated to be both obscure and severe, they would not prevent Courts-Martial from bringing in nobody guilty.

Martin proposed that the members of the Court should be asked directly, if they had meant error of judgment: and then, if they thought error of judgment capital.

Lord George Sackville begged the Debate might finish, as the longer the question was agitated, the more difficulties would be started. Potter accordingly brought in the Bill, and it was read the first time. Fox then asked Mr. Keppel, which of his associates had empowered him to make the demand? He named, *Holmes, Norris, Geary, and Moore*. Fox said he asked this, because it was reported that none of the members desired to be absolved from their oath. The Bill was read the second time. Fox said, the King's message prescribed a separate examination on oath; he hoped that direction would be observed. Potter moved to proceed to the Committee on the Bill. Lord Strange and Haldane objected; but Pitt asking if they wished to detain Holbourn, Broderick, and Holmes at home at so critical a time; and how they could proceed on Monday, if their difficulties were not then stated in the Committee; it was agreed that the Committee should immediately sit; and Fox said, that now it was agreed to have the Bill, the sooner it should pass the better. He moved, and was seconded by Pitt, that the members of the Court-Martial should be examined on oath. It was then settled that they were to disclose what they had to say only to the King and Council: that they should only tell the motives of their own behaviour, not those of others. George Grenville added a clause, that they should not be obliged to speak, if not willing. The Bill went through the Committee, and was ordered to be reported on Monday.

It may easily be imagined what variety of passions were excited by this extraordinary affair. Curiosity to know what black management had left such^[ZZ] scruples on the minds of some of the Judges of the Court-Martial, was the common and natural consequence: the very novelty of tools of power sinking under a consciousness of guilt, or under the conviction of

having unwittingly been made the tools of power, was sufficient to raise the utmost attention. The few poor well-wishers of the condemned saw a gleam of truth darting upon a prison which they had scarce ventured to incur the odium of approaching—and if there had been such black management (a question scarce admitting an *if*, considering all that had preceded and all that followed) the actors in so dark a tragedy undoubtedly did not feel the most pleasing sensations from the illustration that now seemed unavoidable. The latter description of men appeared to be in danger of changing unpopular situations with the Admiral—they were soon the only satisfied class, the only triumphant—for by the very next day after the Bill had been read in the House of Commons, by Sunday evening it was blazed over the town, that the four sea-officers named by Mr. Keppel disclaimed him, and denied having empowered him to apply in their names. Mr. Pitt was thunderstruck—and well he might: he saw what consequences Fox would draw from this disavowal. Enquiry was made into the truth of the report. Holmes and Geary persisted that they had not commissioned Keppel. Sir Richard Lyttelton, an intimate friend of the latter, applied to him, and, as Sir Richard himself told me within an hour after he had seen Geary, begging him to consider the injustice and dishonourableness of retracting what he had authorized Keppel to say; he replied in these very words, “*It will hurt my preferment to tell.*”

Can I pass over these words cursorily?—or rather, do they want a comment? What dissertation could express more fully than they do themselves all they contained? Who had power to stop a sea-officer’s preferment? would it hurt his preferment to tell what affected no^[78] powerful man with guilt? Did those words imply that he had nothing to tell? As thick a veil as was drawn over the particulars of this transaction, can it be doubted but that particulars there were of a heinous dye? And though Mr. Keppel’s scruples were treated as idle, though it was asserted that he had nothing to tell, though he saw Mr. Byng die, without telling; did not that attention of Geary to his interest supply articulation to Mr. Keppel’s conscience?—a fact that I shall mention presently, when the father^[79] of the man whose power Geary dreaded, asked for a day of peculiar significance, will explain and cannot in the nature of things be disjoined from that sagacious captain’s conception of what interests were concerned to impose silence on the Court-Martial.

Monday, 28th.—The Bill was reported, and Potter moved to have it read the third time; when Fox rising, said, he heard some information was going to be given, which ought to precede any progress in the Bill. Holmes, a brother of one of the four, said, he had heard something had passed on Saturday, which he supposed the gentleman that had occasioned it would stand up and explain. Keppel rose, and said, he had particularized the names of four, who he understood and did believe had commissioned him to move the House on their behalf. That Holmes had said, “Sure you mistook me!” Another of them said the same. He argued it with them; they persisted, and said he had mistaken: Holmes adding, “I am easy in my mind, and desire to say nothing farther.” That he believed it would be useless to call Mr. Holmes. That for Geary, he was not absolutely off nor on, but should have no objection to speak if all were compelled. For the other two, Norris and Moore, they were desirous to abide by what they had said; that they had even written him a letter, in which they said, “The world says we have varied, but we desire to adhere to what we told you.” He read their letter, in which were these words: “We do authorize you to solicit for the Bill.” For himself, he thought his honour clear: when he had first spoken, it was from the uneasiness of his mind. He was told his oath did not bind him: he thought it did. If the House would think fit to relieve him, he should be glad. When he signed the sentence, he thought he did right—he had since been startled at what he had done.

Thus, of the four named, two adhered: one (Geary) did not prove that Keppel mistook him. Whether he mistook Holmes must remain a doubt—it is scarce probable that Holmes had been very positive against the measure: Keppel would scarce have named a man, who was far from agreeing with him. That it will remain a doubt too, whether there had not been unwarrantable practices in, or even with, the Court-Martial, is the fault of those who stifled conscientious evidence. Charity itself would grow suspicious, had it observed all I observed; and yet I give but as suspicions what I do not know was fact. That some wished for time to practise afterwards on the Court-Martial; that Geary was willing to be practised on; and that some *were* practised on before they appeared in the House of Lords, can, I think, never be a doubt more.

Fox assured Mr. Keppel that his character was not affected by what Holmes and Geary had said: the Bill indeed was affected by it: yet what he

would have done for five, he would do for three; that is, if the three would petition for it. Of the Court-Martial, seven, he observed, were in town. Of them, Holbourn had declined to meddle; Dennis had withdrawn from the House; Holmes declared himself easy in his mind; Geary had desired not to speak, unless the whole number did. Thus a majority of those in town did not approve the Bill. He therefore desired that the three willing ones would sign a petition, saying, in their opinions they had something to tell material for the King's information. If it was not material enough to have the sentence reversed, but only that they might explain their own motives, he should not think the Bill necessary.

Nugent said, though not one should apply, the absurdity of the sentence was glaring enough to call for the Bill. Fox interrupted him, speaking to order—the sentence was not before the House. Nugent replied, every man in the House had read the sentence—could they, who, in conscience, honour, and justice, had signed the letter for mercy, refuse to speak if their mouths were opened? Fox said, the sentence and letter ought first to be called for. The sentence was on oath, the letter not. He affirmed he did not believe they had anything material to say. Would Mr. Keppel say he thought it material?

Velters Cornwall condemned the Bill, and said, Mr. Byng had undone one Ministry, was going to undo another: the King had been advised ignobly and unwisely.

Colonel John Fitzwilliam, who had never opened before in Parliament, came with much importance and a list of questions to examine Mr. Keppel; but they were so absurd and indecent, that at every one the House expressed their disgust by a groan—such were, “Had he not voted Mr. Byng to be shot because he thought he deserved it? Did he not think so still? Would his conscience be easier after he had spoken?”—It is sufficient to say of this man, that his character was hateful. In the Army he was odious as a spy and creature of the Duke. That very morning he had passed two hours with Mr. Keppel, labouring to divert him from his purpose. Stanley severely censured Fitzwilliam, observing that he had put many questions to Keppel, which he was under oath not to discover, and from which this Bill was calculated to absolve him: and he took notice sensibly, (of what seemed to have been totally overlooked,) that *any man who is to die, has at least a right to know for what he is to die*. Fox urged, that the words of the Royal

Message were, “because their discovery may show the sentence to be improper.” From Mr. Keppel’s present silence, he inferred that there was nothing material to be discovered. He moved to call Norris and Moore, to hear if what they had to say would affect the sentence. But Sir Francis Dashwood objected, that this was the very question which the House was passing the Bill in order to have answered. Mr. Keppel (who Mr. Fox might have suspected had had other solicitations than from the *relations* of the Admiral) rose, and said, he would explain himself as fully as he could:—when he signed, he thought he did right—he would go further—no, he had better not—had uneasiness, or would never have signed the letter of intercession—the explanation of the Article has increased his inquietude—he had rather it should be thought poor weakness than a desire of giving trouble. He concluded with these words: “*I do think my desire of being at liberty does imply something great, and what his Majesty should know.*” The House was struck:—Fox said, “I am satisfied. Afterwards I shall propose means to prevent such Bills for the future.”

Charles Townshend, who had taken no part hitherto, and who had followed Mr. Pitt into a system built on the ruin of Mr. Fox, said, to the surprise of everybody, that he had intended to second Fox, but was content too. He congratulated the House on obtaining these grounds for their proceedings by Mr. Fox’s means. His brother, offended at this wonderful declaration, told him, if he had been present the first day, he would not have wanted those grounds. Charles appealed to the House, if first, second, or third day, they had been so fully explained. Pitt, still more provoked, said, with the utmost contempt, and with the most marked accent, no man of common sense or common integrity could say this matter had been opened on any other foundation—yet he wished Charles Townshend joy that *his conscience* was made easy. But how did it appear that the King was so misinformed? “May I,” added Pitt, “fall when I refuse pity to such a suit as Mr. Keppel’s, justifying a man who lies in captivity and the shadow of death! I thank God, I feel something more than popularity; I feel justice!” The Message, he owned, had been disorderly, and he was under correction for it, yet it was strict truth. For this attack, it went to the very veracity of a man: but he did not, like Fox and Townshend, go upon hearsay. For his part, if his country were safe that day twelvemonth, he should pray that Mr. Fox might be in his place, nor would he use those miserable arts that are employed to prop a wretched station. He congratulated the House on that

act of necessary justice. His equal wish was, that Mr. Byng might live or die to the satisfaction of the nation.

Fox, sneering and insulting, said, he was glad Mr. Pitt had heard commendations of him from Mr. Charles Townshend^[80]—indeed they had a little ruffled Mr. Pitt’s temper. By his wishing to continue in the Administration for a twelvemonth, he seemed to think he *could* save this country. For himself, he had not been driven out; he had had reasons for retiring. Since, had he obstructed any public measure? Had *he, totidem verbis, proposed* some questions that had been *opposed* last year, they would have been opposed again: he had chosen rather to retire; and in the distressed situation of his country, would not oppose; unless he saw measures carried on destructive to England, or distressful to his Majesty. His own consistence should be *literal*, lest afterwards he should not have parts enough to show it was *substantial*—indeed, he had never understood a Court.

The Speaker observed, that two-thirds of what both had said, was nothing to the question. Pitt replied, that he was surprised at being coupled with Mr. Fox, who had spoken five times, he but once—yet Fox had not been suppressed. “Could I,” said he, “sit silent under the accusation of misinforming the King?” The Speaker vindicated himself, talked of his unbiassed impartiality and integrity; and the Bill passed, Cornwall dividing the House with 22 more against 153; and it was sent to the Lords.

FOOTNOTES:

[76] Indeed they could not with much consistence condemn him of neglect, after they had previously and unanimously voted the following resolution, which was their 25th:

“The Court are of opinion, that while the *Ramillies* (the Admiral’s own ship) was firing in going down, the *Trident* and ships immediately ahead of the *Ramillies* proved an impediment to the *Ramillies* continuing to go down.”

It was proved, too, beyond contradiction, that he could not foresee that the French fleet would not stay for him, as they remained with their sails aback to the mast; and that he must have been up with them in ten or fifteen minutes, if the impediment had not happened from the *Trident* and *Princess Louisa*.

[77] I do not mean to say that none of the Judges on the Court-Martial had really been convinced that by the severity of the law they could not acquit the Admiral, though they thought him guilty of only a momentary error of judgment.

[78] I say, *powerful man*, not *man in power*, for Lord Hardwicke, Lord Anson, the Duke of Newcastle, &c., were not then in place—but then Geary must have meant, for he could not fear disobliging Mr. Pitt and Lord Temple by speaking out, when it was his silence that prejudiced them. It was plain Geary thought, what happened so soon afterwards, that the command of the Admiralty would still be in Lord Anson.

[79] [Lord Hardwicke. Lord Anson had married his daughter. It must, however, be admitted, that our author's language in this passage is as obscure as his reasoning is unfair and inconclusive.—E.]

[80] Mr. Pitt, loud enough to be heard by half the House, cried out, "I wish you joy of him."

CHAPTER XI.

Debate in the House of Lords on the Court-Martial Bill—Lord Mansfield—Proposal to examine the Members of the Court-Martial—Their Examination—Bill debated and dropped in the House of Lords—Result of the Proceedings in Parliament—Intended Petition for Mercy from the City not proceeded with—Execution of Admiral Byng—Reflections on his behaviour—Rochester Election—Death of Archbishop Herring—Abolition of the Office of Wine-Licences—Intrigues to dismiss Mr. Pitt, and form a new Ministry—The Duke of Cumberland goes to Hanover to command the Army.

March 1st.—The Lords read the Bill. Lord Mansfield treated Keppel's behaviour as weak and inconsistent: made a panegyric on the twelfth Article, which he said had restored discipline: censured the House of Commons for precipitate proceedings; and went indecently into the question of the Admiral's behaviour; for which he was called to order by Lord Denbigh, who told him, that to evade the pressing arguments that called for the Bill, he had endeavoured cruelly to raise indignation against the prisoner, who might receive benefit from the scruples of his Judges; whose scruples and request were alone the objects before the House. The Chief Justice replied, he did not intend to oppose the whole Bill—but he must ask, who they were that demanded it? What! a month^[81] after sentence!—was what they had to say within the oath of secrecy? Indeed, he had always been against the oath; he never approved judging in a mask. He had heard of a case where a *majority* voted that a sentence should be *unanimous*. He said the proviso, empowering only the willing to speak, was partial. If *all* should say they meant error of judgment, the Admiral ought to be acquitted. If the sentence was iniquitous, it ought to be annulled. But it was cruel to fix this examination on the King: the Lords ought to step between the Crown and the people. The sentence, he said, could only be annulled by Parliament. A Bill might be necessary, but one totally different from this. He proposed to have the members of the Court-Martial called to the bar of the House; and he concluded with no humane observations, nor

more to the Bill than his former speech, that there had been times when a sea-officer had blown up his ship, rather than be taken, or retreat.

As I would by no means blend in one censure the behaviour of the two lawyers, Mansfield and Hardwicke, I will here say a few words on the former. He took a severe part against the persecuted Admiral—why, I pretend not to determine. As the death of Mr. Byng tended no ways to his interest, as he had no guilt to expiate by the blood of another, and as friendship infuses humanity, but not cruelty, one should not suppose that Lord Mansfield acted on personal motives, or from a desire of screening Newcastle. I will not even suppose that a propensity to thwarting Pitt dictated his asperity. He saw his country undone; might think Mr. Byng had hastened its fate; might feel a national resentment; might think severity necessary; and as it is observed that timorous natures, like those of women, are generally cruel, Lord Mansfield might easily slide into rigour on this as he did on other occasions, when he was not personally afraid.

Lord Temple gave much the same account that I have given, of his own behaviour, as first Lord of the Admiralty; he read the letter from the Court-Martial, and thought that their anxiety must have proceeded from having meant error of judgment.

Lord Halifax spoke strongly for the Bill, and urged that it was founded on justice and humanity; condemned the sentence, and said, *it appealed from itself*. That if the Judges of that Court had thought the Admiral really guilty, they had been most guilty to write such a letter. As that could not be the case, could their Lordships avoid wishing to have the bottom of such a strange transaction known? He excused the Court-Martial for having stayed so long between their letter and any farther step, because they waited to see what effect, and concluded the effect they promised themselves would follow from their letter. That the sentence could not be annulled without this Bill, nor explained without it, for had it been possible for any man, Lord Mansfield would have made sense of it.

Lord Hardwicke pleaded against the Bill, upon the single supposition that they were to tell the opinions of each other. He desired that all of them might be ordered to attend, and asked whether these scruples had not flowed from solicitations, and from being tampered with by the Admiral's friends—and he, who said he wished to inquire whether they had not been

tampered with by the Admiral's *friends*—proposed—what? that they should not attend *till* Thursday—it was then Tuesday.

Lord Granville replied, that they would not speak even there, till their mouths were legally opened. That he had always disapproved the oath of secrecy; and now particularly, when his Majesty and the House of Commons were willing that the oath should be set aside, who could refuse it?

The Duke of Newcastle, as usual, echoed his oracle, and wished to have all the lights that could be had in twenty-four hours. The Duke of Bedford asked what objection there was to hearing them the very next day? There could but two questions be asked of them: “Were they willing to speak?” “Had they anything to say?” Lord Halifax pressed for the next day. Lord Temple defended them from private influence, and proved that their present behaviour was entirely consonant to their sentence and letter. When they found that all the difficulties on their minds, which they had hinted at in their letter, had no effect, could they do otherwise than apply to the Legislature to be empowered to set forth their difficulties at large? Lord Sandwich owned, that if he did not think the Bill necessary, he would oppose it, because he was astonished to find that an unprecedented message to the Commons was pleaded as a reason for the acquiescence of the Lords.

Lord Hardwicke caught up that argument, and said the Royal Message ought not to be pleaded there, since it had not been *vouchsafed* to *that* House. I hesitate to repeat the latter part of his speech. Will it not be thought that the part I took in this affair influenced me to misrepresent a man, to whose intrigues and authority I cannot help imputing in great measure the Admiral's catastrophe? Who, when I paint a shrewd old lawyer, as weakly or audaciously betraying his own dark purposes in so solemn an assembly, but will suspect that I forged an event which seems so strongly to prove all that I have charged on him? In answer to these doubts, I can only say, that *this* was one of the events on which I formed my opinion; that it is strictly true; and that I would not venture to report it, unless it had passed in so solemn and public a place as the House of Lords, where all who there were present heard, and could not but avow that I speak truth—in short, Lord Hardwicke, as a reason for deferring to hear *till Thursday* the members of the Court-Martial, pleaded that there was an Irish cause depending before the House, which was appointed for the next day, (Wednesday.) If ever the

least public business that pressed, had not made all law-suits give way, this might have been at least a precedented reason. But what was the Bill in question? Certainly in the then situation of affairs of as critical importance, and of as much expectation as had ever engaged the attention of the public; and to want to postpone it to an obscure Irish cause! Could good-nature in person forbear to surmise, that this demand of an intervening day was, could only be made, to gain time to tamper with the witnesses? Good-nature at least, would allow, that who suspects such men as Geary of being tampered with by the poor and powerless relations of a criminal, might be suspected of a disposition to *tamper*, when he had power,^[82] and only wanted time; which too he had the confidence to demand—I say confidence, for Lord Hardwicke said authoritatively, “*I adhere to Thursday.*” Alas! he did not know how much he could do in half the time.

Lord Denbigh asked with indignation, “does that noble Lord put in competition with the honour of his country a cause of Irish bankruptcy?” And the Duke of Devonshire begged that the Court-Martial might be heard on the morrow, because some of them were under sailing orders. Lord Hardwicke, unmoved, said, “the Bill will not be before you to-morrow: the officers in question must be examined separately.” Lord Temple replied, that the wind might change by Thursday, and that some of them were going on expeditions of the utmost consequence to this country. He begged their retardment might not be laid at his door. He repeated the urgency of their sailing. The Duke of Bedford desired then to have the orders of the House reversed, and to have the second reading of the Bill fixed for the morrow. Lord Hardwicke (who, if I have suspected him wrongfully, was at least conscientiously impatient to do justice on those Irish bankrupts) persisted; and maintained that the orders could not be reversed, unless every Lord present consented. Have I dared to forge all this? The rest of the Lords, who did seem to think that winds and that fleets sailing in their country’s cause were of more instant importance than a case of Irish bankruptcy, prevailed even on the late scrupulous Chancellor to postpone private justice for *one day*, and the Court-Martial were ordered to attend the next.

March 2nd.—The day opened with a complaint preferred by Lord Sandwich against the publisher of a newspaper, who had printed the oath of secrecy with false additions. Lord Mansfield took on himself the management of the examination. To combat his ability and Hardwicke’s

acrimony, the unhappy Admiral had no friend among the Lords but the Earl of Halifax; honest and well-disposed, but no match for the art of the one, or the overbearingness of the other, and on too good terms with both to oppose them in a manner to do any service; and Lord Temple, circumscribed both in interest and abilities from being thoroughly useful. The Chief Justice acquainted the House that the questions he proposed to put to the members of the Court-Martial were, “Whether they knew any matter previous to the sentence, which would show it to be unjust, or procured by any unlawful means? and, whether they thought themselves restrained by their oath from disclosing such matter?” Lord Temple said, “Everybody would be at liberty to ask any other questions;” and Lord Halifax said, “They would not be confined to those of Lord Mansfield.”

Admiral Smith, the President of the Court, was then called; a grey-headed man, of comely and respectable appearance; but of no capacity, of no quickness to comprehend the chicanery of such a partial examination. He, and the greater part of his comrades, were awed too with the presence of the great persons before whom they were brought. Moore, and one or two others, were neither awed nor haggled with their inquisitors. Lord Morton caused the twelfth Article to be read; and would have asked Admiral Smith, whether he then thought, or ever did think, that Article applicable to error of judgment? The impropriety of the question, and the intemperate warmth of the Lord who put it, when he was checked by Lord Talbot, broke in on the solemnity of the scene, and disturbed it. Lord Temple observed, that Smith had already answered the Earl’s question by stating in their letter the words, *even by error of judgment*. Lord Hardwicke said, that letter was not an oath, *and hoped would be out of the question*; yet he owned the interrogatory was most improper. Lord Temple insisted that they were under the virtue of their oath till the sentence was pronounced, and they were dissolved as a Court.

Lord Mansfield then asked the President, whether he knew any matter previous to the sentence which would show it to be unjust. He answered, “Indeed I do not.” Lord Mansfield—“If it was given through any undue practice?” Admiral Smith—“Indeed I do not.” Lord Halifax then asked him, if he desired to have the Bill? He replied, “I have no desire for myself. *It will not be disagreeable to me, if it will be a relief to the consciences of any of my brethren.*” Lord Halifax asked him farther, whether he could reveal

anything relative to the sentence, that was necessary for the King to know, and to incline him to mercy? The Admiral said, "Indeed I have not, farther than what I wrote at that time to Lord Lyttelton, signifying that we were willing to attend, to give our reasons for signing that letter." Lord Lyttelton said, "He had returned that letter to the Admiral, that he might read it there." Lord Hardwicke asked, whether he thought himself restrained by his oath from mentioning those reasons? He answered, "The application for mercy was unanimous. I think I am at liberty to give the reasons why I requested that mercy." Nobody chose to ask him those reasons—the friends of Mr. Byng, one must suppose, lest it should interfere with the necessity of the Bill. His enemies did not desire to know themselves, or that anybody else should.

Admiral Holbourn was then called, and to the two former questions of Lord Mansfield, and to the two of Lord Halifax, answered bluntly, "No."

The next that appeared was Admiral Norris; a most weak man, who after resisting, from the friends of Mr. Byng, great solicitations to interpose in time in favour of the prisoner, to whom he was believed the best disposed, (except Moore, the greatest professor of tenderness to Mr. Byng's family,) had at last sunk under great inquietudes of remorse; and had pressed most earnestly for parliamentary relief. If in effect he overturned all the consequences of that compunction, he was to be pitied more than blamed. Struck with awe of the tribunal before which he appeared, he showed how little qualified he had been for a Judge, when so terrified at superior Judges. He lost all comprehension, understood no questions that were asked, nor knew how or when to apply the very answers he came prepared to give. When Lord Mansfield put his question to him, whether he knew anything previous that would show the sentence to be unjust, he replied, that he desired to be excused from answering while under the oath of secrecy. Lord Mansfield said, to what did he apprehend his oath went? had he anything to tell, if released from the sanction of it? Lord Fortescue objected, that nobody had a right to ask him his reasons for desiring to be absolved from his oath; and Lord Ravensworth said, an answer in the affirmative would look like accusing himself—indeed it was difficult to know how the Court-Martial could complain of what they had done or submitted to, without accusing themselves in the heaviest manner. Lord Hardwicke declared, if this question was not answered, that he would vote against the Bill. "And

why,” said he, “are these excuses made for Mr. Norris? he does not make them for himself. Ask him in the very words of the Bill.” It was evident that Norris thought, that in order to obtain the Bill he must not give the least satisfaction on any question. Accordingly, when questioned if he knew anything that would show the sentence to be unjust? he replied, “No.” If he knew anything of undue practices? still he answered “No.” Yet when Lord Halifax asked him, whether he was desirous the Bill should pass? he replied, “Yes.” Lord Halifax—“If he knew anything that was necessary for the King to know, and that would incline him to mercy?” He begged leave not to answer, and withdrew. The contradiction in this behaviour must be left to the comment of the reader. The only observation I would make, not only on Norris, but on his associates, (I speak not of those who evidently were influenced,) is this. If, as they all said, they knew nothing unjust, why did they solicit to be released from an oath of secrecy, under the lock of which they had no secret? Is it not more probable that they were ashamed of what they had done, and neither knew how to bear or avow it?

Admiral Broderick was short and steady in negatives to all the questions. Holmes as explicit, saying he knew nothing to incline the King to mercy but the sentence and their letter. Lord Halifax then informed the Lords, that Norris had recollected himself, and desired to return to the bar. Lord Cholmondeley and Lord Stamford objected to it, but even Lord Hardwicke could not close with such rigour, though he declared against repeating the like indulgence. Norris returning, and being asked if he knew anything proper for his Majesty to know, and that might incline him to mercy, replied, “*At the time that I said I desired the Act might pass, I thought we should have an opportunity of explaining our reasons for signing the sentence.*” These words, though obscure, and by no means adequate to what was expected from his desire of being reheard, seemed to imply that he had been drawn into the harshness of the sentence from some arguments of the improbability that it would be carried into execution. This in the utmost candour I own; it was what all the advocates for rigour insisted was the case: though the defence in truth is but a sorry one, for what can exceed the weakness of condemning a man, whom one thinks innocent, upon the supposition that he will afterwards escape?

Geary, the accommodating Geary, the repenter of his repentance, came next; answered *No*, to Lord Mansfield’s questions, like the rest: to Lord

Halifax's, whether desirous of the Bill, replied *No*, but have no objections to it, if it will be to the satisfaction of anybody; and that he knew nothing for mercy but the sentence and letter. "Could you," said Lord Fortescue, "if the Act should pass, explain the sentence better?" "My oath of secrecy," said Geary, "will not let me say more." Captain Boyce gave his three noes to the questions. So did Moore to Lord Mansfield's. When asked by Lord Halifax, if desirous of the Bill? he said, "I am very desirous of it, that I may be absolved from my oath; I have been under concern when I took it—I don't mean on this point." To the other question relative to the King and mercy, he said, "I don't think myself at liberty to answer while bound by my oath." To Lord Fortescue, whether, if absolved, he could better explain the sentence and letter? he replied in these equivocal words, "I could give better reasons for my signing." Simko, Douglas, and Bentley, were unanimous in negatives to all the questions. Then Keppel appeared. Being asked if he knew anything unjust?—after long silence and consideration, he replied, *No*. Whether the sentence was obtained through undue practices? *No*. Whether desirous of the Bill? "Yes, undoubtedly." Whether he knew anything necessary for the knowledge of the King, and conducive to mercy? Keppel: "I cannot answer that, without particularizing my vote and opinion." Lord Halifax asked him whether he thought his particular reasons had been asked now? He replied, *No*. He retired. If Keppel had had no more to tell, than that he had been drawn into the harsher measure by the probability of the gentler preponderating at last, he had in truth been much misunderstood: his regret had worn all the appearance of remorse. How he came to appear so calm and so indifferent at the last moment, in which either regret or remorse could hope to have any effect, I pretend not to decide. Such as showed any compunction of any sort I would excuse to the utmost. Those who determined *no* compunction should operate, and those who, like Moore and Geary, abandoned their contrition to make their court, I desire not to absolve. The former were gratified, the latter were rewarded. Dennis was the last who appeared, and took care to have no more tenderness before the Lords than he had exerted in the House of Commons.

Lord Temple then desired that the Court-Martial might be absolved from their attendance; and that the depositions might be read over. When finished, he said (what indeed in his situation he could not well help saying, considering how few questions had been put, except the captious ones of Lord Mansfield, and how little satisfaction had been obtained, and that even

Keppel himself had not said half so much as he had said in the House of Commons,) Lord Temple, I say, after congratulating the King and nation on the temper that had been observed, said, the discussion might produce an opinion that the sentence was just: he had had doubts, but now they were all removed: yet he would ask, whether still it were not better to indulge the conscientious with the Bill, especially as it would clear all doubts in others?

Lord Marchmont and Lord Hardwicke objected warmly to that proposal, and treated the House of Commons with the highest scorn. The former said, he had the utmost contempt for the Bill, and hoped their Lordships would set their mark on all who had traduced the Court-Martial, whose very countenances had shown their breasts. He begged the House no further to load his Majesty, but to reject the Bill. Lord Halifax acknowledged, that all who read the preamble, must have concluded that they had something material to divulge: yet not one had produced any one circumstance. For himself, he was never ashamed to retract, when the ground had gone from him. Yet he thought they still must have had reasons for their extraordinary behaviour, and wished for the Bill to clear up that wonderful sentence and letter. But Lord Hardwicke authoritatively put an end to the Debate; said the recital to the preamble had been false; that they had sworn there had been no undue practice, and that it appeared upon what no grounds the House of Commons had proceeded; which he hoped would tend to ease the mind of his Majesty. He proposed, and it was ordered, that the whole examination should be printed.

The affair having concluded in this extraordinary manner, the friends of Mr. Byng could no longer expect any mercy. If he could be brought to the verge of death after such a sentence and such a recommendation from his Judges; if the remorse of those Judges could only interpose; undoubtedly their retracting all distress of conscience, and upholding their sentence in a firmer manner than when they first pronounced it, could neither give the King a new handle to pardon, nor any hopes to the Admiral's well-wishers. They despaired, though they ceased not to solicit. Of the Court-Martial, ^[83] it must be remembered, that Norris, who had faltered, was never after employed—that Keppel was—that Moore had immediately assigned to him the most profitable station during the war.

I hasten to the conclusion of the tragedy: a few intervening incidents I shall resume afterwards.

The 14th of March was appointed for execution. Yet one more unexpected event seemed to promise another interruption. The city of London had all along assumed that unamiable department of a free government, inconsiderate clamour for punishment. But as a mob is always the first engine of severity, so it is generally the foremost, often the sole body, that melts and feels compassion when it is too late. Their favourite spectacle is a brave sufferer. This time they anticipated tenderness. On the 9th, at eleven at night, four Tory Aldermen went to Dickinson, the Lord Mayor, to desire he would summon a Common Council, intending to promote a petition to the King to spare the Admiral. The motion was imputed to Mr. Pitt. The magistrate, as unfeelingly formal as if he had been the first magistrate in the kingdom, replied, it was too late; he would be at home till noon of the next day. On the morrow they sent to him not to dismiss his officers, but he heard no more, though they continued squabbling among themselves till two in the morning. Thus the last chance was lost. Had the first midnight emotion been seized, it might have spread happily—at least the King could not have pleaded his promise of severity pledged to the city. I hesitate even to mention what I will not explain, as I cannot prove my suspicion: but I was eye-witness to a secret and particular conference between Dickinson and another man, who, I have but too much reason to think, had a black commission.

The fatal morning arrived, but was by no means met by the Admiral with reluctance. The whole tenour of his behaviour had been cheerful, steady, dignified, sensible. While he felt like a victim, he acted like a hero. Indeed, he was the only man whom his enemies had had no power to bend to their purposes. He always received with indignation any proposal from his friends of practising an escape; an advantage he scorned to lend to clamour. Of his fate he talked with indifference; and neither shunned to hear the requisite dispositions, nor affected parade in them. For the last fortnight he constantly declared that he would not suffer a handkerchief over his face, that it might be seen whether he betrayed the least symptom of fear; and when the minute arrived, adhered to his purpose. He took an easy leave of his friends, detained the officers not a moment, went directly to the deck, and placed himself in a chair with neither ceremony nor lightness. Some of the more humane officers represented to him, that his face being uncovered, might throw reluctance into the executioners; and besought him to suffer a handkerchief. He replied, with the same unconcern, “If it will frighten *them*,

let it be done: they would not frighten me.” His eyes were bound; they shot, and he fell at once. ^[84]

It has often been remarked that whoever dies in public, dies well. Perhaps those, who, trembling most, maintain a dignity in their fate, are the bravest: resolution on reflection is real courage. It is less condemnable, than a melancholy vain-glory, when some men are ostentatious at their death. But surely a man who can adjust the circumstances of his execution beforehand; who can say, “Thus I will do, and thus;” who can sustain the determined part, and throws in no unnecessary pomp, that man does not fear—can it be probable he ever did fear? I say nothing of Mr. Byng’s duels; cowards have ventured life for reputation: I say nothing of his having been a warm persecutor of Admiral Matthews: cowards, like other guilty persons, are often severe against failings, which they hope to conceal in themselves by condemning in others: it was the uniformity of Mr. Byng’s behaviour from the outset of his persecution to his catastrophe, from whence I conclude that he was aspersed as unjustly, as I am sure that he was devoted maliciously, and put to death contrary to all equity and precedent. ^[85]

I have perhaps dwelt too long on his story—let me be excused: I could not say too much in behalf of a man, whose sufferings, with whatever kind intention, I unhappily protracted!

The cousinhood intended to supply Byng’s seat at Rochester, with Dr. Hay of their own Admiralty, whom Fox had jostled out of Parliament. The King, by suggestion from the same quarter, told Lord Temple, “That Rochester was a borough of the Crown, not of the Admiralty; nor did he like Hay or any of their Admiralty; they had endeavoured to represent his justice as cruelty; he would have Admiral Smith chosen there.” The subject was artfully selected, a relation of their own. Lord Temple, with more calmness and decency than he often condescended to employ in the Cabinet, contested it long: and at last said, he would not obstruct his Majesty’s service and commands—but he would be no borough-jobber, he would have nothing to do with it, nor would he pay the price of blood by bringing into Parliament the President of that Court that had condemned Admiral Byng. As the measure was taken to get rid of Mr. Pitt and his friends, it was hoped they would resign on this obstacle, which might pass for a private affair: but they were too wise to be the dupes. The Duke of Devonshire was ordered to recommend Admiral Smith to Rochester, but the

poor man was shocked both at succeeding a person he had sentenced, and at being chosen for a stumbling-block to his friends. He said he had not sufficient estate for a qualification; and declined. Admiral Townshend, the gaoler of Byng, had no scruples, and was elected.

On the 8th of this month, advice was received that a French army of one hundred and four thousand men, commanded by the Comte de Clermont and Marshal D'Etrées, were marched to the Lower Rhine.

A slight event that, by displaying the Duke's moderation, indicated his having views at that time which it was worth his while, by curbing his natural temper, to gratify, may be fitly mentioned. Colonel Forbes, a man of parts and spirit, had long lain under his displeasure, being suspected of having writ some severe pamphlets against him. They were, in truth, the compositions of one Douglas. Forbes, during the preceding summer, had ingratiated himself with the Duke of Bedford in the camp at Blandford, where his Grace had been reading Bladen's Cæsar and Bland's Military Discipline, and playing at being a General, for he was always eager about what he was least fit for. He immediately undertook to reconcile Forbes to the Duke,^[86] who would not listen to him. Richbell's regiment falling vacant in Ireland, the Lord-Lieutenant gave himself no farther trouble to obtain the favour of the Duke for Forbes, but carried a warrant ready drawn to the King, who signed it, and Forbes had the regiment. The Duke bore it without a murmur.

On the 13th, died Dr. Herring, Archbishop of Canterbury, a very amiable man, to whom no fault was objected; though perhaps the gentleness of his principles, his great merit, was thought one. During the Rebellion he had taken up arms to defend from oppression *that* religion, which he abhorred making an instrument of oppression. He was succeeded by Dr. Hutton, Archbishop of York, a finer gentleman, except where money was in question. The Duke of Newcastle, to pay court to Leicester-house, had promised York to Dr. Thomas, of Peterborough, the Prince's Preceptor: but though he had been raised by the King himself, his Majesty (to thwart the Princess, who had indulged the Bishop in no weight with her son, and was consequently indifferent about him) refused to confirm the grant, and bestowed the Archbishopric on Gilbert of Salisbury, who had formerly shed courtly tears in a sermon on the Queen. Gilbert was composed of that common mixture, ignorance, meanness, and arrogance. Having once

pronounced that Dr. King ought to be expelled from Oxford for disaffection, the latter said he would consent to expulsion, provided Gilbert would propose it in convocation—the motion must have been in Latin. Thomas was permitted to succeed to Salisbury. On the news of Gilbert's promotion, they rung the bells at York backwards, in detestation of him. He opened a great table there, and in six months they thought him the most Christian Prelate that had ever sat in that see.

18th.—Legge opened the new taxes, and particularly proposed to abolish the Commissioners of Wine-Licences, which office he would incorporate with that of the Stamps. Among those Commissioners was one Harris, a dependent and intimate of Fox, who broke out on this occasion in the most imprudent manner—"Was this the beginning of reformation? why was it not carried farther? why not abolish one of the Secretaries of the Treasury? why did Mr. Legge himself receive double salary as Lord of the Treasury?" He himself would have been content with half the pay of Secretary of State. Sir Robert Walpole had never destroyed the offices and influence of the Crown. He taxed Hardinge with being author of this scheme. Legge replied, yes, it *was* the beginning of reformation; and if others would, he himself would serve for nothing. Beckford said *principiis obsta*; he liked better to begin with small things than great, because from the former there might be hopes—but he knew, he saw, why Mr. Fox was averse from demolishing the influence of the Crown. Of all things he should disapprove any diminution of the salaries of great officers, in order to carry on the war, for then he was sure there would soon be a peace. Pitt was very ill, and could not attend.

I hinted that it was determined to dismiss Mr. Pitt and his friends, or provoke them to resign. I shall now explain that measure, which opens a new scene.

The French had made an irruption into Germany with a mighty Army, and threatened Hanover. The King had neither able Generals there nor Ministers on whom he could rely. The latter were Austrians in their hearts, with the additional incumbrance of possessing estates in the countries of the Empress. The Duke, since the accession of Mr. Pitt to the Administration, was become a favourite. The King readily vented his mortifications to his son, whom he knew would cheerfully be a confidant, of his aversion to the Princess and her faction. By the channel of the Duke and Princess Emily, Fox had insinuated innumerable prejudices and obstructions to the new

Ministers. At this juncture the King cast his eyes on the Duke, as the sole resource for Hanover. His son had saved his Crown: he wished to owe the preservation of the dearer Electorate to him. The Duke was very averse to the charge. War with all its charms could not tempt him now. His many defeats by the French still ached. If to be clogged with orders from Pitt,—if to be obliged to communicate with him, and depend on him for supplies, command itself would lose its lustre. Even if successful, the popularity of Pitt would ravish half his laurels; should he miscarry, his misfortunes would all be imputed to himself. Fox snatched at this dilemma: he knew the King would pay any price to rescue Hanover, and suggested to the Duke to demand as a previous condition the dismissal of Pitt;—could his Majesty hesitate between an unwelcome servant and a favourite dominion? The terms were granted, but were too soon performed. The King hurried away the Duke. His Royal Highness would not endure even for a fortnight to be accountable to Pitt; yet there had been no time to settle a new Administration. The inquiries still hung over the heads of the old Ministers, and though a whole Parliament of his own interposed their bucklers, Newcastle shuddered at the glimpse of an axe in the faint hand of a wearied rabble. Fox wished for power without the name of it; Newcastle for both. If his Grace would have united with him, Fox would have taken the Paymastership, with a Peerage for his wife, and a pension of 2000*l.* a year on Ireland for himself. But Newcastle could be pinned down to no terms: he advanced to Fox, retreated farther from him, would mention no conditions, nor agree to any. Lord Mansfield had early gone to Claremont and endeavoured to fix him to Fox; but as that Lord himself told the latter, Newcastle was governed by Lord Hardwicke, even by a letter. Fox would then have assumed the Government himself, could he have conjured together the slightest vision of a Ministry. He tried Lord Granville, he courted Devonshire, he offered the Treasury to Bedford; but, though nobody was more sanguine in the cause than the latter, yet as it was not easy to give Rigby an equivalent for Ireland, he took care to regulate his patron's warmth within the pale of his own advantage.

In this strange uncertainty the day of the Duke's departure was fixed; and fixed it was that Pitt and Lord Temple should be thrust out by any means. Pitt had behaved with as much veneration as his Majesty could expect; with as much as he was fond himself of receiving: surely he had even shown that German measures were not beyond the compass of his homage. But he had

introduced eloquence into the closet. The King was a man of plain sense, and neither used ornament in discourse nor admired it; sometimes too the drift of his royal pleasure was too delicate to be conveyed but in hints. He liked to be served in essentials; it was better not to expatiate on them. Lord Temple was still more tiresome; and when his verboseness did not persuade, he quickened it with impertinence. On the affair of Mr. Byng he had even gone so far as to sketch out some parallel between the Monarch himself and the Admiral, in which the advantage did not lie on the side of the battle of Oudenarde.

The King resenting this and other instances in the strongest manner, Lord Temple sent him word by the Duke of Devonshire, that he could not serve him more, though he should not resign till a convenient opportunity; that he would not even have come out of his Majesty's closet as a Minister, if it would not have distressed those with whom he was connected. Pitt himself kept in the outward room, saying, he no longer looked upon himself as a Minister; and attributing this storm solely to Fox, he bade Lord George Sackville, who was feeling about for a reconciliation between him and Newcastle, tell that Duke, that he was not so averse to him as his Grace had been told: let him judge by my actions, added he, if I have been averse to him.

The idea of the approaching change no sooner spread than it occasioned the greatest astonishment: indignation followed; ridicule kept up the indignation. The first jealousy was, that British troops would attend the Duke to Germany. Fox called on Legge in the House to disavow this, which he did; and the former declared that it had never existed even in the wish of his Royal Highness—(that measure indeed was reserved for Pitt!) George Townshend, to prevent the change by intimidating, called for more papers; but as Fox wished for nothing more than to dispatch the inquiries, after which he would be at liberty to appear again on the scene, he pressed to have them begin; and Townshend was forced to yield that they should commence on the 19th of April, the first day after the recess of Easter. Sir Francis Dashwood said, that day would interfere with the meeting at Newmarket, and proposed a later time. Fox said there would be a second meeting, with which a later day would equally clash. I blush to repeat these circumstances—was it a greater proof of the levity of our character, or of the little that was to be expected from the inquiries, when a senate sat

weighing horse races against national resentment and justice—Newmarket against the fate of Minorca!^[87] George Townshend added some sharp words on the abuse published against Pitt. Fox said, he desired the liberty of the press might continue: nobody had suffered more from it than himself, yet he would not be for restraining it. Did Mr. Townshend object to cards and pictures?^[88] George Grenville said, he knew when he accepted a place what tax he was to pay for it; yet said Fox, “*I have been most abused since out of place.*”

FOOTNOTES:

^[81] A lawyer, it seems, would establish prescription even against conscience!

^[82] I say, *power*: Lord Hardwicke and Lord Anson were out of place—but were they out of power? Without hinting how soon they remounted to formal power, let it be remembered that at that moment, they commanded the House of Lords, and had a vast majority in the House of Commons.

^[83] As some of them said in plain terms that they were satisfied with the sentence, in how many contradictions were they involved! By the very wording of the sentence, which expressed dissatisfaction; by the letter that accompanied it; by Admiral Smith’s letter to Sir R. Lyttelton, which said that they were all willing to appear before the Privy Council or the Parliament to explain their reasons!

^[84] [The following extract from our Author’s Private Correspondence in MS. corroborates the account given in the text, and as it contains some further particulars, may be acceptable to the reader.—E.]

“March 17, 1757.—Admiral Byng’s tragedy was completed on Monday—a perfect tragedy—for there were variety of incidents, villainy, murder, and a hero. His sufferings, persecutions, aspersions, disturbances, nay, the revolutions of his fate, had not in the least unhinged his mind; his whole behaviour was natural and firm. A few days before, one of his friends standing by him, said, ‘Which of us is tallest?’ He replied, ‘Why this ceremony? I know what it means; let the man come and measure me for my coffin.’ He said, that being acquitted of cowardice, and being persuaded, on the coolest reflection, that he had acted for the best, and should act so again, he was not unwilling to suffer. He desired to be shot on the quarter-deck, not where common malefactors are:—came out at twelve—sat down in a chair, for he would not kneel, and refused to have his face covered, that his countenance might show whether he feared death; but being told that it might frighten his executioners, he submitted; gave the signal at once; received one shot through the head, another through the heart, and fell.”

^[85] Many years after that tragedy was acted, I received a most authentic and shocking confirmation of the justice of my suspicions. October 21, 1783, being

with her Royal Highness Princess Amelia at her villa at Gunnersbury, among many interesting anecdotes which I have set down in another place, she told me, that while Admiral Byng's affair was depending, the Duchess of Newcastle sent Lady Sophia Egerton to her the Princess, to beg her to be *for* the execution of Admiral Byng. "They thought," added the Princess, "that unless he was put to death, Lord Anson could not be at the head of the Admiralty. Indeed," continued the Princess, "I was already for it; the officers would never have fought, if he had not been executed." I replied, that I thought his death most unjust, and the sentence a most absurd contradiction.

Lady Sophia Egerton was wife of a clergyman, afterwards Bishop of Durham. What a complication of horrors! women employed on a job for blood!

[As the author calls this accidental conversation at Gunnersbury, "a most *authentic* confirmation of his suspicions," the Editor was not at liberty to omit any part of the story; though the reader will probably think with him, that more importance is ascribed to mere gossip than it deserves.—E.]

[86] [The Duke of Cumberland.—E.]

[87] Indeed there was so little intended by the inquiries, that Legge himself, one of the new tribunes of the people, said, "Both sides will be trying which shall fling most dust in the eyes of the nation."

[88] Townshend had been author of the first political caricatura card, with portraits of Newcastle and Fox.

A P P E N D I X .

A P P E N D I X .

A.

(Vide [page 147.](#))

These Armenian letters are apparently written in humble imitation of the Persian, but greatly inferior to them; they are calculated solely for the meridian of Ireland, and contain little else besides a few severe strictures on the politics and government of that kingdom, with a particular account of the late divisions there, and the persons chiefly concerned in them. As these are topics, which, however well treated, would scarce afford our readers any entertainment, an extract from this part of the performance would be unnecessary. The affairs of England are, however, now and then, introduced, and treated in these letters with the same freedom as those of Ireland. The following characters of two or three of our most celebrated orators are not ill drawn.

“When I was last in England,” says our Armenian, “curiosity led me to hear the Judicial, Parliamentary, and Ecclesiastical eloquence of that kingdom, in all which there are men very eminent. Among the foremost was a native of North Britain; he excelled in order and ornament, yet his ornaments were never studied, they flowed from his matter, and with such ease, that, though no man could speak more elegantly, it seemed that he could not speak less so. He was quick in distinguishing, of memory so tenacious that he could range the testimonies of thirty persons in different cells, and immediately call them forth with the same ease as if he took them from paper. As a judicial speaker, he seemed but little inferior in subtlety and elegance to the celebrated Greeks; in decency he was superior; in his narrations plain; in ranging his arguments, concealing his weakness, and displaying his strength, he had no rival; he concluded always strongly, sometimes with his best argument; with a short and weighty enumeration, when many arguments had been lightly dispersed through his oration; he could mix raillery, but seemed to avoid it, and hasten to serious arguments,

as if he blamed himself for using others. His voice was clear and musical, to some it was too acute.”

“Charles Townshend, a young man, was at the same time in Parliamentary debate nervous, copious, and vehement; in order not most exact, but in sentiment strong, in expression animated; his figures were glaring, and his illustrations grand; a tide of matter and words bore his hearers with him, even when he digressed; and though there was something in his eloquence which calm judgment might prune, there was nothing which a warmed audience would not admire.”

“There is an Ecclesiastic,^[89] who was Preacher to an Academy of Law, whom I have heard with delight. He was grave, dignified, and elegant; his subjects, whether of things human or divine, he treated with becoming majesty. Thou hast seen him, Aza; he is a great and a good man, and true eloquence comes from such only; look through all experience, virtue produces eloquence, and adversity calls forth virtue.”

B.

[In a note to page 41 a reference is made to the correspondence of Mr. Fox with Lord Hartington, as printed in the Appendix to Lord Waldegrave’s Memoirs. The part, however, of the correspondence which is at variance with the statement in Lord Oxford’s text is not to be found in the extracts there printed; and it is therefore here subjoined, with some additional extracts from unpublished letters of the Duke of Newcastle and Mr. Fox, illustrative of the views of parties at that time.]

Extract of a Letter from Mr. Fox (Secretary at War) to the Marquis of Hartington (Lord Lieutenant of Ireland), August 10, 1755.

... We have made a treaty with Hesse and another with Russia, to be followed with other subsidies, or these will be useless; and if followed by other subsidies, how can we find money to pay or place to assemble these troops? And, perhaps, I may add, members to vote them? For the Duke of Devonshire is so determinately against them, that I believe he will think it his duty to declare his opinion, and how far that may operate (most people,

I find, being in their own minds of the same opinion) there is no saying. Legge did not sign the order for the Hessian money at the Treasury, and, I believe, makes no scruple of declaring his opinion. I have been more cautious in giving, I may say, in *forming* mine; but have, by not signing it at the Cockpit, kept myself at liberty. Pitt's and Egmont's opinions, in this regard, I don't know.

Extract of a Letter from Ditto to Ditto, August 29, 1755.

... Your father is certainly against subsidies, and will, I think, be hardly kept from making his opinion, by some method or other, public, which will the less embarrass your Lordship, as I suppose whatever passes of this kind will be over before you can come here, make what haste you will. Lord Granville has had a conversation with the Duke of Newcastle, in which his Grace told him his scheme, which the other says is no scheme at all. You know Lord Granville talks the language Stone talked. It was one of my crimes,^[90] in Lord Hillsborough's garden, that Lord Granville was my friend, who was so much his, (that is) Pitt's enemy. Well, the scheme is this: to gain Lord Egmont with Yonge's place; to try, by Lord Chancellor, to gain Pitt; to trust to my acquiescence, from the influence H. R. H. has over me, and to carry every thing through, without parting (as Lord Granville expresses it) with the least emanation of his power to any body.

Extract of a Letter from the Duke of Newcastle to the Marquis of Hartington, August 30, 1755.

... I took this opportunity, in concert with my Lord Chancellor, to lay before the King, in a very strong letter to my Lord Holderness, the necessity of forming forthwith a system for the House of Commons; that Mr. Pitt must make a material part of it; that if he would take a cordial and an active part, with other arrangements proposed, the King's business might be done with ease; that otherwise we could not answer for it. We therefore proposed to be authorized to assure Mr. Pitt of his Majesty's countenance and gracious acceptance of his service, and that Mr. Pitt might be called to the Cabinet Council if he desired it. This authority we have, though with evident marks of reluctance and resentment to Mr. Pitt. My Lord Chancellor has seen Mr. Pitt, and I am to have that honour next Tuesday. If nothing but the Secretary's office will do, I am persuaded nothing will induce the King

to consent to it; but if proper regard and confidence with his rank of the Cabinet Council, and I hope a proper, or at least a better, behaviour from the King towards him will do, that I should think might be brought about, and I dare say your Lordship thinks Mr. Pitt ought to be satisfied. We also advised the getting of Sir William Yonge's place (which indeed is now vacant) for my Lord Egmont; that was most readily consented to, and I hope and believe my Lord Egmont will do well; and upon these conditions he will have it. Nothing is determined about the Chancellor of the Exchequer; your friend Legge would not countersign the Lords Justices' warrant for the Hessian levy money. That is a new symptom of the Treasury Board, and not very complaisant for the First Commissioner. I wish your Lordship would find out some expedient for Legge: I would not willingly do anything to disoblige him, but his continuance at the Treasury cannot be agreeable to either of us. As Mr. Fox is already in the Cabinet Council, which was what he desired, and is now, in consequence of it, one of the Lords Justices; if Mr. Pitt will be satisfied with these marks of distinction, and some other arrangements can be made, which I hope will not create much difficulty, when the great ones are over, I should hope things might go on well in the House of Commons. Your Lordship sees I do not suffer my private resentments to have any effect on the public service: I must, however, be entire master at the Board where I am, and not put myself under the tutelage of anybody. I can go out, and *easily*; but not be a cipher in office.

Extract of a Letter from Mr. Fox to the Marquis of Hartington, Sept. 1, 1755.

... The Duke of Newcastle has seen Egmont, who at first talked very high; but at length, "such was his submission to the Princess and duty to the King, that he believed he should accede to what was proposed;" but dropped that he should be unwilling to act offensively to Mr. Pitt. The Duke then asked if he might write to Hanover: Lord Egmont said he could not quite authorize his Grace to go so far yet, but desired a few days; which the Duke of Newcastle interprets to be to consult Pitt. His Grace is to see Pitt, but Legge says Pitt is in no disposition to be paid with such counters as his Grace has to give him. The Chancellor, too, has told him, as he did your father, though not so positively, that he knew of no subsidy but that of Hesse. I think he told your father that the Russian was not *done* yet, (he must mean ratified, which is an equivocation;) but he told Pitt absolutely

that he knew of no other but the Hessian, which was, to my knowledge, an absolute falsehood. The Duke of Newcastle told a friend of mine that he had an overture from me by Lord Granville, which is not true; but his Grace might, perhaps, from what Lord Granville said, conclude it came from me. My friend asked him why he did not close with me then? He answered, *the Duke* would govern them; and likewise talked of his own family, as he calls it, (Lady C. Pelham and Lord Lincoln,) and he might have added, his expectations through Egmont, &c., at Leicester House. But all or either of them show how sincere at any time his professions have been.

Extract of a Letter from Ditto to Ditto, Sept. 11, 1755.

... I hear Pitt declares against the Russian subsidy, which, I am told, is growing as unpopular as the excise.

Extract of a Letter from Ditto to Ditto, Sept. 23, 1755.

... I have never declared my opinion of the subsidies till this morning to the King. His Majesty is in great distress: they have been obliged to tell him that the House of Commons could not go on without some authority within it; that almost every principal person there had declared against subsidies, and they could not name one who had declared for them. They had tried Pitt, Sir George Lee, and Egmont: that the two first and Legge had declared against them; that Egmont doubted and declined accepting the place; that in this situation they had spoken to me. Lord Grenville had spoke of me to him, but could not tell him my opinion.

I told his Majesty that he should, on this occasion, have my best service as a private soldier or as an officer, but I could not be both. I had a great deal of discourse, but he entered into no particular destination of me. He lamented the harm the Duke of Devonshire's opinion would do him, and commended your Lordship exceedingly. I told the Duke of Newcastle (whom I saw by appointment with Lord Waldegrave, Saturday) that this was the last time I would ever come to see if we could agree. And so it is. Lord Granville says, if Legge won't keep it (and to be sure he will not) I must be Chancellor of the Exchequer. The Duke of Newcastle says, that in that case we shall not agree a fortnight, and that it must not be. They quarrelled about it. I give readily into the Duke of Newcastle's opinion. Nothing then remains but Secretary of State. How to make a vacancy I can't

tell, but there is nothing else. If this be done, I shall behave just as both you and they would have me; if not, I shall still be for the subsidies. It is my opinion. But I will be for them *out of place*; and in the act of vindicating the measure, declare war with the Minister. So you see that instead of the quiet state I thought of, I am brought, and indeed without my seeking, into such a one that I must (I hope you see with me the necessity) be within this week more, or within these six weeks less, than Secretary at War.

I forgot to tell you that Lincoln advises the Duke of Newcastle to agree with me, and even prefers me to the others, or to any measure but that of his uncle's retiring quite, which he thinks best. The Attorney and Stone are of the same mind. I am sorry to tell you that it is certain the latter has lost his credit at Kew for being my friend. You know where that must point; to the Duke, who has not been once mentioned in the negotiation. I think *he* must have been Pitt's reason for discarding me, and yet that does not quite solve it.

Extract of a Letter from Ditto to Ditto, Sept. 25, 1755.

... If you have not yet received my letter by last Tuesday's post, it is not now worth reading. The matter is settled, and I am to be Secretary of State in the room of Sir Thomas Robinson, and in order to have the conduct of the House of Commons.

C.

(Vide [page 234.](#))

[As our author derived his information on Northern and German Courts, especially Dresden, from Sir Charles Hanbury Williams, of whose letters from abroad he speaks ([p. 205, vol. i.](#)) in terms of such high commendation, and has already given extracts in the [Appendix, vol. i.](#), a short account of that lively writer's Embassies, taken in substance from the same author's MS. notes, together with a farther specimen of his correspondence concerning the Court of Saxony, will not be misplaced here; at least they will afford some entertainment to the reader.]

Sir Charles Hanbury Williams was appointed envoy to Dresden in 1747, was commissioned in July, 1749, along with Mr. Anstis, Garter at Arms, to carry the Blue Riband to the Margrave of Anspach; and on Mr. Fox waving, at the request of the King, his pretensions to the Treasurership of the Navy, was, with a view of gratifying that gentleman, who was his intimate friend, named Envoy Extraordinary at Berlin. He set out for that Court in May, 1750, and passed through Hanover when the King was there. From thence he was sent to the King of Poland, who was holding the Diet at Warsaw, to engage his vote for the Archduke Joseph to be King of the Romans. On this progress he wrote a celebrated letter to the Duke of Newcastle at Hanover, which was sent over to England and much admired, as his ministerial letters generally were. About this time he met the Ministers of the two Empresses of Germany and Russia; reconciled these two Princesses, and set out for Berlin, where he was very coldly received, and soon grew so offensive to the King, that he was, as he had predicted, recalled at his request, and sent back to Dresden in February, 1751. Sir Charles had detected the Saxon Minister at Berlin, in betraying his master's and Russia's secrets to the Court of Prussia; and had also exposed an artifice of the King of Prussia in making a Tartar, sent to release a countryman who had enlisted in the Prussian Army, pass for a Deputy or Minister for the disaffected in Russian Tartary. These circumstances, and his satirical tongue, and yet more^[91] satirical pen, combined to exasperate the King of Prussia. It was, he said in his private letters, "in vain to contend with so mighty a Prince, and he became the sacrifice." However, in 1753, he was sent to Vienna to demand the assistance of that Court in case Prussia should proceed to extremities after stopping the Silesian loan; and in his triple capacity of Minister, Courtier, and Poet, he composed the following distich on the Empress-Queen:

"Oh Regina orbis prima et pulcherrima! ridens
Es Venus, incedens Juno, Minerva loquens."

The general style of his poetry was far from being so complimentary; and that of his prose, though not so well known, and often too licentious for publication, was to the full as easy, lively, and humorous as his verse. After returning to England he was again appointed to Dresden, and attended the King of Poland to Warsaw, in 1754, where, upon espousing very warmly the interests of the Poniatowskys in an affair called the disposition of the Ostrog, he came to an open rupture with Count Bruhl. He shortly afterwards

concluded a subsidiary treaty with Russia, and was named Ambassador to Petersburg in 1755. He returned to England in 1758, and died in 1759.

The following letter was written on his first arrival at Dresden, and before any quarrel with Count Bruhl. Though addressed to a private friend, it seems nearly a duplicate of his public dispatch. It is no unfavourable specimen of his correspondence, but is perhaps less enlivened by anecdote, as well as less disfigured by indecencies, than many of his epistolary compositions from Germany.

Dear Sir,

The short time that I have been abroad, would, in any other Court, have hardly been sufficient to have formed a judgment, or given a description of it; but this, where I am, is so easy to be understood, that an understanding as mean as mine may see into it as clearly in a month's time as in ten years.

The King's absolute and avowed hatred to all business, and his known love for idleness and low pleasures, such as operas, plays, masquerades, tilts and tournaments, balls, hunting, and shooting, prevent both him and his country from making that figure in Europe which this noble Electorate ought to do, and often has done. As to the King himself, he is very polite and well-bred, and his natural abilities far from bad ones. I have very often (much oftener than any Minister here) the honour of conversing with him, and I must say, that he talks better, and makes juster judgments on affairs than any other person I have met with in this Court: but he wont dwell long upon politics. 'Tis visible that he soon grows uneasy, and then you must change the discourse to the last stag that he hunted, the last opera that was acted, or the last picture that he has bought. Immediately, you perceive that his countenance clears up, and he talks on with pleasure. From these subjects 'tis easy to lead him back to any other you please, always taking care to observe his countenance, which is a very speaking one. He is seldom seen, when at Dresden, but at dinner. He always dines with company, and his buffoons make a great noise, and fight with one another during the whole repast, which is quite over by two o'clock; and then his

Majesty retires to his own apartments, undresses totally, and then puts on his night-gown, in which he sits the rest of the day. Nobody must come to him at that time but Count Bruhl, Father Guerini, and the buffoon. He has had a great loss in the Electress of Bavaria being married, for she often came to him in the afternoon, and they have been surprised together in very indecent postures. The Queen knew this, and was furious about it. She complained of it to her Confessor; but the good Jesuit told her, that since things were so, it was much better that the King's affections should remain in his own family, than be fixed upon a stranger, who might be a Lutheran, and do prejudice to their holy religion; and by this these holy casuists appeased her angry Majesty.

The whole Court is now gaping to see who will succeed the Electress, for his Majesty's constitution requires somebody besides the Queen. The King is excessively fond of hunting, and 'tis reckoned that the game of all sorts (which is strictly preserved for him) do 50,000*l.* per annum of damage to this country. I have myself seen fifty stags a feeding in one corn-field; and to take care of all his game and forests, there are no less than 4000 persons in constant pay.

The expenses of this Court of every sort are in proportion with that of the chase. After this, Sir, you will not be surprised when I tell you, that the debts of this Electorate (all incurred since this King came into possession of it) are near four millions sterling, and that their credit is quite ruined; but the King will not hear of the expenses of the Court being lessened. He has no idea of the state of his country; but as he finds himself easy, he thinks and wishes his people to be so too. He is not beloved nor respected. His never heading his Army, and his precipitate flight from Dresden at the King of Prussia's approach, did him more injury in the minds of the Saxons, than he will ever be able to retrieve.

Her Majesty the Queen is very devout, but not a bit the better for her devotions: she does nothing but commit small sins, and beg forgiveness for them. She is ugly beyond painting, and malicious beyond expression. Her violent hatred to the Empress-Queen, and her great love to all her enemies, make me rejoice that she has not

the least influence at this Court. She has much impotent aversion to Count Bruhl: he hates her Majesty in return, but then he makes her feel his power. She meddles much in the lowest things, such as disgracing or restoring a buffoon to favour; disposing the parts of an opera, and giving the preference to such and such a dancer; and even this she never does by merit, but he or she that comes oftenest to mass has the best parts and the first rank. The Italians are much favoured here. They are divided into two parties, one of which is headed by Father Guerini, who first placed the colony here; the other, which is the most powerful, has the Faustina for its leader; and the two chiefs have by turns vented their complaints against each other to me, till I could hardly keep my countenance. But to return to her Majesty: I look upon her to be thoroughly in the French interests. She is not at all beloved, nor does she deserve it, for she does no good to anybody but converts, and very little to them.

I am next to speak of the Electoral Prince. You know, Sir, his person is bad, and his backbone so disjointed, that he cannot stand without two people to support him. The weakness of his body has hurt his mind. His parts, if he ever had any, are much decayed; but he is civil, good, and well-tempered. His education has been extremely bad; he knows nothing. He asked 'tother day at table, whether, though England were an island, one could not go there by land? Judge of the rest by this. When he walks, supported or rather dragged along by two people, his knees almost touch his stomach; and the Duchess of Courland (who is our good friend at this Court) told me that she saw him in bed on his wedding-night, and that he lay in the same posture there; so that she did not comprehend how matters could be accomplished. The Court, however, swear that (the marriage was then consummated). He is at present wholly devoted to his new bride, about whom I must say a little, having the happiness, by her permission, to see her very often.

She is far from being handsome or well made; but then she is infinitely agreeable in her manner, and very well-bred. She talks much, and is very entertaining. When she first came, she had flattered herself with hopes of succeeding the Electress, and attacked the King the first night, but without success. He seemed

rather disgusted with her advances, and since that time she has not recovered the ground she then lost. All^[92] this I have also from the Duchess of Courland. Before she came here she was reckoned to meddle much in politics, and to be in the French interests. She denies all this herself, and declares against women's meddling in state affairs; but I will venture to prophesy, that if ever the Prince Electoral should outlive his father, she will govern this country most absolutely. Hitherto she is much liked and admired by all who come near her, for her address is very engaging, and not at all like the Queen's.

The King has four younger sons, and three unmarried daughters. As to the Princesses I can say nothing of them, but that they are very young and very plain.

Prince Xavier is next to the Prince Royal, and has always been the Queen's favourite, and she tried every way to persuade the Prince Electoral to go into orders that this Prince might succeed his father. His person is good, and I believe his natural parts are so too, but his education has been very unfortunate. He is sixteen years of age, and has hitherto been taught nothing but bodily exercises; and they do not seem to think in this country that a Prince wants any accomplishments who can dance, fence, ride at the ring, and shoot at the mark. This Prince has not yet learned common good manners, and is almost a stranger to common decency. The French Ambassador and I dined with him the other day, and the whole time we were at table he talked to the Pages behind him, and what he said to them was in German. Monsieur des Issarts was quite out of humour at the treatment he met with: I was only sorry for the Prince. But to end his character, those who are best acquainted with him tell me he is very proud and very malicious. 'Tis publicly known that he hates his elder brother; but his pride is much abated, and his spirits much sunk since the Electoral Prince's marriage, which was a thing that he had been taught to believe never would happen. Still he flatters himself with the hope that if the King his father should die, he should succeed him in the Throne of Poland.

Prince Charles is next; he is a fine youth about thirteen; his person is good, and he has great quickness of parts; but as he

labours under the misfortune of having the same wretched education as his brothers have had, 'tis impossible to say how he will turn out; and here I must observe, that the scarcity of men of ability is so great in this country, that out of four governors employed in the education of these Princes, there is not one who is a Saxon.

The two other Princes, Albert and Clement, are both so young, that I can say nothing about them.

Having now, Sir, gone through the Royal Family, I shall speak of their fine country, which I believe produces more to its sovereign than any other district of land of the same size in Europe. The last grant of the Diet of Saxony was between eight and nine millions of dollars (each dollar exactly three shillings and sixpence English money) per annum for nine years; yet 'tis likely that the whole may be anticipated and spent in five, and then the King calls a new Diet, and gets fresh supplies, so that 'tis not possible to say exactly what the King's revenues are; but everybody must see that they are very large, and how the people will continue such payments begins to be a question. It is certain this country grows daily poorer, which is very visible by the decay of Leipsick fair. Everybody agrees that the last Easter fair was not half so good as it used to be; and this fair is the touchstone of the trade and money in this Electorate. The loss and expenses their own bad politics have drawn them into during this war have been very great; and the visit the King of Prussia made to Dresden was very expensive to this country; but above all, the visible decay of their linens and tinned iron manufactures (which England has been wise enough not to want any longer in such great quantities from foreign countries,) is a blow that is felt more severely than can be expressed. The Stier Bills, which are the funds here, and which always used to bear a premium, are now at 5 and 6 per cent. discount, and 'tis very difficult to negotiate them even at that price, though they carry 5 per cent. interest. I have been offered some, whose principal is due at Michaelmas, 1748, at 7 per cent. discount. This being so, you see that their credit is exhausted, and that they would hardly be able to borrow under 10 per cent.; and yet they must take up money, or their Army will mutiny, for their officers are most of 'em twelve or fifteen months in arrear. In the

midst of all these difficulties the Court has squandered away above 200,000*l.* sterling at the late double marriages; given 100,000*l.* sterling for the Duke of Modena's gallery of pictures; and Count Bruhl alone cannot spend so little as 60,000*l.* sterling a year. The pensions also that the King gives in Poland exceed the revenues he receives from thence by full 50,000*l.* per annum.

It is now necessary I should say something of the person to whom the King commits the entire care of this country. Count Bruhl is originally of a good family, but as he was a Page to the late King, so he had the education of a Page. His natural parts, without being very good, are certainly better than any other person's I have hitherto conversed with at this Court. He was employed by the late King in high employments, but never touched the zenith of power till after the fall of Monsieur Sulkowsky, who was his predecessor in the present King's favour. Sulkowsky lost it by absenting himself from the King's person to make campaigns in Hungary and upon the Rhine. As Count Bruhl profited by this false step of Sulkowsky, he is resolved no person shall ever have such an advantage over him. He is never absent from the King's person, and he pays the closest attention to every thing his Majesty says or does, though he himself is naturally very idle. His every day is passed in the following manner: he rises before six in the morning, then Father Guerini comes to him to talk upon business, and to read over whatever letters they receive, and then they send such of them as they please to the Privy Council; but if anybody comes in, business is laid aside, and he is very ready to talk upon indifferent matters. Afterwards he dresses, which takes up above an hour, and he is obliged to be with the King before nine. He stays with him till his Majesty goes to mass, which he does exactly at eleven; and then Count Bruhl goes to the Countess Moyenska, where he stays till twelve; from thence he goes either to dinner with the King, or to his own house, with a few of the lowest and worst people of this Court.

After dinner he undresses and goes to sleep till five, when Father Guerini comes and sits with him while he dresses, and at six he goes again to the King, with whom he stays till after seven; from thence he goes to some assembly, where he plays at cards very deep, the

Countess Moyenska being always of the party, who plays very well, and wins considerable sums of the Count; rather before ten he sits down to supper, and from thence he goes to bed about twelve.

Now as everything of the kind, from the highest affairs of state down to operas and hunting, are all in Count Bruhl's immediate care, I leave you to judge how his post is executed, by the time he takes to do business in. His expenses are immense. He keeps three hundred servants and as many horses. His house is in extreme bad taste and extravagance. He has, at least, a dozen country seats, where he is always building and altering, but which he never sees. It is said, and I believe it, that he takes money for everything the King disposes of in Poland, where they frequently have very great employments to bestow. Everybody here reckons that he is not sincere, but for my own part I have as yet no great reason to think so. He is very communicative to me, and very patient to hear whatever I have to say. He is certainly not an ill-natured man, having never done a hard or cruel thing to any person that I heard of since he has been in power. He is very vain, and a little flattery is absolutely necessary for those who intend being well with him; and my notion of the duty of a Foreign Minister is, that after serving his master to the utmost of his power and ability, he ought to make himself as agreeable as possible at the Court he is sent to. From this way of thinking, I have endeavoured to cultivate the King of Poland and his Minister as much as possible, because a time may come when my being well with this Court may be of some small service to the King my master.

Count Bruhl is polite, civil, and very ready to oblige, and, after the first ceremonies are over, without any forms. If he has any principle in politics, 'tis certainly favourable to the House of Austria. That, indeed, is not much, but it is more than any other person has that belongs to this Court, and whenever he falls we shall fall into worse hands. He has been very negligent of support at Court, having never, during his long Administration, made himself one friend of any great consequence. The clamours now against him are very high, for the two reasons of the fall of the Stier Bills, and the non-payment of the Army. The man that heads these complaints,

and whom 'tis possible his Majesty may remember to have seen at Hanover, is one Count Linard, a Saxon, whom I take to be thoroughly in the French interests. He has but moderate parts, and very little literature, but in Saxon learning he is very deep. He rides, shoots, and dances better than anybody here, and by these accomplishments he has got himself into a good degree of the King's favour, and flatters himself that whenever the Minister falls, he is the man that is to succeed him. I know he has been contriving to get a body of officers to throw themselves at the King's feet to complain of Count Bruhl, and to demand their pay. By means of a spy that I had at Court I discovered this affair, and told Count Bruhl of it. He owned things were as I said, and added, that he did not expect nor deserve such usage from Count Linard; but two days afterwards he told me that my information was very true, and that he had taken such measures upon it as would perfectly secure him. I have since had the misfortune to lose my spy, who is fled for having got a woman with child, he being a married man, and adultery in this country is punished with death.

The next person I shall speak of is father Guerini, a Jesuit, who is more in the King's favour than in any credit. He has been long in the service, and is now kept, like an old horse, for what he has formerly done. He is Count Bruhl's absolute creature, and has his confidence. He is perpetually with the King and Queen, and constantly employed in making up some quarrel among the singers and dancers. If he ever had any parts, they were gone before I came; but he is a good, trifling old man, and, though a priest, has no ambition. He has twice refused a Cardinal's hat; and the last time, which was not above half a year ago, the King pressed him to it very much, but in vain. I go to him very often; for he often comes out with things that he is trusted with, and which I am sure he ought not to tell.

The next person to Count Bruhl in business is one Heinnech, a low man, who once wore a livery, though he now wears the Blue Riband of Russia. He talks no French, and we converse in Latin; but Monsieur Heinnech has so quarrelled with all moods and tenses, numbers and cases, that it is with difficulty I understand him. If I guess right at what he says to me, he is very ignorant of the affairs I

talk about. He is *Chef des finances*; and it is said that Count Bruhl and he know so many had things of each other with respect to the disposal of public money, that it is impossible they should ever quarrel. He is the Minister's right hand for domestic affairs, as Mr. Saul is for foreign ones, who in that province does everything. He is also a very low man; but he has parts, quickness, and knowledge without the least appearance of fashion or manners of a gentleman. There is not a man in Saxony that does not detest him, except his patron, Count Bruhl, to whom he is certainly very useful. Heinnech went so far once as to propose in the Privy Council to hang him. He has very strange schemes in his head; he is certainly for the House of Austria, but in a manner peculiar to himself; *for he wishes to see that House strictly united with that of Bourbon, and believes that* a^[93] *practicable business*. He is secretary to the Cabinet Council, in conjunction with Mr. Walter, who is a very honest knowing man, well-intentioned, and quite in the true system, but at present hardly employed at all, to our great misfortune.

These persons govern under Count Bruhl, as the Countess Moyenska does over him—

... orbi
Jupiter imponit jura, sed illa Jovi.

She is thoroughly hated, having all had qualities that can unite in one person, among which pride, avarice, and revenge shine most conspicuous. She has certainly received money in large sums from France; but as that is received, and there is no immediate prospect of more, I think her violence against us seems to abate. I thought it my business to do all I could to be well with her, and I am now of all her parties. My reception, when I first went, was very cold; but I expected that, and persisted in going till I came to be very well received.

I shall now say a word or two of their Army. They aver that they have 44,000 men, but they really have but 33,000. To all appearance they are very fine ones, especially the Cavalry; but as I have already told you how ill they are paid, you must see that without a large sum to put them in motion, 'tis impossible they should act out of their own country. As to their generals, Count Rotosha and the Chevalier

de Saxe, both natural sons of the late King of Poland, are at the head of the Army. They are not wanting in abilities and knowledge; but they are both the idlest and most inactive of all mankind, and both bitter enemies of the House of Austria, because they reckon they were sacrificed by Prince Charles at the battle of Keisersdorf. There is also in this service a Prince of Anhalt-Dessau, who was formerly in the King of Prussia's, but who was discharged from thence upon suspicion of cowardice. He afterwards served as a volunteer in the armies of the Empress-Queen; but they would not give him any command at Vienna. At last the father, about a year and a half ago, brought him to Leipsick fair, presented and recommended him to the King of Poland, and begged he would make him a Lieutenant-General in his army. The King answered he would consider of it. Upon this the old Prince came out into the ante-chamber, and told everybody that the King had made his son Eugene a Lieutenant-General, and got his Commission immediately made out, which the good King, rather than have the trouble of a dispute, signed; and he is in this service.

There is another general here, a Frenchman, named D'Ollone, who was in the service of their Imperial Majesties; but being sent hither, about eight months ago, to regulate some differences about the Saxon troops, when they were in Bohemia, he talked so fast, and played so deep with Count Bruhl, that he thought him the greatest officer of the age, and at once offered to make him General of Foot (whereas he had been but Lieutenant-General under their Imperial Majesties.) This offer D'Ollone readily accepted, and entered into this service; but in a month's time all D'Ollone's talk was out, and he had won too much of Count Bruhl's money: so he quickly grew out of favour, and was found to be a man of no parts or consequence. In short, both parties are heartily sick of their bargain. He curses the day he was taken, and they the day they took him.

I hope you will excuse my mentioning these two last stories; but I mean them more for entertainment than information, though they are both strictly true, and serve a little to illustrate the characters of the King of Poland and his First Minister.

I must now inform you of what I judge to be the views and wishes of this Court. The King of Poland most ardently desires to see a peace made. He loves peace so much, that I believe he is not much concerned about what sort of a one it may be; but till that happy hour arrives, their system here (if they have any system) is to observe an impracticable neutrality; and by the fear they have of offending anybody (which is the natural consequence of such a system), they take care to oblige nobody. The Court of Vienna is very much dissatisfied with their proceedings at Dresden; but the Ministry of Versailles are often full as discontented with the steps they take. Russia alone is the power to which the King pays real court. 'Tis by the Czarina only that the King keeps possession of the Throne of Poland: for his affairs in that kingdom are in so bad a situation, and his interest there so very low, that the Grand Marshal, the Grand Chancellor, and many other Poles of distinction that came here upon the late double marriages, told me, in my first week's acquaintance with them, that if it was not for fear of Russia they would dethrone their King in half a year and choose another; for that he had broken through every promise that he had ever made them, and had not kept one tittle of the *pacta conventa*. The Ministry were so sensible that all this is true, that the Court goes into Poland early the next spring in order to manage that people, and to conciliate their minds to the House of Saxony; for the King has the succession of that Crown in his family much at heart; and this, if ever it does happen, must be brought about by Russia. After all this, judge of the weight the Court of Petersburg must have with that of Dresden. For my part, I give it as an opinion, by which I will abide, and which I can prove by facts, that whenever there is a Minister at Dresden, sent by the Czarina with absolute instructions to act in concert with those of his Majesty and his Allies, Saxony must do whatever they please.

There is something unfortunate between this Court and that of Vienna. They never were perfectly well together for six weeks at a time. This King thinks that it was entirely owing to him that the Imperial dignity returned to the House of Austria, and that their Imperial Majesties can never do enough to repay that obligation. The Court of Vienna says, that she placed the Elector of Saxony on

the Throne of Poland, (for doing which she has certainly since been a great sufferer,) without having any returns of gratitude from the Court of Dresden. 'Tis indeed true, that at a time when the Empress-Queen is fully employed, and unable to pay much attention to small things, this Court shows her very little regard. The Austrian Court sees this, and resents it tacitly very much. They have not yet thought fit to appoint anybody to succeed Esterhazy here, and they talked of sending only a Resident, at which this Court seems much offended. As to Prussia, this Court has not yet recovered the wounds nor the fright which it lately received from that quarter. With respect to France, their heads here were so turned with the marriage of the Dauphiness, that they are not yet quite settled. They are still pensioners to that Crown, but their treaty of subsidy expires next February. I flatter myself that it will not be renewed: nothing but poverty can make them do it.

I have asked Count Bruhl twenty times, how it was possible to rely in the least upon a power who would at any time sacrifice this country (because it is their interest so to do, which the French understand but too well), at a moment's warning, to their hated and dreaded foe, the King of Prussia. But the real cause that lost the Allies this Court, and threw it into the arms of France, was Mr. Calhoun, who, when Minister from Holland, had orders from his masters to treat about the taking a body of Saxon troops into their pay. He did indeed make the proposition; but at the same time prevented the success of it, by telling Count Bruhl, that though, by his office, he was obliged to ask for a body of Saxon troops, yet, as a friend to the Court of Dresden, he could not help saying that he doubted whether they would be well or regularly paid for them. Thus did this perfidious Dutchman talk, and easily persuaded Count Bruhl (who thought of nothing but the money) to refuse the troops. The Minister from this Court to the States General is a Frenchman, and heartily in the interest of his country; and all his letters that come here are as partial to our enemies and as prejudicial to his Majesty and his Allies as possible; and indeed this whole Court is so thoroughly Frenchified, that upon the late successes of our fleets, and the late battle won by our Allies in Italy, I don't think that I was congratulated by five people here, and those few that did wish me

joy did it in a whisper. I can't help mentioning one thing upon which this Court value themselves, and make a merit of to me. They say it is their influence over the King of the Two Sicilies (because he married their daughter), that has prevented his marching against our Allies in Lombardy; but such counters as these are never taken in payment.

Thus far I got Mr. Stephens to copy almost word for word a letter I wrote to Lord Chesterfield, by the same messenger that brings you this; and therefore it should not be shown to everybody; but I hope it will divert Lord Ilchester and the Duke of Marlborough. If it had been wrote to you in my own way, I could have made you laugh heartily. You observe that Monsieur Bruhl, like all First Ministers, keeps the lowest company. I wish I dared write all I could; but things are not yet ripe. The first opportunity, you shall have a packet of curiosities.

I am ever entirely yours,

C. HANBURY WILLIAMS.

* * *

Dresden, 27th August, 1745, N. S.

FOOTNOTES:

[89] Supposed to be Dr. Sherlock.

[90] This alludes to an interview between Mr. Pitt and Mr. Fox, May 9, 1755. See Melcombe's Diary, p. 319; and Mr. Fox's Letter to Lord Hartington of May 13, 1755, in Appendix to Waldegrave.

[91] See [Appendix, vol. i.](#)

[92] It is perhaps more reasonable, and certainly more charitable, to suspect Sir Charles of credulity, and his female informant of malignity, than to believe the tales of incest and licentious effrontery reported in this letter. On the other hand, it must be acknowledged that the general state of manners in German Courts, in the middle of last century, by no means disprove such imputations.—E.

[93] This passage, written in 1747, is remarkable; for Mr. Saul's "*scheme*" was proved to be "*practicable business*" in the course of a few years.—E.

END OF VOL. II.

T. C. Savill, Printer, 4, Chandos-street, Covent-garden.

TRANSCRIBER'S NOTE

Obvious typographical errors and punctuation errors have been corrected after careful comparison with other occurrences within the text and consultation of external sources.

Except for those changes noted below, all misspellings in the text, and inconsistent or archaic usage, have been retained: for example, everybody, every body; meantime, mean time; partizan; catched; meaned; honester; tragical; subtilty; Pensylvania; Massachusets.

[Pg 18](#): 'lived i na Court' replaced by 'lived in a Court'.

[Pg 22](#): 'nor to be wiped' replaced by 'not to be wiped'.

[Pg 28](#): 'to recal him' replaced by 'to recall him'.

[Pg 31](#): 'his Aid-de-camp' replaced by 'his Aide-de-camp'.

[Pg 124](#): 'forsesaw a war' replaced by 'foresaw a war'.

[Pg 140](#): 'Edgcumbe, the one' replaced by 'Edgecombe, the one'.

[Pg 218](#): 'inclined to pronouce' replaced by 'inclined to pronounce'.

[Pg 239](#): 'Saxony, to faciliate' replaced by 'Saxony, to facilitate'.

[Pg 239](#): 'reduced to recal' replaced by 'reduced to recall'.

[Pg 262](#): 'Oct. 27.—The King' replaced by 'Oct. 27th.—The King'.

[Pg 298](#): 'every the most' replaced by 'even the most'.

[Pg 304](#): 'Feb. 7.—The younger' replaced by 'Feb. 7th.—The younger'.

[Pg 321](#): 'was at at a loss' replaced by 'was at a loss'.

[Pg 374](#): 'be expelled Oxford' replaced by 'be expelled from Oxford'.

[Footnote \[76\]](#): 'Ramilies proved' replaced by 'Ramillies proved'.

[Footnote \[84\]](#): 'villany, murder' replaced by 'villainy, murder'.

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